

INVESTMENT AGREEMENT

31 OCTOBER 2022

BY AND AMONG

RAJESH STEEL INDUSTRIES PRIVATE LIMITED

AND

ADHARAK AGRICULTURAL

AND

JAYDEVI KISHOR AGRICULTURAL

AND

ROSHNI KISHOR AGRICULTURAL

AND

KSD WAREHOUSING PRIVATE LIMITED

AND

HORIZON INDUSTRIAL PARKS PRIVATE LIMITED



सत्यमेव जयते

INDIA NON JUDICIAL



Government of Karnataka

Rs. 20,000/-

e-Stamp

Certificate No.	: ISHKA81300738797100
Certificate Issued Date	: 18-Oct-2022 06:52 PM
Account Reference	: K08AC02 karnataka@INDIA.NONJUDICIAL
Unique Doc. Reference	: N.B0H4K0A0H0C0A0B091720580000000
Purchased by	: KSO Warehousing Private Limited
Description of Document	: Article (s) Agreement (in any other cases)
Property Description	: Investment Agreement
Consideration Price (Rs.)	: 0 (Zero)
First Party	: KSO Warehousing Private Limited
Second Party	: Horizon Industrial Parks Private Limited
Stamp Duty Paid By	: KSO Warehousing Private Limited
Stamp Duty Amount (Rs.)	: 20,000 (Twenty Thousand Rupees only)

सत्यमेव जयते



Stamp duty certificate follows this link

This stamp paper forms an integral part of the Investment Agreement dated 31 October 2022 executed by and amongst Rajesh Steel Industries Private Limited, Abhishek Agrawal, Jashvi Abhishek Agrawal, Roohina Abhishek Agrawal, Kso Warehousing Private Limited and Horizon Industrial Parks Private Limited

Disclaimer:

1. The certificate, which forms an integral part of the document, shall be valid only if it is signed by the person(s) who is/are the owner(s) of the document and is/are the owner(s) of the document. The certificate shall be valid only if it is signed by the person(s) who is/are the owner(s) of the document and is/are the owner(s) of the document.

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This INVESTMENT AGREEMENT (this "Agreement") is executed, on this 02nd day of October 2023 (the "Execution Date"), in Bangalore, Karnataka, by and amongst:

1. **RAJESH STEEL INDUSTRIES PRIVATE LIMITED**, a company incorporated under the Companies Act, 1956 with permanent account number AAAC6047E and having its registered office at Block No. 402, 4th Floor, M.S. House, Ravindra Tagore Marg, Civil Lines, Nagpur, Maharashtra (hereinafter referred to as "Rajesh Steel", which expression shall, unless repugnant to the context or meaning thereof, include its successors and permitted assigns);
2. **ABHISHEK AGRAWAL**, an Indian resident individual, with permanent account number AATFAC400E and residing at Plot No.300, Opp. Hoshp College, Chitambar Marg, Civil Lines, Nagpur - 46 (hereinafter referred to as "Abhishek", which expression shall, unless repugnant to the context or meaning thereof, include his successors, executors, legal heirs, administrators, and permitted assigns);
3. **JASHVEE ANISH AGRAWAL**, an Indian resident individual, with permanent account number EBNFAL190E and residing at 300, Opposite Hoshp College, Chitambar Marg, Civil Lines, Nagpur - 460001 (hereinafter referred to as "Jashvee", which expression shall, unless repugnant to the context or meaning thereof, include his successors, executors, legal heirs, administrators, and permitted assigns);
4. **ROSHNI ABHISHEK AGRAWAL**, an Indian resident individual, with permanent account number NPOH2485E and residing at 300, Opposite Hoshp College, Chitambar Marg, Civil Lines, Nagpur - 460001 (hereinafter referred to as "Roshni", which expression shall, unless repugnant to the context or meaning thereof, include his successors, executors, legal heirs, administrators, and permitted assigns);
5. **SSO WAREHOUSING PRIVATE LIMITED**, a company incorporated under the Companies Act, 2003 with permanent account number AAAC0612L and having its registered office at Block No. 402, 4th Floor, M.S. House, Ravindra Tagore Marg, Civil Lines, Nagpur Maharashtra 460006 (hereinafter referred to as "Company", which expression shall, unless repugnant to the context or meaning thereof, include its successors and permitted assigns); and
6. **HORDON INDUSTRIAL PARKS PRIVATE LIMITED**, a company incorporated under the Companies Act, 1956 with permanent account number AACD1346P and having its registered office at First Floor Embassy Road, 150 Embassy Road, Bangalore, Karnataka (hereinafter referred to as "Investor", which expression shall, unless repugnant to the context or meaning thereof, include its successors and permitted assigns).

Rajesh Steel and Abhishek are hereinafter be referred to individually as a "Promoter" and collectively as the "Promoters".

Jashvee and Roshni are hereinafter be referred to individually as an "Existing Shareholder" and collectively as the "Existing Shareholders".

The Company, Promoters, Existing Shareholders and the Investor are hereinafter be referred to individually as a "Party" and collectively as the "Parties".

WHEREAS:

- (A) The Company is engaged in the Business (as defined hereinafter);
- (B) The authorized and paid-up share capital of the Company is Rs. 1,00,000 (Rupees One Lakh) consisting of 10,000 (Ten Thousand) Equity Shares (as defined hereinafter). The shareholding pattern of the Company, on a Fully Diluted Basis, as of the Execution Date is set out in Part E of Schedule 1 (Decorative Mining Pattern on the Execution Date);
- (C) Rajesh Steel is the legal and beneficial owner of the Existing OCEs;
- (D) The Investor has agreed to purchase from Rajesh Steel, and Rajesh Steel has agreed to sell to the Investor, the Sale Securities, for the Purchase Consideration, in accordance with the terms and conditions of this Agreement;
- (E) The Parties are now entering into this Agreement to record the mutual rights and obligations in relation to the Transfer of the Sale Securities by Rajesh Steel to the Investor and related mutual agreements and understandings between the Parties.

NOW, THEREFORE, in consideration of the mutual agreements, covenants, representations and warranties set forth in the Agreement, and for other good and valuable consideration, the receipt and sufficiency of which is acknowledged by the Parties, the Parties hereby agree as follows:

1. DEFINITIONS AND INTERPRETATION

1.1 Definitions

"1951 Sale Deed" shall mean sale deed dated 17 March 1951 executed by Mr. Chikurthy Tarika in favour of Mr. Patankar Maruti Sakharan in respect of Q#1 Survey No. 30/1 (now known as Survey No. 18).

"Accounting Principles" shall mean applicable accounting standards issued by the Institute of Chartered Accountants of India, including the Indian Accounting Standards and generally accepted accounting practices and principles in India;

"Act" shall mean the Companies Act, 1956 and/or the Companies Act, 2013, as applicable, and as may be amended, modified, supplemented or re-enacted thereof from time to time;

"Affiliate" shall mean, with respect to any Person, any other Person, which, directly or indirectly, Controls, is Controlled by or is under common Control with the first-named Person, whether acting individually or in concert, including any right arising by virtue of shareholding, management rights, Contract or otherwise, provided that the Investor shall not be considered an Affiliate of the Company or Rajesh Steel, or vice versa, for the purposes of this Agreement. If such Person is an individual, the term "Affiliate" shall include a Relative of such individual;

"Aggregate Investment Amount" shall mean Rs. 26,88,23,500 (Rupees Twenty-Six Crore Sixty Lakh Twenty-Three Thousand and Five Hundred) i.e., the Investor's total investment in the Company, including towards the subscription, funding and/or purchase of the Class A OCEs;

"Agreed Expert" shall mean any of the following environmental experts:

- (c) Ecofirst Services Limited;
- (d) Ansh Group International; and
- (e) Building Environment (India) Private Limited.

"Agreement" shall mean this Investment Agreement, together with the Schedules and Annexures hereto, as may be amended, modified or supplemented from time to time, in accordance with its terms;

"Anti-Corruption Laws" shall mean any Law of any jurisdiction in which the Company performs business, or of the United States, or of the United Kingdom, including without limitation, the (Indian) Prevention of Corruption Act, Central Act No.48/1988, the Foreign Corrupt Practices Act of 1977, as amended, the U.K. Bribery Act of 2010 and where applicable, legislation enacted by member states and signatories implementing the OECD Convention Combating Bribery of Foreign Officials;

"Anti-Money Laundering Laws" shall mean applicable financial recordkeeping and reporting requirements of the (Indian) Prevention of Money Laundering Act, 2002, as amended, the U.S. Currency and Foreign Transaction Reporting Act of 1970, as amended, the U.S. Money Laundering Control Act of 1986, as amended, and all anti-money laundering laws issued, administered or enforced by any Governmental Authority in other jurisdictions where the Company conducts business or does Ansh;

"Appointee" shall have the meaning ascribed to it in Clause 9.1(i)(a);

"Articles" shall mean the articles of association of the Company, as amended from time to time;

"Akhil" shall mean Akhil Agrawal, an Indian resident individual, with permanent account number AYKPM567N and residing at Flat No.303, Opp. Holy College, Dattaraja Marg, Civil Lines, Nagpur - 44.

"Assets" shall mean assets or properties of every kind, nature, character and description (further immovable, movable, tangible, intangible, absolute, accrued, fixed or otherwise) as operated, owned or leased, including Cash, Cash Equivalents, receivables, securities, accounts and note receivables, real estate;

"Base Payment" shall have the meaning ascribed to it in Clause 2.4;

"Beneficial Owners" shall mean Anshu and Akshat;

"Benefit Plan" shall have the meaning ascribed to it in Paragraph 11(h) of Part B of Schedule 3 (Business Representations);

"Big Four" shall mean any of the following accounting firms:

- (i) EY;
- (ii) Deloitte Touche Tohmatsu;

- (iii) Ernst and Young; or
- (iv) PriceWaterhouseCoopers;

or any of their Indian associates,

"Board" shall mean the board of directors of the Company in office at the relevant time;

"Business" shall mean the construction, development and management of warehouses developed on the Project Land;

"Business Days" shall mean: (i) days (other than Saturday or Sunday) on which banks are generally open for operation in Singapore, Cayman Islands, Mumbai and Nagpur for the purpose of Clause 1.1 and 1.4 and 1.8; and (ii) days (other than Saturday or Sunday) on which banks are generally open for operation in Singapore, Mumbai and Nagpur, for all other purposes;

"Business Plan" shall mean the business plan set out in Schedule 2 (Business Plan) of this Agreement;

"Business Representations" shall mean the warranties set out in Part 8 of Schedule 1 (Business Representations);

"Call Option" shall have the meaning ascribed to it in Clause 3.5(i);

"Call Option Closing Due Date" shall have the meaning ascribed to it in Clause 3.5(ii)(a);

"Call Option Consideration" shall have the meaning ascribed to it in Clause 3.5(i);

"Call Option Exercise Notice" shall have the meaning ascribed to it in Clause 3.5(i);

"Call Securities" shall have the meaning ascribed to it in Clause 3.5(i);

"Cash" shall mean the aggregate of all cash held by or credited to the account of the Company (but excluding any cash that is restricted for use like margin money deposit with banks);

"Cash Equivalents" shall mean marketable securities and deposits (including any accrued interest thereon) of the Company that are readily collectible into Cash (but excluding any cash that is restricted for use like margin money deposit with banks);

"Charter Document" shall mean, with respect to a Person, the articles of association and memorandum of association, or similar organizational or incorporation documents, of such Person;

"Cdn" shall have the meaning ascribed to it in Clause 2.1;

"Class A Convertible Note" shall have the meaning ascribed to it in Paragraph 1.1 of Part C of Schedule 1 (Terms of the Optionally-Convertible Debentures);

"Class A OCN" shall mean the Class A unlisted, optionally convertible or redeemable debentures issued and allotted by the Company having a face value of Rs. 10 (Rupees Ten)

each, having the terms and conditions set forth in Part 1 of Schedule 2 (Terms of the Optionally Convertible Debentures).

"Class A OCD Terms" shall have the meaning ascribed to it in Paragraph 5 of Part 1 of Schedule 2 (Terms of the Optionally Convertible Debentures).

"Class B Conversion Ratio" shall have the meaning ascribed to it in Paragraph 5.1 of Part 1 of Schedule 2 (Terms of the Optionally Convertible Debentures).

"Class B Ratios" shall have the meaning ascribed to it in Clause 5.2(1).

"Class B OCD" shall mean the Class B (unlisted, optionally convertible or redeemable debentures issued and allotted by the Company having a face value of Rs. 10 (Rupee Ten) each, having the terms and conditions set forth in Part 2 of Schedule 2 (Terms of the Optionally Convertible Debentures).

"Class B OCD Terms" shall have the meaning ascribed to it in Paragraph 5 of Part 2 of Schedule 2 (Terms of the Optionally Convertible Debentures).

"Closing" shall mean the completion and fulfilment of the actions set out in Clause 5.2.

"Closing Conversion Shares" shall mean such number of Equity Shares to be issued by the Company upon conversion of Class A OCDs and Class B OCDs (in each case, in accordance with the terms thereof) into Equity Shares, in accordance with the terms of this Agreement.

"Closing Date" shall mean the date on which Closing takes place in accordance with Clause 5.2.

"Closing Resolutions" shall mean the following resolutions:

- (i) of the Board, approving the following:
 - (a) transfer of Sale Securities to the Investor by way of recording a transfer endorsement on the underlying original debenture certificate of the Sale Securities;
 - (b) appointment of 1 (One) Investor Director;
 - (c) updates to the register of directors and debentures to reflect the transactions contemplated under this Agreement;
 - (d) the filing of necessary forms with jurisdictional Registrar of Companies;
 - (e) subject to the approval of the shareholders, approving the amendment of the Articles to include, inter alia, the terms of the Class A OCDs and Class B OCDs, in form and substance acceptable to the Investor;
 - (f) adoption of the Business Plan, which shall be effective from the Conversion Closing Date;

- (g) adoption of the anti-corruption compliance program (which shall include a written anti-corruption policy designed to ensure compliance by the Company's directors, officers, key employees and agents with applicable Anti-Corruption Laws, and routine and periodic compliance trainings for such individuals), in entirety, in a form and substance to the Investor's satisfaction; and
 - (h) convening an extraordinary general meeting of the members of Company on the Closing Date;
- (c) of the shareholders approving the: (a) appointment of the Investor Director on the Board; and (b) amendment of the Articles to include the terms of the Class A OCBs and Class B OCBs;

"Committee" shall mean any committee of the Board appointed in accordance with this Agreement, the Articles and applicable laws;

"Company Bank Account" shall mean the following bank account of the Company:

Details of Bank Account	
Bank Name:	Abs Bank Limited
Account Name:	XSD Warehousing Pvt Ltd
Account Type:	Current Account
Account No:	020020015136531
IFSC:	UTIB0000048
Branch:	Civil Lines, Nagpur - 44001

"Company Information" shall mean all information and other materials in relation to the Company, the Project Land, including any information regarding title over Assets, any financial indebtedness, any Contracts, or litigation of the Company;

"Conditions Precedent" shall have the meaning ascribed to it in [Clause 4.1.1](#);

"Conditions Precedent Satisfaction Letter" shall have the meaning ascribed to it in [Clause 4.1.4](#);

"Consent Matters" shall mean any of the matters set forth in Schedule B (Consent Matters) of this Agreement;

"Consents" shall mean any approval, consent, notification, waiver, notice or other authorization of or from or to any Third Party, including banks and financial institutions (other than a Governmental Approval) that may be required for: (i) the execution of the Agreement; and (ii) the consummation of the transactions contemplated under this Agreement;

"Contract" shall mean, with respect to a Person, any agreement, contract, deed, subcontract, lease, instrument, note or binding commitment or undertaking of any nature, whether express or implied,

"Control" (including with correlative meaning, the terms "Controlled by", "Controlling" and "Under common Control with") shall mean, with respect to a Person, the acquisition or control, directly or indirectly, of more than 50% (fifty per cent) of the voting rights or of the issued share capital of such Person or the right to appoint and/or remove all or the majority of the members of the board of directors or other governing body of such Person, the power to direct or cause the direction of the management, to exercise significant influence on the management or policies of such Person, whether obtained directly or indirectly, and whether obtained by ownership of share capital, the possession of voting rights, through Contract or otherwise,

"Conversion and Listing Act(s)" shall mean the Conversion Conditions precedent set out in Paragraphs (C) and (D) of Part B of Schedule 3 (Conversion Conditions precedent) of the Agreement;

"Conversion and Listing Act(s) Cost" has the meaning ascribed to it under Clause 3.2;

"Conversion Closing" shall mean the completion and fulfilment of the actions set out in Clause 5.4;

"Conversion Closing Date" shall mean the date on which Conversion Closing takes place in accordance with Clause 5.4 or Clause 5.7 (as the case may be);

"Conversion Closing Date Disclosure Letter" shall mean the disclosure letter (in agreed form) issued by the Promoters and the Existing Shareholders to the Investor on the Conversion Closing Date, substantially in the form annexed hereto as Schedule 5 (Format of Disclosure Letter) together with annexures thereto, provided in accordance with Clause 5.8(i), which in addition to the matters provided under the Disclosure Letter, the Updated Disclosure Letter and the Land Acquisition Date Disclosure Letter shall provide updated full and fair disclosures (if any) qualifying the Representations as of the Conversion Closing Date, each of which update shall relate to matters which solely have occurred or arisen subsequent to the Land Acquisition Date but before the Conversion Closing Date (other than as or resulting from a breach of this Agreement). The Conversion Closing Date Disclosure Letter shall be duly acknowledged by the Investor by counter signing a copy thereof and providing the same to the Promoters and the Existing Shareholders. The Conversion Closing Date Disclosure Letter shall form an integral part of this Agreement;

"Conversion Closing Resolutions" shall mean the following resolutions:

- (a) of the Board, approving the following
 - (a) conversion of Class A ODDs and Class B ODDs into Equity Shares, in accordance with the terms of this Agreement;
 - (b) appointment of Investor Directors, such that there are 2 (Two) Investor Directors on the Board;

- (d) the resignation of all but 1 (One) Director, nominated by the Promoters and/or Existing Shareholders, as a Director on the Board;
 - (e) updates to the register of directors, debentures and members to reflect the transactions contemplated under this Agreement;
 - (f) subject to the approval of the shareholders, approving the amendment of the Articles to include the provisions of the Shareholders' Agreement, in form and substance acceptable to the Investor;
 - (g) the filing of necessary forms with the jurisdictional ROC; and
 - (h) convening an extraordinary general meeting of the members of the Company as the Closing Date;
- (i) of the shareholders approving that: (a) amendment of the Articles to include the provisions of the Shareholders' Agreement, in form and substance acceptable to the Investor; and (b) appointment of the Investor Director on the Board;

"Conversion Conditions Precedent" shall have the meaning ascribed to the term in [Clause 4.2.1](#);

"Conversion Conditions Precedent Satisfactory Letter" shall have the meaning ascribed to the term in [Clause 4.2.4](#);

"Conversion Notice" shall have the meaning ascribed to the term in [Clause 5.5](#);

"Cure Period" shall have the meaning ascribed to the term in [Clause 9.2\(4\)](#);

"De Minimis Amount" shall have the meaning ascribed to the term in [Paragraph 3\(i\) of Schedule 8 \(Definitions on Usability\)](#);

"Default IRR" shall mean the aggregate annualised internal rate of return received by the Investor calculated by the Investor in good faith on a cash-on-cash basis using the "XIRR" function of the most current version of the Microsoft Excel software and in accordance with this definition. Each Default IRR calculation shall be made using the aggregate amount of net proceeds actually received by the Investor on and attributable to the Investor's capital contributions equal to the Option Consideration (which shall be treated as having been contributed on the first day of the month on which the Put Option Closing Due Date falls) on a cumulative basis through the date of actual receipt of such net proceeds by the Investor (which shall be deemed to be actually received on the last day of the month in which such net proceeds are actually received by the Investor);

"Default Notice" shall have the meaning ascribed to the term in [Clause 9.2\(i\)](#);

"Default Option Consideration" shall mean an amount as determined by Investor and equal to an amount that would provide the Investor with net proceeds equal to a cumulative Default IRR of 2.0% (Two per cent) on and attributable to the Option Consideration, computed from the Put Option Closing Due Date (which shall be treated as having been contributed by the Investor on the first day of the month on which the Put Option Closing Due Date falls), until the date of actual receipt by the Investor of such net proceeds (i) or, the date of actual payment

to the Investor of the Option Consideration and Default Option Consideration), as applicable (which shall be deemed to be actually received on the last day of the month in which such net proceeds are actually received by the Investor).

"Delivered Financial Statements" shall mean the audited financial statements for the financial years ended 31 March 2020, attached hereto in Part B of Schedule 7 (Financials);

"Director" shall mean a director on the Board;

"Disclosure Letter" shall mean the disclosure letter (in agreed form) issued by the Promoters and the Existing Shareholders to the Investor on the Execution Date, substantially in the form annexed hereto as Schedule 5 (Format of Disclosure Letter), together with annexes thereto providing Full and Fair Disclosures (if any) qualifying the Representations as of the Execution Date, which Disclosure Letter shall be duly acknowledged by the Investor by counter signing a copy thereof and providing the same to the Promoters, and the Existing Shareholders. The Disclosure Letter shall form an integral part of this Agreement;

"Dispute" shall have the meaning ascribed to the term in Clause 20.1;

"Encumbrance" shall mean:

- (i) any mortgage, charge (whether fixed or floating), pledge, equitable interest, lien, hypothecation, assignment, deed of trust, title retention, security interest, encumbrance of any kind securing or conferring any priority of payment in respect of any obligation of any Person;
- (ii) any power, power of attorney, voting trust, interest, option, right of other Persons, right of set off, right of first offer, right of refusal, transfer restriction or any other right similar to the foregoing in favour of any Person;
- (iii) any adverse claim as to title, possession or use, conditional sale contract, lease contract, trust or other title exception of whatsoever nature;
- (iv) any other commitment, restriction, limitation or encumbrance of any kind or nature whatsoever including restriction on use, restrictions on voting rights, restrictions on Transfer (including negative lease, non-disposal undertakings and/or covenants), restrictions on receipt of income or restrictions on exercise of any other attribute of ownership; and
- (v) a Contract, whether conditional or otherwise, to give or refrain from giving effect to any of the foregoing;

and the terms "Encumber", and "Encumbering" shall be construed accordingly, and Parties expressly acknowledge and agree that the unpaid capital call on the Sale Securities and the Class B GICs shall not be considered as an encumbrance;

"Environmental Law" shall mean any applicable Law relating to the environment, pollution of the environment, health or safety or hazardous substances, which directly or indirectly applies to or affects the Company or Project Land;

"Equity Securities" shall mean Equity Shares, OCEs, and any options, warrants, convertible securities, bonds notes, debentures and other equity and debt securities of whatever kind of the Company that are directly or indirectly convertible into or exercisable or exchangeable for any Equity Share;

"Equity Shares" shall mean the equity shares of the Company having face value of Rs. 10 (Rupees Ten) each;

"Event of Default" shall have the meaning ascribed to the term in Clause 5.1;

"Existing Equity Shares" shall mean all Equity Shares of the Company held by the Existing Shareholders;

"Existing OCEs" shall mean the following:

- (i) 1,75,54,500 Class A unlisted, optionally convertible or redeemable debentures issued and allotted by the Company having a face value of Rs. 10 (Rupees Ten) each, having the terms and conditions set forth in Part B of Schedule 2 (Terms of the Optionally Convertible Debentures); and
- (ii) 34,41,300 Class B unlisted, optionally convertible or redeemable debentures issued and allotted by the Company having a face value of Rs. 10 (Rupees Ten) each, having the terms and conditions set forth in Part B of Schedule 2 (Terms of the Optionally Convertible Debentures);

"Expert Report" shall have the meaning ascribed to the term in Clause 5.9.2;

"Expert Scope" shall have the meaning ascribed to the term in Clause 5.9.3;

"Financial Indebtedness" shall mean any obligation for the payment or repayment of money for or in respect of:

- (i) moneys borrowed together with applicable interest, fees and/or other charges payable in connection with such borrowings;
- (ii) any amount raised pursuant to the issuance of debentures, redeemable notes or securities, including redeemable shares, redeemable preference shares, loan stock or any similar instrument, or other securities which are expressed to be redeemable;
- (iii) any amount raised by acceptance under any acceptance credit, bill acceptance or bill endorsement facility or dematerialized equivalent;
- (iv) the amount of any liability in respect of any lease or hire purchase contract which would, in accordance with Accounting Principles, be treated as a finance or capital lease;
- (v) any guarantee, indemnity or any other contingent liability (including commitments under any comfort letters or letters of credit);
- (vi) any derivative transaction entered into in connection with protection against or to benefit from fluctuation in any rate or price including any credit support arrangement

in respect thereof (and, when calculating the value of any derivative transaction, only the marked to market value shall be taken into account);

- (vi) receivable sold or discounted which has the effect of a future financial obligation of the Company or any subsidiary;
- (vii) any amount owed or payable under any other transaction (including any forward sale or purchase agreement) having the effect of a borrowing under Accounting Principles, including any obligation of the Company to pay in relation to any call or put option relating to any interest owned by a party to the Company; or
- (viii) amount of any liability in respect of any guarantee or indemnity for any of the items referred to in Paragraphs (i) to (vii) above;

"Financial Statements" shall mean the balance sheets, profit and loss account statements, and cash flow statements (audited or unaudited, as the case may be) of the Company together with notes thereto;

"Financial Year" means the period commencing from April 1 of one year and ending on March 31 of the immediately succeeding year;

"First Adjourned Board Meeting" shall have the meaning ascribed to it in Clause 5.8(i)(2);

"Foreign Exchange Laws" shall mean the Foreign Exchange Management Act, 1999, the rules and regulations framed thereunder, the circulars and press notes issued by the Department for Promotion of Industry and Internal Trade, Reserve Bank of India in relation to such act, rules and regulations, and the consolidated foreign direct investment policy issued by the Government of India, as may be amended, modified, supplemented or re-enacted from time to time;

"Full and Fair Disclosure" (including with correlative meaning, the term "Fully and Fairly Disclosed") shall mean a disclosure made with sufficient details such that the investor is able to reasonably identify and evaluate the nature and scope of the matter disclosed, without having to refer to any other information or documents;

"Fully Diluted Basis" shall mean that the calculation is to be made assuming that all outstanding Equity Securities (whether or not by their terms then currently convertible, exercisable or exchangeable into Equity Shares), and any outstanding commitments to issue Equity Shares at a future date (whether or not due to the occurrence of an event or otherwise), have been so converted, exercised or exchanged or that have the effect of conversion, into Equity Shares;

"Fundamental Representations" shall mean the warranties set out in Part A of [Schedule 3 (Fundamental Representations)] excluding the warranties in Paragraphs 2.6, 2.6.1, 2.6.2 and 2.6.3;

"Government Official" shall mean: (i) an officer, agent, or employee of a government or government-owned enterprise (or any agency, department or instrumentality thereof) or political party or any public international organization, or (ii) a candidate for government or political office;

"Governmental Approvals" shall mean any permission, approval, consent, license, permit, order, decree, authorization, registration, filing, notification, exemption or ruling to or from or with any Governmental Authority.

"Governmental Authority" shall mean any nation or government or any province, state or any other political subdivision thereof, any entity, authority or body exercising executive, legislative, judicial, regulatory or administrative functions of or pertaining to government, including any government authority, agency, department, board, commission or instrumentality, of any other jurisdiction in which a party to this Agreement is resident, any court, tribunal or arbitrator and any securities exchange or body or authority regulating such securities exchange;

"Improper Payment" shall mean any bribe, improper rebate, payoff, kickback, or any other item of value provided with the intent to obtain or secure an undue business advantage;

"Indemnification Notice" shall have the meaning ascribed to it in Clause 8.5(i);

"Indemnified Persons" shall mean, each of, the Investor, Blackstone Advisors India Private Limited, Blackstone Inc., Blackstone (Singapore) Pte. Ltd, The Blackstone Group (UK) Limited, BSCP Asia I CIP Holding (HK) Pte. Ltd, BSCP Asia I Holdings IV Pte. Limited (Private), BSCP Asia II SPS IIF Holding (HK) Limited, BSCP II SPS IIF Holding (HK) Limited and the Company, and each of their respective directors, officers, employees and agents;

"Indemnifying Persons" shall mean the Promoters, jointly and severally;

"Information" shall have the meaning ascribed to it in Clause 13.2.

"Insolvency Event" shall mean, with respect to a Person, any of the following events:

- (i) such Person admits in writing its inability to pay its debts as they fall due and payable or, by reason of financial difficulties takes any action in relation to a composition or arrangement with any creditor;
- (ii) such Person voluntarily files or initiates a petition or proceeding seeking a judgment of insolvency or an order for winding up or any other relief under any insolvency or receivership laws or other laws affecting creditor rights;
- (iii) the net worth of such Person having been ascertained ended;
- (iv) such Person is deemed by any court or tribunal or a competent authority to be unable to pay its debts as they fall due;
- (v) such Person enters a composition or compromise, in relation to its financial indebtedness;
- (vi) any action for enforcement of any security interest created over the Assets of such Person is initiated, which action is not vacated or stayed within a period of 60 (sixty) days from date of initiation of such action;

- (vi) an application for insolvency, liquidation, winding-up or dissolution is filed against such Person, and such application is not vacated or stayed within a period of 90 (Ninety) days from date of filing of such application; and/or
- (vii) any Person, (a) obtains a judgment or order from a court of competent jurisdiction against such Person for appointment of a receiver, professional, liquidator, receiver or other similar officer over such party or substantially all its assets, which judgment or order is not vacated or stayed within a period of 90 (Ninety) days; or (b) obtains a judgment of insolvency or a winding up order against such Person from a court of competent jurisdiction.

"Investor Directed[]" shall mean such individuals as may be nominated by the Investor for appointment onto the Board as Directors. The Investor Directors shall be a non-executive Directors and no Investor Director shall be (a) liable for any default or failure of the Company in complying with the provisions of any applicable Law, including defaults under the Act or applicable taxation or labour Law; and (b) identified as an "officer-in-default" (or equivalent) of the Company, or as occupier of any premises used by the Company or as employers under applicable Law;

"Investor Representatives" shall mean the representatives and witnesses provided by the Investor, as set out under Schedule 1.1 (Investor Representatives and Warranties).

"IRR" shall mean the aggregate annualised internal rate of return received by the Investor calculated by the Investor in good faith on a cash-on-cash basis using the "XIRR" function of the most current version of the Microsoft Excel software and in accordance with this definition. Such IRR calculation shall be made using the aggregate amount of net proceeds actually received by the Investor on and attributable to the Investor's capital contributions equal to the Aggregate Investment Amount (which shall be treated as having been contributed on the first day of the month on which the Closing Date falls) on a cumulative basis through the date of actual receipt of such net proceeds by the Investor (which shall be deemed to be actually received on the last day of the month in which such net proceeds are actually received by the Investor).

"IT Act" shall mean the Income Tax Act, 1961 and as may be amended, modified, supplemented or re-enacted thereof from time to time;

"Knowledge" of any Person, when used in relation to: (i) any Existing Shareholders, shall mean (a) actual knowledge of the Existing Shareholders; and (b) also the knowledge, information, or awareness the Existing Shareholders would have had assuming each Existing Shareholder had made reasonable, due and careful enquiries; (ii) in relation to the Promoters shall mean (a) the actual knowledge of Ashish, Ashishak and the board of directors of Rajesh Steel; and (b) the knowledge, information, or awareness that Ashish, Ashishak and other directors of Rajesh Steel would have had assuming they had made reasonable, due and careful enquiries; and (iii) in relation to the Company shall mean (a) the actual knowledge of the board of directors of the Company, Ashish and the Promoters; and (b) also the knowledge, information, or awareness such directors of the Company, Ashish and the Promoters would have had assuming they had made reasonable, due and careful enquiries;

"Land Acquisition Cost" shall have the meaning ascribed to in Clause 3.1.

"Land Acquisition Consideration" shall mean an amount of not more than Rs. 23,00,00,000 (Rupees Twenty Three Crores) i.e., the aggregate consideration payable by the Company for the acquisition and transfer of the Project Land under the Sale Deeds;

"Land Acquisition Date" shall mean the date on which the Sale Deeds are executed, and the Project Land is acquired by the Company under the Sale Deeds, in each case, to the satisfaction of the Investor;

"Land Acquisition Date Disclosure Letter" shall mean the updated disclosure letter (in agreed form) issued by the Promoters and the Existing Shareholders to the Investor on the Land Acquisition Date, substantially in the form annexed hereto as Schedule 3 (Format of Disclosure Letter), together with annexures thereto, provided in accordance with Clause 3.30.3, which in addition to the matters provided under the Disclosure Letter and the Updated Disclosure Letter, shall provide updated Full and Fair Disclosures (if any) qualifying the Representations as of the Land Acquisition Date, each of which update shall relate to matters which solely have occurred or arisen subsequent to the Closing Date but before the Land Acquisition Date (other than as or resulting from a breach of this Agreement). The Land Acquisition Date Disclosure Letter shall be duly acknowledged by the Investor by counter signing a copy thereof and providing the same to the Promoters and the Existing Shareholders. The Land Acquisition Date Disclosure Letter shall form an integral part of this Agreement;

"Land Title Representations" shall mean the warranties set out in Part D of Schedule 3 (Land Title Representations);

"Law" or "Applicable Law" shall mean any statute, law, regulation, ordinance, code, rule, judgment, notification, rule of common law, Order, decree, by-law, Governmental Approval, directive, guideline, requirement or other governmental restriction, or any similar form of decision of, or determination by, or any interpretation, policy or administration, each having the force of law issued by any Governmental Authority having jurisdiction over the matter in question, in each case, whether in effect as of the Execution Date or thereafter;

"Liabilities" shall mean all Financial Indebtedness of the Company, and all other liabilities of the Company, including any liabilities towards trade creditors, relating to Taxes, local ordinances, and fringe benefits Taxes or statutory dues;

"Litigation" shall mean suits, civil and criminal actions, arbitration proceedings, legal actions, disputes, writ petitions and all other legal proceedings, or written claims of any kind, pending, whether before any court, judicial or quasi-judicial or regulatory authority, tribunal, Governmental Authority or any arbitrator;

"Lock-In Period" has the meaning ascribed to it under Clause 5.4;

"Long Stop Date" shall mean, in the context of:

- (i) Closing: 31 December 2022 or such extended date as may be mutually decided, in writing, by the Investor and the Promoter; and
- (ii) Conversion Closing: 365 (Three Hundred and Sixty-five) days from the Land Acquisition Date, which time period, in case the Conversion Closing does not take place within the aforesaid 365 (Three Hundred and Sixty-five) days from the Land

Acquisition Date, will automatically (and without any further action by the Parties) stand extended by a period of 90 (Ninety) days;

"Loss" or "Losses" shall mean any and all direct losses, liabilities (including payment of Taxes), claims, demands, actions, suits, judgments, awards, fines, settlements, damages, charges, reasonable costs and out-of-pocket expenses (including reasonable attorneys' fees and accountants' fees), interest and penalties, loss of revenue or profits and in each case whether or not resulting from any Third-Party Claims. It is hereby agreed and acknowledged that "Loss" shall not include any remote, indirect or unforeseeable losses;

"Material Adverse Effect" shall mean any event, occurrence or fact, or series of events, occurrences or facts, that individually or in the aggregate, has had or would reasonably be expected to have a material adverse effect on any of the following:

- (i) the validity or enforceability of this Agreement or any other Transaction Document, or the rights or remedies of the Investor hereunder or thereunder;
- (ii) the Assets, Liabilities, Project Lead, or financial condition of the Company;
- (iii) the ability of the Company, Promoters or existing shareholders to consummate the transactions contemplated hereby or by any other Transaction Document (to which they are a party) or perform their respective material obligations under this Agreement or any other Transaction Document (to which they are a party); or
- (iv) the validity and/or continued survival in full force and effect of any Governmental Approvals required for the Company to carry on the Business;

"Mortgage" shall have the meaning ascribed to in Clause 5.4(i);

"Mortgage Notice" shall have the meaning ascribed to in Clause 5.4(i);

"OCG (Lawsonian Notice)" shall have the meaning given to it in Paragraph 5.1(a) of Part C of Schedule 2 (Class A OCG Terms);

"OCGs" shall mean, collectively, the Class A OCGs and the Class B OCGs;

"OFAC" shall mean Office of Foreign Assets Control of the U.S. Department of Treasury;

"Option Consideration" shall mean an amount as determined by Investor and equal to the Aggregate Investment Amount, along with an amount that would provide the Investor with:

- (i) a cumulative total of 15% (Fifteen per cent), in case a Put Option is exercised pursuant to occurrence of Event of Default set out in Clauses 9.1 (i) (i) (ii) (iii) (iv) and/or (v); and
- (ii) a cumulative total of 5.5% (Five point Five per cent), in case Put Option is exercised pursuant to occurrence of (i) any other Events of Default other than as set out in (i) above; and/or (ii) due to occurrence of a Trigger Event,

in each case, on and attributable to such Aggregate Investment Amount, computed from the Closing Date (which shall be treated as having been contributed) by the Investor on the first day of the month on which the Closing Date falls, until the date of actual receipt by the

Investor of such net proceeds (i.e., the date of actual payment to the Investor of the Option Consideration and the Default Option Consideration), as applicable (which shall be deemed to be actually received on the last day of the month in which such net proceeds are actually received by the Investor);

"Order" shall mean any order, injunction, judgment, decree, ruling, writ, assessment or award of a court, arbitration body or other Governmental Authority;

"Ordinary Course" shall mean an action taken by or on behalf of a Person that is:

- (i) in the nature of actions customarily taken in the ordinary course of the Person's business operations;
- (ii) taken in accordance with (a) applicable Law and (b) sound and prudent business practices undertaken by other Persons engaged in the business and industry substantially similar to the Person's business and industry; and
- (iii) consistent with past practice and existing policies of such Person;

"Original Board Meeting" shall have the meaning ascribed to it in [Clause 5.5\(i\)\(ii\)](#);

"PSPF" shall mean Permanent Agency/Private Limited, a company incorporated under the Act with permanent account number MCOPI1848 and having its registered office at 28, Sahasr Nagar, Khanda, Nagpur 44002;

"Pur Payment" shall have the meaning ascribed to it in [Clause 5.5\(i\)\(ii\)](#);

"Person" shall mean any natural person, limited or unlimited liability company, corporation, partnership (whether limited or unlimited), proprietorship, Hindu undivided family, trust, union, association, Governmental Authority or any agency or political subdivision thereof or any other entity that may be treated as a legal person under applicable Law;

"Persons" shall have the meaning ascribed to it in Paragraph 2(i) of Part B of Schedule 3 (Business Associations);

"Pre-Closing Resolutions" shall mean the: (i) resolutions of the Board, in form and substance acceptable to the Investor, approving the execution and performance of the Transaction Documents by the Company; resolutions of the board of directors of Rajesh Steel, in form and substance acceptable to the Investor, approving the execution and performance of the Transaction Documents by Rajesh Steel; and (ii) resolutions of the board of directors of the Investor, in form and substance acceptable to the Promoters, approving the execution and performance of the Transaction Documents by the Investor;

"Prohibited Person" shall mean:

- (i) any Person who is convicted in or currently subject to criminal proceedings or any regulatory investigation by a Governmental Authority for an offence or crime involving fraud, corruption, money laundering, or moral turpitude which involves an imprisonment term of at least 12 (twelve) months or more;

- (iii) any Person (a) who is being investigated to be an organized crime figure or otherwise involved in organized crime or the financing of terrorism, or (b) who Controls a Person that has been convicted in or is currently subject to criminal proceedings for an offence or crime involving fraud, corruption, money laundering, or moral turpitude which has an imprisonment term of at least 12 (twelve) months or more or is being investigated to be involved in organized crime or the financing of terrorism, or (c) who is reputed to have substantial business or other affiliations with organized crime figures, the financing of terrorism or other criminal enterprises; and for each of the aforesaid, the information specified therein and the identity of the concerned Person is available in public domain or available from reasonably reliable sources, including any government agency; or
- (iv) any Person with whom transactions are prohibited under, or that is directly Controlled by, any nation, organization or group adjudicated in violation, or under investigation by governmental or reputable internationally recognized agencies or institutions for violation of, any applicable Anti-Money Laundering Laws, Sanctions Laws, or similar regulations, rules, executive orders and government guidance in the United States of America and/or in India (including, without limitation, the reporting, record keeping and compliance requirements of the Bank Secrecy Act, as amended by The International Money Laundering Abatement and Financial Anti-Terrorism Act of 2001, Title III of the USA Patriot Act, and other authorizing statutes in the United States and/or in India, executive orders and regulations administered by the Office of Foreign Assets Control of the United States/Department of Treasury).

"Project Land" shall mean lands admeasuring 176.256.00 (seventeen to 43.81 Acres) comprised in lands bearing Survey Nos. 8, 18, 19/2, 20/2/4 and 20/2/8 situated at Village Linga, Taluka Naggur (Gawin/Burel), District Naggur, situated within the limits of Naggur Metropolitan Regional Development Authority as set out in Schedule 1 (Project Land).

"Project Land Acquisition Related Actions" shall mean such actions and steps to be undertaken by the Company within the prescribed timelines therein pursuant to Clause 3.5.1 and 5.18 of this Agreement;

"Promoter Director(s)" shall mean such individuals as may be nominated by the Promoters for appointment onto the Board as Directors;

"Promoter Representative" shall have the meaning ascribed to it in Clause 14.15E;

"Public International Organization" shall mean any of the following organizations: (i) United Nations, International Red Cross, (ii) World Bank, (iii) European Union and its constituent organizations (e.g., European Commission, European Court of Justice), (iv) International Monetary Fund, (v) Asia Development Bank, (vi) European Bank for Reconstruction and Development, (vii) Interpol, (viii) World Health Organization and (ix) World Trade Organisation;

"Purchase Consideration" shall mean an amount of Rs. 18,50,15,800 (Rupees Ten Crore Eighty Lakhs and Fifteen Thousand Eight).

"Put Option" shall have the meaning ascribed to it in Clause 9.6E;

"Put Option Expiry Due Date" shall have the meaning ascribed to it in Clause 3.4(v)(a);

"Put Option Exercise Notice" shall have the meaning ascribed to it in Clause 3.4(v)(c);

"Put Securities" shall have the meaning ascribed to it in Clause 3.4(i);

"Related Party" shall have the meaning ascribed to the term in Companies Act, 2013;

"Relative" shall have the meaning as set forth in the Act and shall include the meaning ascribed to it under Accounting Standard 18 prescribed by the Institute of Chartered Accountants of India or any successor accounting standard;

"Representations" shall mean the representations and warranties provided by the Existing Shareholders and the Promoters, as set out under Schedule 2 (Representations and Warranties);

"Revised Class B Conversion Ratio" shall have the meaning ascribed to it in Paragraph 5.1(a) of Part D of Schedule 2 (Class A OCD Terms);

"ROC" shall mean Registrar of Companies, Maharashtra;

"Sale Deeds" shall mean the sale deeds proposed to be executed between PPPL and the Company in relation to the acquisition of the Project Land, (in the agreed form) attached in Schedule 11 (Sale Deeds);

"Sale Consideration" shall mean 1,75,00,000 (One crore Seventy Five Lakhs Fifty Six Thousand and Five Hundred) Class A OCDs;

"Sanctions Laws" shall mean all the economic or financial sanctions trade and import and export- related laws, regulations or embargoes implemented or enforced by the United States, including the U.S. Economic Sanctions, the European Union, His Majesty's Treasury, the United Nations, the Reserve Bank of India or any other Governmental Authority to whose jurisdiction the Company, Promoters, Existing Shareholders, or the Investor are subject;

"Second Adjourned Board Meeting" shall have the meaning ascribed to it in Clause 3.4(v)(c);

"Securities Pledge Agreement" shall mean the Securities Pledge Agreement proposed to be executed between the Company, the Existing Shareholders, Rajesh Doshi and Vandana Sureshchandra Services in relation to the pledge of all Equity Securities of the Promoters and Existing Shareholders, (in the agreed form) attached in Schedule 12 (Securities Pledge Agreement);

"Shareholder's Agreement" shall mean the shareholder's agreement of even date executed between the Company, Existing Shareholders, Promoters and the Investor;

"SIC" shall have the meaning ascribed to it in Clause 11.1(i);

"Signing Financials" shall mean the pro forma balance sheet of the Company as on 15 October 2022 annexed hereto in Part B of Schedule 2 (Financials);

"Specific Indemnity Matters" shall have the meaning ascribed to in Clause 8.1(v);

"Tax" or collectively "Taxes" or "Taxation" shall mean any and all taxes (direct or indirect) (Indian and where applicable non-Indian), assessments, duties, impositions, levies, and other charges in the nature of (or similar to) tax whatsoever by any governmental authority including income tax, fringe benefit tax, sales tax, customs duty, gains, sales, licenses, excise duty, service tax, goods and services tax, capital gains, dividend distribution, payroll occupation, value added or transfer taxes, governmental charges, fees, levies or assessments or other taxes, levies, fees, stamp duties, statutory gratuity and provident fund payments or other employment benefit plan contributions, withholding obligations and similar charges of any jurisdiction and shall include any interest, fines, and penalties related thereto and, with respect to such taxes, any estimated tax, interest and penalties or additions to tax and interest on such penalties and additions to tax;

"Tax Claim" shall mean a claim by any Governmental Authority for payment of Tax;

"Tax Deducted at Source" shall have the meaning ascribed to it in Clause 3.4.1;

"Tax Representations" shall mean the warranties set out in Part C of Schedule 1 ("Tax Representations");

"Third Party" shall mean a Person who is not a party to this Agreement;

"Third Party Transferor" shall have the meaning ascribed to it in Clause 3;

"Third Party Claim" shall have the meaning ascribed to it in Clause 3.3(i);

"Thresholds List" shall have the meaning ascribed to the term in Paragraph 10(i) of Schedule 8 ("Limitations of Liability");

"Transaction Documents" shall collectively mean this Agreement, Shareholders' Agreement and any other document designated as a Transaction Document by the Parties in writing;

"Transfer" (including, with correlative meaning, the terms "Transferred by", "Transferring" and "Transferability") shall mean to transfer, sell, assign, incur, place in trust (vesting or otherwise), exchange, gift or transfer by operation of Law or in any other way, dispose of, whether or not voluntarily and whether directly or indirectly (pursuant to the transfer of an economic or other interest, the creation of a derivative security, operation of Law or otherwise);

"Trigger Event" shall mean the trigger events set out in Clauses 3.8(i)(a) and 3.8(i)(b);

"U.S." shall mean the United States of America;

"U.S. Economic Sanctions" shall mean any sanction administered by the Office of Foreign Assets Control of the United States Treasury, including any "Specially Designated Nationals and Blocked Persons" as prescribed thereunder; and

"Updated Disclosure Letter" shall mean the updated disclosure letter (in agreed form) issued by the Promoters and the Existing Shareholders to the Investor on the Closing Date, substantially in the form annexed hereto as Schedule 3 ("Form of Disclosure Letter") together with annexes thereto, provided in accordance with Clause 3.2(i), which in addition to the matters provided under the Disclosure Letter shall provide updated full and fair Disclosures

(if any) qualifying the Representations as of the Closing Date, each of which update shall relate to matters which solely have occurred or arisen subsequent to the Execution Date but before the Closing Date (other than as or resulting from a breach of this Agreement). The Updated Disclosure Letter shall be duly acknowledged by the Investor by counter signing a copy thereof and providing the same to the Promoters and the Existing Shareholders. The Updated Disclosure Letter shall form an integral part of this Agreement.

1.2 Interpretation

- (i) Unless the context of this Agreement otherwise requires:
 - (a) Words using the singular or plural number also include the plural or singular number, respectively;
 - (b) Words of any gender are deemed to include the other gender; and
 - (c) Reference to the word "include" (or any derivative thereof) shall be construed without limitation;
- (ii) The terms "hereof", "herein", "hereby", "herein" and derivative or similar words refer to this entire Agreement or specified Clauses of this Agreement, as the case may be;
- (iii) The term "Clause", "Schedule" and "Annexure" refers to the specified Clause, Schedule or Annexure, respectively, of this Agreement;
- (iv) References in this Agreement to any Law issued by a Governmental Authority or to any provision thereof shall be construed as meaning and including references to:
 - (a) any statutory modification, consolidation or re-enactment made after the Execution Date and up to the Closing Date and for the time being in force;
 - (b) all statutory instruments or orders made pursuant to a statutory provision and any subordinate legislation made from time to time; and
 - (c) any statutory provisions of which these statutory provisions are a consolidation, re-enactment or modification.
- (v) The Recitals, the Schedules and Annexures hereto shall constitute an integral part of this Agreement;
- (vi) The index hereto and headings and titles hereto are used for convenience of reference only and shall not affect the construction of this Agreement;
- (vii) Reference to any document includes an amendment or supplement to, or replacement or revision of, that document, but disregarding any amendment, supplement, replacement or revision made in breach of this Agreement;
- (viii) Any word or phrase defined in the body of this Agreement as opposed to being defined in Clause 1.1 above shall have the meaning assigned to it in such definition throughout this Agreement, unless the contrary is expressly stated or the contrary clearly appears from the context;

- (a) When any number of days is prescribed in any document, the same shall be reckoned exclusive of the first and inclusive of the last day unless the last day does not fall on a Business Day, in which case the last day shall be the next succeeding day which is a Business Day;
- (b) the expression "agreed form" in relation to any document shall mean the document in such form and substance as agreed between the Promoters and the Investor, and initialled for the purpose of identification by each of them;
- (c) except as set out otherwise in this Agreement, where any obligation is imposed on the Company, to be performed anytime on or prior to Conversion Closing Date, each of the Promoters shall procure the performance by the Company of such obligations in a timely manner;
- (d) Time is of essence in the performance of the Parties' respective obligations. If any time period specified herein is extended, such extended time shall also be of essence; and
- (e) No provision of this Agreement shall be interpreted in favour of, or against, any Party by reason of the extent to which such Party or its counsel participated in the drafting thereof or by reason of the extent to which any such provision is inconsistent with any prior draft thereof. This Agreement has been negotiated and reviewed by the Parties and the Parties have participated jointly in the negotiation and drafting of this Agreement. Accordingly, in the event any ambiguity or a question of intent or interpretation arises, this Agreement will be construed as drafted jointly by the Parties, and no presumption or burden of proof will arise favouring or disfavouring any Party by virtue of the authorship of any provisions of this Agreement. Additionally, no court or arbitrator construing this Agreement will construe it more stringently against one Party than against the other.

2. AGREEMENT TO PURCHASE THE SALE SECURITIES

2.1 Subject to the terms and conditions of this Agreement:

- 2.1.1 on the Closing Date, the Investor hereby agrees to purchase from Rajesh Steel, and Rajesh Steel agrees to sell, the Sale Securities, together with all rights, title and interests arising therefrom (including all rights and advantages now and hereafter attaching or accruing thereto), such that the Investor shall, upon completion of the purchase of the Sale Securities in its name, receive full legal and beneficial ownership of the Sale Securities and all rights and benefits relating thereto and arising thereat, free and clear from all Encumbrances, in consideration of the Purchase Consideration; and
- 2.1.2 on the Conversion Closing Date, the Investor and Rajesh Steel shall convert, and the Company, the Existing Shareholders and the Promoters shall cause the conversion of the Class A OCEs and Class B OCEs respectively into Equity Shares (as per the terms of this Agreement), free and clear from all Encumbrances, together with all rights, title and interests arising therefrom (including all rights and advantages now and hereafter attaching or accruing thereto), such that the Investor and Rajesh Steel shall, upon completion of the allotment of the Closing Conversion Shares in its name, receive full

legal and beneficial ownership of such Closing Conversion Shares and all rights and benefits relating thereto and among thereof.

3.2 Securities Holding Pattern: The securities holding pattern of the Company as at:

- 3.2.1 the Execution Date, is set forth in Part A of Schedule 3 (Securities Holding Pattern on the Execution Date);
- 3.2.2 the Closing Date, immediately prior to Closing, is set forth in Part B of Schedule 3 (Securities Holding Pattern immediately prior to Closing);
- 3.2.3 the Closing Date, immediately after the Closing, is set forth in Part C of Schedule 3 (Securities Holding Pattern immediately after Closing); and
- 3.2.4 the Conversion Closing Date, immediately after the Conversion Closing, is set forth in Part D of Schedule 3 (Securities Holding Pattern immediately after Conversion Closing).

3. USE OF PROCEEDS

- 3.1 The Investor and the Promoters agree and acknowledge that all amounts paid and/or contributed by the Parties, under and/or in connection with this Agreement shall be utilized by the Company for: (i) the purchase of Project Land pursuant to the terms of the Sale Deeds; (ii) paying costs, fees, premiums and other charges incurred in relation to conversion of the Project Land from "agricultural" to "industrial" and obtaining needed zoning certificate or obtaining approval for setting up of warehouse, logistics park and/or an integrated logistics park on the Project Land, in each case subject to the terms and conditions of this Agreement; and (iii) any unutilized amounts post completion of actions set out in (i) and (ii) above shall be utilized by the Company, in a manner as determined by the Investor.
- 3.2 All costs, expenses or charges required to be incurred towards or in connection with the completion of the Conversion and Zoning Actions (including assessment charges, amounts and/or premium payable to a Governmental Authority to achieve a minimum available floor area ratio (FAR) of 1.0x, but excluding any building construction charges and contribution to land development fund) ("Conversion and Zoning Actions Cost"), up to an amount of Rs. 18,00,000 (Rupees Sixteen Lakh) per acre, in aggregate, shall be borne by the Company, and additional amounts (if any), in the aggregate, in excess of Rs. 18,00,000 (Rupees Sixteen Lakh) per acre shall be borne solely by the Promoters (jointly and severally).
- 3.3 All costs, expenses or charges required to be incurred towards or in connection with the purchase and transfer of the Project Land ("Land Acquisition Cost") up to an amount equal to the Land Acquisition Consideration shall be borne by the Company, and additional amounts (if any), in the aggregate, in excess of the Land Acquisition Consideration shall be borne solely by the Promoters (jointly and severally).
- 3.4 **TAX DEDUCTED AT SOURCE**
 - 3.4.1 The Investor shall be entitled to deduct and withhold from payment of Purchase Consideration to be made pursuant to this Agreement as per section 1912 of the IT Act ("Tax Deducted at Source").

- 1.4.2 To the extent that amounts are so withheld and paid to the appropriate Governmental Authority pursuant to any Applicable Law relating to Tax, such withheld amounts shall be treated for all purposes of this Agreement as having been paid to the relevant payee in respect of which such deduction and withholding was made.
- 1.4.3 The Investor shall (i) deposit any Taxes withheld under this Agreement with the relevant Governmental Authority; (ii) complete filing of withholding tax returns within the statutory due date; and (iii) issue a withholding Tax certificate in Form 16A within the prescribed statutory timelines.

4. CONDITIONS PRECEDENT

4.1 Conditions Precedent to Closing:

- 4.1.1 The obligation of the Investor to proceed to the Closing, purchase the Sale Securities, and payment of the Purchase Consideration in the manner contemplated under this Agreement shall be conditional upon fulfillment, to the reasonable satisfaction of the Investor (except where the fulfillment of the relevant condition precedent has been deferred or prescribed to be a condition subsequent to Closing, or a waiver has been provided by the Investor in writing in its sole discretion), of each of the conditions precedent as specified in Part 3 of Schedule 3 (Conditions Precedent) ("Conditions Precedent"), on or prior to the Long Stop Date.
- 4.1.2 The Company (and the Promoters) shall ensure that the Company) shall fulfil each Condition Precedent at the earliest and in any case at least 30 (Ten) Business Days before the applicable Long Stop Date.
- 4.1.3 If any of the Existing Shareholders, Promoters and/or the Company becomes aware of any event or circumstance that will or may reasonably be expected to prevent any of the Conditions Precedent from being satisfied, on or prior to the applicable Long Stop Date, it shall forthwith notify the Investor in writing of such event or circumstance, and the Promoters and the Company shall take all reasonable actions and steps as may be required to remove or remedy such underlying events and/or circumstances and complete the relevant Condition Precedent.
- 4.1.4 Upon fulfillment of each of the Conditions Precedent (other than such Conditions Precedent that are required to be completed immediately in advance of Closing, or at Closing, or such Conditions Precedent that have been waived in writing by the Investor or deferred or prescribed to be a condition subsequent), the Promoters and the Company shall deliver to the Investor, a completion certificate in a form annexed to the Agreement as Schedule 12 (Form of CP Satisfaction Letter) ("Conditions Precedent Satisfaction Letter") and shall, along with the Conditions Precedent Satisfaction Letter, enclose or electronically provide access to all necessary documents evidencing fulfillment of each of the Conditions Precedent; provided that if the Investor disputes the satisfaction of any of the Conditions Precedent pursuant to the delivery of the Conditions Precedent Satisfaction Letter, the Promoters and the Company shall, either procure the satisfaction of such Condition Precedent and reissue the Conditions Precedent Satisfaction Letter or alternatively, if they are of the

reasonable opinion that the relevant Condition Precedent has in fact been satisfied, resolve such dispute as contemplated under Clause 18.

4.2 Conditions Precedent to Conversion Closing:

- 4.2.1 The obligation of the Investor to proceed to Conversion Closing shall be conditional upon fulfillment, to the reasonable satisfaction of the Investor (or where the relevant condition precedent has been deferred or prescribed to be a condition subsequent to the Conversion Closing, or a waiver has been provided by the Investor in writing in its sole discretion), of each of the conditions precedent as specified in Part B of Schedule 3 (Conversion Conditions Precedent) ("Conversion Conditions Precedent"), on or prior to the applicable Long Stop Date.
- 4.2.2 The Company (and the Promoters and the Existing Shareholders) shall ensure that the Company(s) shall fulfil each Conversion Conditions Precedent at the earliest, and in any case at least 10 (Ten) Business Days before the applicable Long Stop Date. For avoidance of doubt, it is hereby clarified that Project Land Acquisition Related Actions and the Conversion and Closing Actions shall be the obligations of the Promoters.
- 4.2.3 If any of the Promoters, Existing Shareholders or the Company becomes aware of any event or circumstance that will or may reasonably be expected to prevent any of the Conversion Conditions Precedent from being satisfied, on or prior to the applicable Long Stop Date, it shall forthwith notify the Investor in writing of such event or circumstance, and the Promoters and the Company shall take all reasonable actions as may be required to remove or remedy such underlying events and/or circumstances and complete the relevant Conversion Conditions Precedent.
- 4.2.4 Upon fulfilment of each of the Conversion Conditions Precedent (other than the Conversion Conditions Precedent that are required to be completed immediately in advance of Conversion Closing, or at Conversion Closing, or such Conversion Conditions Precedent that have been waived in writing by the Investor or deferred or prescribed as condition subsequent to Conversion Closing), the Promoters and the Company shall deliver to the Investor, a completion certificate in a form annexed to the Agreement as Schedule 3.2 (Format of CP Completion Letter) ("Conversion Conditions Precedent Satisfaction Letter") and shall, along with the Conversion Conditions Precedent Satisfaction Letter, enclose or electronically provide access to all necessary documents evidencing fulfilment of each of the Conversion Conditions Precedent, as applicable; provided that if the Investor disputes the satisfaction of any of the Conversion Condition Precedent pursuant to the delivery of the Conversion Conditions Precedent Satisfaction Letter, the Promoters, Existing Shareholders and the Company shall, either procure the satisfaction of such Conversion Condition Precedent and reissue the Conversion Conditions Precedent Satisfaction Letter or alternatively, if they are of the reasonable opinion that the relevant Conversion Conditions Precedent has in fact been satisfied, resolve such dispute as contemplated under Clause 30.

5. CLOSING AND CONVERSION CLOSING

5.1 The sale to and purchase by the Investor of the Sale Securities shall take place on the Closing Date, at such place as may be mutually agreed amongst the Investor, the Promoters and Company. The Closing Date, for the purposes of this Agreement, shall in any event not be later than 30 (Ten) Business Days from the date of delivery by the Promoters and the Company of the Conditions Precedent Satisfaction Letter to the Investor, unless the satisfaction of any of the Conditions Precedent is disputed by the Investor prior to the expiry of such period.

5.2 On the Closing Date, the following events shall take place:

- (i) Each of the Promoters and the Existing Shareholders shall, subject to the Disclosure Letter and the Updated Disclosure Letter, verify in writing that: (a) the Representations contained in Schedule 1 (Representations and Warranties) are true and correct as of the Closing Date, as though made as and as of such date by reference to facts and circumstances then existing on the date on which such Representations are actually being provided, and (b) that the Promoters and the Existing Shareholders have complied with their respective obligations and undertakings to be performed up to the Closing Date in accordance with the terms of this Agreement.
- (ii) Post completion of the action detailed in Clause 5.2(i), and simultaneously with the actions contemplated under Clause 5.2(iii):
 - (a) the Investor shall transfer the Purchase Consideration to Rajesh Steel's bank account (net of applicable Tax Deducted at Source as per Clause 3.4, details of which will be provided by Rajesh Steel) prior to the Closing Date; and
 - (b) Rajesh Steel shall deliver a duly filled, stamped and executed copy of Form SH-4 together with the original debenture certificate of the Sale Securities to the Investor. The Investor shall complete and sign the Form SH-4 and have them delivered to the Company promptly.
- (iii) the Company shall, and the Promoters and Existing Shareholders shall procure that the Company shall:
 - (a) pass the Closing Resolutions and provide certified copies of the Closing Resolutions to the Investor;
 - (b) update the register of directors and debentures and provide a certified copy of the same to the Investor; and
 - (c) deliver the original debenture certificate in respect of the Sale Securities (after recording the transfer endorsement) to the Investor or its representative.
- (iv) The Updated Disclosure Letter (if required) shall be delivered by the Promoters and the Existing Shareholders to the Investor.

5.3 Conversion Closing shall take place on the Conversion Closing Date, at such place as may be mutually agreed amongst the Investor, the Promoters and Company. The Conversion Closing

Date, for the purposes of this Agreement, shall in any event not be later than 18 (Ten) Business Days from the date of delivery to the Promoters and the Company of the Conversion Conditions Precedent Satisfaction Letter to the Investor unless the satisfaction of any of the Conditions Precedent is disputed by the Investor prior to the expiry of such period.

5.4 On the Conversion Closing Date, the following events shall take place:

- (i) Each of the Promoters and Existing Shareholders shall subject to the Conversion Closing Date Disclosure Letter, certify in writing that (a) the Representations are true and correct as of the Conversion Closing Date, as though made on and as of such date by reference to facts and circumstances then existing on the date on which such Representations are actually being provided; and (b) that the Promoters and the Existing Shareholders have complied with their respective obligations and undertakings to be performed up to the Conversion Closing Date in accordance with the terms of this Agreement.
- (ii) Subject to issuance of OCD Conversion Notice by the Investor, the Company shall, and the Promoters and the Existing Shareholders shall procure that Company shall:
 - (a) pass the Conversion Closing Resolutions and provide certified copies of the Conversion Closing Resolutions to the Investor and Rajesh Steel;
 - (b) the Company shall deliver duly stamped share certificates to the Investor and Rajesh Steel evidencing title to their respective Closing Conversion Shares;
 - (c) the Company shall complete filing Form FSC-1 with the ROC, in respect of the conversion and allotment of the Closing Conversion Shares to the Investor and Rajesh Steel; and
 - (d) update the register of member, directors and debentures, and provide a certified copy of the same to the Investor and Rajesh Steel.
- (iii) The Conversion Closing Date Disclosure Letter (if required) shall be delivered by the Promoters and the Existing Shareholders to the Investor.

5.5 The Parties shall undertake best efforts to complete all actions contemplated by this Agreement to be consummated at Closing, and/or Conversion Closing, in each case, simultaneously and on the same day. Without limiting any rights or remedies of the Investor under this Agreement, if any actions specified in Clauses 5.2 or 5.4 (as applicable) cannot be completed on the same day due to any reason beyond the reasonable control of the Parties, the Closing and/or Conversion Closing, shall be deemed to occur on the last day on which all the actions specified in Clauses 5.2 or 5.4 (as applicable), respectively, are completed.

5.6 Notwithstanding any provisions of this Agreement, the Investor shall have a right to convert the Class A OCCs into Equity Shares (by issuing a written notice to the Company and the Promoters) as per the terms thereof, at any time on or after the Closing Date, irrespective of the completion of the Conversion Conditions Precedent and/or issuance of the Conditions Precedent Satisfaction Letter ("Conversion Notice"). Upon receipt of the Conversion Notice, the Company shall (and the Promoters and Existing Shareholders shall cause the Company to) simultaneously convert the Class A OCCs and Class B OCCs respectively into Equity Shares as per the terms thereof, and undertake all actions as contemplated in Clause 5.6 of the

Agreement within 4 (four) days from the date of issuance of the Conversion Notice. The Investor hereby acknowledges that it shall grant necessary consent and approval to the defeasance trustee for creation of pledge on the Closing Conversion Shares issued and allotted to Rajesh Steel as contemplated under Clause 3.1.1.2 of the Securities Pledge Agreement.

- 5.7 In case Conversion Closing occurs pursuant to the issuance of the Conversion Notice pursuant to Clause 3.3 above prior to the completion of the Conversion and Zoning Actions by the Promoters, then: (i) the Company shall extend reasonable support and assistance as requested by the Promoters for completion of their Conversion and Zoning Actions related obligations and matters related thereto; and (ii) the Investor shall not obstruct or prevent the Company and/or the Promoters from completing the Conversion and Zoning Actions by the Promoters in accordance with the terms of this Agreement.

5.8 Conditions/Subsequent to Closing Date and Conversion Closing Date

5.8.1 Upon the completion of Closing in accordance with Clause 3.2 above, the Promoters and the Existing Shareholders shall undertake necessary steps to complete (and shall each procure that the Company completes) the following actions at the earliest and in any case within the time frame identified therein (unless otherwise specifically waived or extended by the Investor in writing), to the satisfaction of the Investor:

- (i) Within 30 (Thirty) days from the Closing Date, the Company shall:
 - (a) execute the Sale Deeds and remit the Land Acquisition Consideration to P&P pursuant to the terms of the Sale Deeds; and
 - (b) duly stamp and register the Sale Deeds with the office of the jurisdictional sub-registrar.
- (ii) Within 34 (thirteen) days from the Closing Date, the Company shall file with the Registrar of Companies: (a) Form DIR-12 in relation to the appointment of the Investor Director, as a Director on the Board; and (b) Form MGT-34 in relation to the shareholders meeting convened on the Closing Date.
- (iii) Within 30 (Thirty) days from the Closing Date, the Company shall ensure that all Equity Securities are dematerialized.
- (iv) Within 45 (Forty Five) days from the Closing Date, the Company shall (and the Promoters and the Existing Shareholders shall cause the Company to): (a) increase its authorized Share Capital to accommodate the conversion of the Class A (CCOs) and Class B (CCOs); (b) file Form MGT-14 reflecting the increase in authorized share capital of the Company, as required under applicable law; and (c) provide the Investor with an acknowledged copy of Form SH-7, approved by BOC, confirming the increase in Share Capital provided that the Company, the Promoters and the Existing Shareholders shall not need any written consent from the Investor under the Transaction Documents for giving effect to the aforesaid actions in this Paragraph 5.8.1(c).
- (v) Within 75 (Seventy-Five) days from the Closing Date, Company shall obtain directors' and officers' liability insurance on terms acceptable to the Investor and Promoter.

- (v) Within 90 (Ninety) days from the Closing Date, KSC Logistics Parks Private Limited and the Company shall have executed a brand licensing agreement, in form and substance acceptable to the Investor, for licensing of the "KSC" brand to the Company on a perpetual, non-exclusive and royalty free basis.
 - (vi) The Company shall on a best effort basis obtain a copy / certified copy of the 1995 Sale Deed from the office of the concerned Sub-Registrar of Assurances.
 - (vii) The Company shall, on a best effort basis, obtain any instrument required to rectify the absence of charge created by Apex Explosives Private Limited in favour of Maharashtra State Financial Corporation over lands bearing the said Old Survey No. 34/1 and Old Survey No. 38 (now corresponding to New Survey Nos. 18 and 21(7)), forming part of the Project Land.
 - (viii) The Company shall, at its own cost, have removed or relocated all low tension power lines passing through Project Land within 365 (Three Hundred and Sixty-Five) days from the Land Acquisition Date.
 - (ix) The Company shall have obtained, at the Promoter's cost, updated mutation entries and 3/12 extract confirming the Company's ownership of the Project Land within 365 (Three Hundred and Sixty-Five) days from the Land Acquisition Date.
 - (x) The Company shall have: (a) completed fencing around the perimeter of the Project Land; and (b) obtained an updated E-Plot listing out the exact survey number and area extent of the Project Land owned and possessed by the Company, in each case, within 120 (One Hundred and Twenty) days from the Land Acquisition Date.
 - (xi) The Company shall have obtained all Consents, approvals, and necessary permissions from the National Highway Authority of India for ingress and egress in to and from the Project Land.
- 5.1.2** Upon the completion of Conversion Closing in accordance with Clause 5.1 above, the Company shall undertake necessary steps to complete the following actions within the time frame identified therein (unless otherwise specifically waived or extended by the Investor in writing):
- (i) No later than 10 (Ten) days from the Conversion Closing Date, the Company shall file the following with the Registrar of Companies:
 - (a) Form Dk-12 in relation to the appointment of the Investor Director and the resignation of one Director nominated by the Existing Shareholders, as a Director on the Board; and
 - (b) Form MGT-14 in relation to the shareholders meeting convened on the Conversion Closing Date.
- 5.1.3** The Promoters and the Company shall keep the Investor reasonably informed about the status of completion and/or satisfaction of each Condition Precedent and Conversion Conditions Precedent, respectively.

- 5.8.4 Without prejudice to the generality of the foregoing, (i) upon a request by the Investor for an update on the status of completion of any Conversion Conditions Precedent, the Existing Shareholders and the Promoters shall promptly and no later than 5 (Five) Business Days of such a request, provide an update on the status of the relevant Conversion Conditions Precedent together with copies of relevant supporting documents; and (ii) prior to making any applications to any Governmental Authority or responding to any queries and/or correspondence from a Governmental Authority, the Existing Shareholders and the Promoters shall provide the Investor an opportunity to review and comment upon the relevant applications and/or correspondence and shall in good faith, take into account any inputs and/or comments provided by the Investor.

5.9 Environmental Study

- 5.9.1 Within 30 (Thirty) days from the Land Acquisition Date, the Company shall (and the Promoter shall cause the Company to), at the Company's cost, appoint an expert (acceptable to the Investor) to commission and undertake: (i) soil testing on the Project Land; (ii) testing of ground water; and (iii) flood mitigation analysis (collectively, the "Environmental Study").
- 5.9.2 The appointed expert shall furnish to the Company, a detailed report ("Expert Report") concerning: (i) findings and their analysis of the soil testing, ground water testing, and flood mitigation plans; (ii) identifying the risks, if any, based thereon in (i); and (iii) a proposal and costs of remedying such risks (collectively, the "Expert Scope"), within 180 (One Hundred Eighty) days from the date of appointment of such expert.
- 5.9.3 If any of the Promoters and/or the Investor do not agree with: (i) the findings of the Expert Report; (ii) the remedial actions; and/or (iii) the costs associated with such remedial actions, the Company shall, within 45 (Forty Five) days of the issuance of the Expert Report, appoint another expert (nominated by the Investor from the list of Agreed Experts), at the Company's cost, to undertake the Environmental Study. The report so issued by the new expert ("New Expert Report"), covering the Expert Scope (or such other Expert Scope as mutually agreed between the Investor and the Promoters, in writing), shall be final and binding on the Parties.
- 5.9.4 If the Investor, in its sole opinion, determines: (i) that the issues identified in the Expert Report and/or the New Expert Report (as the case may be) are not remediable; and/or (ii) the cost of remedying issues identified in the Expert Report and/or the New Expert Report (as the case may be) are in excess of Rs. 12,00,00,000 (Rupees Twelve Crores), then, in each such case, the Investor will have a right to exercise its Put Option in accordance with Clause 9.8.
- 5.9.5 The Company shall (and the Promoters and the Existing Shareholders shall extend all such co-operation and support as may be required in this regard to the Company) ensure that the Environmental Study is completed, and the Expert Report and New Expert Report (as applicable), shall, in each case, be issued on or prior to the Long Stop Date. The Investor shall extend all such co-operation and support as may be required by the Company for the appointment of the expert to undertake the

Environmental Study and for finalizing the scope of the New Expert Report (as per terms of Clause 3.3.1), in accordance with this Clause 3.3.

3.10 Land Acquisition Date: On the Land Acquisition Date, the following events shall take place:

3.10.1 Each of the Promoters shall subject to the Land Acquisition Date Disclosure Letter and the terms of this Agreement, certify in writing that: (i) the Representations are true and correct as of the Land Acquisition Date, as though made as and as of such date by reference to facts and circumstances then existing on the date on which such Representations are actually being provided; and (ii) that the Promoters and the Existing Shareholders have complied with their respective obligations and undertakings to be performed up to the Land Acquisition Date in accordance with the terms of this Agreement;

3.10.2 The Promoters shall, certify in writing:

- (i) the Land Acquisition Date, as per the terms of this Agreement;
- (ii) the Company has limited the Land Acquisition Consideration to PAF, pursuant to the terms of the Sale Deed;
- (iii) the Sale Deed, in the form attached in Schedule 2 (Sale Deed) has been executed by the Company and PAF; and
- (iv) the Company is in vacant and peaceful and physical possession of the Project Land; and
- (v) all original documents in relation to the Project Land including all original title deeds and documents ("Original Title Documents"), are in the Company's possession.

3.10.3 The Land Acquisition Date Disclosure Letter, (if required) shall be delivered by the Promoters and the Existing Shareholders to the Investor.

3.10.4 On the Land Acquisition Date, or within a period of 2 (Two) days from the Land Acquisition Date the Promoters shall have delivered to the Investor duly executed and registered Sale Deeds and the Original Title Documents.

3.11 At any time, on or after the Closing Date, Investor and Rajesh Steel agree to pay the unpaid portions on the Class A OCEs and Class B OCEs, respectively, into the Company Bank Account, when called upon by the Board to do so.

4. CONDUCT AFTER DISCLOSURE DATE

4.1 The Existing Shareholders, the Promoter and the Company shall (and the Promoters shall ensure that the Company shall) during the period between the Exercise Date and the Conversion Closing Date:

- (i) promptly:

- (a) supplement or amend the information given to the Investor and/or its representatives pursuant to this Agreement with respect to any matter which comes to the knowledge of any of the Existing Shareholders, the Promoters or the Company and/or the Directors which results in or is reasonably likely to result in breach of terms of any of the Representations, or
- (b) provide to the Investor notice of any facts, circumstances or events that would reasonably be expected to cause or result in any of the Conditions Precedent and/or Conversion Conditions Precedent (as the case may be) not being fulfilled, or the fulfillment thereof being delayed beyond the applicable Long Stop Date, or would reasonably be expected to, individually or in the aggregate, result in a Material Adverse Effect;

provided that, notwithstanding anything contained in this Clause 5.1, no information provided to the Investor subsequent to the Execution Date (except as expressly set forth and constituting Full and Fair Disclosures in the Updated Disclosure Letter) shall have the effect of amending or qualifying any Representation, or any other term of this Agreement, and no such information disclosed shall affect or prejudice the Investor's rights or remedies under this Agreement;

- (k) provide the Investor and its employees, officers and advisors with reasonable access, upon reasonable prior written notice and during normal business hours, to the Company's personnel, books and records, assets, Project Land and to the authorized representative of the Existing Shareholders and the Promoters. Any costs and/or expenses in connection with such inspection shall be borne solely by the Investor;
- (l) provide copies of any Governmental Approval received or renewed between the Execution Date and the Conversion Closing Date in relation to the Business or the Project Land within 5 (Five) Business Days from procurement of such Governmental Approval;
- (m) provide details of any Litigation, disputes and/or adverse changes that impede the Company or which is likely to, adversely affect the Business, or Project Land or the operations thereof, immediately after the Company, Promoters or Existing Shareholders become aware of the possibility that such event may occur or has occurred;
- (n) provide the Investor with copies of legal notices or Orders received from Governmental Authorities, in relation to the Company, the Business or the Project Land, within 5 (Five) Business Days of receipt of such notice or communication coming to its knowledge, whichever is earlier;
- (o) provide the Investor with timely updates of the status and progress of the satisfaction of the Conditions Precedent and/or the Conversion Conditions Precedent (as the case may be) and promptly provide the Investor with such information as the Investor may reasonably request in relation thereto;
- (p) not conduct, engage in or undertake any activity, (a) which is not permitted under applicable law; and (b) in which foreign direct investment and/or foreign venture capital investment, up to 100% (One Hundred per cent) under the automatic route

(as understood under the extant foreign exchange Laws of India) is not permitted provided this shall exclude circumstances or instance wherein a bona fide activity conducted, engaged in or undertaken: (i) becomes unlawful on account of change in applicable Law with retrospective effect after such activity has been conducted or undertaken; or (ii) would qualify under the government route (as understood under the extant foreign exchange Laws of India) due to a change in applicable Law with retrospective effect after such activity has been conducted or undertaken;

- (vii) take all actions as reasonably necessary (including exercising their voting rights) to give effect to the transactions contemplated under this Agreement;
- (viii) Director(s) shall be entitled to examine the books, accounts and records of the Company and shall have reasonable access, at all reasonable times and with prior reasonable written notice, to any and all personnel, properties and facilities of the Company. The Company shall promptly provide such information relating to the business affairs and financial position of the Company, as the Director(s) may reasonably request; and

4.2 During the period between the Execution Date and the Closing Date, the Company shall (and the Promoters and the Existing Shareholders shall ensure) continue to carry on the Business in the Ordinary Course and in compliance with applicable Law, Subject to Clause 5.2(i) below and except for: (a) giving effect to the Transaction Documents or as expressly provided in this Agreement and/or the other Transaction Documents, including completion of the Conditions Precedent; or (b) as may be agreed in writing by the Investor:

- (i) the Company shall not (and the Promoters and the Existing Shareholders shall cause the Company to not) (without the prior written consent of the Investor (which consent shall not be unreasonably withheld)):
 - (a) amend or modify its Charter Documents;
 - (b) hire any employees;
 - (c) loan or advance any money to any third party;
 - (d) take any action or enter into any transactions that could be expected to result in a change in the scope and nature of the Business;
 - (e) enter into any contract;
 - (f) Transfer or create an Encumbrance over all or part of the Assets of the Company or enter into any contract or arrangement for any of the foregoing;
 - (g) undertake or agree to undertake any action which would reasonably be expected to result in a Material Adverse Effect (to the extent such actions are in the control of the Company, the Promoters or the Existing Shareholders);
 - (h) acquire any Assets (including any immovable assets);

- (j) avoid of any borrowing or create or advance or agree to create or advance any financial indebtedness in its books, including provision of any security by the Company;
- (j) repay, redeem or otherwise extinguish liability other than in the Ordinary Course and in accordance with existing contractual obligations of the Company;
- (k) provide any guarantees, securities or indemnities or similar arrangements to or for the benefit of any Person (other than Company's Directors, on customary terms), including a Related Party;
- (l) forgive, cancel, release, waive or assign any indebtedness owed to the Company or any claims held by the Company;
- (m) establish a subsidiary or make an investment in any other Person or enter into any joint venture and partnerships or acquisition of any business or undertaking;
- (n) take any action in relation to the share capital, including any increase or decrease in the issued, paid-up and subscribed share capital, declaration, setting aside or payment of dividend or any other distributions on the share capital or the purchase or redemption of the Equity Shares or any other securities of the Company or issuing any Equity Securities or any other securities of the Company for consideration or otherwise;
- (o) initiate, agree to settle or settle any Litigation;
- (p) merge, restructure, amalgamate or undertake any other business combination with any other company or entity or acquire any interests in any other company or entity;
- (q) initiate any voluntary liquidation, winding up, dissolution, reconstitution, winding-up or bankruptcy of the Company, or commence any proceedings in relation to any of the foregoing;
- (r) change any of the Company's accounting policies or the Company's auditor;
- (s) make or change any Tax election, settle or compromise any proceeding with respect to any Tax Claim or assessment relating to the Company, surrender any right to claim a refund of Taxes, consent to any extension or waiver of the limitation period applicable to any Tax Claim or assessment relating to the Company, or incurring any additional liability for Tax;
- (t) make or commit to any capital expenditure or undertake any capital work;
- (u) issue, except in the Ordinary Course or as expressly contemplated by or in accordance with this Agreement, any Liabilities; and
- (v) agree to or resolve to do any of the foregoing.

- (iii) Notwithstanding anything contained in Clause 5.2(iii) above, the Company shall have the right to make any Tax related and/or other statutory payment(s) to a Governmental Authority that are actually due and payable under applicable Law, without requiring the Investor's consent.
- (iv) The Investor agrees and undertakes that in the event prior written consent of the Investor is sought to undertake any action contemplated under Clause 5.2(i), the Investor shall respond to such request within 2 (Two) Business Days. If the Investor fails to respond to such request within 2 (Two) Business Days, then the Investor shall be deemed to have consented to such request.

5.3 During the period between the Execution Date and the Conversion Closing Date:

- (i) the Existing Shareholders, Promoters and the Company covenants that, they shall not, without the prior written consent of the Investor, directly or indirectly speak or discuss, enter into any contract, understanding or term sheet or any other agreement of like nature (whether or not such contract, understanding, term sheet or agreement is absolute, revocable, contingent, conditional, oral, written, binding or otherwise), or consult with any Third Party, for a potential acquisition of securities or Assets of the Company, including in relation to issuance of any securities of the Company or ownership of the Company, or granting any management rights in the Company or directly or indirectly transferring or encumbering the Project or Project Land. In the event that the Company or the Existing Shareholders or the Promoters receive any such offers from a Third Party, they shall simultaneously, and in any event no later than 2 (Two) days from the receipt of such offer, notify the Investor of the terms of the offer in writing and reject such offers.
- (ii) the Company shall not take or record or register the Transfer of any Equity Securities held by the Promoters and/or Existing Shareholders, or creation of any Encumbrance over Equity Securities, held by the Existing Shareholders and/or the Promoters, which is in violation of this Clause 5.3, and it is agreed by the Company, Promoter and Existing Shareholders that any transfer of, or Encumbrance over, Equity Securities, held by the Existing Shareholders and/or the Promoters in violation of Clause 5.3, shall be void;
- (iii) the Existing Shareholders and/or the Promoters shall not avail of any borrowing or create any financial indebtedness;
- (iv) the Company, Existing Shareholders and/or the Promoters shall not create an Encumbrance on the Assets of the Company, including the Project Land;
- (v) the Company shall not [and the Existing Shareholders and the Promoters shall procure that the Company shall not] take any action that would constitute a violation, or implicate the Investor in a violation, of applicable Anti-Corruption Laws, Anti-Money Laundering Laws, or Sanctions Laws;
- (vi) the Company shall [and each of the Existing Shareholders and the Promoters shall ensure that the Company shall] immediately notify the Investor of any violation or potential violation of applicable Anti-Corruption Laws, Anti-Money Laundering Laws or Sanctions Laws by: (a) the Company; (b) any Directors, or employees of the

Company, or (c) by any authorized agents of the Company engaged in connection with the business, in each case, if the Existing Shareholders or Promoters become aware of such matters or to the knowledge of the Company;

- (vii) the Company shall (and each of the Existing Shareholders and the Promoters shall ensure that the Company shall) immediately notify the Investor of any violation or potential violation of applicable Anti-Corruption Laws, Anti-Money Laundering Laws or Sanctions Laws by the Existing Shareholders, the Beneficial Owners and/or Rajesh Shah;
- (viii) neither the Company, its officers, directors, employees or agents engaged nor the Promoters or the Existing Shareholders shall make, or promise to make, any Improper Payments (a) to or for the use or benefit of any Government Official (b) to any other Person either for an advance or reimbursement, with knowledge or reason to know that any part of such Improper Payment will be directly or indirectly given or paid by such other Person, or will reimburse such other Person for Improper Payments previously made, to any Government Official or (c) to any other Person as entry to obtain or keep business or to secure some other improper advantage, or otherwise in violation of applicable Anti-Corruption Laws;
- (ix) If the Company or any of its directors or employees becomes a Government Official or Governmental Authority (as applicable), the Company shall (and the Existing Shareholders and the Promoters shall ensure that the Company shall) notify the Investor immediately, so that the Investor may, and hereby reserves the right to, take such precautions and actions that may be reasonably required to assure compliance with applicable Anti-Corruption Laws;
- (x) If any of the Existing Shareholders becomes a Government Official, the Company shall (and the Existing Shareholders shall ensure that the Company shall) notify the Investor immediately, so that the Investor may, and hereby reserves the right to, take such precautions and actions that may be reasonably required to assure compliance with applicable Anti-Corruption Laws;
- (xi) If any of the Beneficial Owners or Rajesh Shah becomes a Government Official or Governmental Authority (as applicable), the Company shall (and the Promoters shall ensure that the Company shall) notify the Investor immediately, so that the Investor may, and hereby reserves the right to, take such precautions and actions that may be reasonably required to assure compliance with applicable Anti-Corruption Laws;
- (xii) If any Government Official obtains an interest, whether direct or indirect, in the Company then the Company shall (and the Promoters and the Existing Shareholders shall ensure that the Company shall) notify the Investor immediately so that the Investor may, and hereby reserves the right to, take whatever precautions and actions may be appropriate to assure compliance with applicable Anti-Corruption Laws; and/or
- (xiii) Notwithstanding anything contained in this Agreement, the Company shall not, and the Promoter and Existing Shareholders shall ensure that the Company shall not, take and/or implement any decision and/or action on or in connection with any Consent Matter directly or indirectly (in one transaction or series of related transactions)

whether at the meetings of the relevant Board, committees of the Board, Shareholders, by way of circulation or otherwise, without the prior express written consent of the Investor (or its designated representatives). It is expressly clarified hereby that any monetary limits stated in Schedule 3 (Consent Matters) unless specified otherwise, are indicated on an aggregate basis with respect to the Company, and such limits shall apply to both, a single transaction, and a series of related transactions. Prior express written consent of the Investor, as set out in the Clause 5.3, shall be taken by the Company and the Existing Shareholders before any Consent Matter is taken up for discussion at any meeting of its Board, committees of the Board, Shareholders or by way of circulation. Notwithstanding the foregoing, the Investor agrees and acknowledges that any decisions, actions or transactions required to be undertaken by the Promoters and/or the Company to the extent necessary for or connected with the completion of the Conversion and Zoning Actions by the Promoters shall not require prior written consent of the Investor. The Investor shall not unreasonably withhold any consent on Consent Matters where the Investor's consent is sought, for the purposes of completing the Conversion and Zoning Actions by the Promoters in accordance with the terms of this Agreement.

5.4 Mortgage

- (b) At any time prior to completion of Conversion and Zoning Actions, if so requested by the Investor in writing, the Company shall, and the Promoters and the Existing Shareholders shall cause the Company to, within 15 (Fifteen) days from the date of such written request ("Mortgage Notice"), create a mortgage on the Project Land, in favour of the Investor, its Affiliates, and/or any security trustee appointed by the Investor for this purpose, to the reasonable satisfaction of the Investor ("Mortgage").
- (c) The Investor acknowledges that it shall be responsible, subject to Clause 5.4(i) for the obtaining any Governmental Approval that may be required in relation to creation, registration and enforcement of the Mortgage.
- (d) The Company, the Promoters and the Existing Shareholders shall extend necessary cooperation and assistance (including executing all documents reasonably requested to be executed by the Investor) that the Investor may require in relation to creation and/or enforcement of the Mortgage in favour of the Investor (or its Affiliate or any other security trustee/owner), and/or procurement of any Governmental Approvals to give effect to the foregoing and for assistance of deed it is hereby clarified that the Promoters and/or the Existing Shareholders shall not be responsible for obtaining any such Governmental Approvals which are required to be obtained by the Investor under Clause 5.4(i) above.
- (e) All costs and expenses incurred in relation to the creation and registration of such Mortgage, including costs incurred in relation to the appointment of a security trustee, shall be borne by the Investor.

5.5 Pledge

- (b) The Company, the Promoters and the Existing Shareholders shall

- (a) within 30 (Thirty) days from the Closing Date: (a) execute and deliver the Securities Pledge Agreement; and (b) pledge in favour of the Investor (or its Affiliates, and/or any security trustee appointed by the Investor), all Equity Securities held by each of them ("Pledge Securities"), along with all the rights, titles, claims, demands, benefits and interest whatsoever of the Promoters and the Existing Shareholders, in, under, or in respect of such Pledged Securities ("Pledge"), in per the terms of the agreed form Securities Pledge Agreement; and
 - (b) subject to the Debenture Trustee (as defined in the Securities Pledge Agreement) fulfilling its obligations under Clauses 2.1.5 and 2.1.2 of the Securities Pledge Agreement, and upon dematerialization of the Equity Securities of the Company, restate the pledge on the Pledged Securities, in accordance with the terms of the Securities Pledge Agreement.
- (d) The Company, the Promoters and the Existing Shareholders shall extend necessary cooperation and assistance, including executing all documents (including transfer forms, power of attorney, pledge request forms, etc) that the Investor may require in relation to creation and/or invocation of the Pledge in favour of the Investor (or its Affiliates or any other security trustee/escrower), and/or procurement of any Governmental Approvals to give effect to the foregoing, and it is hereby acknowledged and agreed that the Investor shall be responsible for obtaining all such Governmental Approvals.
- (e) All costs and expenses incurred in relation to the creation and registration of such Pledge, including costs incurred in relation to the appointment of a security trustee, shall be borne by the Investor.

4.6 Lock-In

The Promoters and the Existing Shareholders hereby agree and covenant to the Investor that, without the prior written consent of the Investor, the Promoters and Existing Shareholders shall not, directly or indirectly: (i) transfer or permit any direct or indirect Transfer of its Equity Securities to a Third Party and/or create any encumbrance over the Equity Securities, in each case, in any manner whatsoever, including through a contractual arrangement, until the later of: (a) completion of the Conversion and Issuing Actions; or (b) the Conversion Closing Date ("Lock-In Period").

4.7 Material Filings and Material Reports: The Company, the Existing Shareholders and/or the Promoter shall during the Lock-In Period provide copies of:

- (i) any material filings or material reports filed by the Company, or the Existing Shareholders and/or the Promoters in relation to the Company, the Project Land, or the business with any Governmental Authority; and
- (ii) such other filings as may be reasonably requested by the Investor,

in each case as soon as practicable and in any event within 5 (Five) Business Days after the date of submission of such reports and/or notices or upon the request of the Investor, provided that any such filing which relates to or is required to be made in connection with any transaction contemplated by the Transaction Documents or

which contains any reference to the Investor, its Affiliate(s) or any of the Investors in funds managed by them shall be provided to the Investor reasonably in advance of the submission of such filing, and the Investor shall be given a reasonable opportunity to review and comment on such filing (which comments shall be duly incorporated to the reasonable satisfaction of the Investor prior to submission).

6.3. **Board Meetings:** The Existing Shareholders, the Promoter and the Company shall (and the Promoters shall ensure that the Company shall) during the period between the Closing Date and the Conversion Closing Date, conduct the Board meetings in the following manner:

- (i) the Board shall hold regular meetings at the registered office of the Company or at such other place as is mutually acceptable to the Investor and Promoters. Each Director shall be entitled to request, in writing, for a meeting of the Board, by setting out the matters to be discussed at such meeting, and the Company upon receiving such request from a director shall convene the meeting of the Board;
- (ii) the notice for meetings of the Board shall be sent to all the Directors and observers (if any) at least 7 (seven) days prior to the meeting together with a detailed agenda, and all relevant documents for the same. The Promoter Director and the Investor Director may seek clarifications on the agenda items or information provided or request additional information. The Company shall forthwith promptly provide such clarifications and additional information. Items not specified in the agenda shall not be discussed at any Board meeting or any Committee meeting, except with the consent of all Directors; and
- (iii) all notices for meetings of the Board shall be in writing and shall be sent to each of the Directors and observers (if any) (with a copy to the Investor). No meeting of the Board shall be convened at a shorter notice without the prior written consent of at least 1 (One) Promoter Director and 1 (One) Investor Director.
- (iv) **Quorum**
 - (a) The quorum for any meeting of the Board shall be the presence, of at least 1 (One) Investor Director (unless waived in writing by Investor prior to the meeting of the Board) and 1 (One) Promoter Director (unless waived in writing by Promoters prior to the meeting of the Board).
 - (b) In the absence of a valid quorum at a meeting of the Board (the "Original Board Meeting"), the Original Board Meeting shall be adjourned to the same time and place not earlier than 7 (seven) days thereafter (such adjourned meeting being referred to as the "First Adjourned Board Meeting"), and no business shall be transacted at such Original Board Meeting unless the requisite quorum is present at the commencement of such Original Board Meeting and throughout its proceedings. Notice of the First Adjourned Board Meeting shall be given to all Directors on the same day on which the Original Board Meeting was scheduled, and the First Adjourned Board Meeting shall only consider the matters included on the agenda for the Original Board Meeting.

- (c) At the First Adjourned Board Meeting, no business shall be transacted unless the requisite quorum in terms of Clause 8.3(b)(2a) above is present at the commencement of such meeting and throughout its proceedings. In the absence of valid quorum, the meeting shall once again be adjourned to the same time and place not earlier than 7 (seven) days thereafter (such second adjourned meeting being referred to as the "Second Adjourned Board Meeting"). Notice of the Second Adjourned Board Meeting shall be given to all Directors on the same day on which the First Adjourned Board Meeting was scheduled. The Second Adjourned Board Meeting shall only consider the matters that were included on the agenda for the Original Board Meeting.
- (d) At a Second Adjourned Board Meeting, the Board members present shall, subject to the provisions of the Act, constitute a quorum.
- (e) Decisions of the Board shall be taken by simple majority of Directors present and voting at the meeting.
- (f) Subject to applicable Law, the Directors may meet and attend meetings through video conference or other audio-visual means as permitted under applicable Law and a resolution passed by such a meeting shall be deemed to have been duly passed.
- (g) A written resolution (circulated) to all the Directors, whether in India or overseas, and signed by a majority of them as approved shall (subject to compliance with the relevant requirements of the Act) be as valid and effective as a resolution duly passed at a meeting of the Board called and held in accordance with this Agreement and the Articles provided that such written resolution has been circulated in draft form, together with the relevant papers, if any, to all the Directors.
- (h) The Company shall reimburse the Directors for costs reasonably incurred and documented in attending meetings of the Board and other meetings or events attended on behalf of the Company.

7. REPRESENTATIONS AND WARRANTIES OF THE PARTIES

- 7.1 Subject to, and as qualified by, Full and Fair Disclosures made under the Disclosure Letter, the Updated Disclosure Letter, the Land Acquisition Data Disclosure Letter and/or the Conversion Closing Date Disclosure Letter (as the case may be), the Promoters and the Existing Shareholders, jointly and severally represent and warrant to the Investor that each of the Representations: (i) is true and correct as of the Execution Date; and (ii) shall (unless expressly stated otherwise in the Representations) be deemed to be repeated on each of, the Closing Date, the Land Acquisition Date and the Conversion Closing Date, in each case, by reference to the facts and circumstances then existing as if references in such Representations to the Execution Date were references to the date on which the Representation is actually being provided.
- 7.2 The Investor represents and warrants to the Promoters and the Existing Shareholders that each of the Investor Representations is true and correct as of the Execution Date, the Closing Date and the Conversion Closing Date, by reference to the facts and circumstances then existing as on the date on which such Investor Representations are actually being provided.

7.4 The Promoters and the Existing Shareholders shall, at least 5 (five) days prior to the:

- (i) Closing Date, provide the Investor a draft of the Updated Disclosure Letter, subject to retaining the right to update such draft of the Updated Disclosure Letter to qualify the Representations as on the Closing Date only in relation to matters which solely have occurred or arisen subsequent to the date on which the draft of the Updated Disclosure Letter was provided to the Investor;
- (ii) Land Acquisition Date, provide the Investor a draft of the Land Acquisition Date Disclosure Letter, subject to retaining the right to update such draft of the Land Acquisition Date Disclosure Letter to qualify the Representations as on the Land Acquisition Date Disclosure Letter only in relation to matters which solely have occurred or arisen subsequent to the date on which the draft of the Land Acquisition Date Disclosure Letter was provided to the Investor; and/or
- (iii) Conversion Closing Date, provide the Investor a draft of the Conversion Closing Date Disclosure Letter, subject to retaining the right to update such draft of the Conversion Closing Date Disclosure Letter to qualify the Representations as on the Conversion Closing Date only in relation to matters which solely have occurred or arisen subsequent to the date on which the draft of the Conversion Closing Date Disclosure Letter was provided to the Investor;

Provided that, in the event the Promoters and the Existing Shareholders make any disclosure in:

- (a) the Disclosure Letter or the Updated Disclosure Letter (as the case may be), which in the Investor's reasonable assessment results or is likely to result in: (i) Losses to the Investor and/or the Company exceeding an amount of Rs. 5,00,000 (Rupees Five Lakhs) in the aggregate (whether from such individual disclosure or aggregating with all other disclosures in the such disclosure letter); (ii) a Material Adverse Effect (whether from such individual disclosure or aggregating with all other disclosures in such updated disclosure letter); (iii) a breach of any of the Fundamental Representations; and/or (iv) an adverse impact on the reputation of the Investor, the Investor shall have the option to: (a) enter into good faith discussions with the Promoters and the Existing Shareholders to secure specific indemnities in relation to such disclosures on terms and conditions acceptable to the Investor provided that the Promoters and the Existing Shareholders shall not be subject to additional indemnification obligations unless mutually agreed among the Investor, the Promoters and the Existing Shareholders in writing; and/or (b) unilaterally terminate this Agreement without further recourse to the Investor.
- (b) the Land Acquisition Date Disclosure Letter or the Conversion Closing Date Disclosure Letter (as the case may be), which in the Investor's reasonable assessment results or is likely to result in: (i) Losses to the Investor and/or the Company exceeding an amount of Rs. 10,00,000 (Rupees Ten Lakhs) in the aggregate (whether from such individual disclosure or aggregating with all other disclosures in the such disclosure letter); (ii) a Material Adverse Effect (whether from such individual disclosure or aggregating with all other disclosures in such updated disclosure letter); (iii) a breach of any of the

Fundamental Representations; and/or (iv) an adverse impact on the reputation of the Investor, the Investor shall have the option to: (vi) enter into good faith discussions with the Promoters and the Existing Shareholders to secure specific indemnities in relation to such disclosures on terms and conditions acceptable to the Investor provided that the Promoters and the Existing Shareholders shall not be subject to additional indemnification obligations unless mutually agreed among the Investor, the Promoters and the Existing Shareholders in writing; (vii) proceed to Conversion Closing as contemplated under this Agreement; and/or (viii) exercise a Put Option in accordance with Clause 5.8 (Put Option). It is hereby agreed between the Parties that the Investor may issue a Put Option Notice pursuant to Paragraph (viii) above only in case the Losses exceed an amount of Rs. 50,00,000 (Rupees Fifty Lakhs) in the aggregate (whether from such individual disclosure or aggregating with all other disclosures in such disclosure letter). The Investor acknowledges and agrees that nothing contained in this Clause 7.2 (a) shall apply to the matters contained in the Expert Report or the New Expert Report prepared in accordance with Clause 5.2.

- 7.4 Any information Fully and Fairly Disclosed in the Disclosure Letter, the Updated Disclosure Letter, the Lead Acquisition Date Disclosure Letter and/or the Conversion Closing Date Disclosure Letter (as the case may be) with respect to any Representation (by reference to the corresponding Paragraph of Schedule 1 (Representations and Warranties)) shall only apply to and be limited to that Representation, provided that a disclosure or qualification made by reference to any particular paragraph of the Representations shall also be deemed to have been made in respect of any other paragraph of the Representations to which such disclosure is reasonably apparent on its face to be applicable.
- 7.5 None of the Representations shall be treated as qualified by any actual or constructive knowledge on the part of the Investor or any of its Affiliates or agents, representatives, officers, employees or advisers, save and except to the extent in respect of matters that are Fully and Fairly Disclosed in the Disclosure Letter, the Updated Disclosure Letter, the Lead Acquisition Date Disclosure Letter and/or the Conversion Closing Date Disclosure Letter (as the case may be).
- 7.6 Each of the Representations shall be construed as a separate representation and shall not be limited by the terms of any other representation or warranty or by any other term of this Agreement and in the event and to the extent that any such Representation explicitly provides an exception, exclusion or qualification thereto by reference to a circumstance or fact stated in such Representation, such exception, exclusion and qualification shall be applicable only and limited to such Representation and shall not, and shall in no circumstance be deemed to, apply as an exception, exclusion or qualification to any other Representation unless and to the extent explicitly stated in such other Representation.
- 7.7 Except as provided in the Representations, the Promoters and the Existing Shareholders do not make any representation or warranty as to the accuracy of any forecasts, estimates, projections, statements of opinion provided to the Investor or to its or their advisors on or before the date of this Agreement. For avoidance of doubt, it is hereby clarified that no such forecast, estimate, projection or statement of opinion, except as provided in the Representations, may form the basis of any Claims by the Investor against the Promoters and/or the Existing Shareholders.

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- 1.8 Except for the Representations, none of the Promoters and/or the Existing Shareholders have made or make any other express or implied representation or warranty, either written or oral, on behalf of themselves or the Company.

8. INDEMNITY

8.1 On and from completion of Closing on the Closing Date, the Indemnifying Persons, to the full extent of each Law and subject to the limitations of liability set out in (b)(5)(i)(B) (Limitations on Liability), agree to indemnify, defend and hold harmless Indemnified Persons from and against any and all losses, suffered or incurred by any of the Indemnified Persons and which arise out of, or result from or are connected with:

- (a) any breach of or inaccuracy of any of the Representations (as of the Execution Date, Closing Date, Land Acquisition Date and/or Conversion Closing Date);
- (b) fraud and/or fraudulent misrepresentation by the Company, the Promoters and/or the Existing Shareholders in relation to the transactions contemplated under this Agreement;
- (c) any material breach of covenant or undertaking by the Company, the Promoters and/or the Existing Shareholders contained in this Agreement (other than a failure of the Company and the Promoters to complete the Conversion and Zoning Actions, within the prescribed timelines), subject to: (a) however the Promoters continue to remain liable for any incremental costs over and above the Conversion and Zoning Actions Costs, to complete the Conversion and Zoning Actions, and (b) the rights of the Investor under Clause 9 not being prejudiced, provided that for the purposes of determining whether or not the Investor is entitled to indemnity pursuant to this Clause, the term "material" used in this Clause 8.1(c) shall be interpreted if the Loss being claimed by the Investor is in excess of the Deliberate Amount;
- (d) Tax liability of the Company that arises out of, or results from, or relates to: (a) the period prior to the Closing Date; and/or (b) any action or omission by the Company prior to the Closing Date;
- (e) any costs incurred by the Company for: (a) completion of the Conversion and Zoning Actions, in excess of the Conversion and Zoning Actions Costs; and/or (b) purchase and Transfer of the Project Land, in excess of Land Acquisition Costs; and/or
- (f) notwithstanding anything set out in the Disclosure Letter, the Updated Disclosure Letter, the Land Acquisition Date/Disclosure Letter and/or the Conversion Closing Date Disclosure Letter (in the case may be), the matters set out in Schedule 13 (Specific Indemnity Matters) ("Specific Indemnity Matters").

Claims under Clause 8.1 shall be collectively referred to as "Claims".

8.2 The Investor acknowledges and agrees that the Indemnifying Persons shall in no matter or circumstance be liable to indemnify, defend and hold harmless the Indemnified Persons from and against any and all losses, suffered or incurred by any of the Indemnified Persons and which arise out of, or result from or are connected with any breach of or inaccuracy of any of the Representations arising solely due to, and only to the extent related to, specific disclosures (pertaining to the findings of the Expert Report and/or the New Expert Report) prepared in accordance with Clause 5.5.

8.2 Indemnification Procedures

- (i) Any Claim for indemnity pursuant to this Agreement shall be made by the Indemnified Persons by notice in writing to the Indemnifying Persons (the "Indemnification Notice"). The Indemnification Notice issued by the Indemnified Persons shall also contain a reasonable description of the losses based on the information available to the Indemnified Persons, all the material facts, matters, circumstances and documents that gave rise to the Loss in respect of which indemnification is being sought. If an Indemnified Person becomes aware of any actual or potential claim, legal action, proceeding, suit, prosecution, mediation or arbitration by a Third Party against any Indemnified Person for which indemnification may be sought from the Indemnifying Persons under this [Clause 8.2\(i\)](#) ("Third Party Claim"), the Indemnified Person shall notify the Indemnifying Persons of such Third Party Claim within a period of 45 (forty five) days from the date of receipt of a written notice with respect to such Third Party Claim. The notice in respect of any Third Party Claim shall contain a reasonable description of all the material facts, matters, circumstances known to the relevant Indemnified Person, including, if quantifiable at that stage, an estimation of losses that the Indemnified Person may suffer on account of the relevant Third Party Claim. Copies of any documents available with the Indemnified Person in relation to the Third Party Claim, including a copy of such Third Party Claim, if any, shall be annexed to the written notice being provided to the Indemnifying Persons. The conduct of proceedings, defence, negotiations, compromise, appeal etc. with respect to any Third Party Claims against the Company shall be undertaken in accordance with [Clause 8.2\(ii\)](#) below.
- (ii) All undisputed indemnity payments shall be made by the Indemnifying Persons to the Indemnified Persons in cash and in immediately available funds or such other manner agreed between the Indemnifying Persons and the Indemnified Persons within 30 (Thirty) days of receipt of the Indemnification Notice by the Indemnifying Persons or such earlier period in which any payment is due and payable to a Third Party, including any Governmental Authority. However, in the event the Indemnifying Persons disputes the Loss or their obligation to indemnify all or any part of their obligation to indemnify for the relevant Loss under the Indemnification Notice, such dispute shall be settled in accordance with [Clause 8.2](#) and the obligation of the Indemnifying Persons to indemnify the Indemnified Person shall arise immediately upon such dispute being resolved in accordance with [Clause 8.2](#) and an award and/or Order being passed in accordance thereof upholding indemnification obligations of the Indemnifying Persons.
- (iii) Any payment to be made pursuant to a Third Party Claim (unless disputed) or deposit to be made with a Governmental Authority in connection with any Third Party Claim, shall be made directly by the Indemnifying Persons to the relevant Third Party or Governmental Authority, within the time period prescribed, with intimation to the Indemnified Persons in writing.
- (iv) If the Indemnifying Persons pay an amount pursuant to any indemnification obligation under this [Clause 8](#) in relation to any Loss and the Indemnified Person(s) subsequently recover(s) amounts from a Third Party which is referable to the subject matter of such loss (including pursuant to an insurance claim), then the following

process shall be followed; provided that after following such process the Indemnified Persons remain fully compensated in respect of the original Loss incurred:

- (a) Where the Indemnifying Persons pays an amount in full discharge of a Loss and if any amount is recovered by the Indemnified Person(s) from a Third Party, the Indemnified Person(s) shall promptly and in any event within 30 (Thirty) days, pay the Indemnifying Persons, an amount equal to the sum recovered from the Third Party by the Indemnified Person(s), less any reasonable costs, expenses and Taxes incurred by (or on account of) it in recovering such amounts from the concerned Third Party; or
 - (b) Where the Indemnifying Persons pays an amount in partial discharge of a Loss ("Part Payment"), and the amount(s) recovered by the Indemnified Person(s) from the Third Party together with the Part Payment, exceed the Loss, the Indemnified Person(s) shall promptly and in any event within 30 (Thirty) days, pay to the Indemnifying Persons, an amount equal to the sum in excess of the Loss, less any reasonable costs, expenses and Taxes incurred by (or on account of) the Indemnified Person(s) in recovering such amounts from the concerned Third Party.
- (v) Parties agree that where any payment is made by a Third Party to the Indemnified Person(s) in full discharge of a Loss, prior to the Indemnifying Persons discharging such Loss, the Indemnified Person(s) shall have no further claim against the Indemnifying Persons;
- (vi) If any Claim (including a Third Party Claim) relates to breach of any Land Title Representations or matters related to the Project Land, the Indemnifying Persons shall have the right, at its sole cost, to initiate an independent action against the predecessors in title of the Project Land in respect of such Claims (through the Company under the terms of the Sale Deed) and the Company and the Investor (in its capacity as a shareholder of the Company) shall extend all such cooperation, support and assistance as may be reasonably required by the Company, to in pursue the Company's indemnification rights under the Sale Deed. Notwithstanding anything to the contrary set out herein, the obligations of the Indemnifying Persons set out in this Agreement shall not in any manner be contingent upon, or subject to recovering any amounts from such predecessors in title of the Project Land or PPL, under the terms of the Sale Deed.
- (vi) **Conduct of Third-Party Claims**
- (a) Subject only to the provisions of Clause 8(d)(ii), on receipt of a Third Party Claim against the Company, the Company shall assume control of any proceedings, defense, or negotiations in respect of such Third Party Claim and shall as soon as reasonably practicable give written notice of the Third Party Claim against the Company to the Promoter and the Existing Shareholders.
 - (b) The Company shall and the Parties shall ensure that the Company shall, in connection with the defense and control of a Third-Party Claim against the Company:

- (A) handle and control such proceedings and/or litigation in good faith and consult the Promoters and the Investor on material actions to be taken in respect of defense of such Third-Party Claim;
 - (B) the Company shall appoint legal advisors and other consultants in connection with the relevant Third-Party Claim against the Company in consultation with Promoters and the Investor; and
 - (C) keep the Promoters, the Existing Shareholders and the Investor reasonably informed about the status of matters including by providing such information in the possession of the Company in relation to the Third-Party Claim against the Company (including details of costs and expenses incurred by the Company (along with documentary evidence) in defending the relevant Third-Party Claim) as may be reasonably requested by the Promoters, the Existing Shareholders or the Investor (as the case may be).
- (c) Notwithstanding anything to the contrary contained in this Agreement, on or prior to the expiry of a period of 60 (Sixty) days of issuance of a notice of Third-Party Claim against the Company to the indemnifying Persons, the Investor shall be entitled to require the Promoters to assume control of the defense of such Third-Party Claim by issuing a written notice to the Promoters. In such a case, in connection with the defense and control of such Third-Party Claim:
- (A) The Promoters shall (a) handle and control such proceedings and/or litigation in good faith and consult the Investor and the Company on all material actions to be taken in respect of defense of such Third-Party Claim against the Company, without causing any disruption to the business of the Company; and (b) keep the Investor and the Company reasonably informed about the status of, including by providing such information in the possession of the Promoters in relation to the Third-Party Claim against the Company as may be reasonably requested by the Investor or the Company;
 - (B) the Promoters shall appoint legal advisors and other consultants in connection with the relevant Third-Party Claim against the Company in consultation with the Investor and the Company and the Company shall incur and pay legal fees and other consultancy expenses in connection thereto; and
 - (C) where any settlement, compromise and/or consent to the entry of any judgment in relation to a Third-Party Claim against the Company is proposed, then, the Promoters shall not settle such Third-Party Claim without the prior written consent of the Investor and the Company (which consent shall not be withheld unreasonably).
- (d) The Investor, Company, the Promoters and Existing Shareholders shall cooperate with one another in all reasonable respects in connection with the defense of Third-Party Claim against the Company including making available

relevant documents and records related to the subject matter of such Third-Party Claim against the Company.

- (x) Notwithstanding anything contained in this Clause 2(vii), the Company shall not, without the prior written consent of the Investor, the Promoters and the Existing Shareholders (which shall not be unreasonably withheld), settle, compromise, agree to any compromise or settlement of any Third-Party Claim against the Company or consent to the entry of any judgment in any pending or threatened Third-Party Claim against the Company in respect of which indemnification may be sought hereunder (whether or not the Indemnifying Persons is a party to such action).
 - (vii) The obligation of the Indemnifying Persons to indemnify the Indemnified Persons pursuant to this Clause 2 shall arise in accordance with the timeline set out in Clause 2(i) and Clause 2.1(i) above unless such timelines have been extended by the Investor or the Indemnified Person(s) in their sole discretion. The failure of the Indemnified Persons to timely notify the Indemnifying Persons of a Claim or a Third-Party Claim shall not relieve the Indemnifying Persons of any indemnification responsibility under this Clause 2 except to the extent that there has been an additional loss or increase in the loss by virtue of the failure to timely notify the Claim in accordance with the provisions of this Agreement by the Indemnified Persons, in which case, the liability of the Indemnifying Persons shall be limited to such amount of loss excluding any additional and/or increased loss that has arisen solely due to such failure to timely notify.
 - (x) To the extent the payment to any Indemnified Person of any amounts pursuant to the provisions of this Agreement shall be subject to receipt of any Governmental Approval, in each case the Indemnified Persons shall obtain all such Governmental Approvals and shall make all applications and take all steps required to obtain the same, and the Indemnifying Persons (as the case may be), shall cooperate with the Indemnified Persons to obtain such Governmental Approvals. Where a Governmental Approval is required, the Indemnified Persons may, at their option, assign its indemnity rights under this Clause 2 to an affiliate, if the Indemnifying Persons can, subject to applicable Law, indemnify such Affiliate without requiring any Governmental Approval.
 - (x) The obligation of the Indemnifying Persons to indemnify the Indemnified Persons pursuant to this Clause 2 shall arise irrespective of any alternate rights or remedies that may be available to the Indemnified Persons against any Third-Party in relation to such Loss.
 - (xii) All sums payable to the Indemnified Persons by the Indemnifying Persons under this Agreement shall be paid without set-off or counterclaim and free and clear of all deductions or withholdings whatsoever, other than any withholding Tax required to be withheld and/or deducted in accordance with applicable Law.
- 8.4 If the Indemnifying Persons makes any indemnity payment in respect of a loss to the Indemnified Persons pursuant to this Clause 2 ("Base Payment"), which is subject to any withholding Tax or Tax in the hands of the Indemnified Persons, the Indemnifying Persons shall pay such additional amounts so as to ensure that the net amount received by the

Indemnified Persons is equal to the full amount payable by the Indemnifying Persons to the Indemnified Persons, and the Indemnified Persons receive the amount that they would have been entitled to receive prior to such Taxes.

5.5 A loss which is suffered by the Company shall be deemed to be a loss to the Investor in proportion to its shareholding in the Company on a Fully Diluted Basis. The Investor shall have the discretion to require the Indemnifying Persons to make indemnity payments due to the Investor to the account of the Investor and/or to the account of the Company.

5.6 Notwithstanding any agreement or understanding to the contrary amongst the Company, the Promoters, and/or the Existing Shareholders, on and from the Closing Date and with effect from Closing, the Promoters and the Existing Shareholders hereby respectively, unconditionally (and shall procure that their Affiliates unconditionally), except any rights the Promoters may have under Clause 5.2(i):

- (i) waive any and all claims, whether known or latent, that the Promoters and/or the Existing Shareholders, or any of their Affiliates may have against the Company as of the Closing Date and/or the Conversion Closing Date, in relation to any matter or liability that pertains to the period prior to Closing and/or the Conversion Closing, respectively; and
- (ii) waive any and all claims against the Company and agree that none of the Promoters or the Existing Shareholders or their Affiliates shall have any recourse against the Company, whether as rescission or under contract, law, tort or any other basis whatsoever, in connection with any losses which have been indemnified by the relevant Indemnifying Persons under the terms of this Clause 5 or the other Transaction Documents;

5.7 It is hereby agreed and acknowledged by the Company and the Investor that the Promoters and/or the Existing Shareholders shall continue to have recourse and legal remedies available under applicable Law against the Company for breaches or non-compliance by the Company, post the Conversion Closing Date, of any express post-Closing obligations or undertakings provided by the Company to the Promoters or the Existing Shareholders under the Transaction Documents.

5.8 The indemnification rights of the Indemnified Persons pursuant to this Clause 5 shall be notwithstanding any investigation conducted before or after the Closing Date, and notwithstanding any actual or implied knowledge or notice of any facts or circumstances, including knowledge which the Indemnified Persons may have as a result of such investigation, save and except qualification of the Representations by matters fully and fairly disclosed in the Disclosure Letter, the Updated Disclosure Letter and/or the Last Acquisition Date Disclosure Letter (as the case may be).

5.9 Other than the remedies and/or consequences set out under Clause 5 of this Agreement, indemnification rights under this Agreement shall, on and from and after Closing Date, be the sole and exclusive monetary remedy available to the Indemnified Persons against the Promoters and the Existing Shareholders in the case of any loss incurred or suffered by such Indemnified Persons for matters indemnifiable pursuant to this Clause 5.

8.10 The Indemnifying Persons shall take commercially reasonable efforts to ensure that it, at all times maintain adequate assets in order to meet its: (a) indemnification obligations under the Transaction Documents, and (b) its obligations under Clause 3.8 ("Put Option").

8.11 The Investor may from time to time require the Indemnifying Persons to provide a certificate issued by a chartered accountant of repute and acceptable to the Investor (acting reasonably), certifying the net worth of the Indemnifying Persons. Upon receipt of such a request, the Indemnifying Persons shall provide the Investor a certificate of net-worth within a period of 60 (Sixty) days of the request by the Investor, and it is hereby agreed that the Investor shall not make a request for the net-worth certificate more than once during any financial quarter.

8.12 Limitations on Liability

Notwithstanding anything contained in this Agreement, the total liability of the Indemnifying Persons under this Clause 8 and this Agreement shall be subject to the principles and limitations as set out in Schedule 2 (Limitations on Liability).

9. PUT OPTION AND EVENTS OF DEFAULT

9.1 Events of Default

The occurrence of any of the following events shall be considered an "Event of Default":

(i) any material breach by the Company, the Promoters and/or the Existing Shareholders of their respective obligations under Clause 6.1, Clause 6.2, Clause 6.3, Clause 6.4, Clause 6.5, Clause 6.6, Clause 6.7 and/or Clause 6.8 of this Agreement, subject to Clause 3.1 (c), (ii) and (v) below, as applicable;

(ii) the commencement of proceedings or regulatory investigation against the Company, the Promoters or the Existing Shareholders, for commission of material offence under applicable Anti Corruption Laws, Anti Money Laundering Laws, or Sanctions Laws.

In respect of such proceedings or regulatory investigation, Event of Default shall occur on the earlier of (a) and (b):

(a) if proceedings or regulatory investigation are not dismissed or varied within 90 (Ninety) days of commencement, then the Board / Investor shall appoint any retired judge of the Supreme Court of India or a former accounting partner from any one of the Big Four ("Appointee"), to assess the cause of action forming the basis of the proceedings or regulatory investigation. Promoters shall be entitled to provide their recommendations on the Appointee to the Board or the Investor, who shall consider them without being bound by them, if either: (i) the cause of action of such proceedings or regulatory investigation are established to be materially true in the independent assessment of the Appointee based on facts and documents provided to Appointee by the Company and arguments, pleadings and evidence submitted by the Promoters; or (ii) the Promoters are unable to obtain a dismissal, stay or variation of the proceedings or regulatory investigation within 6 (six) months of their commencement, then an Event of Default shall have occurred; or

- (b) Orders (which are not *ex parte*) have been issued in these proceedings or regulatory investigations, which contain findings or implications against the Company or the Promoters (as the case may be) in respect of the alleged charges of: (i) fraud or (ii) commission of material offence under applicable Anti-Corruption Laws, Anti-Money Laundering Laws, or Sanctions Laws (on the basis of which these proceedings or regulatory investigations have been initiated), then an Event of Default shall have occurred.

Provided that in appointing an Appointee, the Board / Investor shall appoint Big Four only after it has approached: (i) not less than 2 (two) retired judges of the Supreme Court of India; or (ii) the retired judge suggested by the Promoter, either of who have refused to undertake the assignment sought in this clause;

- (iii) The Existing Shareholders, Promoters and/or the Company becoming a Prohibited Person due to their act or omission. For the purpose of this Clause, the meaning of 'Prohibited Person' shall be limited to sub-paragraphs (ii) and (iii) of the definition of 'Prohibited Person' set out in Clause 3.1;
- (iv) The commencement of: (a) criminal proceedings or regulatory investigations by a Governmental Authority against the Existing Shareholders, Promoters and/or the Company for any act done prior to Conversion/Closing in violation of Anti-Corruption Laws, Anti-Money Laundering Laws, or Sanctions Laws which proceeding or investigation is not dismissed, stayed or vacated within 9 (nine) months; or (b) regulatory investigation or criminal proceedings by a Governmental Authority against the Existing Shareholders, Promoters and/or the Company for any act done prior to Closing which results in a Material Adverse Effect, which proceeding or investigation is not dismissed, stayed, vacated or resolved in its favour within 12 (twelve) months;
- (v) Failure by the Company and/or the Promoters to convert the Class A ODDs and/or Class B ODDs into Equity Shares in the manner and within the timelines as set out in this Agreement;
- (vi) any fraud or fraudulent misrepresentation by the Company, the Promoters and/or the Existing Shareholders in connection with the transactions under this Agreement and /or the Company;
- (vii) occurrence of any Insolvency Event with respect to the Existing Shareholders, Promoters and/or the Company prior to the completion of Conversion and Zoning Actions in accordance with this Agreement or Conversion/Closing, whichever is later;
- (viii) failure by the Company, the Existing Shareholders and/or the Promoters to complete their obligation set out in Clause 5.8.3(v);
- (ix) failure by the Company and/or the Promoters to complete any of the Project Land Acquisition Related Actions, within 30 (Thirty) days from the Closing Date, or any other extended time period which may be provided by the Investor, in its sole discretion;
- (x) failure by the Company and/or the Promoters to complete the Conversion and Zoning Actions within the Long Stop Date; and/or

- (v) failure by the Promoters to consummate and/or cause the consummation of the sale and Transfer and/or redemption of the Put Securities, as per the terms of the Put Option Exercise Notice, on or prior to the Put Option Closing Due Date pursuant to an election of Put Option by the Investor under Clause 5.2 or Clause 7.3(b) of this Agreement (as the case may be).

9.2 Cure Period

- (i) Upon the occurrence of an Event of Default, the Investor may issue a notice in writing to the Company and/or Promoters notifying them of such Event of Default ("Default Notice").
- (ii) The Company and/or the Promoters shall, to the extent an Event of Default is capable of being remedied, have a period of 30 (Thirty) days from the date of receipt of the Default Notice in respect of such Event of Default, unless a longer period is mutually agreed between the Parties, to remedy such Event of Default and provide satisfactory evidence to the Investor of having cured such Event of Default ("Cure Period"); provided however, and notwithstanding the above, Parties hereby agree that if any Event of Default as set out in Clause 9.1 (i) (excluding Events of Default arising out of a breach by any of, the Company, the Promoters and/or the Existing Shareholders of any of their respective obligations under Clause 5.1(c), (d), (e) and Clause 5.2(c), (d), (e) (excluding Paragraph (ii) of the definition of Insolvency Event), (ii), (b), (d) and/or (c)) occurs, then the Cure Period shall not be available to the Company and/or the Promoter, and the Investor shall be entitled to forthwith exercise any or all of its rights under Clause 9.3 below.

9.3 Consequences of Event of Default

- (i) Notwithstanding anything contained in the Transaction Documents, upon occurrence of an Event of Default (or, where such Event of Default is capable of being remedied, if such Event of Default has not been remedied or cured to the satisfaction of the Investor within the Cure Period), in each case: (a) the rights of the Existing Shareholders and the Promoters under the Transaction Documents shall automatically (and without any further action from any Party) terminate, provided that the obligations of the Existing Shareholders and Promoters under the Transaction Documents shall continue; and (b) the Investor may, at its sole discretion and option, exercise one or more of the following options (in any order or sequence) (collectively, "EOD Consequence"):
 - (A) require any or all of the Directors nominated by the Promoters and/or the Existing Shareholders to forthwith resign from the Board, and/or appoint any number of Investor Directors;
 - (B) invoke the Pledge and/or Mortgage;
 - (C) exercise a Put Option in accordance with Clause 5.2 (Put Option);
 - (D) exercise a Call Option in accordance with Clause 5.3 (Call Option); and/or
 - (E) issue a written notice to the Company ("Class B Notice"), requiring the Company to (and the Promoters and the Existing Shareholders shall ensure

the Company) immediately (and in any event within 4 (Four) days from the date of issuance of the Class B Notice): (i) convert the Class B OCCs, in aggregate, to 1 (One) Equity Share (i.e., all the outstanding Class B OCCs shall, in aggregate, be converted to 1 (One) Equity Share), or (ii) redeem the Class B OCCs, in aggregate for Rs. 1 (Rupee One); i.e., all the outstanding Class B OCCs shall, in aggregate, be redeemed for Rs. 1 (Rupee One) and thereafter issue the Call Option Exercise Notice in accordance with Clause 2.3 (Call Option). For avoidance of doubt, it is hereby clarified that the issuance of Class B Notice under this Clause 2.3(iii) shall not result in automatic conversion of Class A OCCs or Conversion Closing as envisaged under this Agreement.

- (iv) Notwithstanding anything contained in this Clause 2, in respect of an Event of Default as set out in Clause 2.1(iii)(a), if any further evidence is discovered after the issue of Default Notice but before the issue of Put Option Exercise Notice or Call Option Exercise Notice by the Investor (as the case may be) or Transfer and sale of Equity Securities held by the Promoters and the Existing Shareholders under the terms of the Securities Pledge Agreement, the Promoters can submit the same for consideration by the Appointee. If before the invocation of any IPO Consequence option by the Investor, the Appointee finds that there is not sufficient evidence to establish the cause of action against the Promoters or the Company for the relevant proceedings, then no Event of Default shall be deemed to have occurred and the Investor shall not be entitled to exercise any IPO Consequence under Clause 2.5(i) in respect of such breach.

9.4 Put Option

- (i) On and from the Closing Date until the later of: (a) completion of Conversion and Zoning Actions in accordance with this Agreement, (b) Conversion Closing as contemplated under the terms of this Agreement, and/or (c) fulfillment by the Company of its obligations under Clause 5.8, the Promoters and Existing Shareholders hereby grant a right (but not an obligation) to the Investor to require the Promoters and Existing Shareholders to forthwith purchase the Equity Securities held by the Investor (and/or its Affiliates) (and/or require the Promoters and Existing Shareholders to cause the Company to redeem (including by infusing the required funds into the Company, in a manner acceptable to the Investor, acting reasonably) the OCCs, as applicable, in each case, all (and not less than all) such Equity Securities held by the Investor (and/or its Affiliates) ("Put Securities"), free and clear of encumbrances (other than as set out in this Agreement), against the payment, in full, to the Investor of the Option Consideration ("Put Option"), without any set-off, deductions and/or withholding, subject to and in accordance with the provisions of this Clause 9.4 (Put Option).
- (ii) Put Option Events: The Investor shall have the right to exercise, at its sole discretion, the Put Option at any time, upon:
- (a) an election made by the Investor under Clause 2.2 of this Agreement, and/or
 - (b) election made by the Investor under Clause 2.3(ii) of this Agreement, and/or
 - (c) an occurrence of an Event of Default.

- (ii) The Investor may exercise the Put Option by issuing a written notice ("Put Option Exercise Notice") to the Promoters and Existing Shareholders, which notice shall inter alia specify:
- (a) the mode of exercise elected by the Investor (i.e., through purchase by the Promoter of the Put Securities and/or redemption by the Company of the Class A OCBs);
 - (b) the Investor's estimate of the Option Consideration; and
 - (c) the bank account details of the Investor.
- (iii) The issuance of a Put Option Exercise Notice by the Investor shall constitute a valid and binding agreement between the Promoters, Existing Shareholders and the Investor, for the purchase by the Promoter and Existing Shareholders and/or redemption by the Company, of all Put Securities owned by the Investor, as per the terms of the Put Option Exercise Notice. Upon issuance of the Put Option Exercise Notice, the Promoters and Existing Shareholders shall:
- (a) consummate or cause the consummation of the sale and Transfer or redemption of the Put Securities specified in the Put Option Exercise Notice within a period of 90 (Ninety) days from the date of issuance of the Put Option Exercise Notice ("Put Option Closing Due Date"), which period may be extended in writing by the Investor (at its sole discretion), by an additional period of up to 90 (Ninety) days, such period is inclusive of the time period for obtaining any requisite Governmental Approvals. Notwithstanding the foregoing, if a Put Option Exercise Notice is issued by the Investor pursuant to an Event of Default set out under Clause 3.1.3(a), the the Promoters and Existing Shareholders shall consummate or cause the consummation of the sale and Transfer or redemption of the Put Securities specified in the Put Option Exercise Notice within a period of 3 (Three) days from the date of issuance of such Put Option Exercise Notice, and the term 'Put Option Closing Due Date' shall be construed accordingly; and
 - (b) in case the consummation of the sale and Transfer or redemption of the Put Securities is not completed on or prior to the Put Option Closing Due Date (except where such failure to consummate or redeem was directly attributable and caused by the Investor not having obtained requisite Governmental Approvals that could only have been obtained solely by the Investor (and for the avoidance of doubt, such approvals cannot have been obtained by the Company, the Promoters and/or the Existing Shareholders) and the Company, the Promoters and the Existing Shareholders complying with their respective obligations under Clause 3.4(c)), in addition to the Option Consideration, the Promoters and the Existing Shareholders shall be obligated to pay, and the Investor shall be entitled to receive the Default Option Consideration.
- (iv) Parties agree that, (a) any payments received by the Investor under the Transaction Documents or otherwise, excluding the Option Consideration and the Default Option Consideration, shall not be included in such IRR and/or Default IRR calculation; (b) the

rates of return in such calculation of IRR and Default IRR shall be per annum rates and all amounts shall be calculated on a monthly basis and compounded on an annual basis on the basis of a 12 (twelve) month year, and (c) if the XIRR function of the Microsoft Excel software is no longer in scope at the time of an IRR and/or Default IRR calculation is required under this Agreement, then the Investor may select a substitute software program to make such IRR and/or Default IRR calculation.

- (v) The Company, the Promoters and the Existing Shareholders shall do all such acts and deeds as may be necessary to give effect to the provisions of this Clause 3.3 (Put Option), including undertaking best efforts in obtaining in a timely manner all applicable Consents and Governmental Approvals. It is hereby agreed that Consents and Governmental Approvals which can be obtained solely by the Investor (and for avoidance of doubt, cannot be obtained by the Company, the Promoters and/or the Existing Shareholders) for giving effect to provisions of this Clause 3.3 shall be the responsibility of the Investor, and the Company, the Promoters and the Existing Shareholders shall extend such reasonable cooperation as may be requested by the Investor.
- (vi) The Investor shall extend all reasonable cooperation and support that the Promoters, the Existing Shareholders and the Company may request in case any sale, disposal or Transfer of the Project Land is contemplated or proposed post issuance of the Put Option Exercise Notice.
- (vii) If the Investor is unable to consummate the transfer of its Equity Securities pursuant to Clause 3.4 (Put Option) due to any restrictions under Law, the Promoters and Existing Shareholders agree that the Option Consideration and Default Option Consideration ("Pre-Estimate Losses"), is a genuine pre-estimate of expenses and losses incurred (be by Investor in relation to the transfer of its Equity Securities in the Company, and the Promoters and Existing Shareholders hereby agree to pay the Pre-Estimate Losses as liquidated damages and/or indemnity to the Investor and/or its Affiliates, within the time period agreed under this Clause 3.4 (Put Option). Upon receipt of such payment, Equity Securities of the Investor shall be Transferred to the Promoters at the lowest price permissible under Law.

3.5 Call Option

- (i) On and from the Closing Date until the later of: (a) completion of Conversion and Listing Actions in accordance with this Agreement; (b) Conversion Closing as contemplated under the terms of this Agreement; and/or (c) fulfillment by the Company of its obligations under Clause 3.3, the Promoters and the Existing Shareholders hereby grant a right (but not an obligation) to the Investor to require the Promoters and Existing Shareholders to forthwith sell to the Investor (and/or its Affiliates) all (and not less than all): (a) all Class B OCEs (and/or the Equity Securities issued pursuant to the conversion of the Class B OCEs, including in accordance with Clause 3.2(b)(ii); and (b) all Existing Equity Shares (collectively, the "Call Securities"), in each case, free and clear of Encumbrances (other than as set out in this Agreement) ("Call Option"), at a nominal aggregate consideration of an amount not exceeding Rs. 500,000 (Rupees Five Lakh) ("Call Option Consideration"), subject to and in accordance with the provisions of this Clause 3.5 (Call Option).

- (j) The Investor shall have the right to exercise, at its sole discretion, the Call Option at any time, upon the occurrence of an Event of Default, by issuing a written notice ("Call Option Exercise Notice") to the Promoters and Existing Shareholders, which notice shall inter alia specify: (a) the mode of exercise elected by the Investor (i.e., through purchase by the Investor of: (A) the Class B OCOs and Existing Equity Shares; or (B) Existing Equity Shares and Equity Share(s) held by the Promoters (pursuant to the conversion of the Class B OCOs, including in accordance with Clause 2.3(i)(2)); and (b) the details of the Investor (and/or Affiliate) acquiring such Equity Securities. In case a Put Option Exercise Notice has been issued by the Investor pursuant to an Event of Default under Clause 3.1 (a), notwithstanding the foregoing, the Investor shall not be permitted to issue a Call Option Exercise Notice for a period of 30 (Thirty) days from the end of such Put Option Exercising Due Date.
- (k) The issuance of a Call Option Exercise Notice by the Investor shall constitute a valid and binding agreement between the Promoters, Existing Shareholders and the Investor for the purchase by the Investor of the Call Securities. Upon issuance of the Call Option Exercise Notice the Promoters and Existing Shareholders shall:
- consummate or cause the consummation of the sale and transfer of all the Call Securities, in the manner specified in the Call Option Exercise Notice, within a period of 30 (Ten) days from the date of issuance of the Call Option Exercise Notice subject to a reasonable extension of up to 30 (Thirty) days in order to obtain requisite Governmental Approvals ("Call Option Exercising Due Date"); and
 - obtain in a timely manner, all Consents and Governmental Approvals, so may be required to consummate the sale and Transfer of the Call Securities and share copies and/or evidence of such Consents and Governmental Approvals received with the Investor provided it is hereby agreed that necessary Consents and Governmental Approvals which can be solely obtained by the Investor (and for the avoidance of doubt, such consents and approvals cannot have been obtained by the Company, the Promoters and/or the Existing Shareholders) for consummating the sale and Transfer of the Call Securities shall be the responsibility of the Investor, and the Company, the Promoters and the Existing Shareholders shall extend such reasonable cooperation as may be requested by the Investor.

10. DISPUTE RESOLUTION

- 10.1 If any claim, dispute or difference arises between all or any of the Parties hereto, in connection with the validity, interpretation, implementation or alleged breach of any provision of this Agreement or regarding any question, including the question as to whether the termination of this Agreement by any Party hereto has been legitimate ("Dispute"), such Dispute shall be referred, at the request in writing of any Party to the Dispute to final and binding arbitration. In the event of such arbitration:
- The arbitration shall be in accordance with the Arbitration Rules of the Singapore International Arbitration Centre ("SIAC"), in force at the relevant time (which rules are deemed to be incorporated into this Agreement by reference).

- (v) All proceedings of such arbitration shall be in the English language. The venue of the arbitration shall be Singapore, which shall also be the seat of the arbitration;
- (vi) The arbitration shall be conducted before a sole arbitrator appointed jointly/collectively by the disputing Parties. In the event that the disputing Parties are unable to agree on a sole arbitrator within 15 (fifteen) Business Days following submission of the Dispute to arbitration, the Parties shall forthwith approach the chairman of SIAC, which shall appoint a sole arbitrator in accordance with the rules of SIAC;
- (vii) Arbitration awards shall be reasoned awards and shall be final and binding on the disputing Parties and shall be subject to forced execution in any court of competent jurisdiction. The arbitration award rendered in accordance with this Clause 10 shall be enforceable by any court of competent jurisdiction, including (if and to the extent determined by the arbitrator) by injunctive relief or order for specific performance;
- (viii) All claims and counterclaims shall, to the extent such claims or counterclaims are known at the time any arbitration is commenced and relate to issues which are substantially the same as or connected with issues raised in a Dispute which has already been referred to arbitration under this Agreement or any other Transaction Documents, be consolidated and determined in the same arbitration proceeding;
- (ix) Deposits to cover the costs of arbitration shall be shared equally by the parties thereto. The award rendered by the arbitrator shall, in addition to dealing with the merits of the case, fix the costs of the arbitration and decide which of the parties thereto shall bear such costs or in what proportions such costs shall be borne by such parties;
- (x) The existence or subsistence of a Dispute or the commencement or continuation of arbitration proceedings, shall not, in any manner, prevent or postpone the performance of those obligations of Parties under this Agreement which are not in dispute; and
- (xi) Nothing contained herein shall preclude a Party from seeking interim equitable or injunctive relief, or both in relation to any Disputes. Pursuing equitable or injunctive reliefs shall not be a waiver of the right of the Parties to pursue any other remedy or relief through the arbitration described in this Clause 10.

11. CONFIDENTIALITY AND NON-DISCLOSURE

- 11.1 Each Party (and each Party shall direct each of its: (i) Affiliates; (ii) directors, officers, employees, agents, advisers, accountants and consultants of that Party and/or of its respective Affiliates; and (iii) third party lenders and other finance providers) shall keep all information confidential so per the terms of this Agreement and subject to Clause 11.1, shall not, without the prior written consent in writing of the other Parties, divulge the information to any other Person or use the information for any purpose.
- 11.2 The Parties may disclose information for the purpose of consummation of the transactions contemplated under the Transaction Documents in the manner set out in this Agreement. Additionally, the confidentiality obligations contained herein shall not apply.

- (4) to the extent that such information is in the public domain other than by breach of this Agreement;
- (5) to the extent that such information is required to be disclosed by any applicable Law or requested to be disclosed by any Governmental Authority to whose jurisdiction the relevant Party is subject provided that such disclosing Party shall provide notice of such disclosure to the extent reasonably practicable and legally permitted to the other Parties;
- (6) to employees, directors or professional advisors of any Party or its Affiliates on a need-to-know basis, subject to the disclosing Party informing such persons of the confidential nature of such information, and provided that such party shall continue to maintain the confidential nature of such information on terms at least as strict as set out in this Agreement;
- (7) to the extent that any information has been independently developed by a Party without reference to any information furnished by any other Party hereto;
- (8) in the case of the Investor, to any direct or indirect shareholders/investors/limited partners/general partners of the Investor subject to the disclosing Party informing such persons of the confidential nature of such information, and provided that such party shall continue to maintain the confidential nature of such information on terms at least as strict as set out in this Agreement;
- (9) to the extent required by a Party for the enforcement of its rights and obligations under this Agreement, provided that such disclosing Party shall provide notice of such disclosure to the extent reasonably practicable and legally permitted to the other Parties; and
- (10) after the Conversion Closing Date, any potential transferees of the Equity Securities, on a need-to-know basis, subject to the disclosing Party informing such persons of the confidential nature of such information, and provided that such party shall continue to maintain the confidential nature of such information on terms at least as strict as set out in this Agreement.

For the purpose of this Agreement, "Information" includes without limitation, the following: (a) information concerning the organization, assets, business, affairs, projects, intellectual property, technology, trade secrets, know-how, strategies, finances, database, or property of any of the Parties (whether such information is furnished before, on or after the Conversion Date); (b) existence of the Transaction Documents; and (c) the information in relation to the same contained in the Transaction Documents, or of the transactions contemplated pursuant to the terms of the Transaction Documents.

11.3 Notwithstanding the provisions of Clause 11.1 and 11.2, with effect from the Closing Date:

- (a) Each of the Existing Shareholders shall keep any and all Company Information and other materials passing between it and the other Parties confidential and shall not, without the prior written consent of the other Parties, divulge the Company Information to any other Person or use the Company Information for any purpose; and

- (ii) the Company, the Promoters and the Investor shall not require the consent of the Existing Shareholders to divulge any Company Information to any other Person or use the Company Information for any purpose.
- 11.4 No formal or informal public announcement or press release, which makes reference to the terms and conditions of this Agreement or any of the matters referred to herein, shall be made or issued without the written consent of the Parties.

12. NOTICES

- 12.1 Unless otherwise stated, all notices, approvals, instructions, demands and other communications given or made under the Transaction Documents shall be in English and in writing and shall be given by personal delivery, or by sending the same by pre-paid registered mail addressed to the relevant Party at its address, or to the email account set out below:

(i) If to the Existing Shareholders:

Address:	Plot No. 802, Opp. Holy College, Chikanki Marg, Civil Lines, Nagpur - 44
Email:	abhishek@hula.in
Attention:	Abhishek Agrawal

(ii) If to the Promoters:

Address:	Plot No. 802, Opp. Holy College, Chikanki Marg, Civil Lines, Nagpur - 44
Email:	abhishek@hula.in
Attention:	Abhishek Agrawal

(iii) If to Investor:

Address:	Tower 1, Floor 15, One World Centre, Lower Pavet, Mumbai, 400033
Email:	Runal.Shah@proparko.com
Attention:	Runal Haroon Shah
Copy to:	
Address:	C/o The Blackstone Group (HK) Limited, Suite 502, 5/F Two IC 8 Finance Street, Central, Hong Kong

E-mail: rsalathewarrior@blackstone.com

Attention: Richard Blair

(i) If to the Company, prior to Closings:

Address: 18017, 4th Floor, M. G. House Ravindranath Tagore Road,
Civil Lines, Nagpur Maharashtra-440001.

E-mail: abhishek@viva.in

Attention: Abhishek Agrawal

(ii) If to the Company, after Closings:

Address: 18017, 4th Floor, M. G. House Ravindranath Tagore Road,
Civil Lines, Nagpur Maharashtra-440001.

E-mail: abhishek@viva.in

Attention: Abhishek Agrawal

Copy to:

Address: Tower 1, Floor 15, One World Centre, Lower Panel,
Mumbai, 400013

E-mail: kunal.stub@niparfo.com

Attention: Kunal Harun Stub

12.2 A Party may change or supplement the addresses given above, or designate additional addresses, for purposes of this Clause 12, by giving the other Party written notice of the new address in the manner set forth above.

12.3 Any notice so served shall be deemed to have been duly given: (i) in case of delivery by hand, when hand delivered to the other Party; (ii) when sent by registered mail, on receipt by the addressee; or (iii) for electronic mail, upon a confirmation of transmission being recorded on the server of the Party sending the communication, unless the Party receives a message indicating failed delivery.

13. TERM AND TERMINATION

13.1 Term

This Agreement shall come into effect on the Execution Date and shall remain valid and binding on the Parties until such time that it is terminated in accordance with Clause 13.2 below.

11.2 Termination

- (i) This Agreement may be terminated prior to Closing at the option of the Investor, by written notice to the other Parties, if:
 - (a) the Conditions Precedent are not completed prior to 31 December 2022 or such extended date as may be mutually decided, in writing, by the Investor and the Promoter;
 - (b) the Investor chooses to terminate this Agreement in accordance with Clause 7.3(a);
 - (c) the Company, the Promoters or the Existing Shareholders (as the case may be) are in material breach of any covenants under this Agreement provided that if the relevant breach is curable, the Company, the Promoters and/or the Existing Shareholders shall be entitled to a 30 (thirty) day cure period after being notified of such breach;
 - (d) the Company, the Promoters or the Existing Shareholders (as the case may be) are in material breach of any representations and warranties under this Agreement (excluding any breaches of representations and warranties duly disclosed in the Disclosure Letter or updated Disclosure Letter in accordance with this Agreement) which remain uncured for a period of 30 (Thirty) days after a receipt of notice from the Investor, subject to any further extension as may be mutually agreed between the Parties;
 - (e) there is an occurrence, existence or subsistence of a Material Adverse Effect;
 - (f) if the Investor is unable to consummate the transaction on account of change in applicable law after the Completion Date; and/or
 - (g) either the Company, the Promoters or the Existing Shareholders have been subject of any Sanctions Laws.
- (ii) This Agreement may be terminated at the option of the Investor, by written notice to the other Parties, in the event of any material breach by the Company, the Promoters and/or the Existing Shareholders of their respective obligations under Clause 6.2 of this Agreement.
- (iii) This Agreement may be terminated at any time by the mutual agreement of the Parties.

11.3 Effect of Termination

- (i) The termination of this Agreement shall not relieve any of the Parties of any obligation or liability accrued prior to the date of termination and the right to terminate as aforesaid shall be without prejudice to all the contractual, equitable and legal rights and remedies available to the Parties.

- (c) The provisions of Clause 1 (Definitions and Interpretation), 10 (Dispute Resolution), 11 (Confidentiality and Non-disclosure), 12 (Notices), this Clause 12.3 and 14 (Miscellaneous) shall survive the termination of this Agreement.

14. MISCELLANEOUS

14.1 Actions on the Execution Date

On the Execution Date: (i) the Company shall provide to the Investor and the Existing Shareholders certified true copies of the Pre-Closing Resolutions with respect to the Company; (ii) Rajesh Seed shall provide to the Company and the Investor, certified true copies of the Pre-Closing Resolutions with respect to the Rajesh Seed; (iii) the Investor shall provide to the Existing Shareholders and the Company, certified true copies of the Pre-Closing Resolutions with respect to the Investor; and (iv) Disclosure Letter shall be delivered by the Promoters and the Existing Shareholders to the Investor.

14.2 Execution

Delivery of an executed signature page of a counterpart by facsimile transmission or in Adobe[®] Portable Document Format (PDF) sent by electronic mail shall take effect as delivery of an executed counterpart of the Transaction Documents. If either method is adopted, each Party shall provide the others with the original of such page as soon as reasonably practicable thereafter.

14.3 Counterparts

The Transaction Documents may be executed simultaneously in any number of counterparts, each of which will be deemed an original, but all of which will constitute one and the same instrument.

14.4 Specific Performance

The Transaction Documents shall be specifically enforceable at the instance of any Party. The Parties agree that the non-defaulting Party will suffer immediate, material, irreparable, continuing and inseparable damage and harm in the event of any material breach of the Transaction Documents and the remedies at applicable law in respect of such breach may be inadequate (such Party hereby waives its claim or defense that an inadequate remedy at law is available) and that such non-defaulting Party shall be entitled to seek specific performance against the defaulting Party for performance of its obligations under the Transaction Documents in addition to any and all other legal or equitable remedies available to it.

14.5 Valuation

Notwithstanding the provisions of Clause 11 (Confidentiality and Non-Disclosure), in the event that valuations and/or fair value of the Company are required to be determined under Applicable Law for any transaction contemplated by this Agreement, any information being shared with the chartered accountant and/or the merchant bank (or equivalent) for the determination of such valuation and/or fair value shall be shared, by the Company and/or the Promoters, subject to the Investor's prior written consent. Without prejudice to the above, the Investor shall have the right to share, on behalf of the Company, any information with the chartered accountant and/or the merchant bank (or equivalent) for the determination of such

valuation and/or fair value, and a copy of the same will also be shared by the Investor with the Promoters.

14.6 Entire Agreement

This Agreement (together with the Schedules and all the Schedule hereto), along with the other Transaction Documents, constitutes and contains the entire agreement and understanding between the Parties with respect to the subject matter hereof and supercedes all previous communications, negotiations, commitments, either oral or written, between the Parties with respect to the subject matter hereof.

14.7 Governing Law and Jurisdiction

The Transaction Documents shall be governed in all respects by the laws of India (without reference to its conflict of laws provisions). Subject to the provisions of Clause 20, the Parties agree to be subject to the non-exclusive jurisdiction of the courts in Nagpur, India.

14.8 Severability

Any provision of the Transaction Document, which is invalid or unenforceable, shall be ineffective to the extent of such invalidity or unenforceability, without affecting in any way the remaining provisions hereof. If for any reason whatsoever, any provision of the Transaction Document is or becomes, or is declared by a court of competent jurisdiction to be, invalid, illegal or unenforceable, then the Parties will negotiate in good faith to agree on such provision to be substituted, which provisions shall, as nearly as practicable, leave the Parties in the same or nearly similar position to that which provided prior to such invalidity, illegality or unenforceability.

14.9 Amendments

No change, alteration, modification or addition to the Transaction Documents shall be valid unless in writing and properly executed by the Parties hereto.

14.10 Rights Cumulative

- (i) The rights, powers, privileges, and remedies provided in this Agreement are cumulative and subject to Clause 13.3, are not exclusive of any rights, powers, privileges or remedies provided by applicable Law or otherwise.
- (ii) The rights, powers, privileges, and remedies provided under other Transaction Documents are cumulative, are not exclusive of any rights, powers, privileges or remedies provided by applicable Law or otherwise. No failure to exercise nor any delay in exercising any right, power, privilege or remedy under the Transaction Documents shall in any way impair or affect the exercise thereof or operate as a waiver thereof in whole or in part.
- (iii) No single or partial exercise of any right, power, privilege or remedy under the Transaction Documents shall prevent any further or other exercise thereof or the exercise of any other right, power, privilege or remedy.

14.11 Surrender and Assign

Be rights, liabilities or obligations under this Agreement shall be assigned by either Party without the prior written consent of the other Parties. Notwithstanding the foregoing, the Investor may assign the whole or any part of this Agreement or its rights hereunder, unilaterally without obtaining the consent of any of the other Parties, to one or more Affiliates or to any direct or indirect transferees of all or a portion of any Equity Securities or securities held by the Investor in the Company (each such transferee, a "Third Party Transferee").

14.12 Costs and Expenses

- (i) Except as otherwise provided in this Agreement, each Party shall pay its own expenses in connection with the preparation and performance of this Agreement and the consummation of the transactions contemplated hereby, including without limitation, all fees and expenses of legal and financial advisors, independent accountants and advisers.
- (ii) All statutory costs (including in relation to the issue and conversion of the Equity Securities) and expenses (including payment of applicable stamp duty) incurred in respect of or relating to this Agreement shall be borne by the Promoters.
- (iii) Applicable stamp duty payable on the transfer of Sale Securities shall be borne by the Investor.

14.13 Waiver

No waiver of any provision of the Transaction Documents or consent to any departure from it by any Party shall be effective unless it is in writing and signed by a duly authorized representative of the concerned Party. A waiver or consent shall be effective only for the purpose for which it is given. No default or delay on the part of any Party in exercising any rights, powers or privileges operates as a waiver of any right, nor does a single or partial exercise of a right preclude any exercise of other rights, powers or privileges.

14.14 Further Assurances

The Parties shall execute other documents, cause meetings to be held, cause resolutions to be passed, exercise their votes and do and perform, and cause to be done and performed such further acts and things as may be necessary or desirable in order to give full effect to the Transaction Documents and the transactions contemplated thereunder, whether prior to or after the Closing Date.

14.15 Investor not to be considered promoter

The Parties agree that the Investor is only a financial investor in the Company and is not responsible for the day-to-day affairs of the Company. Subject to the provisions of applicable law, Promoters and the Company shall make best endeavours and take all reasonable actions to ensure that the Investor shall not be considered/classified to be a "promoter" of the Company or any person acting in concert of the "promoter" of the Company for any reason whatsoever.

14.16 No Recourse

- (a) Notwithstanding anything that may be expressed or implied in the Transaction Documents, each Party agrees and acknowledges that a Party shall not have any rights against, and no such Person shall make any claim (whether by the enforcement of any assessment, by any legal or equitable proceeding or by virtue of any applicable law) against any Non-Recourse Persons in connection with the Transaction Documents or any other instrument, agreement or document referred to herein or therein or to be delivered hereunder or thereunder (whether by the enforcement of any assessment or by any legal or equitable proceeding, or by virtue of any statute, regulation or other applicable law, or by or through attempted piercing of the corporate veil, by or through a claim by or on behalf of any Person against any Non-Recourse Person, in equity or at law, in contract, tort or otherwise), and that any such claim shall only be made against the Parties to the Transaction Documents.
- (b) In addition, and for the avoidance of doubt, it is expressly agreed and acknowledged by each Party (for itself and on behalf of its Affiliates) that no liability whatsoever shall attach to, be imposed on or otherwise be incurred by any Non-Recourse Person for any obligation of a Party under the Transaction Documents, or any other instrument, agreement or document referred to herein or therein or to be delivered hereunder or thereunder for any claim based on, in respect of, or by reason of such obligations or their creation.
- (c) For the purpose of this clause, "Non-Recourse Persons" means, with respect to a Party, any former, current or future direct or indirect equity holder or other beneficial owner, controlling person, trustee, director, officer, agent, representative, Affiliate, employee, general or limited partner, member or manager of the Party or any of its Affiliates, or any former, current or future direct or indirect equity holder or other beneficial owner, controlling person, trustee, director, officer, agent, representative, Affiliate, employee, general or limited partner, member or manager of any of the foregoing, or any representative or any of the successors and assigns of each of the foregoing, but excluding (for the avoidance of doubt) the Party and any Person who subsequently becomes a Party to this Agreement and/or the other Transaction Documents. Notwithstanding any provision of this Agreement, this clause shall survive termination of this Agreement.

14.17 No Use of Blackstone Name

The Promoters and the Company shall not in any way use the "Blackstone" name or mark or the mark or the name or mark of any of the Investor or its Affiliates, or any derivative thereof in any public disclosure, including any press release, without the prior written approval from the Investor.

14.18 Relationship of the Parties

The Parties are independent contractors. None of the Parties shall have any right, power or authority to enter into any agreement for or on behalf of, or incur any obligation or liability of, or to otherwise bind, the other Parties except as specifically provided by the Transaction Documents. Nothing in the Transaction Documents shall be interpreted or construed to create an association or partnership between the Parties, deem them to be persons acting in concert

or to impose any liability attributable to such relationship upon any of the Parties hereto, unless expressly provided otherwise, to constitute any Party as the agent of any of the other Parties for any purpose.

14.13 Promoters Representative

- (i) Mr. Abhishek Agrawal ("Promoters Representative") is hereby constituted and appointed as agent and attorney for and on behalf of the Promoters and Existing Shareholders. The Promoters Representative shall have full power and authority, on behalf of each of the Promoters and Existing Shareholders to: (a) execute and deliver and receive deliveries of all agreements, certificates, memorandums, notices, approvals, extensions, waivers, amendments, and other documents required or permitted to be given in connection with or consummation of the transactions contemplated by this Agreement; (b) receive notices in connection with any Claims under this Agreement; (c) negotiate, enter into settlements and compromises of, or assume the defense of, Claims; and demand arbitration and comply with orders of courts and awards of arbitrators with respect to such Claims; (d) give and receive notices and communications on behalf of the Promoters and Existing Shareholders in connection with this Agreement.
- (ii) A decision, act, consent or instruction of the Promoters Representative, shall constitute a decision of all the Promoters and Existing Shareholders and shall be final, binding and conclusive upon each such Promoters and Existing Shareholders, and the Investor may rely upon any decision, act, consent or instruction of the Promoters Representative, as being the decision, act, consent or instruction of each and every Promoter and Existing Shareholders. The Investor is hereby relieved from any liability to any person for any acts done by them in accordance with such decision, act, consent or instruction of the Promoters Representative.
- (iii) The Promoters shall be jointly and severally responsible for all obligations imposed on them under this Agreement.

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For RAJESH STEEL INDUSTRIES PRIVATE LIMITED



Authorized Signatory



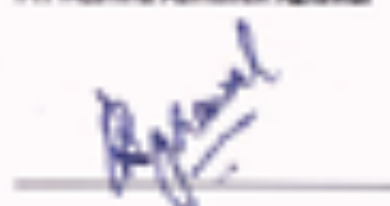
Signature Page of the Investment Agreement executed by and amongst Rajesh Steel Industries Private Limited, Abhishek Agrawal, Jaishree Ashish Agrawal, Rachina Abhishek Agrawal, Nile Warehousing Private Limited, and Western Industrial Parks Private Limited.

For Atchhok Agrawal



Signature Page of the Investment Agreement executed by and amongst Rajesh Steel Industries Private Limited, Atchhok Agrawal, Jaehoon Atchhok Agrawal, Rohini Atchhok Agrawal, Rishabh Warehousing Private Limited, And Redson Industrial Parks Private Limited

For Rushina Abdulkhak Agnewal



Signature Page of the Investment Agreement executed by and amongst Rajesh Steel Industries Private Limited, Abdulkhak Agnewal, Jashraj Ashish Agnewal, Rushina Abdulkhak Agnewal, Isha Warehousing Private Limited, And Harison Industrial Parks Private Limited

For Nisn Warehousing Private Limited



Authorized Signatory



Signature Page of the Investment Agreement executed by and amongst Rajesh Steel Industries Private Limited, Ashish Agrewal, Jyoti Ashish Agrewal, Rishma Nishith Agrewal, Nisn Warehousing Private Limited, And Epsilon Industrial Parks Private Limited

For Ashish Abhishek Agrawal



For WIDCON INDUSTRIAL PARKS PRIVATE LIMITED



Authorized Signatory

SCHEDULE 1 | SECURITIES HOLDING PATTERN

PART A | EQUITY SECURITIES HOLDING PATTERN OF THE COMPANY AS ON THE EXECUTION DATE

#	NAME OF EQUITY SECURITY HOLDER	EQUITY SECURITIES HELD	% HOLDING
Equity Shares			
1.	Jashvee Rutish Agrawal	5,000	50%
2.	Rudhina Rutish Agrawal	5,000	50%
Total		10,000	100%
Optionally-Convertible Debentures			
1.	Rajesh Doshi	1,75,00,000	100%

PART B | EQUITY SECURITIES HOLDING PATTERN OF THE COMPANY AS ON THE CLOSING DATE IMMEDIATELY PRIOR TO CLOSING

#	NAME OF EQUITY SECURITY HOLDER	EQUITY SECURITIES HELD	% HOLDING
Equity Shares			
1.	Jashvee Rutish Agrawal	5,000	50%
2.	Rudhina Rutish Agrawal	5,000	50%
Total		10,000	100%
Optionally-Convertible Debentures			
1.	Rajesh Doshi – Class A OCBs	1,75,54,500	85%
2.	Rajesh Doshi – Class B OCBs	94,42,500	15%

#	NAME OF EQUITY SECURITY HOLDER	EQUITY SECURITIES HELD	% HOLDING
Total		2,79,35,000	100%

PART C | EQUITY SECURITIES HOLDING PATTERN OF THE COMPANY AS ON THE CLOSING DATE IMMEDIATELY AFTER CLOSING

#	NAME OF EQUITY SECURITY HOLDER	EQUITY SECURITIES HELD	% HOLDING
Equity Shares			
1.	Deafinal Rajiv's Agreement	5,000	50%
2.	Deafinal Abhishek's Agreement	5,000	50%
Total		10,000	100%
Optionally Convertible Debentures			
3.	Investor - Class A OCBs	1,71,56,500	61%
4.	Rajesh Steel - Class B OCBs	94,43,500	39%
Total		2,79,35,000	100%

PART D | SHAREHOLDING PATTERN OF THE COMPANY AS ON THE CONVERSION CLOSING DATE IMMEDIATELY AFTER CONVERSION CLOSING

#	NAME OF EQUITY SECURITY HOLDER	EQUITY SECURITIES HELD	% HOLDING
1.	Investor	1,71,56,500	61.00%
2.	Rajesh Steel	94,43,500	34.00%

#	NAME OF EQUITY SECURITY HOLDER	EQUITY INSTRUMENTS HOLD	% HOLDING
3.	Jeffrey A. Fisher, Agent	5,000	0.82%
4.	Barbara A. Fisher, Agent	5,000	0.82%
Total		2,75,14,000	100%

SCHEDULE 2 | TERMS OF OPTIONALLY CONVERTIBLE DEBENTURES**PART A | TERMS OF EXISTING OCCD (CLASS A)****1. Face Value**

The face value of each of the Class A OCCDs shall be INR 30 (Indian Rupees Ten).

2. Nature

2.1 The Class A OCCDs shall be unsecured, optionally convertible debentures or redeemable in the manner set out herein.

2.2 The Class A OCCDs shall rank superior, and have priority over, any other classes of OCCDs issued by the Company, until such time the Class A OCCDs have been converted into Equity Shares.

3. Non-marketable

The Company does not intend to and shall not list the Class A OCCDs on any recognised stock exchange in or outside India.

4. Interest

The Class A OCCDs shall not carry any interest in case the Class A OCCDs are converted into Equity Shares.

5. Term

The term of the Class A OCCDs shall be 20 (Twenty) years from the date of its issuance ("Class A OCCD Term").

6. Conversion / Redemption**6.1 Conversion**

- a) Each Class A OCCD shall be convertible into 1 (One) Equity Share.
- b) The Class A OCCDs can be converted into Equity Share as mutually agreed between the holder of Class A OCCDs and the Board of Directors of the Company.
- c) Upon expiry of the Class A OCCD Term, the Company shall compulsorily convert the Class A OCCDs into such number of Equity Shares as set out in Paragraph 6.1(a).
- d) The Company shall take all such steps (including without limitation making all applications necessary and obtaining all required approvals and valuation reports) and pay all costs and expenses (including any costs pertaining to increasing the authorized capital, any fee payable to the ROC, stamp duty, and/or any Taxes and levies) in relation to the issue of Equity Shares pursuant to the conversion of the Class A OCCDs.

6.2 Redemption

Class A OCBs may be redeemed anytime as mutually agreed between the holders of Class A OCBs and board of directors of the Company.

7. Status of Converted Class A OCBs

- 7.1 All Equity Shares issued upon the conversion of any Class A OCBs will, upon issuance and delivery, be duly and validly issued, fully paid and free from all liens and charges with respect to the issuances thereof (except for liens or encumbrances which have been created by the holder of Class A OCB instrument), if any, will have been duly waived.
- 7.2 No fractional Equity Shares shall be issued upon the conversion of any Class A OCBs and the number of Equity Shares to be issued shall be rounded to the next highest whole Equity Share.

8. Voting Rights

Class A OCBs shall not carry any voting rights.

9. Compliance with Laws

- 9.1 The Class A OCBs shall be governed by the laws of India.
- 9.2 At any time, on or after the Closing Date, the holder of Class A OCBs agree to pay the unpaid portions on the Class A OCBs, if any, into the Company Bank Account, when called upon by the Board to do so.

PART B | TERMS OF EXISTING OCDs (CLASS B)**1. Face Value**

The face value of each of the Class B OCDs shall be INR 20 (Indian Rupees Ten).

2. Nature

2.1 The Class B OCDs shall be unlisted, optionally convertible debentures or redeemable in the manner set out below.

2.2 The Class B OCDs have been issued by the Company for the purpose of raising funds for the acquisition of the Project Land.

3. Non-marketable

The Company does not intend to and shall not list the Class B OCDs on any recognised stock exchange in or outside India.

4. Interest

The Class B OCDs shall not carry any interest in case of conversion and/or redemption until such time Class A OCDs are outstanding.

5. Term

The term of the Class B OCDs shall be 20 (Twenty) years from the date of its issuance ("Class B OCD Term").

6. Conversion / Redemption**6.1 Conversion**

- a) Each Class B OCD shall be convertible into 1 (One) Equity Share.
- b) The Class B OCDs can be converted into Equity Share as mutually agreed between the holder of Class B OCDs and the board of directors of the Company.
- c) Upon expiry of the Class B OCD term, the Company shall compulsorily convert the Class B OCDs into such number of Equity Shares as set out in Paragraph 6.2(c).
- d) The Company shall take all such steps (including without limitation making all applications necessary and obtaining all required approvals and valuation reports) and pay all costs and expenses (including any costs pertaining to increasing the authorised capital, any fee payable to the ROC, stamp duty, and/or any Taxes and levies) in relation to the issue of Equity Shares pursuant to the conversion of the Class B OCDs.

6.2 Redemption

- a) Subject to there being no outstanding Class A OCDs, the Class B OCDs shall be redeemable, at par, at any time prior to the expiry of the Class B OCD Term.

- (b) The Company shall (and the Promoter and Existing Shareholders shall cause the Company to) take all such steps as may be necessary and redeem the Class B OCDs as per its terms. The Company shall promptly file all relevant documents and forms with the ROC, or such other Governmental Authority, as may be required under Applicable Law, to give effect to the redemption of the Class B OCDs.

7. Status of Converted Class B OCDs

- 7.1 All Equity Shares issued upon the conversion of any Class B OCDs will, upon issuance and delivery, be duly and validly issued, fully paid and free from all liens and charges with respect to the issuances thereof (except for liens or encumbrances which have been created by the holder of Class B OCD instrument), if any, will have been duly waived.
- 7.2 No fractional Equity Shares shall be issued upon the conversion of any Class B OCDs and the number of Equity Shares to be issued shall be rounded to the next highest whole Equity Share.

8. Voting Rights

Class B OCDs shall not carry any voting rights.

9. Compliance with Laws

- 9.1 The Class B OCDs shall be governed by the laws of India.
- 9.2 At any time, on or after the Closing Date, the holder of Class B OCDs agree to pay the unpaid portions on the Class B OCDs, if any, into the Company Bank Account, when called upon by the Board to do so.

PART C | TERMS OF CLASS A OCCs**1. Face Value**

The face value of each of the Class A OCCs shall be INR 18 (Indian Rupee Ten).

2. Nature

2.1 The Class A OCCs shall be unlisted, optionally convertible debentures or redeemable in the manner set out herein.

2.2 The Class A OCCs shall rank superior, and have priority over, any other classes of OCCs issued by the Company, until such time the Class A OCCs have been converted into Equity Shares.

3. Not marketable

The Company does not intend to and shall not list the Class A OCCs on any recognised stock exchange in or outside India.

4. Interest and Redemption/Premium

4.1 Subject to the terms of Paragraph 5.1, the Class A OCCs shall not carry any interest in case the Class A OCCs are converted into Equity Shares.

4.2 Class A OCCs shall only be redeemable pursuant to the issuance of Put Option Exercise Notice, upon which the Company shall be obligated to pay, and the Promoter and the Existing Shareholder, in accordance with the terms of this Investment Agreement, shall ensure that the Company pays, to the Class A OCC holder, and the Class A OCC holder shall be entitled to receive the Option Consideration.

4.3 In the event the Company fails to pay the Option Consideration as or prior to the Put Option Exercising Due Date (except where such failure to (re)accumulate or redeem was directly attributable and caused by the Investor not having obtained requisite Governmental Approvals that could only have been obtained solely by the Investor [and for the avoidance of doubt, such approvals cannot have been obtained by the Company, the Promoters and/or the Existing Shareholders]) and the Company, the Promoters and the Existing Shareholders complying with their respective obligations under Clause 5.4(c)), then in addition to the Option Consideration, the Company shall be obligated to pay, and the Promoters and the Existing Shareholder shall, in accordance with the terms of this Investment Agreement, ensure that the Company pays, and Class A OCC holder shall be entitled to receive the Default Option Consideration.

4.4 Parties agree that (a) any payments received by the Class A OCC holder under the Transaction Documents or otherwise, excluding the Option Consideration and the Default Option Consideration, shall not be included in such IRR and/or Default IRR calculation; (b) the rates of return in such calculation of IRR and Default IRR shall be per annum rates and all amounts shall be calculated on a monthly basis and compounded on an annual basis on the basis of a twelve month year; and (c) if the 'XIRR' function of the Microsoft Excel software is no longer in use at the time of an IRR and/or Default IRR calculation is required under this Agreement, then the Class A OCC holder may select a substitute software program to make such IRR and/or Default IRR calculation.

4.5 For the purposes of this Part C:

- a. "Default IRR" shall mean the aggregate annualized internal rate of return received by the Class A OCD holder calculated by the Class A OCD holder in good faith on a cash-on-cash basis using the "XIRR" function of the most current version of the Microsoft Excel software and in accordance with this definition. Such Default IRR calculation shall be made using the aggregate amount of net proceeds actually received by the Class A OCD holder on and attributable to the Class A OCD holder's capital contributions equal to the Option Consideration (which shall be treated as having been contributed on the first day of the month on which the Put Option Closing Due Date falls) on a cumulative basis through the date of actual receipt of such net proceeds by the Class A OCD holder (which shall be deemed to be actually received on the last day of the month in which such net proceeds are actually received by the Class A OCD holder);
- b. "Default Option Consideration" shall mean an amount as determined by Class A OCD holder and equal to an amount that would provide the Class A OCD holder with net proceeds equal to a cumulative Default IRR of 2.0% (Two per cent) on and attributable to the Option Consideration, computed from the Put Option Closing Due Date (which shall be treated as having been contributed by the Class A OCD holder on the first day of the month on which the Put Option Closing Due Date falls), until the date of actual receipt by the Class A OCD holder of such net proceeds (i.e., the date of actual payment to the Class A OCD holder of the Option Consideration and Default Option Consideration), as applicable (which shall be deemed to be actually received on the last day of the month in which such net proceeds are actually received by the Class A OCD holder);
- c. "IRR" shall mean the aggregate annualized internal rate of return received by the Class A OCD holder calculated by the Class A OCD holder in good faith on a cash-on-cash basis using the "XIRR" function of the most current version of the Microsoft Excel software and in accordance with this definition. Such IRR calculation shall be made using the aggregate amount of net proceeds actually received by the Class A OCD holder on and attributable to the Class A OCD holder's capital contributions equal to the Aggregate Investment Amount (which shall be treated as having been contributed on the first day of the month on which the Closing Date falls) on a cumulative basis through the date of actual receipt of such net proceeds by the Class A OCD holder (which shall be deemed to be actually received on the last day of the month in which such net proceeds are actually received by the Class A OCD holder), and
- d. "Option Consideration" shall mean an amount as determined by Class A OCD holder and equal to the Aggregate Investment Amount, along with an amount that would provide the Class A OCD holder with:
 - (i) a cumulative IRR of 15% (Fifteen per cent), in case a Put Option is exercised pursuant to occurrence of Event of Default set out in Article 3.3.3(a), (b), (c), (d) and/or (e) of the Investment Agreement; and
 - (ii) a cumulative IRR of 2.5% (Two point five per cent), in case Put Option is exercised pursuant to occurrence of: (a) any other Events of Default other than as set out in (i) above; and/or (b) due to occurrence of a Trigger Event.

in each case, on and attributable to such Aggregate Investment Amount, computed from the Closing Date (which shall be treated as having been contributed by the Class A OCD holder on the first day of the month on which the Closing Date falls), until the date of actual receipt by the Class A OCD holder of such net proceeds (i.e., the date of actual payment to the Class A OCD holder of the Option Consideration and the Default Option Consideration), as applicable (which shall be deemed to be actually received on the last day of the month in which such net proceeds are actually received by the Class A OCD holder);

3. Term

The term of the Class A OCDs shall be 20 (Twenty) years from the date of its issuance ("Class A OCD Term").

4. Conversion / Redemption

4.1 Conversion

- a) Each Class A OCD shall be convertible into 1 (One) Equity Share ("Class A Conversion Ratio").
- b) The Class A OCD holder shall at any time, at its sole discretion, be entitled to issue a written notice ("OCD Conversion Notice") and require the Company to convert the Class A OCDs held by it into Equity Shares, and the Promoter and the Existing Shareholder shall, in accordance with the terms of this Investment Agreement, ensure that the Company converts, within 8 (Eight) days from the date of issuance of the OCD Conversion Notice.
- c) Upon expiry of the Class A OCD Term, the Company shall compulsorily convert the Class A OCDs into such number of Equity Shares as set out in [Paragraph 5.1\(a\)](#).
- d) The Company shall take all such steps (including without limitation making all applications necessary and obtaining all required approvals and valuation reports) and pay all costs and expenses (including any costs pertaining to increasing the authorised capital, any fee payable to the ROC, stamp duty, and/or any Taxes and levies) in relation to the issuance of Equity Shares pursuant to the conversion of the Class A OCDs, in accordance with the terms of the Agreement.

4.2 Redemption

- a) The Class A OCD holder shall, at any time prior to the expiry of the Class A OCD Term, at its sole discretion, upon the issuance of a Put Option Exercise Notice (requiring the redemption of the Class A OCDs) be entitled to require the Company to redeem, and the Company shall redeem, and the Promoter and the Existing Shareholder shall, in accordance with the terms of this Investment Agreement, ensure that the Company redeems, the Class A OCDs held by the Class A OCD holder in accordance with [Paragraph 5](#).
- b) Upon redemption of Class A OCDs, the Company shall pay to the Class A OCD Holder, and the Class A OCD holder shall have a right to receive the relevant amount due in accordance with [Paragraph 5](#).

- c) The Company shall, and the Promoter and Existing Shareholders shall cause the Company to (including by infusing the required funds into the Company, in a manner acceptable to the Investor, acting reasonably); (i) take all such steps as may be necessary and redeem the Class A OCEs as per its terms; and (ii) promptly file all relevant documents and forms with the ROC, to give effect to the redemption of the Class A OCEs.
- d) Upon the issuance of the Put Option Exercise Notice (requiring the redemption of the Class A OCEs), the amount due and payable, in accordance with Paragraph 5, shall without any resolution of the Board or of the Company in general meeting become a debt due and payable from and immediately payable by the Company to the Class A OCE holder.

7. Status of Converted Class A OCEs

- 7.1 All Equity Shares issued upon the conversion of any Class A OCEs will, upon issuance and delivery, be duly and validly issued, fully paid and free from all encumbrances, liens and charges with respect to the issuances thereof (except for liens or encumbrances which have been created by the Investor), if any, will have been duly valued.
- 7.2 No fractional Equity Shares shall be issued upon the conversion of any Class A OCEs and the number of Equity Shares to be issued shall be rounded to the next highest whole Equity Share.

8. Voting Rights

Class A OCEs shall not carry any voting rights.

9. Compliance with Laws

- 9.1 The Class A OCEs shall be governed by the laws of India.
- 9.2 The holder of Class A OCEs agree to pay the unpaid portions on the Class A OCEs, if any, into the Company Bank Account, when called upon by the Board to do so.

PART D | TERMS OF CLASS B OCCs

1. Face Value

The face value of each of the Class B OCCs shall be INR 10 (Indian Rupees Ten).

2. Nature

2.1 The Class B OCCs shall be unlisted, optionally convertible debentures or redeemable in the manner set out herein.

2.2 The Class B OCCs shall be subordinate to the Class A OCCs.

3. Non-marketable

The Company does not intend to and shall not list the Class B OCCs on any recognised stock exchange in or outside India.

4. Interest

The Class B OCCs shall not carry any interest in case of conversion and/or redemption, until such time the Class A OCCs are outstanding.

5. Term

The term of the Class B OCCs shall be 20 (Twenty) years from the date of its issuance ("Class B OCC Term").

6. Conversion / Redemption

6.1 Conversion

- a) Each Class B OCC shall be convertible into 1 (One) Equity Share ("Class B Conversion Ratio"), only on the earlier of the following: (i) simultaneously with the Conversion of Class A OCCs into Equity Shares; or (ii) upon expiry of the Class B OCC Term; provided however, and notwithstanding anything to the contrary, immediately upon the occurrence of an Event of Default (in accordance with Clause 9.1) (i) the Class B Conversion Ratio shall automatically (and without any further action by the Company and/or holder of the Class B OCCs) stand revised such that all Class B OCCs, in aggregate, convert into 1 (One) Equity Share ("Revised Class B Conversion Ratio"); and (ii) the Class B OCCs are convertible into Equity Shares, only subject to the prior written approval of the Class A OCC holder.
- b) Provided however, notwithstanding the foregoing, the Class B Conversion Ratio and/or Revised Class B Conversion Ratio shall not be higher than the Class A Conversion Ratio.
- c) Upon expiry of the Class B OCC Term, the Company shall compulsorily convert the Class B OCCs into such number of Equity Shares as set out in Paragraph 5.3 (a).

- d) Upon issuance of a Class B Notice by the Investor, at its sole discretion, the Company shall immediately (and in any event within 4 (four) days from the date of issuance of the Class B Notice) convert the Class B OCD to Equity Shares as per the Revised Class B Conversion Ratio, and the terms of the Class B Notice.
- e) The Company shall (and the Promoter and Existing Shareholders shall cause the Company to) take all such steps (including without limitation making all applications necessary and obtaining all required approvals and valuation reports) and pay all costs and expenses (including any costs pertaining to increasing the authorised capital, any fee payable to the ROC, stamp duty, and/or any Taxes and levies) in relation to the issuance of Equity Shares pursuant to the conversion of the Class B OCDs in accordance with the terms of the Agreement.

6.2 Redemption

- a) Subject to there being no outstanding Class A OCDs, the Class B OCDs shall be redeemable, at par (i.e., the face value of the Class B OCD), at any time prior to the expiry of the Class B OCD Term; provided however, and notwithstanding anything to the contrary, immediately upon the occurrence of an Event of Default (in accordance with Clause 3.1), the redemption amount of all Class B OCDs shall automatically (and without any further action by the Company and/or holder of the Class B OCDs), in aggregate, be revised to Rs 1 (Rupees One) (i.e., all the outstanding Class B OCDs shall, in aggregate, be redeemable for Rs. 1 (Rupees One)).
- b) Upon issuance of a Class B Notice (in accordance with Clause 3.1, at the sole discretion of the Investor, the Company shall immediately (and in any event within 4 (Four) days from the date of issuance of the Class B Notice) redeem the Class B OCDs, in aggregate, for Rs 1 (Rupees One) (i.e., all the outstanding Class B OCDs shall, in aggregate, be redeemed for Rs. 1 (Rupees One)), as per the terms of the Class B Notice.
- c) The Company shall (and the Promoter and Existing Shareholders shall cause the Company to): (i) take all such steps as may be necessary and redeem the Class B OCDs as per its terms; and (ii) promptly file all relevant documents and forms with the ROC, or such other Governmental Authority, as may be required under Applicable Law, to give effect to the redemption of the Class B OCDs.

7. Status of Converted Class B OCDs

- 7.1 All Equity Shares issued upon the conversion of any Class B OCDs will, upon issuance and delivery, be duly and validly issued, fully paid and free from all liens and charges with respect to the proceeds thereof (except for liens or Encumbrances created in accordance with the terms of the Agreement), if any, will have been duly waived.
- 7.2 No fractional Equity Shares shall be issued upon the conversion of any Class B OCDs and the number of Equity Shares to be issued shall be rounded to the next highest whole Equity Share.

8. Voting Rights

Class B OCCs shall not carry any voting rights.

9. Compliance with Laws

9.1 The Class B OCCs shall be governed by the laws of India.

9.2 The holder of Class B OCCs agrees to pay the unpaid portions on the Class B OCCs, if any, into the Company Bank Account, when called upon by the Board to do so.

SCHEDULE 5 | REPRESENTATIONS AND WARRANTIES

PART A | FUNDAMENTAL REPRESENTATIONS

1. Power and Authority of the Company, Promoters and Existing Shareholders

- (i) Rajesh Steel is duly incorporated and validly existing under the laws of India, and has the full power, authority and capacity to take all corporate actions necessary to execute this Agreement, and perform the transactions and obligations contemplated by this Agreement.
- (ii) The Company is duly incorporated and validly existing under the laws of India, and has the full power, authority and capacity to take all corporate actions necessary to execute this Agreement, and perform the transactions and obligations contemplated by this Agreement.
- (iii) Each of the Existing Shareholders who is a natural person has the full power, authority and capacity to enter into, execute and deliver this Agreement and to consummate and perform transactions and their respective obligations under this Agreement.
- (iv) Rajesh Steel is a resident of India (as per the provisions of section 2(42) read with section 4 of the Income Tax Act, 1961 and Section 2(v) of the Foreign Exchange Management Act, 1999) and is not foreign owned or foreign controlled under the Foreign Exchange Laws and is registered with the Indian income tax authorities and has been allotted Permanent Account Number (PAN).
- (v) The Company is a resident of India and is not foreign owned or foreign controlled under the Foreign Exchange Laws.
- (vi) The Company is registered with the Indian income tax authorities and has been allotted Permanent Account Number (PAN).
- (vii) This Agreement to which the Company, the Promoters and the Existing Shareholders are a party has been duly and validly executed by the Company, each Promoter and Existing Shareholders, and constitutes, legal, valid and binding obligations of such party, enforceable against it in accordance with its terms thereof.
- (viii) The execution, delivery and performance by the Company, the Promoters (excluding Rajesh Steel) and the Existing Shareholders of this Agreement and the consummation of transactions contemplated herein does not:
 - (a) violate, conflict with, result in a breach of the terms, conditions or provisions of or constitute a default, an event of default (or an event that, with the giving of notice or lapse of time or both, would constitute an event of default) or an event creating rights of acceleration, adverse modification, termination or cancellation or a loss of rights under any or all of the following:
 - (A) in case of the Company, its respective Charter Documents;
 - (B) any Contract to which any of them is a party

- (C) any Consent, Governmental Approval or any Order, to which any of them is a party or by which any of them is bound; or
 - (D) any Applicable Law;
 - or
 - (b) constitute an act of bankruptcy, preference, insolvency or fraudulent conveyance under any bankruptcy act or other Applicable Law for the protection of debtors or creditors.
- (k) The execution, delivery and performance by Rajesh Steel of this Agreement and the consummation of transactions contemplated herein does not:
- (a) violate, conflict with, result in a breach of the terms, conditions or provisions of or constitute a default, an event of default (or an event that, with the giving of notice or lapse of time or both, would constitute an event of default) under
 - (A) its Charter Documents,
 - (B) any Contract to which it is a party,
 - (C) any Consent, Governmental Approval or any Order, to which it is a party or by which it is bound; or
 - (D) any Applicable Law;
 - or
 - (b) constitute an act of bankruptcy, preference, insolvency or fraudulent conveyance under any bankruptcy act or other Applicable Law for the protection of debtors or creditors.
- (l) No Consent or Governmental Approval to, from or with any Person(s) required by the Company, the Promoters and the Existing Shareholders in connection with the execution, delivery and performance of this Agreement or the consummation of the transactions contemplated herein, other than those specifically contemplated in Conditions Precedent and/or Conversion Conditions Precedent under this Agreement.
- (m) No event which would cause (individually or in the aggregate), a Material Adverse Effect occurred which is subsisting or has been threatened in writing.
- (n) No Order has been served on the Promoters nor does the Promoters have knowledge of any petition pending or admitted for winding up (or other process whereby the business of Rajesh Steel is terminated, or the Assets of Rajesh Steel are distributed amongst the creditors or shareholders or other contributors) of Rajesh Steel for an administration order against Rajesh Steel.
- (o) There are no proceedings under any applicable insolvency or similar Laws concerning the Promoters and/or Existing Shareholders and to the knowledge of the Promoters no events have occurred under applicable insolvency or similar laws which would result in any such proceedings.

2. Compliance with Laws

- (i) The Company has from the date of its incorporation been in material compliance with all applicable Laws and has made filing of appropriate returns, statements, reports, registrations with the relevant Governmental Authority as required under applicable Laws (along with requisite penalty and/or fee, in case of any delayed/delated filings).
- (ii) The Company, the Existing Shareholders, the Beneficial Owners and Rajesh Steel have not received any written notice from any Governmental Authority and there are no outstanding investigations or inquiries by, or disputes with a Governmental Authority or dispute or proceedings with any Person, or any internal investigation in each case, relating to any violation of any applicable Anti-Corruption Laws, Anti-Money Laundering Laws or Sanctions Laws.
- (iii) The Company, the Beneficial Owners, Rajesh Steel and/or the Existing Shareholders have not taken any action that would constitute a violation, or implicate the Investor in a violation, of the Prevention of Corruption Act, 1988 or other applicable Anti-Corruption Laws.
- (iv) The Company, the Beneficial Owners, Rajesh Steel and/or the Existing Shareholders, have not made or promised to make any Improper Payments, in relation to the Business: (a) to or for the use or benefit of any Government Official; (b) to any other Person either for an advance or reimbursement, with knowledge or reason to know that any part of such Improper Payment would be directly or indirectly given or paid by such other person, or would reimburse such other Person for Improper Payments previously made, to any Government Official; or (c) to any other Person or entity, to obtain or keep business or to secure some other improper advantage, or the payment of which would otherwise violate the Prevention of Corruption Act, 1988 or other applicable Anti-Corruption Laws.
- (v) The Company, the Beneficial Owners, Rajesh Steel and/or the Existing Shareholders are not a Governmental Authority or a Government Official (as the case may be), and no Government Official is associated with, or owns an interest, whether direct or indirect, in the Company and/or Rajesh Steel.
- (vi) The Company the Promoters, and the Existing Shareholders have not made any voluntary disclosed disclosure or involuntary disclosure to any Governmental Authority with respect to any alleged act or omission relating to any non-compliance with any applicable Anti-Corruption Laws, Anti-Money Laundering Laws or Sanctions Laws.

Compliance with Economic Sanctions

- (vii) The Company (or any of the directors of the Company), the Beneficial Owners, Rajesh Steel and/or the Existing Shareholders are not persons or entities with whom transactions are prohibited under any Sanctions Laws, or is named on any list of Prohibited Persons, entities, or jurisdictions maintained and administered by OFAC or the Reserve Bank of India.
- (viii) The Company and its directors: (a) will not use any amounts receivable under this Agreement or the relationship proposed hereby; and (b) have not made, and do not make, any sale to or engage in business activities, in each case, with or for the benefit of, or for the purposes of financing the activities of, any persons and countries that

are, or were at the relevant time, subject to any Sanctions Laws, including: (x) any "Specially Designated Nationals and Blocked Persons," or named on any list of Prohibited Persons, entities, or jurisdictions maintained and administered by OFAC or the Reserve Bank of India; (y) any jurisdiction or other territory that is, or was at the relevant time, subject to a comprehensive export, import, financial or investment embargo under any Sanctions Laws, including Cuba, Iran, North Korea, Syria, the Crimea region of Ukraine, Venezuela or any other country or territory that is currently the target of country-wide or territory-wide Sanctions Laws; or (z) otherwise in violation of any Sanctions Laws.

(x) **Compliance with Anti-Money Laundering Laws**

The Company, the Beneficial Owners, Rajesh Meel and/or the Existing Shareholders have not taken any action that would constitute a violation of the Prevention of Money Laundering Act, 2002 or other applicable Anti-Money Laundering Laws.

(x) **The Promoters and/or Existing Shareholders have not on behalf of the Company filed any entity classification election with the U.S. Internal Revenue Service.**

3. Company Organization and Capital Structure

(i) **The Company has the corporate power and authority to own, hold, operate and use its Assets and carry on the business in the ordinary course.**

(ii) **The Company has the corporate power and authority to carry on the business in the Ordinary Course and in accordance with the terms of the Transaction Document.**

(iii) **The authorized, issued and paid-up share capital of the Company is Rs. 1,00,000 (Rupees One Lakh) which consists of 10,000 (ten thousand) Equity Shares having a face value of Rs. 10 (Rupees Ten) each. On and after the Closing Date, the authorized, issued and paid-up share capital of the Company shall be increased in the manner set out in Clause 3.3.1(i).**

(iv) **The shareholding pattern of the Company: (a) as on the Execution Date is as set forth in Part A of Schedule 1 (Investor Holding Pattern on the Execution Date); (b) immediately prior to Closing on the Closing Date is as set forth in Part B of Schedule 1; (c) immediately after Closing on the Closing Date is as set forth in Part C of Schedule 1; and (d) immediately after Conversion Closing on the Conversion Closing Date is as set forth in Part D of Schedule 1.**

(v) **There are no accrued and unpaid interests or dividends on any Equity Securities.**

(vi) **As on the Execution Date, the unpaid capital on the Existing ODDs are as follows: (a) Class A: Rs. 11,80,00,500 (Rupees Fifteen Crore Eighty Lakhs Eight Thousand and Five Hundred); and (b) Class B: Rs. 1,49,51,500 (Rupees Eight Crore Forty-Nine Lakhs Ninety-One Thousand and Five Hundred).**

(vii) **As on the Closing Date (immediately prior to Closing), the unpaid capital on all Class A ODDs is Rs. 11,80,00,500 (Rupees Fifteen Crore Eighty Lakhs Eight Thousand and Five Hundred) and on all Class B ODDs is Rs. 1,49,51,500 (Rupees Eight Crore Forty-Nine Lakhs Ninety-One Thousand and Five Hundred).**

- (iii) The Cash in the Company Bank Account, on the Execution Date and the Closing Date (immediately prior to Closing) is not less than Rs. 2,00,00,000 (Rupees Two Crore Seventy Lakh);
- (iv) Each allotment and transfer of Equity Securities has been made in compliance with all applicable Laws and all corporate actions required to be performed by the Company under applicable Laws have been duly and timely performed and all stamp-duties and other similar fees payable in connection with such allotment and sale and/or Transfer of the Equity Securities has been duly and timely paid;
- (v) Except pursuant to the transactions contemplated herein and the provisions of the Agreement or any other Transaction Document:
 - (a) there are no pre-emptive rights, rights of first refusal or other similar rights relating to any Equity Securities under any agreement to which the Company is a party or of which the Company has knowledge;
 - (b) the Company has not created any Encumbrance on its existing Equity Securities;
 - (c) there are no shareholder agreements, voting trusts or other arrangements or understandings with respect to the voting of any Equity Securities; and
 - (d) the Company has not issued, committed to issue, made any changes to, or registered any sale of Equity Securities after the Execution Date.
- (vi) No Order has been served on the Company nor does the Company or the Existing Shareholders have knowledge of any petition pending or admitted for winding up (or other process whereby the Business is terminated or the Assets are distributed amongst the creditors or shareholders or other contributors) of the Company, or for an administration order against the Company and there are no proceedings under any applicable insolvency, or similar Laws concerning the Company and to the knowledge of the Company no events have occurred under applicable insolvency or similar Laws which would result in any such proceedings;
- (vii) The Company is solvent and is able to pay its debts as they fall due.

4. Existing OCEs and Sale Securities

4.1. As on the Execution Date:

- (i) Rajesh Steel is the sole legal and beneficial owner of the Existing OCEs;
- (ii) Rajesh Steel has good and marketable title to the Existing OCEs, free and clear of any and all incumbrances, equities, and claims whatsoever;
- (iii) all of the Existing OCEs have been duly authorized, validly issued and/or transferred and acquired, and no Person has the right (whether under applicable Law, Contract or otherwise) to exercise or claim any Encumbrance over any of them. The subscription of Existing OCEs by Rajesh Steel was made in accordance with all applicable Laws.

- (vi) Rajesh Steel has not, nor has anyone on its behalf, done, committed or omitted any act, deed, matter or thing whereby any of the Existing OCOs can be forfeited, extinguished or rendered void or voidable, save and except for the unpaid capital call on the Existing OCOs.

4.1. As of the Closing Date:

- (i) Rajesh Steel is the sole legal and beneficial owner of the Sale Securities.
- (ii) Rajesh Steel has good and marketable title to the Sale Securities, free and clear of any and all Encumbrances, equities, and claims whatsoever, with full right and authority to sell and deliver the same to the Investor, under this Agreement, and upon transfer of the Sale Securities as contemplated in this Agreement, shall convey to the Investor, good and marketable title to Sale Securities free and clear of all Encumbrances.
- (iii) All of the Sale Securities have been duly authorized, validly issued and/or transferred and acquired, and no Person has the right (whether under applicable Law, Contract or otherwise) to exercise or claim any Encumbrance over any of them. The subscription of Sale Securities by Rajesh Steel was made in accordance with all applicable Laws.
- (iv) Rajesh Steel has not, nor has anyone on its behalf, done, committed or omitted any act, deed, matter or thing whereby any of the Sale Securities can be forfeited, extinguished or rendered void or voidable, save and except for the unpaid capital call on the Sale Securities.

PART B | BUSINESS REPRESENTATIONS

1. Business of the Company

- (i) The Company does not presently engage in any other business or activity including any business in which foreign direct investment of 100% (One Hundred per cent) under the automatic route is not permitted.
- (ii) The minute books of the Company contain true, correct and complete records of all meetings and accurately reflect all corporate action of the shareholders and the Board (including committees thereof) of the Company that are required by Law to be recorded in the minutes.
- (iii) The statutory registers of the Company are true, correct and complete in all material respects.
- (iv) The Company has provided to the Investor true, correct and complete copies of the Charter Documents of the Company and all amendments thereto.
- (v) True and accurate details of all existing bank accounts of the Company are set out below:

Details of Bank Account		Signatories
Bank Name:	Axx Bank Limited	Abhishek and Roshni
Account Name:	NGO Warehousing Pvt Ltd	
Account Type:	Current Account	
Account No:	907000015118500	
IFSC:	UTI0000000000	
Branch:	Civil Lines, Nagpur – 44001	

2. Absence of Litigation

- (i) There is no litigation pending or, to the knowledge of the Company threatened in writing against the Promoter, Existing Shareholders or Company (whether by way of counter claim or appeal or otherwise) that is reasonably be expected to restrain, prevent or make illegal the consummation of the transactions contemplated under the Transaction Documents.
- (ii) There is no litigation which has been initiated or, to the knowledge of the Company, threatened in writing by a Third Party against the Company, or any dispute which is reasonably expected to result in litigation by a Third Party against the Company, or which would otherwise impact the Business or Project Land.

- (iv) There is no litigation which has been initiated or threatened to be initiated by the Company against any Third Party or any dispute which is reasonably expected to result in such litigation.

3. Subsidiaries and Investments

The Company does not have any subsidiaries and does not otherwise currently own any shares or securities in the capital of or any interest in, or Control of, directly or indirectly, any Person.

4. Financial Statements

- (i) True, correct and complete copies of: (a) Delivered Financial Statements; and (b) the Signing Financials have been provided to the Investor prior to the Exercise Date.

- (ii) The Company:

- (a) keeps books and records which, in reasonable detail, truly and fairly reflects the transactions and dispositions of the Assets of the Company. The Company does not maintain any off-the-books accounts or more than one set of books, records or accounts; and

- (b) maintains a system of internal financial controls sufficient to provide reasonable assurance that:

- (A) transactions are executed and access to Assets is permitted only in accordance with management's general or specific authorization;

- (B) preparation of financial statements is in conformity with applicable Accounting Principles; and

- (C) the Company safeguards its Assets.

- (iii) The Delivered Financial Statements and Signing Financials of the Company were prepared in accordance with the books of account and financial records of the Company.

- (iv) The Delivered Financial Statements and the Signing Financials and the notes thereto (if any) present true and fair account of the financial position and results of operations and cash flow of the Company (if any), as of the respective dates and for the respective periods covered thereby.

- (v) The Delivered Financial Statements and the Signing Financials of the Company and the notes thereto (if any) have been or are prepared in accordance with applicable Law and Accounting Principles consistently applied and followed throughout the period indicated.

- (vi) The Delivered Financial Statements and the Signing Financials present true and fair representations of the Assets and Liabilities of the Company as of the dates specified therein.

- (vii) All accounts and notes receivable of the Company have arisen from bona fide transactions in the Ordinary Course and are payable on ordinary trade terms. To the

Knowledge of the Company, none of the amounts or the notes receivable of the Company are subject to any defenses, set offs or counterclaims and are valid and enforceable.

- (iii) All amounts or dues outstanding or payable to the vendors of the Company are reflected in a true and fair manner as liabilities in the Signing Financials and, except as disclosed therein, no amounts or dues are payable or outstanding to any vendor of the Company.
- (iv) As of the Execution Date and the Closing Date, there are no dues payable by the Company against liabilities written back in the Signing Financials.
- (v) The Delivered Financial Statements and the Signing Financials fully disclose all transactions between the Company, on the one hand, and a Related Party of the Company, on the other hand, and amounts outstanding thereunder for the period indicated in the Delivered Financial Statements and the Signing Financials.
- (vi) The Delivered Financial Statements and the Signing Financials have adequate provisions for all Tax for which the Company is liable in respect of any transaction or event occurring or income derived for the periods covered thereby.

5. **Liabilities and Financial Indebtedness**

- (a) The Company does not have any outstanding Financial Indebtedness or other borrowings and/or liabilities.
- (b) Except as disclosed in the Signing Financials, the Company does not have any other liabilities which are accrued, contingent or outstanding liabilities as of the Execution Date and the Closing Date.
- (c) The Company is not a party to any swap, hedging or derivative transactions, agreements and/or other similar arrangements.
- (d) There are neither any ongoing disputes between the Company and any vendor nor are there any unannounced claims, liquidated damages, penalty, or interest levied by any vendor on the Company, and to the Knowledge of the Company there are no facts or circumstances which may reasonably be expected to give rise to any such dispute or claims.

6. **Tangible Movable Property**

The Company does not own any movable property.

7. **Environmental Matters**

To the extent required under Applicable Law, the Company has, at all times, complied with applicable Environmental Laws and the Company has not received any notice from a

Governmental Authority requiring it to take or omit to take any action or alleging non-compliance of Environmental Laws.

8. Consents and Governmental Approvals

- (i) The Company possesses all Governmental Approvals required under applicable Laws for the conduct of the business (as currently conducted) (such Governmental Approvals, "Permits"). Without any prejudice to the representations provided above, the Company has performed in all material respects its obligations under each Permit and is in material compliance with all conditions in each such Permit.
- (ii) The Company has not received written notice of cancellation, default or dispute concerning or amendment or modification of any such Permit.
- (iii) The Company has not received any written notice from any Governmental Authority in respect of any non-compliance with any applicable Laws.

9. Insurance

The Company has not maintained any insurance policies, and there are no insurance claims and liabilities, outstanding or otherwise, payable to any Person by the Company.

10. Contracts

- (i) The Company is not a party to any Contracts or arrangements, including with Related Parties.
- (ii) There are no outstanding payments to be received by the Company from Related Parties or payments to be made by the Company to any Related Party including under any arrangement between the Company and the Related Parties.
- (iii) The Company has not issued any powers of attorney or any document of a like nature in favour of any Person.

11. Employees

- (i) The Company does not have any employees or contract labour, and has not, since incorporation, employed any Person, including employees or contract labour.
- (ii) The Company is not required to obtain any registrations under applicable labour legislations, rules and regulations and any other applicable Laws in connection with its employees.
- (iii) The Company does not have any Benefit Plans. For the purpose hereof, "Benefit Plan" means any plan, contract or other arrangement, providing any benefit to any present or former officer, director or employee, or dependent or beneficiary thereof, including any profit sharing, bonus, severance, retirement, health, insurance plan, employee stock option, stock purchase, stock appreciation right or phantom stock option schemes.
- (iv) The Company has not received any written communication or notice from the outsourced and/or contracted personnel utilized by the Company, claiming to be

employees of the Company, there are no outstanding liabilities or claims made on the Company under the Contract Labour (Regulation and Abolition) Act, 1970 made by such persons.

12. Intellectual Property

- (i) The Company does not own or use any domain names or intellectual property.
- (ii) The Company has not applied for or sought any registrations in respect of any of the intellectual property.
- (iii) The Company has not infringed on any Third Party's intellectual property including trademarks, trade names, service marks, service names, trade dress, domain names, logos and corporate names, trade secrets, know-how or other confidential information.
- (iv) The Company has not entered into any technology-collaboration arrangement or any license agreement of any technology and/or the intellectual property with any Third Party.
- (v) The Company is not obligated to pay any amounts as royalty or fee for the use of any technology and/or intellectual property owned by a Third Party.

13. Absence of Certain Changes or Events

Since the date of its incorporation:

- (i) The Company has conducted the business only in the Ordinary Course consistent with past practice;
- (ii) The Company has not increased any of its liabilities including any financial indebtedness, off-balance sheet items or working capital limits, sold or Transferred or created any circumstance on any of the Assets;
- (iii) The Company has adequately provided for all amounts (including Taxes) that should have been accounted for or reserved by it in accordance with Accounting Principles;
- (iv) The Company has not suffered any loss, damage, destruction or other casualty affecting any of its Assets, whether or not covered by insurance;
- (v) The Company has not declared, set aside, or paid any dividends or made any other distributions;
- (vi) The Company has not made or incurred any capital expenditure above Rs. 1,00,000 (Rupees One Lakh);
- (vii) The Company has not made any change in any method of accounting; and
- (viii) The Company has not agreed to take any of the actions set forth in this Paragraph 13.

14. Information and Disclosure

- (i) The information provided to the Investor (including its advisors and representatives) in relation to: (a) the Company and the Business; (b) the Promoters or the Existing Shareholders in the context of ownership and management of the Company; and (c) the DTC documents and anti-corruption questionnaires provided by the Promoters and the Company, as annexed to the Disclosure Letter, prior to the execution of this Agreement, as sought during the financial, business, technical and legal due diligence exercise carried out by the Investor, have been provided by the Company, the Promoters, and the Existing Shareholders (as the case may be) in good faith and such information (other than estimates, projections, forecasts, statement of opinions) are true and correct.
- (ii) All information that in the reasonable opinion of the Company, Promoters and the Existing Shareholders which is material to an understanding of the Assets, Condition or financial condition of the Company as of the Execution Date and Closing Date, has been made available and disclosed to the Investor, and such information is true and correct and not misleading in any material respect. None of the information contained in any certificate, or other document delivered pursuant hereto or thereto or in connection with the Transaction Documents and the transactions contemplated therein contains any untrue statement of a fact.
- (iii) The information contained in this Agreement or otherwise furnished to the Investor pursuant to the Disclosure Letter, Updated Disclosure Letter, Conversion Closing Date Disclosure Letter and/or the Land Acquisition Date Disclosure Letter (as the case may be) is true and complete.

15. Brokers

The Company, Promoters and/or Existing Shareholders have not entered into any agreement, arrangement or understanding with any Person which could result in the obligation of the Investor or the Company to pay any finder's fee, brokerage commission, advisory fee (excluding fees to be paid to legal and tax advisors) or similar payment in connection with the transactions contemplated hereby.

PART C | TAX REPRESENTATIONS

1. The Company has withheld with respect to its employees and all other Third Parties, all applicable Taxes required to be withheld by applicable Law and has made payment of such Taxes to the appropriate Governmental Authorities within the due dates thereof.
2. All returns, computations, notices, deductions, withholdings and information which are or have been required to be made or given by the Company for any Taxation purposes have been made as required under applicable Laws (along with requisite penalty and/or fee, in case of any delayed/belated filings) for the period up to the Conversion Closing Date and are true, correct and complete and are not the subject of any dispute with the taxation authorities and all Taxes have been deducted and filings with respect to the same have been done and completed in accordance with applicable Laws.
3. There are no outstanding agreements, waivers or arrangements extending the statute of limitations with respect to any Taxes of the Company in effect.
4. There are no claims, proceedings, notices, enquiry letters, show cause notices, actions or demands against the Company in relation to Taxes including indirect Taxes, that are pending or threatened (in writing). No notices in relation to such claims, proceedings, actions or demands have been received by the Company from any Governmental Authority.
5. All Taxes which are payable by the Company under applicable Law to the respective statutory or the Governmental Authority have been duly and timely paid and the Company does not have any liability for any unpaid Taxes.
6. The Company:
 - (i) Is not a party to, nor has any outstanding obligation, under any Tax-sharing, Tax indemnity or Tax allocation agreement or arrangement; and
 - (ii) Is not, nor has it ever been, a member of an affiliated, consolidated, combined or unitary group for any period or a party to any joint venture, partnership or other agreement that could be treated as a partnership for Tax purposes, or has any liability for the Taxes of another Person, whether as a transferee or successor, by contract or otherwise.
7. The Company has not entered into any scheme or arrangement that was designed to wilfully avoid Taxes.
8. The Company is not treated for any Tax purpose as resident in a country other than India and the Company has not (had) a branch or permanent establishment in a country other than India.
9. The Company: (i) has complied with applicable Law relating to Taxes; and (ii) has appropriately claimed deductions or credits and made disallowances in, its Tax returns. The Company has filed true and complete returns, estimates, information statements, reports and other filings with the Governmental Authority that are due as on the Conversion Closing Date. With respect to any period for which Tax returns and/or filings are not yet due and thus have not been filed,

or for which Taxes are not yet due, the Company has made due and sufficient accruals for such Taxes in its books and records in accordance with applicable Laws.

10. The Company has complied fully with all statutory requirements relating to the Tax enactments including but not limited to income tax, goods and services tax, goods & sales tax made on valid goods & sales tax documents, as applicable, customs duties, excise duties, taxes on entry into local areas, and any other central and local levies and duties, provisions and conditions made or issued thereunder including (for the avoidance of doubt) the terms of any agreement reached with any tax authority in India or any overseas jurisdiction (along with requisite penalty and/or fee, in case of any delayed/failed filing).
11. Since the Company's inception, no entity classification election has been filed in respect of the Company with the U.S. Internal Revenue Service.
12. The Company shall not be required as per Applicable Law, to withhold Tax on remittance of Land Acquisition Consideration as per the terms of the Sale Deed for the acquisition of Project Land from PAF.
13. The Company has not been Relevant for U.S. federal income tax purposes prior to the Closing Date. "Relevant" for these purposes means that the classification of such entity for U.S. federal income tax purposes as either an association taxable as a corporation or an entity that is tax-transparent (i.e., either a partnership or an entity disregarded or separated from its owner) affects the liability of any Person for U.S. federal tax or information purposes.
14. The Company has never filed a declaration in Form 1042 as per Section 1158A(a)(3) of the Income Tax Act, 1961.
15. Outstanding Tax remittances, if any, as reflected in the signing financials are refundable.
16. All the deductions /allowances /expenditures claimed for the purpose of business of the Company by the Company in its respective tax returns have been incurred by the Company wholly and exclusively for the purpose of their respective businesses and are not excessive or unreasonable to the extent they are paid by the Company to persons referred to in Section 80A(2)(b) of the IT Act.
17. The Company has complied with Applicable Law relating to, and has appropriately claimed deductions, made allowances, carried/capitalized assets, offered income and computed Tax, under Applicable Law, in their Tax returns. All records which the Company is required to keep in respect of Taxes under Applicable Law, or which would be needed to substantiate any claim made or position taken in relation to Taxes by the Company, have been duly kept by the Company.
18. The Company shall acquire the Project Land at a value which is equal to or higher than the "stamp duty value" (as defined under the Explanation to Section 56(2)(vi) of the IT Act) of the Project Land.
19. As on the Execution Date and the Closing Date, there are no pending or ongoing claims, audits, suits, proceedings, disputes, demands or investigations or notices or appeals or litigation against or with respect to Rajesh Steel with respect to any Taxes or Taxation that can render the transfer of the Sale Securities void under Section 280 of Income Tax Act, 1961, and no

notification, inquiry or investigation have been received by Japan Steel that such a claim, suit, proceeding or investigation is pending or threatened in writing.

PART D | LAND TITLE REPRESENTATIONS

1. On the Execution Date, the Closing Date and on the date of the execution of the Sale Deeds, PNP: (i) is the legal, sole and beneficial owner of the Project Land as set out in Schedule 8 (Project Land) on a feehold basis and has a good, valid, subsisting, clear, absolute and marketable title to the Project Land, free and clear of all encumbrances of any nature whatsoever; (ii) is in peaceful, uninterrupted, legal, undisputed and physical possession of the Project Land.
2. On the date of the execution of the Sale Deeds and the Land Acquisition Date, PNP has the full power, authority and capacity to take all corporate actions (and has on or prior to the Land Acquisition Date taken all corporate actions) necessary to execute the Sale Deeds, and perform the transactions and obligations contemplated thereunder, in compliance with Applicable Law.
3. On the Land Acquisition Date, PNP shall pay the applicable stamp duty (at the value not less than the market value determined by the Governmental Authority based on adjudication of such Sale Deeds) and applicable registration fees, in accordance with Applicable Law, on the Sale Deeds for purchase of the Project Land. The total consideration payable by the Company (including to PNP) for the acquisition and Transfer of the Project Land shall not exceed the Land Acquisition Consideration.
4. On the Land Acquisition Date and Conversion Closing Date, the Company: (i) is the legal, sole and beneficial owner of the Project Land as set out in Schedule 8 (Project Land) on a feehold basis and has a good, valid, subsisting, clear, absolute and marketable title to the Project Land, free and clear of all encumbrances; and (ii) is in peaceful, uninterrupted, legal, undisputed and physical possession of the Project Land.
5. The description of the Project Land (Project Land description including area) (as set out in Schedule 8 (Project Land)) and its boundaries as reflected in this Agreement are true and accurate in all respects.
6. Documents of title issued in the Schedule 12 (Title Documents) are the chain title deeds whereby the Company came to acquire and hold ownership of the Project Land and those title deeds are stamped and duly registered. On the Land Acquisition Date and Conversion Closing Date, the Company shall have in its custody all the original title deeds, documents and writings pertaining to the Project Land (as specified in Schedule 12 (Title Documents)). In relation to the title deeds and title documents in respect of the Project Land, originals whereof are misplaced and/or lost as specified in Schedule 13 (List of Misplaced Documents), adequate steps have been taken by the Company and its predecessors in title (such as issuance of public notice(s), and lodging of loss report with the jurisdictional police station), and the Company has not received any claims / demand notices in relation to such misplaced documents and title deeds.
7. With respect to the Project Land: (i) neither PNP, nor any person/s claiming by, through or under it, and (ii) to the best of knowledge of the Company, none of the predecessors in title (other than PNP) nor any person/s claiming by, through or under it/them have parted with the possession or control of the misplaced original title documents (as specified in Schedule 13 (List of Misplaced Documents)) to any third party with an intention to create any mortgage or charge or encumbrance or other interest or third-party rights of any nature whatsoever in respect of the Project Land.

8. There are no encroachments affecting the Project Land or any part thereof, and no facts or circumstances exist which could give rise to any such encroachments.
9. Other than an approval from National Highway Authority of India [required to be obtained by the Company in accordance with Clause 5.8.1(a)] of the Agreement], the Project Land has free ingress and egress to and from, the National Highway No. 6 / Amravati Nagpur Road.
10. The Project Land does not include any areas that are: (i) listed as of special architectural, historic significance, or (ii) part of a conservation area, or (iii) reserved for any public purpose or use in terms of the development plan issued by the Nagpur Metropolitan Region Development Authority (NMRA). The Project Land and any portion thereof does not form a part of any special economic zone notified under Applicable Laws. Further, the Project Land has no temple, public road temple or any other religious structure on site and has not been notified as an archaeological monument or for the purposes of laying of gas/oil pipelines.
11. No notice has been served on the Company by any Governmental Authority which might impede, prevent or otherwise interfere with the Company's proprietary rights in respect of the Project Land and Project.
12. All the Governmental Approvals issued by the Governmental Authorities to the Company in respect of Project Land are valid and subsisting and the Company has not received any notice/demand from the concerned Governmental Authorities in relation to breach of such Governmental Approvals.
13. The Company has obtained all the necessary permissions, orders and approvals as required under Applicable Laws for purchasing the Project Land, and the Company has not received any notice for breach of any terms and conditions as stated under any orders/approvals/permissions, if any, issued in respect of the Project Land and all transfers affecting the Project Land by the predecessors in title of the Project Land have been made in compliance with the Applicable Laws (including as per the provisions of Section 58A Maharashtra Tenancy and Agricultural Lands (Vidarbha Region), Act, 1958), save and except as disclosed in the Disclosure Letter.
14. The Company on or before the execution of the Sale Deeds had ascertained and ensured that all persons (including all the predecessors in title of the Project Land) who had any right, title and interest therein were made parties to the sale and transfer of the Project Land or any part thereof in their favour save and except as disclosed in the Disclosure Letter. The Company has till date, not received any claim, demand, notice from family members or heirs of the predecessors in title or any other person in respect of the Project Land for the sale and transfer thereof in favour of the Company.
15. Upon conversion of the Project Land, there shall be no covenants, restrictions, stipulations, affecting the Project Land or any part thereof or which would prevent or adversely affect the intended use of the Project Land for the purposes of the Business. The foregoing has been confirmed vide letter dated 21 September 2012 bearing No. Manu/ys/Mamokha/Mau Linga/Tasamir (transcripts)/2012 issued by NMRA to the Company wherein it is clarified that the Project Land can be put to the intended use of for the purposes of the Business as per the provisions of the UDPL.
16. PAPs (for the period on or prior to the Land Acquisition Date) and the Company, in each case, have not been served with any notices and are not aware of condemnation, eminent domain or compulsory land acquisition proceedings, actual or threatened (in writing), that affects the

Project Land including for acquisition of the Project Land for the purpose of real widening of the National Highway No. 4 / Amravati Nagpur Road. The Company and PAPL (for the period on or prior to the Land Acquisition Date), in each case, are not aware of the Project Land or any part thereof being included in any notified or intended schemes of improvement of any Governmental Authorities.

17. PAPL (for the period on or prior to the Land Acquisition Date) and the Company, in each case, have not been served with any notices and are not aware of any claims, objections, demands, proceedings, arbitrations or litigations (subsisting or threatened in writing) in respect to the Project Land or any part thereof, including but not limited to claims / litigations arising from: (i) any third parties; (ii) legacy title issues; and/or (iii) predecessors in title.
18. There is no private or governmental action, or investigation pending before any Governmental Authority which is ongoing, or which may have an adverse effect on the right, title, marketability of or interest in the Project Land.
19. Neither the Company nor anyone on its behalf has done, committed or omitted to do any act, deed, matter or thing, whereby, the right to own, hold, use, manage, occupy, construct, develop, sell, lease or transfer the Project Land or any part thereof, is or can be forfeited, extinguished or rendered void or voidable.
20. The Company has not entered into any arrangements or agreements, agreeing to transfer, gift, alienate, or grant possessory rights, in any other manner whatsoever, over the Project Land.
21. On the Land Acquisition Date and Conversion Closing Date, there are no Persons who are in possession of the Project Land and there are no instances of Persons claiming any rights adverse to the ownership and title of the Company or PAPL to the Project Land or any parts thereof. PAPL has duly transferred all its right, title and interest in the Project Land in favour of the Company.
22. Other than the Land Acquisition Consideration, no further payments are required to be made by the Company in connection with the purchase and acquisition of the Project Land.
23. All portions comprising the Project Land are contiguous, form one composite block of land and there are no boundary disputes with respect to the Project Land.
24. On the Land Acquisition Date and Conversion Closing Date, the Company is not aware of any outstanding outgoings in relation to the Project Land and the Company shall make payments in respect thereof as and when levied.
25. All Taxes in connection with the Project Land including property tax and land revenue, taxes, assessments, outgoings, charges, or any other equivalent government charges and dues and the same have been paid up to date basic demands raised by the relevant Governmental Authority in respect of the Project Land.
26. As of the Land Acquisition Date, PAPL has no outstanding demands, proceedings, notices, dues, charges or penalties relating to the recovery of taxes/whenever the Project Land (or part thereof) is threatened to be affected or attached, which would void the sale of the Project Land to the Company under the Sale Deed.

27. P&P's holding of the Project Land on the Land Acquisition Date is not in excess of the ceiling area prescribed under the Maharashtra Agricultural Lands (Ceiling on Holdings) Act, 1961 and the Company is not aware of P&P having received any notice/demand for breach in respect thereof.
28. On the Land Acquisition Date and the Conversion Closing Date, the Company will not hold/possess/own agricultural lands in excess of the ceiling area prescribed under the Maharashtra Agricultural Lands (Ceiling on Holdings) Act, 1961, nor will they be in breach of the provisions thereof.
29. The Project Land is suitable for construction and development of 'Grade A Warehouse' and continued use of the Project Land for the purposes of the Business.

SCHEDULE 8 | CONSENT MATTERS

1. Entering into, amendment, modification, restatement or termination or assignment of rights under, any material Contracts of the Company.

For this paragraph, "material" shall mean any contract: (i) that is with any governmental authorities, (ii) that subjects the Company or its Affiliates to any non-compete, non-solicit or other obligation restricting the business activity of its or its Affiliates, (iii) whether individually or in the aggregate, involves or is reasonably estimated to involve aggregate payments to the Company of an amount equal to or above Rs. 10,00,000 (Rupees Ten Lakhs), and/or, (iv) which are in the nature of loans and/or borrowings;

2. In respect of the Project Land:

- (i) The acquisition of any additional property and the terms and conditions thereof;
- (ii) Development into and phasing and design;
- (iii) Master planning and individual building planning;
- (iv) Construction milestones, cost estimates and building specifications;
- (v) Determination of the price for sale or lease consideration of any part of the Project Land, for external marketing purposes;
- (vi) Entering into, modification, cancellation or termination of any agreements, deeds or contracts, in relation to sale, lease or license, of all or a portion of the Project Land;
- (vii) Entering into, amendment or termination or waiver of any construction or development contracts;
- (viii) Any appointment, removal or modification in the terms of appointment of any person (including an agent) for the purpose of maintenance, management or development of the Project Land;
- (ix) Transfer and/or create any Encumbrance, over all or part of the Project Land;
- (x) Capital expenditure or expenditure in relation to the Project Land in excess of Rs. 10,00,000 (Rupees Ten Lakhs); and
- (xi) Any decision materially affecting or substantially changing the Project Land or its properties;

3. Undertake or agree to undertake any action which would reasonably be expected to result in a Material Adverse Effect (to the extent such actions are in the control of the Company, the Promoters or the Existing Shareholders).

4. Any amendment, modification, variation and/or restatement of the terms of Class A OGDs and/or Class B OGDs;

5. Any change in the scope, nature and/or activities of the Business;

6. Issuing of any borrowing or create or advance or agree to create or advance any financial indebtedness in its books, including provision of any security by the Company;
7. Any appointment, removal or determining and modifying the remuneration or compensation of any employees and/or Directors;
8. The initiation or settlement or withdrawal of any litigation, arbitration, investigations, administrative or governmental or regulatory action by or against the Company;
9. Opening, closing or changing authorized signatories of any bank account of the Company;
10. Making applications, providing undertakings or correspondence with Governmental Authorities in relation to any Governmental Approval;
11. Change of the accounting principles or procedures of the Financial Year (except as required by Applicable Law) of the Company;
12. Provision of Financial Indebtedness to any Person;
13. Provide any guarantees, securities or indemnities or similar arrangement to or for the benefit of any Person (other than Company's Directors, on customary terms), including a Related Party;
14. Make or change any Tax election, settle or compromise any proceeding with respect to any Tax Claim or assessment relating to the Company, surrender any right to claim a refund of Taxes, consent to any extension or waiver of the limitation period applicable to any Tax Claim or assessment relating to the Company, or incurring any additional liability for Tax;
15. Any approval, amendment, modification or restatement of, the Business Plan or the taking of any action by the Company in contravention of the Business Plan;
16. Acquisition of shares, equity instruments, partnership interest, units in trust or other forms of ownership interest (directly or indirectly) in any Person (other than any subsidiary of the Company whose creation or establishment has been approved as a Consent Matter);
17. Creation or establishment of a subsidiary or make an investment in any other Person or enter into any joint venture and partnerships or acquisition of any business or undertaking;
18. Any issuance of securities by the Company which alters the voting rights or ownership stake of the Promoters, Investor or any option in any form to acquire and/or subscribe to securities of the Company;
19. Take any action in relation to the share capital, including any increase or decrease in the issued, paid-up and subscribed share capital, declaration, setting aside or payment of dividend or any other distributions on the share capital or the purchase or redemption of the Equity Shares or any other securities of the Company or issuing any Equity Securities or any other securities of the Company for consideration or otherwise except in accordance with the Agreement;
20. Redemption or conversion of any Equity Securities except in accordance with this Agreement;

21. Any scheme of arrangement to which the Company is a party including mergers, demergers, spin-offs, reorganization, restructuring, reconstruction, amalgamations, consolidations, or other similar or related actions;
22. Any transaction which results in sale of all or substantially all of the Company's business or undertaking;
23. Cessation of any or all businesses, voluntary winding up or liquidation, making of any bankruptcy or insolvency filing by the Company;
24. Entering into any settlement with creditors;
25. Entering into any transactions with a Related Party;
26. Removal and/or replacement of the Investor Director(s), except where such removal is undertaken in accordance with terms of this Agreement or is pursuant to a disqualification under Applicable Law;
27. Any amendment, supplement, modification or recastment to the Charter Documents of the Company, which is not otherwise permitted to be undertaken in accordance with this Agreement;
28. Any declaration of dividends, distribution of profits and/or other distributions on the Equity Shares and other securities of the Company, whether by cash or otherwise, other than on a pro-rata basis to all Shareholders based on their relative shareholding percentage in the Company; and
29. Any agreement, contract, transaction, action or commitment to give effect to any of the foregoing.

It is expressly clarified hereby that any monetary limits stated in this Schedule unless specified otherwise, are indicated on an aggregate basis, and such limits shall apply to both a single transaction and a series of transactions in a particular Financial Year.

SCHEDULE 5 | FORM OF DISCLOSURE LETTER

To,

[Investor]

[Invest Address]

Subject: Investment Agreement dated _____, 2012 (the "IA") executed by and amongst Rajesh Steel Industries Private Limited, Adhishakti Agreement, Isahori Adhishakti Agreement, Roshini Adhishakti Agreement and Horizon Industrial Parks Private Limited.

- (i) We refer to the IA. In this letter, all capitalized terms used herein but not defined shall have the meaning given to them under the IA.
- (ii) Each disclosure in this Disclosure Letter shall, subject to such disclosure being Full and Fair Disclosure, operate as an exception to the relevant Representations against which such disclosure is made and not to the Representations as a whole; provided that a disclosure or qualification made by reference to any particular paragraph of the Representations, subject to such disclosure being Full and Fair Disclosure, shall also be deemed to have been made in respect of any other paragraph of the Representations to which the disclosure may be applicable, but only to the extent that the relevance of such disclosure is reasonably apparent from the face of the matter disclosed.
- (iii) The contents of this Disclosure Letter and the information disclosed herein is disclosed in confidence for the purposes contemplated in the IA and is subject to the confidentiality provisions contained in the IA.
- (iv) The information contained in this Disclosure Letter is disclosed solely for purposes of the IA and no information contained herein or therein (including relating to any non-compliance, breach or violation of any contract, consent, ruling, certification, registration, filing or any applicable law) shall be deemed to be an admission to the Investor or any third party (including a governmental authority) that any such non-compliance, breach or violation exists or has actually occurred and nothing in this Disclosure Letter shall constitute an admission of any liability or obligation of the Company and/or, the Promoters or Existing Shareholders and/or their respective Affiliates to the Investor or any third party or shall confer or give to any third party (including a governmental authority) any remedy, claim, liability, reimbursement, cause of action or other right.
- (v) The headings and numbering used in this Disclosure Letter refer to the corresponding Paragraph of relevant parts of [schedule.] (Representations and Warranties) of the IA, and such headings and numbers are for convenience only and shall not affect the interpretation of any provision of the IA or this Disclosure Letter.
- (vi) This Disclosure Letter, along with the schedules hereto, shall be deemed to be schedules to the IA.
- (vii) This Disclosure Letter may be issued by the Promoters and the Existing Shareholders in any number of counterparts, each of which is an original but all of which taken together shall constitute one and the same document.

- (vi) Please acknowledge acceptance of this Disclosure Letter by signing and returning a copy to the Promoters and the Existing Shareholders.

[SIGNATURE PAGE TO FOLLOW]

[ENCLOSURES TO FOLLOW]

SCHEDULE 6 | LIMITATIONS ON LIABILITY

1. Notwithstanding anything contained in Clause 1 or otherwise stated in this Agreement, the liability of an Indemnifying Person shall be subject to the following limitations and specific exceptions:
- (a) An Indemnifying Person shall not be liable in respect of any single incident of Loss incurred by the Indemnified Person unless the amount of such Loss exceeds Rs. 5,00,000 (Rupees Five Lakhs) ("De-Minimis Amount"). For the purposes of this Clause 1(a), all losses related to a series of same or substantially similar facts, matters or circumstances, may be aggregated for reaching the De Minimis Amount threshold. No indemnity claim shall be made by an Indemnified Person unless the De Minimis Amount has been reached.
 - (b) No Indemnifying Person shall be liable to indemnify any Indemnified Person for any Loss unless and until the aggregate of all De Minimis Amounts exceed Rs. 50,00,000 (Rupees Fifty Lakhs) ("Threshold Loss"). It is clarified that once the aggregate of the indemnity claim exceeds the Threshold Loss, the Indemnifying Person shall be liable for each indemnity claim (from the first rupee) that is individually in excess of the De Minimis Amount.
 - (c) The Indemnifying Person shall not be liable to indemnify or make any payments to an Indemnified Person for any claim referred to in column (1) of the following table:
 - (a) unless a notice for claim or Third Party claim has been given in respect of such claim before the date (if any) specified in the adjacent row of column (2) of the following table; and
 - (b) for the amount which exceeds the aggregate monetary cap on loss (if any) specified in the adjacent row of column (3) of the following table.

	(1)	(2)	(3)
	Type of Claim	Time period for service of claim notice from the Closing Date	Aggregate monetary cap on loss
A.	Breach of Fundamental Representations	Unlimited	Uncapped
B.	Breach of Land Title Representations	15 years	Aggregate Investment Amount
C.	Breach of Tax Representations	7 years	Rs. 5 crores

	(1)	(2)	(3)
C.	Breach of Business Representations	3-years	(Collectively, for breach of Tax Representations and Business Representations).

- (iv) Subject to Paragraph 3.3 of this Schedule 5 (Limitations on Liability) below, the total aggregate liability of the Indemnifying Persons under this Agreement (including for any Specific Indemnity Matter) shall in no event exceed the Aggregate Investment Amount.
- (v) It is hereby agreed and acknowledged between the Parties that the restrictions set out in this Schedule 5 (Limitations on Liability) shall not apply to any Loss incurred or suffered by the Indemnified Person arising out of, relating to or resulting from: (a) a breach of Fundamental Representations; or (b) willful misconduct or fraud/fraudulent misrepresentation by the Company, the Promoters and/or the Existing Shareholders in relation to the transactions contemplated under this Agreement.
- (vi) Where one and the same Loss has been caused by more than one Claim, then the Indemnified Person shall be entitled to claim indemnity for the amount of such Loss only once.
- (vii) In no event shall the Indemnifying Persons be liable for any remote, indirect or unforeseeable Losses.
- (viii) If an Indemnity Claim arises by reason of some liability which, at the time that the indemnity claim is notified to an Indemnifying Person, is contingent only, such Indemnifying Persons shall not be under any obligation to make any payment to the Indemnified Person thereunder until such time the contingent liability becomes an actual loss and is due and payable, provided that, for the avoidance of doubt, nothing in this clause shall prevent the Investor from notifying the Indemnifying Persons of such contingent claim for purposes of satisfying the notification deadline in Paragraph 3.3(i) of this Schedule 5 (Limitations on Liability).
- (ix) A breach of the covenants which are capable of remedy shall not entitle the Indemnified Person to indemnity unless the Indemnifying Persons is given a written notice of such breach by the Indemnified Person and such breach is not remedied within 30 (Thirty) days after the date on which such notice is received by the Indemnifying Persons.

SCHEDULE 3 | FINANCIAL STATEMENTS

PART A | MANAGEMENT CERTIFIED FINANCIAL STATEMENTS OF THE COMPANY AS ON 31 MARCH
2022

[Annexed separately]

PART B | SUPPLEMENTARY FINANCIALS

[Annexed separately]

INDEPENDENT AUDITOR'S REPORT
To the Members of Nita Warehousing Private Limited

Report on the Financial Statements

We have audited the accompanying financial statements of "**NITA WAREHOUSING PRIVATE LIMITED**" ("the Company") which comprise the Balance Sheet as at 31st March 2022 and the statement of Profit and Loss for the period then-ended and the summary of significant accounting policies and other explanatory information.

Management's Responsibility for the Financial Statements

The Company's Board of Directors is responsible for the matters stated in Section 134(3) of the Companies Act, 2013 ("the Act") with respect to the preparation of these standalone financial statements that give a true and fair view of the financial position and financial performance of the Company in accordance with the Accounting Principles Generally Accepted in India (Indian GAAPs), including Accounting Standards specified under Section 133 of the Act, read with Rule 7 of the Companies (Accounts) Rules, 2014. This responsibility also includes maintenance of adequate accounting records in accordance with the provision of the Act for safeguarding the assets of the Company and for preventing and detecting frauds and other irregularities; selection and application of appropriate accounting policies; making judgments and estimates that are reasonable and prudent; and design, implementation and maintenance of adequate internal financial controls, that were operating effectively for ensuring the accuracy and completeness of the accounting records, relevant to the preparation and presentation of the financial statements that give a true and fair view and are free from material misstatement, whether due to fraud or error.

Auditor's Responsibility

Our responsibility is to express an opinion on these financial statements based on our audit. We have taken into account the provisions of the Act, the accounting and auditing standards and matters which are required to be included in the audit report under the provisions of the Act and the Rules made thereunder.

We conducted our audit in accordance with the Standards on Auditing specified under Section 143(10) of the Act. Those Standards require that we comply with ethical requirements and plan and perform the audit to obtain reasonable assurance about whether the financial statements are free from material misstatement.

An audit involves performing procedures to obtain audit evidence about the amounts and disclosures in the financial statements. The procedures selected depend on the auditor's judgment, including the assessment of the risks of material misstatement of the financial statements, whether due to fraud or error. In making those risk assessments, the auditor considers internal control relevant to the Company's preparation of the financial statements that give a true and fair view in order to design audit procedures that are appropriate in the



circumstances but not for the purpose of expressing an opinion on whether the Company has in place an adequate internal financial control system over financial reporting and the operating effectiveness of such controls. An audit also includes evaluating the appropriateness of accounting policies used and the reasonableness of the accounting estimates made by the Company's Directors, as well as evaluating the overall presentation of the financial statements.

We believe that the audit evidence we have obtained is sufficient and appropriate to provide a basis for our audit opinion.

Opinion

In our opinion and to the best of our information and according to the explanations given to us, the financial statements give the information required by the Act in the manner so required and give a true and fair view in conformity with the accounting principles generally accepted in India:

- (a) In the case of the Balance Sheet of the state of affairs of the company as at 31st March 2022; and
- (b) In the case of the Profit and Loss Account of the Loss of the company for the period ended on that date.

Report on Other Legal and Regulatory Requirements

- 1. The Companies (Auditor's Report) order, 2016 issued by the Central Government of India in terms of section 143(11) of the Companies act 2013, is not applicable to the Company.
- 2. As require by section 143(3) of the Act, We report that :
 - (a) We have sought & obtained all the information and explanations which to the best of our knowledge & belief were necessary for the purpose of our audit;
 - (b) In our opinion, proper books of accounts as required by law have been kept by the company so far as appears from our examination of such books;
 - (c) The Balance Sheet and Statement of Profit and Loss dealt with in this report are in agreement with the books of account;
 - (d) In our opinion, the Balance Sheet and Statement of Profit and Loss comply with the Accounting standards specified under section 133 of the Act, read with rule 7 of the Companies (Accounts) Rules, 2014;



- (x) On the basis of written representation received from Directors as on 31st March 2022, and taken on record by the Board of Directors, none of the Director of the Company is disqualified as on 31st March 2022, from being appointed as a director in terms of Section 164(1) of the Act.
- (y) With respect to the other matters to be included in the Auditor's Report in accordance with Rule 11 of the Companies (Audit and Auditors) Rules, 2014, in our opinion and to the best of our information and according to the explanations given to us:
- (i) The Company has adequately disclosed the impact of pending litigations on its financial position in its financial statements as of March 31, 2022;
- (ii) There are no material foreseeable losses on long term contracts than provision for the same is not required
- (iii) There is no amount lying with the Company at any time throughout the year which is required to be transferred, to the Investor Education and Protection Fund by the Company.



FOR AGRAWAL CHHALLANI & CO;
CHARTERED ACCOUNTANTS,
Firm Reg. No. 180125W

(CA. S. R. Chhallani),
PARTNER,

Membership No. 30154
UDIN : 22030154ARYW015405.

NMD WAREHOUSING PVT. LTD. NAGPUR**BALANCE SHEET****AS AT 31st MARCH 2022**

PARTICULARS	Note No.	As at 31-03-2022	21-
A) EQUITY AND LIABILITIES:			
1) SHAREHOLDER'S FUNDS			
(a) Share capital	2	100,000	
(b) Reserves and surplus	3	-	100,000
2) NON CURRENT LIABILITIES			
(a) Long-term borrowings	4		10,000
3) CURRENT LIABILITIES			
(a) Other current liabilities	5	35,441	
(b) Short-term provisions	6	5,000	40,441
TOTAL :		140,441	
B) ASSETS:			
1) CURRENT ASSETS			
(a) Cash and Bank Balances	7	110,000	
(b) Other Current Assets	8	40,441	150,441
TOTAL :		150,441	

NOTES 1 TO 18 FORM INTEGRAL PART
OF FINANCIAL STATEMENTS

For and on behalf of the Board


Director


Director



As per our Report of even date
For Agrawal Chartered & Co.,
Chartered Accountants
Regn. No. 100125W


(CA. S. B. Chhabhai)
Partner
Membership No. 30154

INDIA WAREHOUSING PVT LTD, NAGPUR**STATEMENT OF PROFIT AND LOSS
FOR THE PERIOD ENDED 31st MARCH 2011**

PARTICULARS	Item No.	Current Year 20-40-2011
		Rs. / P.
Ad/Other Income	9	1,000
Total Revenue		1,000
EXPENSES :		
Other Expenses	10	1,000
Total Expenses		1,000
Profit Before Tax		-
Tax Expenses :		
Current Tax		-
Earlier year tax		-
Profit for the year		-
Earning per Equity Share		
1. Basic		-
2. Diluted		-

NOTES 1 TO 10 FORM INTEGRAL PART
OF FINANCIAL STATEMENTS

For and on behalf of the Board


Director


Director



As per our Report of even date
For Agarwal Chavhan & Co.,
Chartered Accountants
Regn. No. 1000210


(CA. S. R. Chavhan)
Partner
Membership No. 20154

AS AT 31st MARCH 2022

NOTE 1

CONTINGENT LIABILITIES AND NOTES

- There are no Contingent Liabilities (Nil.)
- Balances in various personal accounts could not be verified for want of confirmations from the parties.
- In the Opinion of the Board, Current Assets, Liabilities and Advances are of the value stated if realized in the ordinary course of business. The provision of all known liabilities is adequate and not in excess of the amount considered reasonably necessary.
- Expenditure incurred on employees who were in receipt of remuneration is aggregate at the rate of not less than Rs. 60,00,000/- per annum of Rs. 5,00,000 per month, if employed for a part of the year is Nil.
- Depreciation has been calculated on all assets of the company on straight line method on pro rata basis at the rates and in the manner specified in Schedule II of the Companies Act, 2013, on the basis of useful life of the Assets.
- In accordance with the requirements of Accounting Standard - 22 on 'Accounting for Taxes on Income' issued by the Institute of Chartered Accountants of India, the Corporation has deferred tax arising out of timing difference is Nil.
- Calculation of Earnings Per Share as per Accounting Standard - 20 "Earnings Per Share" issued by The Institute of Chartered Accountants of India:

		31.03.2022
Amount paid as remuneration		
Net Profit for the year	(A)	0
Weighted average number of shares	(B)	10000
Basic earnings per share (A / B)		<u>0</u>

1. Significant Ratios:

	31.03.2022
Current Ratio	N.A.
Debt - Equity Ratio	4.10
Debt Service Coverage Ratio	N.A.
Return On Equity Ratio	0%
Inventory Turnover Ratio	N.A.
Trade receivable Turnover Ratio	N.A.
Trade Payable Turnover Ratio	N.A.
Net Capital Turnover Ratio	N.A.
Net Profit Ratio	N.A.
Return On Capital Employed	0%
Return On Investment	N.A.



9. **Significant Accounting Policies:**

- a) **Method of Accounting:**
The books of accounts are maintained on accrual basis of accounting.
- b) **Fixed Assets:**
Fixed Assets are capitalised at cost including all creation commission charges and pre-products expenses.
- c) **Contingent Liabilities:**
Contingent Liabilities is not accounted for in the books of account.
- d) **Other Accounting Policies:**
These are consistent with Generally Accepted Accounting Practices.

10. **Details of Benami Property held:**
There are no amounts falling under such clause of Benami Transactions (Prohibition) Act, 1988.

11. **Willful Defaulter:**
The Company has not been declared as willful defaulter by 'banks' financial institutions/ other lender.

12. **Compliance with approved schemes of arrangements by competent authority in terms of section 230 to 237 of Companies Act, 2013:**
There are no scheme of arrangements falling under such clause.

13. **Undisclosed Income under Income Tax Act, 1961:**
Company does not have any undisclosed income under such clause.

14. **CSE (Details of Crypto-Currency & Virtual-Currency):**

a) Profit(Loss) on transactions involving Crypto-Currency & Virtual Currency:	NIL
b) Amount of currency held as at reporting date:	NIL
c) Deposits from any persons for the purpose of trading & investing in Crypto-currency & Virtual Currency:	NIL

15. **Utilisation of Borrowed Funds & Share Premium:**
There are no amounts falling under such clause.

16. **Figures in brackets relate to the previous year. Figures will have been regrouped wherever necessary.**

For and on behalf of the Board


Director

Director



As per our Report of even date
For Agrawal Chartered & Co.
Chartered Accountants
Regn. No. 104120W


(CA R. Chitambar)
Partner
Membership No. 10114

NOTES FORMING PART OF ACCOUNTS:**1 SHARE - CAPITAL:**

PARTICULARS	As at 31st March, 2022
	Rs. P.
<u>AUTHORIZED SHARE CAPITAL:</u>	
10,000 Equity shares of Rs. 10/- each	100,000.00
<u>ISSUED, SUBSCRIBED AND PAID UP:</u>	
10,000 Equity Shares of Rs.10/- each fully paid up	100,000.00
TOTAL:	100,000.00

Shares in the company held by each shareholder holding more than 5% shares:

Name of Shareholders	As at 31 March, 2022	
	% Held	No. of Shares
1 Mr. Ashish Agrawal	10.00%	1000
2 Mrs. Roshini Agrawal	10.00%	1000

Shareholding of Promoters:

Shares held by Promoters at year end 2022		% Change in Shareholding during the year			
		Promoter Name	No. of Shares	% Held	% Change
1	5000	Mr. Ashish Agrawal	1000	10.00%	-
2	5000	Mrs. Roshini Agrawal	1000	10.00%	-



3. RESIDUES AND SURPLUS

PARTICULARS		As at 31st March, 1902
		Rs. P.
a) Profit And Loss Account		
As per last Balance Sheet		"
Add : Profit for the year		"
TOTAL :		

4. LONG TERM BORROWINGS:

PARTICULARS	As at 31 March, 2022	
	Non Current	Current
	Rs. Pk	Rs. Pk
A) UNSECURED		
Debt Related Parties		
Leasing Agreement	10,000.00	-
TOTAL:	10,000.00	-



5 OTHER CURRENT LIABILITIES:

PARTICULARS	As at 31st March, 2022
Expenses Payable: Arbitral Award (Preliminary Expenses)	15,441.00
TOTAL:	15,441.00

6 SHORT TERM PROVISIONS:

PARTICULARS	As at 31st March, 2022
Arbit Fees Payable	1,000.00
TOTAL:	1,000.00

7 CASH AND BANK BALANCE:

PARTICULARS	As at 31st March, 2022
Cash-in-hand	Rs. 75, 100,000.00
Cash at Banks:- Axis Bank - 6531	10,000.00
TOTAL:	110,000.00



8 OTHER CURRENT ASSETS:

PARTICULARS	As at
	31st March, 2022
	<u>Rs. Pk.</u>
Preliminary Expenses	40,443.00
TOTAL:	<u>40,443.00</u>

9 OTHER INCOME:

PARTICULARS	As at
	31st March, 2022
	<u>Rs. Pk.</u>
Expense Transferred to Preliminary Expenses	5,000.00
TOTAL:	<u>5,000.00</u>

10 OTHER EXPENSES:

PARTICULARS	As at
	31st March, 2022
	<u>Rs. Pk.</u>
Audit Fees	5,000.00
TOTAL:	<u>5,000.00</u>

For and on behalf of the Board

[Signature]
Director
[Signature]
Director



As per our Report of even date
For Agrawal Chhabani & Co.
Chartered Accountants
Reg. No. 104320

[Signature]
(CA. S. R. Chhabani)
Partner
Membership No. 30154

NEO STOREHOUSING PVT. LTD. NAGPUR
PROVISIONAL BALANCE SHEET
AS AT 10th OCTOBER, 2011

PARTICULARS	Note No.	As at 14-10-2011	As at 30-09-2011
A) EQUITY AND LIABILITIES:			
1) SHAREHOLDER'S FUNDS			
(a) Share capital	2	1,00,000	1,00,000
(b) Reserves and surplus	3	-	1,00,000
2) NON-CURRENT LIABILITIES			
(a) Long-term borrowings	4	-	10,000
3) CURRENT LIABILITIES			
(a) Other current liabilities	5	-	25,441
(b) Short-term provisions	6	5,000.00	5,000
TOTAL :		1,05,000	1,30,441
B) ASSETS:			
1) CURRENT ASSETS			
(a) Cash and Bank Balance	7	50,024	1,14,000
(b) Other Current Assets	8	50,976	40,000
TOTAL :		1,01,000	1,54,000

NOTES I TO 10 FORM INTEGRAL PART
 OF FINANCIAL STATEMENTS

Neo Store Warehousing Pvt.Ltd.


 Ashish Agrawal
 Director
 DIN : 04832746


 Rishabh Agrawal
 Director
 DIN : 05400162



YMO WAREHOUSING PVT LTD, NAGPUR
PROVISIONAL STATEMENT OF PROFIT AND LOSS
FOR THE PERIOD ENDING 30th OCTOBER, 2022

PARTICULARS	Note No.	Current Year 15-10-2022		Current Year 31-03-2022	
		Rs.	Pk.	Rs.	Pk.
Adj/Other income	9	-		1,000	
Total Revenue				-	1,000
EXPENSES:					
Other Expenses	10	-		1,000	
Total Expenses				0	1,000
Profit Before Tax				-	-
Tax Expenses:					
Current Tax				0	-
Earlier year tax				-	-
Profit for the year				-	-
Earning per Equity Share					
1. Basic				-	-
2. Diluted				-	-

NOTES: TO INFORM INTEGRAL PART
OF FINANCIAL STATEMENTS

For, Ymo Warehousing Pvt.Ltd.



Mihirbhai Agrewal
Director
DIN: 00001746



Rishabh Agrewal
Director
DIN: 00000102



NOTES FORMING PART OF ACCOUNTS

3 SHARE CAPITAL

PARTICULARS	As at 15th October, 2022	As at 31st March, 2023
	Rs. /-	Rs. /-
AUTHORIZED SHARE CAPITAL		
15,000 Equity shares of Rs. 10/- each	1,50,000.00	1,50,000.00
ISSUED, SUBSCRIBED AND PAID UP		
15,000 Equity Shares of Rs. 10/- each fully paid up	1,50,000.00	1,50,000.00
TOTAL	<u>1,50,000.00</u>	<u>1,50,000.00</u>

There is no company held by each shareholder holding more than 1% shares:

Name of Shareholder	As at 15 October, 2022		As at 31 March, 2023	
	% Held	No. of Shares	% Held	No. of Shares
1. Mr. Subash Agrawal	-	-	10.00%	1000
2. Mrs. Rakhee Agrawal	10.00%	1000	10.00%	1000
3. Mr. Chaitanya Agrawal	10.00%	1000	-	-
	<u>100.00%</u>	<u>15,000.00</u>	<u>100.00%</u>	<u>15,000.00</u>

Shareholding of Promoters:

% Change in Shareholding during the year				
Share held by Promoters as on 15 Oct, 2022	Promoter Name	No. of Shares	% Held	% Change
1	Mr. Subash Agrawal	-	-	10.00%
2	Mrs. Rakhee Agrawal	1000	10.00%	-
3	Mr. Chaitanya Agrawal	1000	10.00%	-

4 RESERVES AND EXPENSES

PARTICULARS	As at 15th October, 2022	As at 31st March, 2023
	Rs. /-	Rs. /-
(a) Profit and Loss Account		
As per last Balance Sheet	-	-
Add: Profit for the year	-	-
TOTAL	<u>-</u>	<u>-</u>

5 LONG TERM BORROWINGS

PARTICULARS	As at 15 October, 2022		As at 31 March, 2023	
	Non Current	Current	Non Current	Current
	Rs. /-	Rs. /-	Rs. /-	Rs. /-
UNSECURED				
Term Deposit Facility Rakhee Agrawal	-	-	10,000.00	-
TOTAL	<u>-</u>	<u>-</u>	<u>10,000.00</u>	<u>-</u>



5 OTHER CURRENT LIABILITIES:

PARTICULARS	As at 15th October, 2022	As at 31st March, 2022
	Rs. Ps.	Rs. Ps.
Expenses Payable: Arbitral Award/Preliminary Exp.)	-	25,411
TOTAL:	-	59,420.00

6 SHORT TERM PROVISIONS:

PARTICULARS	As at 15th October, 2022	As at 31st March, 2022
	Rs. Ps.	Rs. Ps.
Audit Fees Payable	5,000.00	5,000.00
TOTAL:	5,000.00	5,000.00

7 CASH AND BANK BALANCE:

PARTICULARS	As at 15th October, 2022	As at 31st March, 2022
	Rs. Ps.	Rs. Ps.
Cash - in - hand	25,000.00	1,00,000.00
Cash at Banks: Axis Bank - 6501	29,674.45	10,000.00
TOTAL:	54,674.45	1,10,000.00



8 OTHER CURRENT ASSETS:

PARTICULARS	Current Year	As at	As at
		15th October, 2022	31st March, 2022
		Rs. Pk.	Rs. Pk.
Miscellaneous Expenses			
(a) Preliminary Expenses		25,441.00	25,441.00
(B) Pre-Operation Expenses		15,510.55	5,000.00
Opening Balance	5000.00		
Bank Charges	6434.15		
ROC Filing Fee	5000.00		
TOTAL:		50,975.55	40,441.00

9 OTHER INCOME:

PARTICULARS	As at	As at
	15th October, 2022	31st March, 2022
	Rs. Pk.	Rs. Pk.
Expense Transferred to Preliminary Expenses	-	5,000.00
TOTAL:	-	5,000.00

10 OTHER EXPENSES:

PARTICULARS	As at	As at
	15th October, 2022	31st March, 2022
	Rs. Pk.	Rs. Pk.
Audit Fees	-	5,000.00
TOTAL:	-	5,000.00



SCHEDULE 8 | PROJECT LAND

All those pieces and parcels of agricultural lands, totally measuring about 57.73 Hectares equivalent to about 45.81 Acres, all situated at Village Unpa, Taluka Nagpur (Karnin / Funa), District Nagpur, Maharashtra being:

#	Survey No.	Area [Hectares-Acre]	Bounded on or towards North by	Bounded on or towards South by	Bounded on or towards the East by	Bounded on or towards the West by
1.	8	05 - 37	1.No.56.7	1.No.33	1.No.15/2	1.No.18
2.	18	05 - 45	1.No.11 & 9	1.No.134, 32/1/8, 31/1/8 (formerly forming part of 1.No.32)	1.No.8 & 10/1/8, 32/2/8 (formerly forming part of 1.No.31)	1.No.19
3.	18/2	04 - 43	1.No.4, 35/1 & Annavati Road	1.No.32/1/8, 32/1/8 (formerly forming part of 1.No.32)	1.No.30	1.No.8
4.	32/2/8	05 - 06	1.No.18 & 15/2	1.No.32/1/8, 32/1/8 (formerly forming part of 1.No.32) & 1.No.33	1.No.31	1.No.13, 18 & 33
5.	32/2/8	05 - 22	1.No.18 & 15/2	1.No.32/1/8, 32/1/8 (formerly forming part of 1.No.32) & 1.No.33	1.No.31	1.No.13, 18 & 33

[Map of the Project Land is Annexed separately]

Xsio Warehousing pvt. Ltd.

Route :- Linge , Tehsil :- Nagpur (Gramin)
Khasara No :- 8,18,19/1,19/2,32/2A, 32/2B



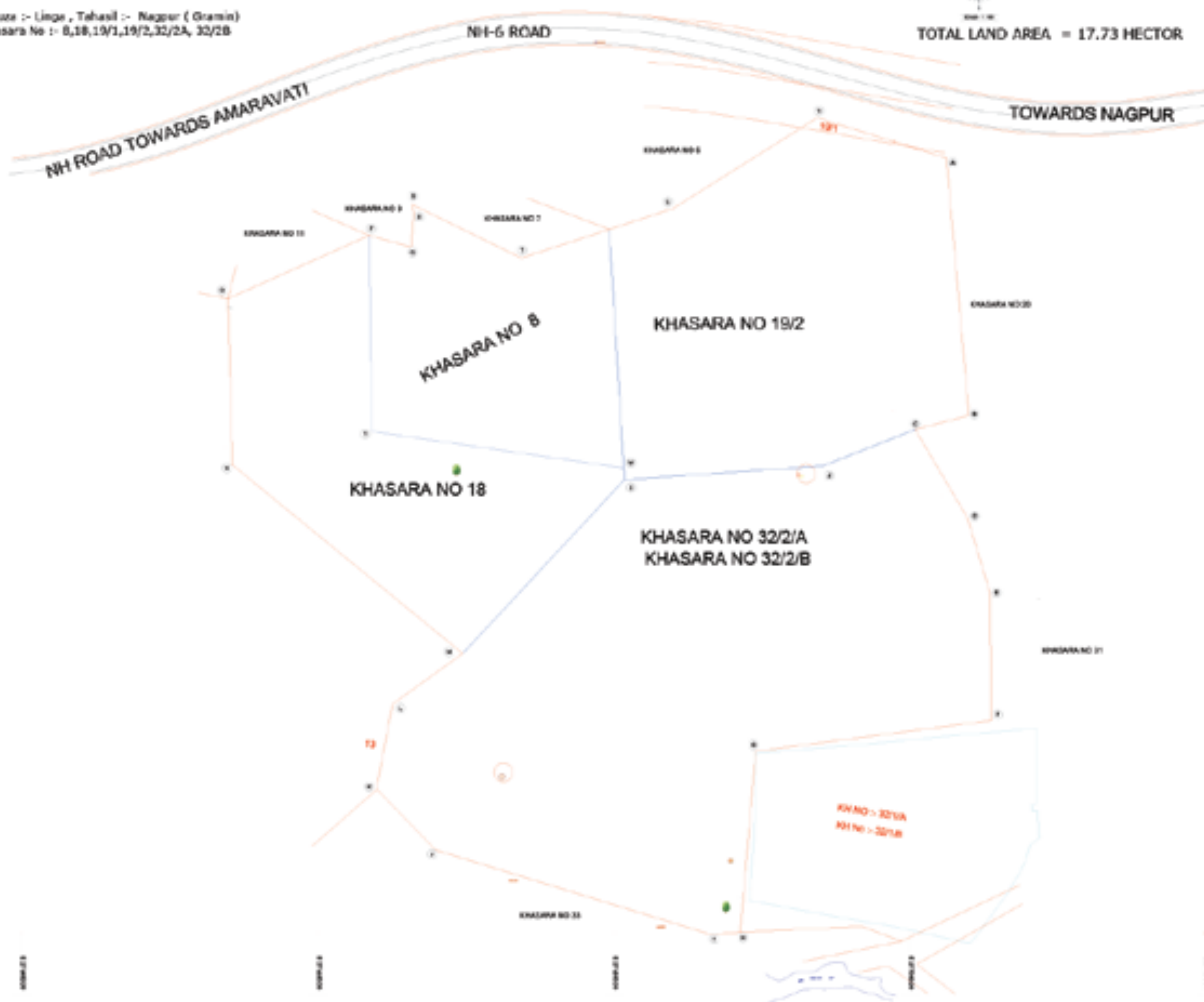
TOTAL LAND AREA = 17.73 HECTOR

4 200000.00

4 200000.00

4 200000.00

4 200000.00



SCHEDULE 9 | CONDITIONS PRECEDENT

PART A | CONDITIONS PRECEDENT

1. The Company shall have obtained and shall have delivered to the Investor, a valuation report, in form and substance acceptable to the Investor, from a chartered accountant of repute with respect to the fair market value of the Sale Securities proposed to be acquired by the Investor, as computed in accordance with Rule 11UA of the Income Tax Rules 1962 and the Act.
2. The Company shall cause PAFI to send a letter to the Maharashtra State Financial Corporation requesting the Maharashtra State Financial Corporation to reconfirm that there are no dues payable by Agan Explosives Private Limited and there is no mortgage subsisting over lands bearing old survey no. 34/1 and old survey No. 38, now corresponding to new Survey Nos. 38 and 33/2 forming part of the Project Land.
3. The Company shall appoint a nominee of the Investor, as a joint signatory to the Company Bank Account.
4. Each of the Representations shall be true and correct in all respects as of the Execution Date and as of the Closing Date, as though made on and as of each such date with reference to facts and circumstances then existing.
5. The Promoters, the Company and the Existing Shareholders shall have complied with all covenants under this Agreement required to be performed and/or complied with on or prior to Closing Date.
6. The Promoters shall have and shall have caused the Company to take all necessary corporate and other actions as may be required for consummating the transactions as contemplated on Closing under this Agreement.
7. Rajesh Steel shall have procured a certificate from a chartered accountant of repute, in a form acceptable to the Investor, verifying that there are no Tax demands and/or proceedings pending against Rajesh Steel under the IT Act and no notice is served upon Rajesh Steel under Rule 2 of Schedule II of the IT Act, which could render the transfer of the Sale Securities to the Investor void under Section 281 of the IT Act.
8. The Company shall have provided the Investor with the resolutions of the Board and Shareholders of the Company for issuance of Existing OCDs and the relevant filings made with the ROC in relation thereto.
9. The Company shall (and the Promoters and the Existing Shareholders shall cause the Company to) undertake all actions required (including but not limited to conducting meetings of the Board and Shareholders and making all necessary filings with the ROC) for the restoration of the terms of the Existing OCDs into Class A OCDs and Class B OCDs, as per the terms set out in Part C and Part D of Schedule 2 (Terms of the Optionally Convertible Debentures), respectively.
10. No event which would, or is reasonably likely to, individually or in the aggregate, have a Material Adverse Effect shall have occurred or be threatened in writing to occur.

PART B | CONVERSION CONDITIONS PRECEDENT

1. The Company shall have completed the Project Land Acquisition Related Actions.
2. The Company shall have obtained and shall have delivered to Investor, a valuation report, in form and substance acceptable to the Investor, from a Category I Merchant Banker (registered with the Securities and Exchange Board of India) or a chartered accountant of repute with respect to the fair market value of the Equity Securities, computed in accordance with any internationally accepted pricing methodology for valuations on an arm's length basis in accordance with the applicable pricing requirements pursuant to Foreign Exchange Management Act 1999 and the Act.
3. The Company shall make an application for change of user of the land to 'industrial-godown/warehouse' and get the user of the land updated after making payment of the required charges, including any non-agricultural assessment/premium, on or prior to the applicable Long Stop Date.
4. On or prior to the applicable Long Stop Date the Company shall either have:
 - (i) converted some of the Project Land from 'agricultural' to 'industrial-godown / warehouse' under the provisions of the Unified Development Control and Promotion Regulations, 2020 and obtained a revised zone certificate reflecting such conversion, by paying the applicable charges/premium to the concerned authority; or
 - (ii) have obtained an approval for setting up a logistic park or an integrated logistic park on the Project Land under provisions of the Integrated Logistics Parks Policy of 2018 of the Government of Maharashtra, by paying the applicable charges/premium to the concerned authority.

in each case, such that the minimum available floor area ratio (FAR) the Project Land is 1.5x and Project Land is zoned for warehousing.
5. Each of the Representations shall be true and correct in all respects as of the Conversion Closing Date, as though made on and as of each such date with reference to facts and circumstances then existing.
6. The Promoters, Company and Existing Shareholders, shall have complied with all covenants under this Agreement required to be performed and/or complied with on or prior to Conversion Closing Date.
7. No event which would, or is reasonably likely to, individually or in the aggregate, have a Material Adverse Effect shall have occurred or be threatened in writing to occur.
8. Any other matters identified and mutually agreed among the Parties in writing to be a Conversion Conditions Precedent.

SCHEDULE 1.1 | CONDITIONS PRECEDENT SATISFACTION LETTER

[Dated prior to the Closing Date or Conversion/Closing Date]

To,

[*]

Re: Investment Agreement dated _____, 2022 (the "Agreement") executed by and amongst [*].

[We refer to the Agreement executed by the parties hereto. In this letter, all capitalized terms used but not defined shall have the meaning given to them under the Agreement.

[We hereby certify, confirm, declare and acknowledge that:

1. The Conditions Precedent set out in Clause 5 read with Part A, (B) of Schedule 5 (Conditions Precedent) have been completed and satisfied (other than the Conditions Precedent that can only be satisfied at [Closing /Conversion Closing] or have been waived by the Investor) and certified copies of the necessary documents evidencing fulfillment of the Conditions Precedent are attached herewith or access to such documents have been electronically provided;
2. As of the date hereof, no event which would, or is reasonably likely to, individually or in the aggregate, have a Material Adverse Effect, has occurred and is continuing or is threatened in writing to occur; and
3. We have complied, and will comply, in all respects with all covenants and other agreements in the Agreement required to be performed and/or complied with on or prior to [Closing/Conversion Closing].

The confirmations and statements contained in this letter shall be binding on us and on our successors and assigns.

[Signature blocks to be included]

SCHEDULE 11 | INVESTOR REPRESENTATIONS AND WARRANTIES

1. The Investor is duly incorporated and organized and validly existing under the laws of India.
2. The Investor has the full power, authority and capacity to execute this Agreement and perform and observe all the terms contained herein, and the Investor has taken all corporate actions as necessary to enter into, execute and deliver this Agreement and to consummate and perform the transactions and its obligations contemplated by this Agreement.
3. This Agreement has been duly and validly executed by the Investor and constitutes legal, valid and binding obligation of the Investor, enforceable against it in accordance with its terms.
4. The Investor is resident in India and is a foreign owned or foreign controlled under the Foreign Exchange Laws.
5. The Investor is not bound by any Contract, which may restrict its right or ability to enter into this Agreement, perform its obligations or consummate transactions contemplated in this Agreement, or which would be breached as a result of execution or performance of this Agreement.
6. The execution, delivery and performance by the Investor of this Agreement and the consummation of the transactions contemplated hereby does not and will not conflict with or violate any provisions of (i) constitutional documents of the Investor; (ii) any applicable law; or (iii) any Order, judgment, writ, injunction or decree of any court or tribunal or Governmental Authority to which the Investor or its assets and properties are bound or affected.
7. No Consent or Governmental Approval to, from or with any Person is required on the part of the Investor in connection with the execution, delivery and performance of this Agreement, the compliance by it with any of the provisions hereof, or the consummation of the transactions contemplated herein.
8. No Order has been served on the Investor nor is the Investor aware of any petition pending or admitted for winding up (or other process whereby the Assets of the Investor are distributed amongst the creditors or shareholders or other contributors) of the Investor or for an administration order against the Investor.

SCHEDULE 1.2 | TITLE DOCUMENTS

1. Sale Deed dated 25 February 2007 registered under Serial No. NDC-Gr 18/C78 in Book 1 of 2007 executed between: (i) Mr. Kamesh Jagdish Satpute, (ii) Mrs. Mehi, widow of Yashwantrao Satpute, (iii) Mr. Yashuji Yashwantrao Satpute, and (iv) Mrs. Deepak Yashwantrao Satpute, and (v) Mr. Rupali Yashwantrao Satpute (minor aged 15 through her natural guardian mother, Mehi Yashwantrao Satpute) as the Vendors and (vi) Mr. Prabhakar Mahadevrao Gundawar and (vii) Mr. Anilji Prabhakar Gundawar, as the Purchasers in respect of Survey No. 8.
2. Sale Deed dated 14 February 2007 registered under Serial No. NDC-7/1048 of 2007 executed between: (i) Mr. Prabhakar Mahadevrao Gundawar and (ii) Mr. Anilji Prabhakar Gundawar, as the Vendors and Permanent Agritech Private Limited, as the Purchaser in respect of Survey No. 8.
3. Sale Deed dated 9 August 2007 registered under Serial No. NDC-7/1021 of 2007 executed between Apex Explosives Private Limited, as the Vendor / Seller, Permanent Constructions Private Limited, as the Vendor / Purchaser and Pioneer Infrastructures Company Private Limited, as the Consignor in respect of Survey No. 18 and Survey No. 19 and (i) Correction Deed dated 18 September 2007 registered under Serial No. NDC-7/1401 of 2007 thereto executed between the same parties i.e. Apex Explosives Private Limited, as the Vendor / Seller, Permanent Constructions Private Limited, as the Vendor / Purchaser and Pioneer Infrastructures Company Private Limited, as the Consignor and (ii) Correction Deed dated 22 July 2007 registered under Serial No. NDC-7/1515 of 2007 thereto executed between the same parties i.e. Apex Explosives Private Limited, as the Party No. 1, Permanent Constructions Private Limited, as the Party No. 2 and Pioneer Infrastructures Company Private Limited, as the Party No. 3.
4. Sale Deed dated 8 August 2007 under Serial No. NDC-7/1030 of 2007 executed between Apex Detonators Private Limited, as the Vendor / Seller, Permanent Constructions Private Limited, as the Vendor / Purchaser and Pioneer Infrastructures Company Private Limited, as the Consignor in respect of a portion aggregately admeasuring 8 Hectares 28 Ares of the out of Survey No. 32 (now known as Survey No. 32/2)A admeasuring 3 Hectares 28 Ares and Survey No. 32/2/B admeasuring 5 Hectares 22 Ares and (i) Correction Deed dated 18 September 2007 registered under Serial No. NDC-7/1400 of 2007 thereto executed between the same parties i.e. Apex Detonators Private Limited, as the Vendor / Seller, Permanent Constructions Private Limited, as the Vendor / Purchaser and Pioneer Infrastructures Company Private Limited, as the Consignor and (ii) Correction Deed dated 25 July 2007 registered under Serial No. NDC-7/1516 of 2007 thereto executed between the same parties i.e. Apex Detonators Private Limited, as the Party No. 1, Permanent Constructions Private Limited, as the Party No. 2 and Pioneer Infrastructures Company Private Limited, as the Party No. 3.

SCHEDULE 10 | LIST OF MISPLACED DOCUMENTS

1. 1955 Sale Deed.
2. Sale Deed dated 3 November 1967 registered under Serial No. NPS - 4337 of 1967 (date of registration being 10 November 1967) executed between Mr. Rajurao Vitaram Gauri, as the Vendor and Mr. Atulash Ramesh Hussain Tal, as the Purchaser in respect of Old Survey No. 88 (new Survey No. 10).
3. Sale Deed dated 28 January 1974 registered under Serial No. NPS - 346 of 1974 executed between Mr. Tularam Vithoba Inpale as the Vendor and (i) Mr. Madhwan Jagdish Sarpote and (ii) Mr. Kausik Jagdish Sarpote, as the Purchasers in respect of Old Survey No. 16/14 (new Survey No. 8).
4. Sale Deed dated 26 April 1982 registered under Serial No. NPS-2457 of 1982 executed between Mr. Maruti Sahasram Patankar, as the Seller and Apex Explosives Private Limited, as the Purchaser in respect of Old Survey No. 16/3 (new Survey No. 10).
5. Sale Deed dated 29 January 1981 registered under Serial No. NPS- 446 of 1981 executed between Mr. Atulash A Vail as the Vendor and Apex Explosives Private Limited as the Purchaser in respect of Old Survey No. 38 (new Survey No. 15).
6. Sale Deed dated 6 May 1988 registered under Serial No. NPS - 832 of 1988 executed between (i) Mr. Narthu Tularam Jangade and (ii) Mr. Marband Ravi Jangade as the Sellers / Party of the First Part and Mr. Ardamon Singh, as the Party of the Second Part in respect of Old Survey No. 35 (new Survey No. 32) as well as Deed of Correction dated 22 January 1988 registered under Serial No. NPS - 62 of 1988 (on 2 March 1988) thereto executed between the same parties i.e. Mr. Ardamon Singh (as promoter of Apex Detonators Private Limited) and (i) Mr. Narthu Tularam Jangade and (ii) Mr. Marband Ravi Jangade as per the police complaint and public notice given in respect of these lost / misplaced documents, (A) the date of the aforesaid sale deed is referred to as 9 May 1988 and further refers to have been executed in favour of Apex Detonators Private Limited, and (B) the date of the aforesaid Deed of Correction is referred to as 2 March 1988 and further refers to have been executed in favour of Apex Detonators Private Limited.

SCHEDULE 3B | SALE ORDER

[Attached separately]

SALE DEED

Agreed cost Rs. _____ / Market Value Rs. _____ /
 Khassa / Survey No. 8, admeasuring about 1.57 H.R.,
 Khassa / Survey No. 18, admeasuring about 3.45 H.R.,
 Together admeasuring about 5.02 H. R.
 With Occupant Class 1 (Household) Rights, at Manasa - 11806A,
 P. H. No. 51, Taluk: NAGPUR (RURAL), and District: NAGPUR

THIS Deed of Sale / Sale Deed ("Deed") is executed at Nagpur on this
 ____ day of _____, 2022

BY AND BETWEEN:

PERMANENT AGROTECH PRIVATE LIMITED,
 (PAN :AOCPE3584H), (formerly known as Permanent Construction Private
 Limited), a Company incorporated under the provisions of the Companies Act,
 1956, having CIN : U45200MH1991PTC060730, and having registered Office at
 13, Keshav Nagar, Khanda, Nagpur - 440022 acting through authorized Director
 SURESH HARESH SATHANAM, (PAN :AQPP81507H)(UID :589200767947), aged
 about 44years, Occupation/Business R/o of 13 Keshav Nagar, Nagpur-440022
 hereinafter known and referred to as the "SELLER" which expression shall
 unless repugnant to the context or meaning thereof always mean and include
 the SELLER as well as its Directors, Office bearers, Shareholders,
 representatives, executors, administrators, successors of the SELLER of the
 FIRST PART,

AND

KIND WAREHOUSING PRIVATE LIMITED, (PAN : AAACD3612L) a Company incorporated under the provisions of the Companies Act, 2003, bearing CIN : U43000MH200217PCT367064, and having registered Office at 4th Floor, M. G. House, Civil Lines, Nagpur - 440001, acting through Authorized Signatory **SURESH MAMULJI S/O BALJESAN SHARMA**, (PAN : AQCP00171P) (UID : UH0301388053), aged about 49 years, Occupation: Service & /s House No.620, Motghar, Mahalla, Hanasguri, Nagpur-440018 here-in after known and referred to as the "PURCHASER" which expression shall unless repugnant to the context or meaning thereof always mean and include the PURCHASER, its successors and assigns of the **SECOND PART**.

WHEREAS, the SELLER is the sole and exclusive owner of, seized and in possession of and well and sufficiently entitled to contiguous Block of land comprising of ALL THOSE piece and parcels of agricultural lands bearing (i) land bearing Khazra / Survey No. 8, administering about 1.57 H.R., Land Revenue Rs. 1.50 earlier bearing Old Khazra / Survey No. 36/4 (hereinafter referred to 'Land No. 1') (ii) land bearing Khazra / Survey No. 18, administering about 3.45 H.R., Land Revenue Rs. 3.12 earlier bearing Old Khazra / Survey No. 14 and below that bearing Old Khazra / Survey No. 36/1 (hereinafter referred to 'Land No. 2'), both lands jointly / together administering about 5.02H. R. with Occupant Class I Bhumiwarani Rights, situated at Manse : **LINGA**, P.H. No. 51, Tahsil: **NAGPUR (RUPAL)**, and District: **NAGPUR** and more particularly described in the **SCHEDULE** here underwritten, hereinafter Land No. 1 and Land No.2 are collectively known and referred to as the "said Properties" and delineated in red hatched lines in the plan annexed hereto as **Annexure 'A'**;

AND WHEREAS the Seller has represented, warranted, covenanted and assured to the Purchaser as follows:

TITLE FLOW OF LAND NO. 1 being KHASRA / SURVEY NO. 8 (Old Kh. No. 36/4)

WHEREAS, the SELLER is the sole and exclusive owner of the said Land No. 1 being ALL THAT piece and parcel of agricultural land bearing Khasra / Survey No. 8 (earlier bearing Old Khasra / Survey No. 36/4) measuring about 1.57 Hectares i.e. about 3.88 Acres, Land Revenue Rs. 1.50 per year with Occupant Class I Bhuminwami rights, situated at P. H. No. 51, Mouza : LIPOLA, Taluk : NAGPUR (Gawain) and District : NAGPUR;

AND WHEREAS, originally the Land No. 1 then bearing Old Khasra / Survey No. 36/4 measuring about 1.57 Hectares was owned by Shri Tularam Vithabji Jagde, (as reflected in the records of Ashokra Akhola's Panji prepared as per the Madhya Pradesh Land Revenue Code 1954). Shri Tularam Vithabji Jagde sold the aforesaid land to Shri Yashwantrao Jagdeji Satpute and Kandas Jagdeji Satpute by and under a Sale Deed dated 25 January 1974, registered with Sub-Register Nagpur at book no. 1 at Sr No 346 on 28 January 1974.

AND WHEREAS, Shri Yashwantrao Jagdeji Satpute expired on 22 May 1994 and on his death, his share in the Land No. 1 devolved upon his legal heirs being his widow Smt. Mahi Yashwantrao Satpute, his three minor daughters Vaishali Satpute, Deepali Satpute and Rupali Satpute, (all these minors through their natural guardian mother Maheshi Yashwantrao Satpute) were recorded as owners by virtue of Mutation Entry No. 121/26 dated 1 January 1995 (verified on 6 February 1995). As such the said Land No. 1 was then owned by (i) Shri Kandas Jagdeji Satpute and (2) (a) Smt. Mahi Yashwantrao Satpute (b) Vaishali Satpute (c) Deepali Satpute and (d) Rupali Satpute (nos. 1 to 4 all three minors through their natural guardian mother Maheshi Yashwantrao Satpute) and their names were recorded as the owners in the 7/12 extract of Land No. 1;

AND WHEREAS, under the Re-survey and re-measurement of the lands carried out in the year 1984-85 by the Government, the old Khasra / Survey No. 36/4 was re-numbered as Khasra / Survey No. 8, measuring about 1.57 Hectares i.e. Land No. 1;

AND WHEREAS, the owners applied before the Resident Deputy Collector Nagpur w/s 29 of the Maharashtra Land Revenue Code, 1966 to include themselves in Occupant Class-I category under the then prevailing clause(s) of Sub Section (2) of Section 29 of the said Act and the said Officer included the owners as Occupant Class-I with Easementary rights in respect of Land No. 1 and the Resident Deputy Collector Nagpur in Rev. Case No. 847/LND-18/2006-06 by an Order dated 29 July 2006 included the owners as Occupant Class-I with Easementary rights in respect of Land No. 1. The Revenue Authorities i.e. Patwari has taken the change of the name as per Mutation / Farar No. 248 dated 1 November 2006 (verified on 20 November 2006);

AND WHEREAS, Shri Kewadu Jagdish Detspute, Smt. Mali Yashwantrao Bapusa, Vaidhali Yashwantrao Bapusa, Daspoli Yashwantrao Bapusa, and Hapali Yashwantrao Bapusa (s minor, through her natural guardian mother Malabhai Yashwantrao Detspute) sold Land No. 1 to Shri Prabhakar Mahadevrao Gundawar and Shri Abhijit Prabhakar Gundawar by and under a Sale Deed dated 15 February 2007, registered with Sub Registrar Nagpur (Gramin) -7 at Book No. 1 at Sr. No. 678 on 15 February 2007 and accordingly the names of the Purchasers were mutated in revenue records of Patwari vide Mutation Entry / Far Far No. 249 dated 05 April 2007 (verified on 30 May 2007);

AND WHEREAS, Shri Prabhakar Mahadevrao Gundawar and Shri Abhijit Prabhakar Gundawar further sold the Land No. 1 to the Seller herein being Permanent Agrotech Private Limited, through its Director Shri Dadasaheb Satish Chaturvedi by and under a Sale Deed dated 13 February 2012, registered with Sub Registrar Nagpur (Gramin) -7 at Book No. 1 at Sr. No. 1048 on 13 February 2012 and accordingly the name of the Seller herein was mutated in the revenue records of Patwari vide Mutation Entry / Far Far No. 301 dated 21 June 2012 (verified on 17 July 2012).

AND WHEREAS, the aforesaid transactions are duly recorded in the Records of Rights i.e. 7/12 extract and the name of the Seller being Permanent Agrotech Private Limited, is recorded as the owner of the Land No. 1.

TITLE FLOW OF LAND NO.2 being KHASSA NO. 18 (Old Khassa / Survey No. 36/1 and prior thereto Old Khassa / Survey No. 14)

WHEREAS, the SELLER is the sole and exclusive owner of Land No. 2 being ALL THAT piece and parcel of agricultural land bearing Khassa / Survey No. 18 measuring about 3.45 Hectares i.e. about 8.02 Acres, Land Revenue Rs. 3.12 per year with Occupant Class I Bhumiwami rights, situated at P. B. No. 51, Muzam : LINDA, Tahsil : NAGPUR (Gawain) and District : NAGPUR;

AND WHEREAS, originally the Land No. 2 then bearing Old Khassa / Survey No. 36/1 measuring about 3.45 Hectares was owned by Shri Tatya Chikoutya as per the records of Adhikar Abhidakh Panji prepared as per the Madhya Pradesh Land Revenue Code 1954 and Shri Chikoutya Tatya alias Tatya Chikoutya sold the Land No. 2 to Shri Maroti Balkharan Patankar on 07 March 1955;

AND WHEREAS, Shri Maroti Balkharan Patankar sold the Land No. 2 to Apex Explosives Private Limited, by and under a Sale Deed dated 16 April 1962, registered with Sub Registrar/Nagpur-1st Book No. 1 at Sr. No. 3457 on 16 April 1962 and accordingly the name of 'Apex Explosives Private Limited' was mutated in revenue records of Patankar vide Mutation Entry / Fee Fee No. 25 dated 01 September 1962 (verified on 4 October 1962);

AND WHEREAS, under the Re-survey and Re-measurement of the lands carried out in the year 1964-65 by the Government, old Khassa / Survey No. 36/1 was re-numbered as Khassa / Survey No. 14 and thereafter as Khassa / Survey No. 18, measuring about 3.45 Hectares i.e. Land No. 2.

AND WHEREAS, the orders applied before the Resident Deputy Collector Nagpur u/s 29 of the Maharashtra Land Revenue Code, 1946 to include themselves in Occupant Class-I category under the then prevailing clause (4) of Sub Section (2) of Section 29 of the said Act and the said Officer included the owners of the Land No. 2 i.e. Khazra / Survey No.18 admeasuring about 3.45 Hectares and Khazra / Survey No.19 land admeasuring about 4.46 Hectares as Occupant Class-I with Ekamimnami rights in respect thereof and the Resident Deputy Collector Nagpur in Rev. Case No. 554/LND-18/2006-07 by a common Order dated 08 June 2007 included the owners as Occupant Class-I with Ekamimnami rights in respect of the aforesaid land. The Revenue Authorities i.e. Patwaris has taken the change of the name as per Mutation / Fardar No. 264 dated 9 June 2007 (verified on 13 June 2007);

AND WHEREAS Apex Explosives Private Limited had entered into an Agreement dated 28 April 2006 with Pioneer Infrastructures Company Private Limited for sale of the Land No. 2 being land admeasuring 3.45 Hectares bearing Khazra/ Survey No.18 and land admeasuring 4.46 Hectares bearing Khazra / Survey No.19 in favour of Pioneer Infrastructures Company Private Limited and/or its nominee and Pioneer Infrastructures Company Private Limited thereafter had dropped the idea to purchase the aforesaid lands and entered into an agreement with the Seller herein and also nominated the Seller herein, at that time known as Permanent Construction Private Limited (and now known as Permanent Agrotech Private Limited) in its place to be the purchaser of the aforesaid lands.

AND WHEREAS, Apex Explosives Private Limited with the consent and confirmation of Pioneer Infrastructures Company Private Limited (who was also a party to the Sale Deed) sold the Land No. 2 to Permanent Construction Private Limited (Now known as Permanent Agrotech Private Limited i.e. the Seller herein), by and under a common Sale Deed dated 09 August 2007, registered with Sub Registrar Nagpur (Grama) -7 at Book No. 1 at Br. No. 5021 on 09 August 2007 and with Correction Deed dated 10 September 2007 registered

in the office of Sub-Registrar Nagpur (Growth)-7 at book no.1 at Sr. No. 5433 on 10 September 2007 and accordingly the name of Permanent Constructions Private Limited was mutated in revenue records of Patwari vide Mutation Entry / For Far No. 255 dated 26 August 2007 (certified on 21 September 2007).

AND WHEREAS the change of name of the company /Seller from Permanent Constructions Private Limited to Permanent Agrotech Private Limited based on Fresh Certificate of Incorporation Consequent upon Change of Name dated 23 August 2007 issued by Registrar of Companies, Maharashtra, Mumbai (and annexed hereto as Annexure "B") was mutated in revenue records of Patwari vide Mutation Entry / For Far No. 940 dated 13 July 2007 (certified on 13 July 2007).

THE SAID PROPERTIES:

AND WHEREAS, by virtue of the aforesaid Sale Deed dated 13 February 2012 registered with Sub Registrar Nagpur (Growth) -7 at Book No. 1 at Sr. No. 1048 on 13 February 2012 and Sale Deed dated 09 August 2007 registered with Sub Registrar Nagpur (Growth) -7 at Book No. 1 at Sr. No. 5021 on 09 August 2007 read with Correction deed dated 10 September 2007 registered in the office of Sub-Registrar Nagpur (Growth)-7 at book no.1 at Sr. No. 5433 on 10 September 2007, the SELLER became the sole and absolute owner of the said Properties i.e. Land No. 1 and Land No. 2 respectively and its name i.e. Permanent Agrotech Private Limited is mutated in revenue records as the owners of the said Properties. Copies of the latest 7/12 extract in respect of Land No. 1 and Land No. 2 reflecting the name of the Seller are annexed to this Deed as Annexure "C" and Annexure "D".

AND WHEREAS the Seller as the sole and absolute owner has clear and marketable title to the said Properties, free from all and any encumbrances, claims, mortgages, charges, litigations, attachments etc. and is in quiet, recent and physical possession of the said Properties. The Seller has further represented, warranted and confirmed that the Seller has not entered into any

arrangement nor created any third party rights in respect of the said Properties i.e. Land No. 1 and Land No. 2 as on date.

AND WHEREAS, the SELLER has decided to sell the said Properties and accordingly has taken all corporate actions and approvals and passed necessary resolutions to that effect;

AND WHEREAS the Purchaser being desirous of owning the land, has approached the Seller and expressed its desire and willingness to purchase the said Properties being Land No. 1 and Land No. 2 being agricultural lands bearing (i) land bearing Khassra / Survey No. 8, measuring about 1.57 H.P., Land Revenue No. 1.50 and (ii) land bearing Khassra / Survey No. 18, measuring about 3.45 H.P., Land Revenue No. 3.12, both lands jointly / together measuring about 5.02 H. R. with Occupant Class I Bhumiwami Rights, situated at Manasa : LINGA, P. H. No. 51, Tahsil : NAGPUR (MURAI), and District : NAGPUR more particularly described in the SCHEDULE hereunder written, free from all and any encumbrances, claims, demands, mortgages, charges, litigations, encroachments etc.

AND WHEREAS, after considering the request and after detailed discussions and negotiations the Seller agreed to sell and transfer the said Properties more particularly described in the SCHEDULE hereunder written being Land No. 1 and Land No. 2 free from all and any encumbrances, claims, demands, mortgages, charges, litigations, encroachments etc. to Purchaser for a total consideration of Rs. _____/- (Rupees _____ Only). The Seller has represented that no amount is to be deducted by the Purchaser on the gross consideration under Section 194-1A of the Income Tax Act, 1961 towards tax deducted at source (TDS) since the said Properties fall under the definition of 'agricultural land' under the Income Tax Act, 1961 and the Seller has provided necessary documentation in support thereof to the Purchaser prior to execution hereof. It is agreed and clarified that

in the event it is held by the authorities including income tax authorities at any point of time that TDS was required to be deducted on the gross consideration amount and/or the authorities call upon the Purchaser to pay the TDS, then such amount along with costs, interest, damages, penalties etc. (by any name called) in respect thereof as levied on the Purchaser, shall be solely borne and paid by the Seller and the Seller hereby indemnifies and keep indemnified the Purchaser in respect thereof at all times.

AND WHEREAS during the course of such discussions and negotiations, the Seller has represented, warranted, warranted and assured unto the Purchaser as follows:-

- (i) The Seller is in continuous, exclusive, uninterrupted use, occupation and possession of the said Properties and that no other person/s has/have any proprietary or occupancy right or any right whatsoever in respect of the said Properties. The Seller has good right, full power and absolute authority to sell and dispose of the same.
 - (ii) The said Properties are contiguous and there are no documentary or other restriction rights in favour of any party on the said Properties nor are there any encroachments on the same.
 - (iii) The said Properties as on date are situated within the limits of Nagpur Metropolitan Region Development Authority and a public notice dated 26 June 2012 was published on 27 June 2012 reflecting the same (a copy whereof is annexed as Annexure "E");
 - (iv) The said Properties fall within the 'agriculture, existing residential in agriculture' zone as per the Zone Certificate dated 25 August 2022 and 25 August 2022 i.e. Bhag Nahacha in respect of (i) land bearing Deeds / Survey No. 8, adjoining about 1.57 H.R. (ii) land bearing Deeds /
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Survey No. 18, admeasuring about 3.43 H.E. respectively, copies whereof are annexed as Annexure "F" and Annexure "G";

- (v) The Seller is the owner of and holding agricultural lands aggregately admeasuring 17.13 H. E., all situated at Mouza: LIMDA, P. H. No. 51, Taluk: NAGPUR (MURAI), and District: NAGPUR which includes the said Properties and the lands owned and held by the Seller are within the ceiling limit provided under the Maharashtra Agricultural Lands (Ceiling On Holdings) Act and rules framed there under. The Seller has also obtained a letter dated 29 June 2022 issued by the Tahsildar in respect of the same, a copy whereof is annexed to this Deed as Annexure "H";
 - (vi) The said Properties have full and free legal means of access and right of way directly from the public road and that there are no boundary dispute in respect of the said Properties with the owners / holders / tenants / occupants of the adjoining Property/ies or with the government or any statutory body/authority.
 - (vii) All the title deeds relating to the said Properties as set out in Annexure "I" are in possession and control of the Seller and neither the Seller nor any person/s claiming by, through or under them has/have parted with the possession of the same to any third party to create any mortgage, charge or encumbrance or other interest or third party rights of any nature whatsoever in respect of the same.
 - (viii) There is no breach / violation by the Seller and/or no notice from any Government or any other public body or authority or any notice under any law including the Land Acquisition Act, the Land Requisition Act, the Maharashtra (Formerly Bombay) Tenancy and Agricultural Lands (Vidarbha Region) Act, the Maharashtra Prevention of Fragmentation and Consolidation of Holdings Act, the Maharashtra Agricultural Lands (Ceiling On Holdings) Act, the Town Planning Act, the Income Tax Act or
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any other statute and/or rules framed there under has been received or served in any manner whatsoever including by way of registered post or hand delivery upon the Seller in respect of the said Property or any part thereof which restricts or may restrict the execution of these presents or transfer of the said Properties in favour of the Purchaser in any manner whatsoever and/or which has an impact on regards the said Property and/or which will affect the title in respect of the said Property;

- (a) No proceedings under the Income Tax Act are either initiated and/or pending against the Seller whereby the sale and transfer of the said Property by the Seller to the Purchaser as contemplated herein will be affected and such sale and transfer is valid and shall not be invalidated under Section 281 of the Income Tax Act, 1961. The Seller alone at all times shall be liable for the amounts, arrears, dues, if any, payable as also enquiries, if any, initiated by the taxation authorities against the Seller and shall indemnify and keep indemnified at all times the Purchaser against the same;
 - (b) There are no suits, litigations, proceedings including revenue proceedings or any other proceedings or arbitrations under any law for the time being in force before any Arbitrator, court, authority or tribunal in which an award, order, decree or injunction has been passed which may result in the attachment and/or sale of the said Property and/or any part thereof nor do the Seller have any reasonable apprehension of any event or circumstance likely to give rise to or result in such suit, proceeding or arbitration.
 - (c) The said Properties are unencumbered and free from any mortgage, charge, lien, claim or demand in or over the same or any part thereof either by way of sale, exchange, mortgage, trust, lease, easement, gift, tenancy, sub-tenancy, leave and license, inheritance, litigations, transfer or otherwise.
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- (xii) There is no right of way, easement or any other burdensome or restrictive covenant/condition adversely affecting the said Property or any thereof in any manner whatsoever.
 - (xiii) No notice, objection or claim has been received from any party including their predecessors in title in any manner claiming any rights etc. in respect of the said Properties in any manner whatsoever and/or against the Seller towards consideration or otherwise howsoever and all amounts towards purchase of the said Property have been fully paid to the respective parties by the Seller.
 - (xiv) The said Property and/or any part thereof does not fall in any reservations or set back line of any nature whatsoever.
 - (xv) The Seller and/or any person on their behalf have not created any adverse rights, whether orally or otherwise and/or entered into any Agreement for Sale or otherwise created any adverse rights in respect of the said Properties or any part thereof or executed any Power of Attorney authorizing sale of the said Properties or taken any deposit in the form of earnest money deposit or otherwise whereby they are prevented from entering into these presents with the Purchaser or from transferring the said Property to the Purchaser in the manner contemplated herein.
 - (xvi) No loans or financial assistance are availed by the Seller from any Banks and/or other financial institutions against security of the said Property.
 - (xvii) Till date no formal possession of the said Property or any part thereof has been taken over by any authority/ies of Central or State Government or otherwise and no benefits or compensation in lieu thereof has been received/ obtained by the Seller herein under any statute or by any means whatsoever.
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- (viii) The Seller hereby represents, covenants and confirms that all the taxes, rates, assessments, duties, land revenues, water charges, etc. payable by the Seller to the State or Central Government and any other concerned authority and/or any statutory or non-statutory body in respect of the said Properties have been paid by the Seller till the date of execution of these presents.
- (ix) The Seller represents that in the event any demand or claims are made by any authority / entity (statutory or non-statutory) for the payment of any amount/s in respect of the said Properties and/or arising out of the earlier title documents, it will be the sole obligation of the Seller to promptly bear and pay the same including any penalty etc. levied thereon and the Seller indemnifies and agrees to keep indemnified the Purchaser in this regard forever at all times;
- (x) The Seller has not omitted to disclose to the Purchaser any material fact, in respect of the said Properties and/or its rights and obligations in respect thereof.

AND WHEREAS in pursuance of the discussions and negotiations, the Purchaser, relying on the representations, covenants assurances and warranties of the Seller and believing the same to be true and correct, has agreed to purchase the said Properties for the consideration as stated above and take the actual, physical & peaceful possession of the said Properties from the Seller, free from all or any encumbrances, claims, demands, mortgages, charges, litigations, encroachments etc.

The Parties are entering into these presents to record the terms and conditions agreed between them for sale and purchase of the said Properties in the manner hereinafter appearing.

**NOW THEREFORE THIS DEED WITNESSETH AND IT IS HEREBY MUTUALLY
AGREED BY AND BETWEEN THE PARTIES HERETO AS FOLLOWS:**

- C1. The Parties hereby agree, declare and confirm that the recitals herein above as well as schedules and annexures shall form an integral and operative part of these presents, as if the same were reproduced herein verbatim. The statements, representations, covenants and declarations made in the recitals in respect of the said Properties are true and correct and are statements, representations, covenants and declarations of the Seller and based and relying on the same, the Purchaser has agreed to purchase the said Properties.
- C2. The SELLER hereby sells, conveys and transfers and has SOLD and PURCHASER hereby purchases and acquires and has PURCHASED the said Properties being ALL THOSE pieces and parcels of agricultural lands bearing (i) land bearing Khassra / Survey No. 8, admeasuring about 1.57 H.R., Land Revenue Rs. 1.50 and (ii) land bearing Khassra / Survey No. 18, admeasuring about 3.45 H.R., Land Revenue Rs. 3.12, both lands jointly / together admeasuring about 5.02 H. R. with Occupant Class 1 Ehsanivani Rights, situated at Manasa : LIMGA, P. H. No. 51, Tahsil : NAGPUR (RURAL), and District : NAGPUR, more particularly described in the SCHEDULE hereunder written **ALONG AND TOGETHER WITH** all the rights, benefits, privileges and advantages in and to the said Properties and every part thereof and together with all and singular areas, courtyards, compounds, sewers, drains, ditches, fences, trees, shrubs, crops, plants, weirs, paths, passages wells, water, water courses, lights, liberties, privileges, easements, profits, advantages, rights, members and appurtenances whatsoever to the said Properties or any part thereof and/or belonging or in anywise appurtenant to or usually held, used, occupied, or enjoyed therewith or reputed or known as part or member thereof or to belong or be appurtenant thereto and together with the available deeds, documents, agreements and writings related to the said Properties or ground hereditaments, or any part thereof **AND ALL THE**
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ESTATE, right, title, interest, claim and demand whatsoever at law or in equity of the Seller in, to, out of or upon the said Property or any part thereof TO HAVE AND TO HOLD all and singular the said Properties along with all rights, benefits, privileges and advantages in the manner aforesaid hereby granted, conveyed, sold, transferred or assured or intended or expected as to be with their and every of their rights and appurtenances UNTO AND TO THE USE AND BENEFIT of the Purchaser, its successors and assigns forever and the Purchaser hereby purchases and acquires the said Properties as aforesaid along with actual, physical, peaceful and vacant possession at or for a lumpsum consideration for the total consideration paid in the manner set out in Clause 03 below.

03. THAT the total consideration of Rs. _____ /- (Rupees _____ Only) which the Purchaser has paid to the Seller at the time of registration of this Sale Deed in the following manner:

MANNER OF PAYMENT

Amount(Rs.)	CH. NO./RTGS	DATE	BANK
Rs. _____ /-	UTR No. In the name / account of Permanent Agrotech Private Limited.		
TOTAL - Rs. _____ /- (Rupees _____ Only)			

(The payment and receipt whereof the Seller hereby admits and acknowledges and of and from the same and every part thereof hereby acquits and releases the Purchaser forever)

- C4. THAT, the Seller represents, covenants and agrees to the Purchaser that the Seller has a good, valid and marketable title to the said Properties hereby sold and that it has full right and absolute authority to sell the same to the Purchaser absolutely and forever.
- C5. THAT, the Seller does hereby declare that said Properties hereby sold to the Purchaser was held by the Seller, free from all and any encumbrances, claims, mortgages, charges, litigation, encumbrances etc. and none except the Seller had / have any right or title or interest in respect thereof and which has been sold/ transferred to the Purchaser in the manner stated herein.
- C6. THAT, the Seller have assured to the Purchaser that the said Properties are free from mortgage, charge, lien, demand or dispute of any kind whatsoever and if any other mortgage, charge, lien, encumbrance or demand is found to be due, then in such an event, the Seller agree, undertakes, represents and covenants to discharge the same at the costs and expenses of the Seller and the Seller always keep the Purchaser indemnified against the same and hereby indemnifies the Purchaser to the fullest extent.
- C7. THAT, the Seller has delivered the actual vacant physical possession of the said Properties sold at the time of execution of this Deed in favour of the Purchaser and the said Properties and all the title and interest of the Seller over the said Properties were particularly described in the Schedule hereunder written stands transferred and vested in favour of Purchaser. The ownership and possession of the Purchaser is duly acknowledged by all the Seller. On execution hereof, the Seller has also handed over all/any original documents conveying their ownership of the said Properties to the Purchaser including those set out in Annexure "I".
- C8. THAT it is further agreed between the Parties that in case any objection or dispute in respect of title and/or possession of Seller over the said
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Properties more particularly described in the Schedule aforesaid and/or in raised and/or any claim etc. is made on the Purchaser in respect of the said Properties (including but not limited to any amounts payable towards the said Properties for the period up to date of execution hereof) due to any act or omission of the Seller or otherwise howsoever, at any point of time, in the event the Seller shall be solely responsible for the same and for discharging and clearing any such objection, dispute, claim etc. within a period of 30 (ten) days from date of intimation of the same given by the Purchaser to the Seller and the Seller hereby indemnifies the Purchaser to the fullest extent in respect thereof. The Seller agrees and undertakes to indemnify the Purchaser and doth hereby indemnify and agree and keep saved and indemnified the Purchaser for all claims, suits, actions, disputes, losses, compensation and penalty suffered by it in view of any defect in or breach of any of the representations, covenants, warranties made herein including in respect of the title of the Seller to the said Properties or any part thereof.

09. THAT, the said Properties hereby sold is believed and shall be taken to be correctly described in the Schedule hereunder written and if any mis-statement, error or omission is discovered, the same shall not amend this Deed nor shall any compensation be allowed in respect thereof, but all the same, such mis-statement, error or omission will always be subject to correction by the parties here to. The Seller hereby covenants and confirms with the Purchaser that the entire parcels of the lands pertaining to the said Properties i.e. Land No. 1 and Land No.2 have been sold to the Purchaser and in the event of any increase in area of the said Properties, the Purchaser shall be solely and absolutely entitled to such area and the Seller shall have no right, title, interest, claim, benefit or any nature whatsoever in the same and the Seller shall not be entitled to claim any amount/s whatsoever from the Purchaser towards the same.
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10. THAT, the necessary permission from the Sub-Divisional Officer under the provisions of Maharashtra (formerly Bombay) Tenancy and Agricultural Lands (Vidarbha Region) Act, 1958 and rules framed thereunder is obtained being Order dated 23 August 2022 inter alia for purchase and transfer of the said Properties by the Seller to the Purchaser and a copy of the aforesaid Order dated 23 August 2022 is annexed to this Deed as **Annexure "J"**
11. The Seller hereby further represents, covenants, confirms and declares as follows:
- (a) The Seller has good right, full power and absolute authority and has all corporate approvals to convey, transfer and secure the said Properties hereby conveyed, transferred and secured or intended to be unto and to the use of the Purchaser in the manner aforesaid.
 - (b) The Seller's right, title and interest in the said Properties are free, clear and marketable and that there are no notices for requisition or reservation or acquisition nor are the said Properties the subject matter of any pending suit or attachment either before or after judgment.
 - (c) The Seller has not created any tenancy or lease and licence or any right in favour of any third party in respect of the said Properties. The Vendors further declare that no notice has at any time been issued to or received or served upon them or any person on their behalf by or from the Government or anybody or authority with regard to the said Properties whereby they are prohibited or prevented from selling, conveying and transferring the said Properties to the Purchaser and/or the said Properties are adversely affected.
12. The Seller shall and will from time to time and at all times hereafter at the request of the Purchaser and costs of the Seller, do and execute and
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cause to be done and executed all such further and other acts, deeds, matters or things whatsoever for the better and more perfectly and absolutely granting of the said Properties and every part thereof and/or all right, title and interest in respect thereof along with all appurtenances whatsoever to the said Properties or any part thereof hereby conveyed unto and to the use of the Purchaser in manner aforesaid and updating / rectifying the names of the Purchaser in respect of the said Properties in all records including signing all documents such as applications, letters, writings forms, affidavits, indemnities, declaration, etc as shall be reasonably required by the Purchaser, its successors, assigns, etc. without claiming any monetary or other consideration for the same in any manner.

13. The Seller shall, simultaneously with the execution hereof, execute an Irrevocable Power of Attorney limited in respect of the said Properties, thereby appointing the Purchaser for representing the Seller to do all the acts, deeds, matters and things in respect of the said Properties for and on behalf of the Seller as may be required to rectify the name of the Purchaser in the revenue records as the owner of the said Properties, to submit plans, if required and/or for better and more perfectly and absolutely granting the said Properties and every part thereof in favour of the Purchaser and to do all that is necessary to more absolutely perfect the title of the Purchaser. The Seller hereby agrees and confirms that the execution of the aforesaid Power of Attorney will not absolve the Seller from their duties and obligations contained herein.
 14. The Purchaser shall from time to time and at all times hereafter be entitled to peacefully and quietly enter upon, own, occupy, or possess and enjoy the said Properties hereby conveyed with their appurtenances, and receive the rents, issues and profits (if any) in respect of the said Properties and every part thereof for its own use and benefit without any
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suit, lawful action or interruption, claim and demand whatsoever from or by the Seller and/or by any person or persons claiming from, under or in trust for the Seller.

15. In the event, there is any defect in title of the Seller to the said Properties and/or any dispute / objection is raised as regards the title of the Seller to the said Properties and/or part thereof or the period up to the date of execution hereof and/or any party raises or creates, any dispute, problem, claim, or files any suit, dispute, complaint etc. in respect of the said Properties in relation to the title of the Seller or their predecessors only for the period up to the date of execution hereof or execution of any document by the Seller or their predecessors, the Seller doth hereby agree, undertake, confirm, assume that in such case, it shall be the sole responsibility and liability of the Seller to rectify the defect and deal with and/or mitigate and/or settle such dispute or to compensate such person / party at their own cost and without any recourse to the Purchaser and the Seller shall take utmost care that the Purchaser shall not suffer any monetary loss or otherwise and that the title of the Purchaser to the said Properties are not affected in any manner in respect thereof. And in case of any such loss suffered by the Purchaser or its successor or assignee, the Seller shall indemnify and keep indemnified the Purchaser or its successor or assignee for the same.

16. The Parties confirm that from the date of execution hereof and payment of the consideration by the Purchaser to the Seller in the manner as stated herein, the Purchaser shall be the sole and absolute owner of the said Properties. THAT, the Seller and Purchaser state, confirm and submit that upon registration of this present Deed, the sale of the said Properties stands confirmed and the title over the said Properties more particularly described in the Schedule stands transferred in favour of Purchaser from the date hereof with heritable and transferable rights and the Purchaser shall be fully entitled to use the said Properties as the Purchaser deems fit. The Purchaser shall own and hold the said Properties free and clear

and absolutely unencumbered, and forever released and discharged of or otherwise by the Seller and well and sufficiently saved, defended, kept harmless and indemnified of, from and against losses and other losses, dues, charges and encumbrances whatsoever had, made, executed, occasioned and suffered by the Seller or any of them or by any other person or persons claiming or to claim by, from, under or in trust for the Seller. The Seller covenants and confirms receipt of the entire amounts towards the consideration for the said Properties and states that no amount/s whatsoever are due and payable by the Purchaser to the Seller.

17. The Seller agrees to indemnify and hereby indemnifies and keep saved and indemnified unconditionally and irrevocably the Purchaser and/or successors, nominees and assignees, from and against all costs, losses, charges, claims, actions, demands, suits, damages and liability, that may be suffered or incurred by the Purchaser from and against all losses and other estates, titles, charges and encumbrances whatsoever made, executed, occasioned or suffered by the Seller or by any other person or persons lawfully or equitably claiming or to claim by, from, under or in trust for the Seller in respect of the said Properties and/or on account of any representations, assurances, warranties, covenants made by the Seller being found to be misleading, false, incomplete and/or incorrect and/or breach of any terms and conditions pertaining to the said Properties and/or in the event if the title of the Seller to the said Properties being found defective and not clear and/or any claims in respect of title and/or on account of any taxes, dues and outgoings are outstanding and payable by the Seller.
 18. THAT, all the expenses on account of the preparation of this Deed including the cost of the stamp Duty and Registration payable thereon, have been borne by the Seller.
 19. THAT the parties hereby declare that they have fully examined and read over the contents of this Deed and they hereby sign it without any
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coercion, undue influence, threat, intimidation and mis-representation of any kind and they are fully satisfied with the contents of this Deed and they will hold each other free and harmless of any demands, claims, actions or proceedings in respect of the Properties hereby sold.

SCHEDULE

(The said Properties i.e. Land No. 1 and Land No. 2)

ALL THOSE pieces and parcels of contiguous agricultural lands bearing (i) land bearing Khassra / Survey No. 8, admeasuring about 1.57 H.R., Land Revenue Rs. 1.50 earlier bearing Old Khassra / Survey No. 56/4 and (ii) land bearing Khassra / Survey No. 18, admeasuring about 3.45 H.R., Land Revenue Rs. 3.12 earlier bearing Old Khassra / Survey No. 14 and before that bearing Old Khassra / Survey No. 56/1, bothlands jointly / together admeasuring about 5.02 H. R. with Occupant Class 1 Khambhrami Rights, situated at Manra : LINGA, P. H. No. 51, Taluk : NAGPUR (MURAI), and District : NAGPUR along-with all the rights, benefits, privileges and advantages in respect thereof including standing crops, trees and anything and everything standing thereon together with all easement rights like Road, Drain etc. and the same is bounded as under:

ON THE NORTH : LAND BEARING KH. NO.7, 9, 11
 ON THE EAST : LAND BEARING KH. NO. 19/2 And 32
 ON THE WEST : LAND BEARING KH. NO. 13
 ON THE SOUTH : LAND BEARING KH. NO. 13 and 32

IN WITNESS WHEREOF, WE the parties said above have placed our signatures on this Deed on the day first hereinabove written at Nagpur, in presence of witnesses.

SIGNED AND DELIVERED by the
 within named Seller being
**PERMANENT AGROTECH PRIVATE
 LIMITED**

Through the hands of its Director
 Shri Harish Santhanasu, appointed
 pursuant to Board Resolution dated
 _____ (attached
 hereto)

In the presence of

1. _____

2. _____

APPENDIX

LEFT-HAND THUMB
 IMPRESSION

Signature of Shri Harish Santhanasu, Director of **PERMANENT AGROTECH
 PRIVATE LIMITED**

SIGNED AND DELIVERED by the)
 within named Purchaser being)
XBO WAREHOUSING PRIVATE)
LIMITED)
 Through the hands of its Authorized)
 Signatory, Mr. Manoj B. Sharma)
 appointed pursuant to Board)
 Resolution dated 02.09.2022)
 (attached hereto))
 In the presence of)

1. _____

2. _____

ATTN PHOTO

LEFT HAND THUMB
 IMPRESSION

Signature of Mr. Manoj B. Sharma, Authorized Signatory of **XBO WAREHOUSING PRIVATE LIMITED**.

Annexures to be annexed to this Deed:

Annexure A	:	Plan of the said Property - hatched lines
Annexure B	:	Fresh Certificate of Incorporation consequent upon Change of Name dated 31 August 2007 issued by Registrar of Companies, Maharashtra, Mumbai reflecting change of name of the Seller
Annexure C	:	Letter 7/12 of Khata / Survey No. 8 (in name of the Seller)
Annexure D	:	Letter 7/12 of Khata / Survey No. 14 (in name of the Seller)
Annexure E	:	Public notice dated 26 June 2012 / 27 June 2012 for lands within NMPTDA
Annexure F	:	Zone Certificate
Annexure G	:	Zone Certificate
Annexure H	:	Letter dated 29 June 2012 issued by the Tahsildar - ceiling limits
Annexure I	:	List of documents / title deeds (original / certified which will be handed over by Seller to Purchaser)
Annexure J	:	Permission of SDO dated 23 August 2012

SALE DEED

Agreed cost Rs. _____ ~00 Market Value Rs. _____/-

Khasra / Survey No. 19/2, admeasuring about 4.43 H.R.
With Occupant Class 1 Khassidar's Rights, at Manara - LUNDA,
P. H. No. 55, Taluk: NAGPUR (RUPAL), and District: NAGPUR.

THIS Deed of Sale / Sale Deed ("Deed") is executed at Nagpur on this
____ day of _____, 2022

BY AND BETWEEN:

PERMANENT AGROTECH PRIVATE LIMITED,

(PAN :AACP1554H), (formerly known as Permanent Construction Private Limited), a Company incorporated under the provisions of the Companies Act, 1956, bearing CIN : U45200GJ201901PTC040730, and having registered Office at 19, Kotwal Nagar, Khambha, Nagpur - 440022 acting through authorized Director SHRI HARISH SANTHANAM, (PAN:AQPP81507G) (UID :5882200767947), aged about 44 years, Occupation-Business H/o 17, Kotwal Nagar, Nagpur-440022 hereinafter known and referred to as the "SELLER" which expression shall unless repugnant to the context or meaning thereof always mean and include the SELLER as well as its Directors, Office bearers, Shareholders, representatives, executors, administrators, successors of the SELLER of the FIRST PART,

AND

NEO WAREHOUSING PRIVATE LIMITED, (PAN : AAACD0412Lja) Company incorporated under the provisions of the Companies Act, 2013, bearing CIN : U63100MH12001PTC257064, and having registered Office at 4th Floor, M. G. House, Civil Lines, Nagpur - 440001, acting through Authorized Signatory **SHRI MANOJ S/O SALESHAN SHARMA**, (PAN : AQSP00171P) (AIE 290001260053), aged about 49 years, Occupation-Service R/o House No.633, Venghase Mohalla, Mastapur, Nagpur-440018 here-in-after known and referred to as the "PURCHASER" which expression shall unless repugnant to the context or meaning thereof always mean and include the PURCHASER, its successors and assigns of the **SECOND PART**.

WHEREAS, the **SELLER** is the sole and exclusive owner of, seized and in possession of and well and sufficiently entitled to all that piece and parcel of agricultural land bearing Khassra / Survey No. 19/2, measuring about 4.43 H.R. Land Revenue Rs. 3.50a/cr forming part of Old Khassra / Survey No. 15 and before that bearing Old Khassra / Survey No. 38 with Occupant Class I Bhumi Swami Rights, situated at Mouza **LINGA**, P.H. No. 51, Tahsil **NAGPUR (JUAL)**, and District **NAGPUR** and more particularly described in the **SCHEDULE** here underwritten, referred to as the "said Property" and delineated in red hatched lines in the Plan annexed hereto as Annexure "A";

AND WHEREAS the Seller has represented, warranted, covenanted and assured to the Purchaser as follows:

TITLE FLOW OF LAND being **KHASSRA / SURVEY NO. 19/2** (initially forming part of Old Khassra / Survey No. 15 and prior thereto Khassra / Survey No. 38)

WHEREAS the Seller is the sole and exclusive owner of the said Property being all that piece and parcel of Agricultural land bearing Khassra / Survey No. 19/2 measuring 4.43 H.R., i.e. 10.96 Acre, land Revenue Rs. 3.50 per year with Occupant Class-I Bhumi Swami Right, situated at P.H. NO. 51 of Mouza - **Linga**, in Tahsil Nagpur District and District Nagpur.

AND WHEREAS originally the larger land bearing Old Khazra / Survey No. 38 (new Khazra / Survey No. 19) admeasuring 4.46 H.R., was owned and possessed by Shri. Hapuram Sitaram Damera, as per the Records of Ashraf Abhalakh, prepared as per the Madhya Pradesh Land Revenue Code 1954;

AND WHEREAS the Old Khazra / Survey No. 38 admeasuring 4.46 H.R. was purchased by Shri. Abulakh Vall S/o. Abaan Hussain Ak, from Shri. Hapuram Sitaram Damera by and under a Sale Deed, dated 9 November 1967, registered with sub Registrar Nagpur-1 at book no.1 at Serial No.4737 on 10 November 1967.

AND WHEREAS Shri. Abulakh Vall S/o. Abaan Hussain Ak had sold the Old Khazra / Survey No. 38 admeasuring 4.46 H.R. to Agas Explosives Private Limited, through its Chairman Shri. Ardhaman Singh S/o Kisan Singh, by and under a Sale Deed dated 29 January 1981 registered in the office of Sub-Registrar Nagpur-1 at book no.1 at Sr. No.666 on 29 January 1981, and accordingly the name of 'Agas Explosives Private Limited' was mutated in Revenue records vide Mutation / Fardar no.19 dated 21 August 1981 (jurified on 09 September 1981).

AND WHEREAS, under the Re-survey and Re-measurement of the lands carried out in the year 1984-85 by the Government, Old Khazra / Survey No. 38 was re-numbered as Khazra / Survey No. 15 and thereafter as Khazra / Survey No. 19, admeasuring about 4.46 Hectares;

AND WHEREAS aforesaid owner had applied for the conversion of the land bearing Old Khazra / Survey No. 38 (new Khazra / Survey No. 19) admeasuring 4.46 H.R., for the conversion of land from Agriculture to Industrial use and same was converted by the Sub-Divisional Officer Nagpur converted into Non-Agricultural Industrial use by passing an Order in Revenue Case No. 30/NSP-34/1980-81, dated 06 February 1981.

AND WHEREAS, the owners applied before the Resident Deputy Collector Naggur w/s 29 of the Maharashtra Land Revenue Code, 1966 to include themselves in Occupant Class-I category under the then prevailing clause (v) of Sub Section (2) of Section 29 of the said Act and the said Officer included the owners of the Land i.e. Khase / Survey No.18 measuring about 3.45 Hectares and Khase / Survey No.19 land measuring about 4.46 Hectares as Occupant Class-I with Bhumiwarai rights in respect thereof and the Resident Deputy Collector Naggur in Rev. Case No. 536/LRD-18/2006-07 by a common Order dated 08 June 2007 included the owners as Occupant Class-I with Bhumiwarai rights in respect of the aforesaid land. The Revenue Authorities i.e. Patwari has taken the change of the name as per Mutation / Fardar No. 254 dated 9 June 2007 (certified on 13 June 2007);

AND WHEREAS Apex Explosives Private Limited had entered into an Agreement dated 26 April 2006 with Pioneer Infrastructures Company Private Limited for sale of land measuring 3.45 Hectares bearing Khase/ Survey No.18 and land measuring 4.46 Hectares bearing Khase / Survey No.19 in favour of Pioneer Infrastructures Company Private Limited and/or its nominee and Pioneer Infrastructures Company Private Limited thereafter had dropped the idea to purchase the aforesaid lands and entered into an agreement with the Seller herein and also nominated the Seller herein, at that time known as Permanent Constructions Private Limited (and now known as Permanent Agritech Private Limited) in its place to be the purchaser of the aforesaid lands.

AND WHEREAS, Apex Explosives Private Limited with the consent and confirmation of Pioneer Infrastructures Company Private Limited (who was also a party to the Sale Deed) sold land measuring 3.45 Hectares bearing Khase/ Survey No.18 and land measuring 4.46 Hectares bearing Khase / Survey No. 19 to Permanent Constructions Private Limited (now known as Permanent Agritech Private Limited i.e. the Seller herein), by and under a common Sale Deed dated 09 August 2007, registered with Sale Register Naggur (Grama) -7 at Sr. No. 3021 on 09 August 2007 read with Correction Deed dated 10

September 2007 registered in the office of Sub-Registrar Nagpur (Division)-7 at book no 1 at Sr. No. 5433 on 10 September 2007 and accordingly the name of 'Permanent Constructions Private Limited' was mutated in revenue records of Patwari vide Mutation Entry / Far Far No. 255 dated 28 August 2007 (perfected on 21 September 2007).

AND WHEREAS the National Highway Authority of India had acquired the land measuring 0.03 Hectares out of the land measuring 4.04 Hectares bearing Khata / Survey No. 19 towards the road widening vide its Order No.19/A-55/2008-2009 dated 29 April 2010 and accordingly said entry was mutated in revenue records of Patwari vide Mutation Entry / Far Far No. 550 dated 01 November 2014 and the remaining land measuring 4.43 Hectares was renumbered as Khata / Survey No. 19/2 being the said Property.

AND WHEREAS the Sub-Divisional Nagpur had converted the said Property i.e. land bearing Khata / Survey No. 19/2 into agricultural usage by cancelling the previous Order dated 05 February 1963 vide its Order passed in Order Letter No. MASTT/SDO/NOP (SURVIL)/KAT 344/22, of Minasa - Linga, P.J. No. 51 in Tahsil Nagpur Rural, dated 14 June 2022 and as per the aforesaid Order the said Property is converted into Agricultural usage.

AND WHEREAS, the aforesaid Order is duly recorded in the Records of Rights i.e. 7/12 extract of the said Property pursuant to Mutation Entry / Far Far No. 978 dated 8 July 2022 (perfected on 12 July 2022).

AND WHEREAS the change of name of the company /Seller from 'Permanent Constructions Private Limited' to 'Permanent Agrotech Private Limited' based on Fresh Certificate of Incorporation Consequent upon Change of Name dated 31 August 2007 issued by Registrar of Companies, Maharashtra, Mumbai (and amended hereto as Annexure "B") was mutated in revenue records

of Patwari vide Mutation Entry / Far Far No. 900 dated 13 July 2022 (verified on 13 July 2022).

AND WHEREAS, by virtue of the aforesaid Sale Deed dated 09 August 2007 registered with Sub Registrar Nagpur (Grama) -7 at Sr. No. 5021 on 09 August 2007 read with Correction deed dated 10 September 2007 registered in the office of Sub-Registrar Nagpur (Grama),7 at book no.1 at Sr. No. 5433 on 10 September 2007, the Seller became the sole and absolute owner of the said Property and name of the Seller i.e. Permanent Agrotech Private Limited is mutated in revenue records as the owner of the said Property. Copy of the latest 7/12 extracts reflecting the name of the Seller is annexed to this Deed as Annexure "C";

AND WHEREAS the Seller as the sole and absolute owner has clear and marketable title to the said Property, free from all and any encumbrances, claims, mortgages, charges, litigations, encroachments etc. and is in quiet, vacant and physical possession of the said Property. The Seller has further represented, covenanted and confirmed that the Seller has not entered into any arrangement nor created any third party rights in respect of the said Property i.e. Khata/Survey No 19/2 as on date

AND WHEREAS, the SELLER has decided to sell the said Property and accordingly has taken all corporate actions and approvals and passed necessary resolutions to that effect;

AND WHEREAS the Purchaser being desirous of owning the land, has approached the Seller and expressed its desire and willingness to purchase the said Property bearing Khata / Survey No. 19/2, admeasuring about 4.43 H.K. Land Revenue No. 3.50 with Occupant Class 1 Ekamirrami Rights, situated at Manua : LINCA, P. H. No. 51, Taluk : NAGOUR (RURAL), and District : NAGOUR more particularly described in the SCHEDULE hereunder written, free from all and any encumbrances, claims, demands, mortgages, charges, litigations, encroachments etc.

AND WHEREAS, after considering the request and after detailed discussions and negotiations the Seller agreed to sell and transfer the said Property more particularly described in the SCHEDULE hereunder written being Agricultural land bearing Khata/Survey No.19/2 from all and any encumbrances, claims, demands, mortgages, charges, litigations, encroachments etc.to Purchaser for a total consideration of Re_____/- (Rupees _____ Only) The Seller has represented that no amount is to be deducted by the Purchaser on the gross consideration under Section 194-1A of the Income Tax Act, 1961 towards tax deducted at source (TDS)since the said Property fall under the definition of 'agricultural land' under the Income Tax Act, 1961 and the Seller has provided necessary documentation in support thereof to the Purchaser prior to execution hereof. It is agreed and clarified that in the event it is held by the authorities including income tax authorities at any point of time that TDS was required to be deducted on the gross consideration amount and/or the authorities call upon the Purchaser to pay the TDS, then such amount along with costs, interest, damages, penalties etc. (by any name called) in respect thereof as levied on the Purchaser, shall be solely borne and paid by the Seller and the Seller hereby indemnifies and keep indemnified the Purchaser in respect thereof at all times.

AND WHEREAS during the course of such discussions and negotiations, the Seller has represented, represented warranted and asserted unto the Purchaser as follows -

- (i) The Seller is in continuous, exclusive, uninterrupted use, occupation and possession of the said Property and that no other person/s has/have any proprietary or occupancy right or any right whatsoever in respect of the said Property. The Seller has good right, full power and absolute authority to sell and dispose of the same.
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- (a) There are no encumbrance or other restrictive rights in favour of any party in respect of the said Property nor are there any encroachments on the same.
 - (b) The said Property as on date is situated within the limits of Nagpur Metropolitan Region Development Authority and a public notice dated 26 June 2012 was published on 27 June 2012 reflecting the same (a copy whereof is annexed as Annexure "D");
 - (c) The said Property fall within the Agriculture, more so per the Zone Certificate dated 26 August 2002 i.e. Bhag Hakasha in respect of land bearing Khassra / Survey No. 10/2, measuring about 4.43 H.R. copy whereof is annexed as Annexure "E"
 - (d) The Seller is the owner of and holding agricultural lands aggregately measuring 17.73 H. R., all situated at Mouza: LUNGA, P. H. No. 51, Taluk : NAGPUR (RURAL), and District : NAGPUR which includes the said Property and the lands owned and held by the Seller are within the ceiling limit prescribed under the Maharashtra Agricultural Lands (Ceiling On Holdings) Act and rules framed there under. The Seller has also obtained a letter dated 28 June 2002 issued by the Tahsildar in respect of the same, a copy whereof is annexed to this Deed as Annexure "F";
 - (e) The said Property has full and free legal means of access and right of way directly from the public road and that there are no boundary dispute/s in respect of the said Property with the owners / holders / tenants / occupants of the adjoining Property/ies or with the government or any statutory body/authority.
 - (f) All the title deeds relating to the said Property as set out in Annexure "G" are in possession and control of the Seller and neither the Seller nor any person/s claiming by, through or under them has/have parted with the
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possession of the same to any third party to create any mortgage, charge or encumbrance or other interest or third party rights of any nature whatsoever in respect of the same.

- (vii) There is no breach / violation by the Seller and/or no action from any Government or any other public body or authority or any action under any law including the Land Acquisition Act, the Land Requisition Act, the Maharashtra (formerly Bombay) Tenancy and Agricultural Lands (Vidathha Region) Act, the Maharashtra Prevention of Fragmentation and Consolidation of Holdings Act, the Maharashtra Agricultural Lands (Ceiling On Holdings) Act, the Town Planning Act, the Income Tax Act or any other statute and/or rules framed there under has been received or served in any manner whatsoever including by way of registered post or hand delivery upon the Seller in respect of the said Property or any part thereof which restricts or may restrict the execution of these presents or transfer of the said Property in favour of the Purchaser in any manner whatsoever and/or which has an impact on regards the said Property and/or which will affect the title in respect of the said Property.
 - (viii) No proceedings under the Income Tax Act are either initiated and /or pending against the Seller whereby the sale and transfer of the said Property by the Seller to the Purchaser as contemplated herein will be affected and such sale and transfer is valid and shall not be invalidated under Section 281 of the Income Tax Act, 1961. The Seller alone at all times shall be liable for the amounts, arrears, dues, if any, payable or due enquiries, if any, initiated by the taxation authorities against the Seller and shall indemnify and keep indemnified at all times the Purchaser against the same;
 - (ix) There are no suits, litigations, proceedings including revenue proceedings or any other proceedings or arbitrations under any law for the time being in force before any Arbitrator, court, authority or tribunal in
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which an award, order, decree or injunction has been passed which may result in the attachment and/or sale of the said Property and/or any part thereof nor do the Seller have any reasonable apprehension of any event or circumstances likely to give rise to or result in such suit, proceeding or arbitration.

- (vi) The said Property is unencumbered and free from any mortgage, charge, lien, claims or demand in or over the same or any part thereof either by way of sale, exchange, mortgage, trust, lease, easement, gift, tenancy, sub-tenancy, leave and license, inheritance, in-pendens, transfer or otherwise.
 - (vii) There is no right of way, easement or any other burdensome or restrictive covenant/condition adversely affecting the said Property or use thereof in any manner whatsoever.
 - (viii) No notice, objection or claim has been received from any party including their predecessors in title in any manner claiming any rights etc. in respect of the said Property in any manner whatsoever and/or against the Seller towards consideration or otherwise howsoever and all amounts towards purchase of the said Property have been fully paid to the respective parties by the Seller.
 - (ix) The said Property and/or any part thereof does not fall in any reservations or set back line of any nature whatsoever.
 - (x) The Seller and/or any person on their behalf have not created any adverse rights, whether orally or otherwise and/or entered into any Agreement for Sale or otherwise created any adverse rights in respect of the said Property or any part thereof or executed any Power of Attorney authorizing sale of the said Property or taken any deposit in the form of earnest money deposit or otherwise whereby they are prevented from entering into
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these presents with the Purchaser or from transferring the said Property to the Purchaser in the manner contemplated herein.

- (vii) No loans or financial assistance are availed by the Seller from any Banks and/or other financial institutions against security of the said Property.
 - (viii) Till date no formal possession of the said Property or any part thereof has been taken over by any authority/ies of Central or State Government or otherwise and no benefits or compensation in law thereof has been received/ obtained by the Seller herein under any statute or by any means whatsoever.
 - (ix) The Seller hereby represents, covenants and confirms that all the taxes, rates, assessments, duties, land revenue, water charges, etc. payable by the Seller to the State or Central Government and any other concerned authority and/or any statutory or non-statutory body in respect of the said Property have been paid by the Seller till the date of execution of these presents.
 - (x) The Seller represents that in the event any demand or claims are made by any authority / entity (statutory or non-statutory) for the payment of any amount/s in respect of the said Property and/or arising out of the earlier title documents, it will be the sole obligation of the Seller to promptly hear and pay the same including any penalty etc. levied thereon and the Seller indemnifies and agrees to keep indemnified the Purchaser in this regard forever at all times.
 - (xi) The Seller has not omitted to disclose to the Purchaser any material fact, in respect of the said Property and/or its rights and obligations in respect thereof.
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AND WHEREAS in pursuance of the discussions and negotiations, the Purchaser, relying on the representations, covenants, assurances and warranties of the Seller and believing the same to be true and correct, has agreed to purchase the said Property for the consideration as stated above and take the actual, physical & peaceful possession of the said Property from the Seller, free from all or any encumbrances, claims, demands, mortgages, charges, litigation, encroachments etc.

The Parties are entering into these presents to record the terms and conditions agreed between them for sale and purchase of the said Property in the manner hereinafter appearing.

NOW THEREFORE THIS DEED WITNESSETH AND IT IS HEREBY MUTUALLY AGREED BY AND BETWEEN THE PARTIES HERETO AS FOLLOWS:

01. The Parties hereby agree, declare and confirm that the recitals herein above as well as schedules and annexures shall form an integral and operative part of these presents, as if the same were reproduced herein verbatim. The statements, representations, covenants and declarations made in the recitals in respect of the said Property are true and correct and are statements, representations, covenants and declarations of the Seller and based and relying on the same, the Purchaser has agreed to purchase the said Property.
 02. The SELLER hereby sells, conveys and transfers and has SOLD and PURCHASER hereby purchases and acquires and has PURCHASED the said Property being ALL THAT piece and parcel of agricultural land bearing Khata / Survey No. 19/2, measuring about 6.83 H.R. Land Revenue Rs. 3.50 with Occupant Class I Ekhmirewami Rights, situated at **Mansa : LEWOA, P. H. No. 51, Taluk : NAGPUR (RURAL), and District : NAGPUR**, more particularly described in the SCHEDULE hereunder written **ALONG AND TOGETHER WITH** all the rights, benefits, privileges and advantages in and to the said Property and every part thereof and
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together with all and singular areas, courtyards, compounds, sewers, drains ditches, fences, trees, shrubs, crops, plants, ways, paths, passages common gullies, wells, water, water courses, lights, liberties, privileges, easements, profits, advantages, rights, manors and appurtenances whatsoever to the said Property or any part thereof belonging or in anywise appurtenant to or usually held, used, occupied, or enjoyed therewith or reputed or known as part or member thereof or to belong or be appurtenant thereto and together with the available deeds, documents, agreements and writings related to the said Property or ground hereditaments, or any part thereof **AND ALL THE ESTATE**, right, title, interest, claim and demand whatsoever at law or in equity of the Seller in, to, out of or upon the said Property or any part thereof **TO HAVE AND TO HOLD** all and singular the said Property along with all rights, benefits, privileges and advantages in the manner aforesaid hereby granted, conveyed, sold, transferred or assured or intended or expressed to be with their and every of their rights and appurtenances **UNTO AND TO THE USE AND BENEFIT** of the Purchaser, its successors and assigns forever and the Purchaser hereby purchases and acquires the said Property as aforesaid along with actual, physical, peaceful and vacant possession at or for a lumpsum consideration for the total consideration paid in the manner set out in Clause 03 below.

03. THAT the total consideration of Rs. _____ / (Rupees _____ Only) which the Purchaser has paid to the Seller at the time of registration of this Sale Deed in the following manner:

MANNER OF PAYMENT

Amount(Rs.)	CIL NO./UTGS	DATE	BANK
Rs. _____/-	UTR No. In the name / account of Permanent Agrotech Private Limited.		
TOTAL - Rs. _____/- (Rupees _____ Only)			

(The payment and receipt whereof the Seller hereby admits and acknowledges and of and from the same and every part thereof hereby acquits and releases the Purchaser forever)

04. THAT, the Seller represents, covenants and assures the Purchaser that the Seller has a good, valid and marketable title to the said Property hereby sold and that it has full right and absolute authority to sell the same to the Purchaser absolutely and forever.
05. THAT, the Seller does hereby declare that said Property hereby sold to the Purchaser was held by the Seller, free from all and any encumbrances, claims, mortgages, charges, litigations, encroachments etc. and none except the Seller had / have any right or title or interest in respect thereof and which has been sold/ transferred to the Purchaser in the manner stated herein.
06. THAT, the Seller have assured to the Purchaser that the said Property is free from mortgage, charge, lien, demand or dispute of any kind whatsoever and if any other mortgage, charge, lien, encumbrance or demand is found to be due, then in such an event, the Seller agree, undertake, represents and covenants to discharge the same at the costs and expenses of the Seller and the Seller always keep the Purchaser indemnified against the same and hereby indemnifies the Purchaser to the fullest extent.
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07. THAT, the Seller has delivered the actual recent physical possession of the said Property sold at the time of execution of this Deed in favour of the Purchaser and the said Property and all the title and interest of the Seller over the said Property more particularly described in the Schedule hereunder written stands transferred and vested in favour of Purchaser. The ownership and possession of the Purchaser is duly acknowledged by all the Seller. On execution hereof, the Seller has also handed over all any original documents conveying their ownership of the said Property to the Purchaser including those set out in Annexure "C".
08. THAT it is further agreed between the Parties that in case any objection or dispute in respect of title and/or possession of Sellers over the said Property more particularly described in the Schedule arises and/or is raised and/or any claim etc. is made on the Purchaser in respect of the said Property (including but not limited to any amounts payable towards the said Property for the period up to date of execution hereof) due to any act or omission of the Seller or otherwise howsoever, at any point of time, in the event the Seller shall be solely responsible for the same and for discharging and clearing any such objection, dispute, claim etc. within a period of 10 (ten) days from date of intimation of the same given by the Purchaser to the Seller and the Seller hereby indemnifies the Purchaser to the fullest extent in respect thereof. The Seller agrees and undertakes to indemnify the Purchaser and doth hereby indemnifies and agree and keep saved and indemnified the Purchaser for all claims, costs, actions, disputes, losses, compensation and penalty suffered by it in view of any defect in or breach of any of the representations, covenants, warranties made herein including in respect of the title of the Seller to the said Properties or any part thereof.
09. THAT, the said Property hereby sold is believed and shall be taken to be correctly described in the Schedule hereunder written and if any mis-
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statement, error or omission is discovered, the same shall not annul this Deed nor shall any compensation be allowed in respect thereof, but all the same, such mis-statement, error or omission will always be subject to correction by the parties hereto. The Seller hereby covenants and confirms with the Purchaser that the entire parcel of the land pertaining to the said Property (i.e. agricultural land) has been sold to the Purchaser and in the event of any increase in area of the said Property, the Purchaser shall be solely and absolutely entitled to such area and the Seller shall have no right, title, interest, claim, benefit or any nature whatsoever in the same and the Seller shall not be entitled to claim any amount/s whatsoever from the Purchaser towards the same.

10. THAT, the necessary permission from the Sub-Divisional Officer under the provisions of Maharashtra (Formerly Bombay) Tenancy and Agricultural Lands (Vidharitha Region) Act, 1938 and rules framed thereunder is obtained being Order dated 23 August 2022 inter alia the purchase and transfer of the said Property by the Seller to the Purchaser and a copy of the aforesaid Order dated 23 August 2022 is annexed to this Deed as **Annexure "II"**.
 11. The Seller hereby further represents, covenants, confirms and declares as follows:
 - (a) The Seller has good right, full power and absolute authority and has all corporate approvals to convey, transfer and assign the said Property hereby conveyed, transferred and assigned or intended to be unto and to the use of the Purchaser in the manner aforesaid.
 - (b) The Seller's right, title and interest in the said Property are free, clear and marketable and that there are no notices for requisition or reservation or acquisition nor are the said Property the subject
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matter of any pending suit or attachment either before or after judgment.

- (c) The Seller has not created any tenancy or lease and license or any right in favour of any third party in respect of the said Property. The Vendors further declare that no notice has at any time been issued to or received or served upon them or any person on their behalf by or from the Government or anybody or authority with regard to the said Property whereby they are prohibited or prevented from selling, conveying and transferring the said Property to the Purchaser and/or the said Property are adversely affected.

12. The Seller shall and will from time to time and at all times hereafter at the request of the Purchaser and costs of the Seller, do and execute and cause to be done and executed all such further and other acts, deeds, matters or things whatsoever for the better and more perfectly and absolutely granting of the said Property and every part thereof hereby conveyed unto and to the use of the Purchaser in manner aforesaid and updating / mutating the names of the Purchaser in respect of the said Property in all records including signing all documents such as applications, letters, writings forms, affidavits, indemnities, declaration, etc as shall be reasonably required by the Purchaser, its successors, assigns, etc. without claiming any monetary or other consideration for the same in any manner.
13. The Seller shall, simultaneously with the execution hereof, execute an Irrevocable Power of Attorney limited in respect of the said Property, thereby appointing the Purchaser for representing the Seller to do all the acts, deeds, matters and things in respect of the said Property for and on behalf of the Seller as may be required to mutate the name of the Purchaser in the revenue records as the owner of the said Property, to submit plans, if required and/or for better and more perfectly and absolutely granting the said Property and every part thereof in favour of
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the Purchaser and to do all that is necessary to more absolutely perfect the title of the Purchaser. The Seller hereby agrees and confirms that the execution of the aforesaid Power of Attorney will not absolve the Seller from their duties and obligations contained herein.

14. The Purchaser shall from time to time and at all times hereafter be entitled to peacefully and quietly enter upon, own, occupy, or possess and enjoy the said Property hereby conveyed with their appurtenances, and receive the rents, issues and profits (if any) in respect of the said Property and every part thereof for its own use and benefit without any suit, lawful eviction or interruption, claim and demand whatsoever from or by the Seller and/or by any person or persons claiming from, under or in trust for the Seller.
 15. In the event, there is any defect in title of the Seller to the said Property and/or any dispute / objection is raised as regards the title of the Seller to the said Property and/or part thereof or the period up to the date of execution hereof and/or any party raises or creates, any dispute, problem, claim, or files any suit, dispute, complaint etc. in respect of the said Property in relation to the title of the Seller or their predecessors only for the period up to the date of execution hereof or execution of any document by the Seller or their predecessors, the Seller doth hereby agree, undertake, confirm, assure that in such case, it shall be the sole responsibility and liability of the Seller to rectify the defect and deal with and/or mitigate and/or settle such dispute or to compensate such person / party at their own cost and without any recourse to the Purchaser and the Seller shall take utmost care that the Purchaser shall not suffer any monetary loss or otherwise and that the title of the Purchaser to the said Property are not affected in any manner in respect thereof. And in case of any such loss suffered by the Purchaser or its successor or assignee, the Seller shall indemnify and keep indemnified the Purchaser or its successor or assignee for the same.
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16. The Parties confirm that from the date of execution hereof and payment of the consideration by the Purchaser to the Seller in the manner as stated herein, the Purchaser shall be the sole and absolute owner of the said Property. THAT, the Seller and Purchaser state, confirm and submit that upon registration of this present Deed, the sale of the said Property stands confirmed and the title over the said Property more particularly described in the Schedule stands transferred in favour of Purchaser from the date hereof with heritable and transferable rights and the Purchaser shall be fully entitled to use the said Property as the Purchaser deems fit. The Purchaser shall own and hold the said Property free and clear and absolutely unencumbered, and forever released and discharged of or otherwise by the Seller and well and sufficiently cared, defended, kept harmless and indemnified of, from and against former and other costs, dues, charges and encumbrances whatsoever had, made, executed, occasioned and suffered by the Seller or any of them or by any other person or persons claiming or to claim by, from, under or in trust for the Seller. The Seller warrants and confirms receipt of the entire amounts towards the consideration for the said Property and states that no amount/s whatsoever are due and payable by the Purchaser to the Seller.
17. The Seller agrees to indemnify and hereby indemnifies and keep cared and indemnified unconditionally and irrevocably the Purchaser and/or successors, nominees and assigns, from and against all costs, losses, charges, claims, actions, demands, suits, damages and liability, that may be suffered or incurred by the Purchaser from and against all former and other estates, titles, charges and encumbrances whatsoever made, executed, occasioned or suffered by the Seller or by any other person or persons lawfully or equitably claiming or to claim by, from, under or in trust for the Seller in respect of the said Property and/or on account of any representations, assurances, warranties, covenants made by the Seller being found to be misleading, false, incomplete and/or incorrect and/or breach of any terms and conditions pertaining to the said Property
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and/or in the event if the title of the Seller to the said Property being found defective and not clear and/or any claims in respect of title and/or on account of any taxes, dues and outgoings are outstanding and payable by the Seller.

18. THAT, all the expenses on account of the preparation of this Deed including the cost of the stamp Duty and Registration payable thereon, have been borne by the Seller.
19. THAT the parties hereby declare that they have fully examined and read over the contents of this Deed and they hereby sign it without any coercion, undue influence, threat, intimidation and misrepresentation of any kind and they are fully satisfied with the contents of this Deed and they will hold each other free and harmless of any demands, claims, actions or proceedings in respect of the Property hereby sold.

SCHEDULE
(The said Property)

ALL THAT piece and parcel of agricultural land bearing Khanna / Survey No. 19/2, admeasuring about 4.43 H.R. Land Revenue Rs. 3.50, earlier forming part of Old Khanna / Survey No. 15 and before that bearing Old Khanna / Survey No. 38 with Occupant Class 1 Bhoomiswarai Rights, situated at **Mansa - LINDA**, P. H. No. 51, Tahsil : **NAGPUR (JUNAL)**, and District : **NAGPUR** along-with all the rights, benefits, privileges and advantages in respect thereof including standing crops, trees and anything and everything standing thereon together with all easement rights like Road, Drain etc. and the same is bounded as under:

ON THE NORTH	: LAND BEARING KH. NO.19/1, And Amravati Road
ON THE EAST	: LAND BEARING KH. NO. 20 And 31
ON THE WEST	: LAND BEARING KH. NO.6 & 8
ON THE SOUTH	: LAND BEARING KH. NO.32/2/A & B

IN WITNESS WHEREOF, WE the parties said above have placed our signatures on this Deed on the day first hereinabove written at Nagpur, in presence of witnesses.

SIGNED AND DELIVERED by the)
 within named Seller being)
 PERMANENT AGROTECH PRIVATE)
 LIMITED)

Through the hands of its Director)
 Shri Harish Sancharan appointed)
 pursuant to Board Resolution dated)
 _____ (executed)

hereby))

In the presence of)

1. _____)

_____)

_____)

2. _____)

_____)

_____)

APPL PHOTO

LEFT HAND THUMB
 IMPRESSION

Signature of Shri Harish Sancharan Director of PERMANENT AGROTECH
 PRIVATE LIMITED

SIGNED AND DELIVERED by the)
 within named Purchaser being)
XMO WAREHOUSING PRIVATE)
LIMITED)

Through the hands of its Authorized)
 Signatory, Mr. Manoj B. Sharma)
 appointed pursuant to Board)
 Resolution dated)

_____ (signed))
 hereby)

In the presence of

1. _____

2. _____

ATTACHED

LEFT with Trust
 DEPOSITION

Signature of Mr. Manoj B. Sharma, Authorized Signatory of **XMO**
WAREHOUSING PRIVATE LIMITED,

Annexures to be annexed to this Deed:

Annexure A	:	Plan of the said Property - Attached Lines
Annexure B	:	Fresh Certificate of Incorporation consequent upon Change of Name dated 31 August 2007 issued by Registrar of Companies, Maharashtra, Mumbai reflecting change of name of the Seller
Annexure C	:	Letter 7/12 of Khata / Survey No. 19/2 in name of the Seller
Annexure D	:	Notice dated 26 June 2012 / 27 June 2012 for lands within NMFLA
Annexure E	:	Zone Certificate
Annexure F	:	Letter dated 24 June 2022 issued by the Tahsildar - ceiling limit
Annexure G	:	List of documents / title deeds (original / certified which will be handed over by Seller to Purchaser)
Annexure H	:	Permission of DDO dated 23 August 2022

SALE DEED

Agreed cost Rs. _____=30 Market Value Rs. _____/-

Khasra / Survey No. 32/2/A, admeasuring about 5.06 H.R.,

Khasra / Survey No. 32/2/B, admeasuring about 3.22 H.R.,

Together admeasuring about 8.28 H.R.

With Occupant Class I (Businessmen) Rights, at Muzari LEWA,

P. H. No. 51, Tahsil: NAGPUR (PUNJ), and District: NAGPUR

THIS Deed of Sale / Sale Deed ("Deed") is executed at Nagpur on this
 ____ day of _____, 2022

BY AND BETWEEN:

PERMANENT AGROTECH PRIVATE LIMITED,

(PAN :AACC1584H), (formerly known as Permanent Constructors Private Limited), a Company incorporated under the provisions of the Companies Act, 1956, bearing CIN : U45200MH1991PTC040730, and having registered Office at 19, Karmad Nagar, Dhanku, Nagpur - 440022 acting through authorized Director SHRI HARISH SANTHANAM, (PAN :AQF981507H) (UID :589220767947), aged about 44 years, Occupation:Business, R/o 17,Karmad Nagar,Nagpur-440022 hereinafter known and referred to as the "SELLER" which expression shall unless repugnant to the context or meaning thereof always mean and include the SELLER as well as its Directors, Office bearers, Shareholders, representatives, executors, administrators, successors of the SELLER of the FIRST PART,

AND

XERO WAREHOUSING PRIVATE LIMITED, (PAN : AAAC0612L) a Company incorporated under the provisions of the Companies Act, 2013, bearing CIN : U83030MH2021PTC357064, and having registered Office at 4th Floor, M. G. House, Civil Lines, Nagpur - 440001, acting through Authorized Signatory **SHRI MANOJ S/O BALDEAN SHARMA**, (PAN : AQCF00171D) (UD :2903013680G), aged about 49 years, Occupation-Service R/o House No.620,Minghara, Michalla,Harengpur,Nagpur-440018 here-in-after known and referred to as the "PURCHASER" which expression shall unless repugnant to the context or meaning thereof always mean and include the PURCHASER, its successors and assigns of the **SECOND PART**.

WHEREAS, the SELLER is the sole and exclusive owner of, seized and in possession of and well and sufficiently entitled to contiguous block of land comprising of ALL THAT piece and parcel of agricultural land (i) Land bearing Khassa / Survey No. 32/2/A, measuring about 5.04 H.R., Land Revenue Rs. 3.75 earlier forming part of a larger land bearing Old Khassa / Survey No. 31 and before that bearing Old Khassa / Survey No. 35 (hereinafter referred to "Land No.1") (ii) Land bearing Khassa / Survey No. 32/2/B, measuring about 3.22 H.R., Land Revenue Rs. 3.16 earlier forming part of a larger land bearing Old Khassa / Survey No. 35 and before that bearing Old Khassa / Survey No. 35 (hereinafter referred to "Land No.2") both lands jointly/together about 8.26 H.R. with Occupant Class I Khassidar's Rights, situated at Manas + LINGA, P.H. No. 51, Taluk: NAGPUR (RURAL), and District: NAGPUR and more particularly described in the SCHEDULE here underwritten, referred to as the "said Properties"and delineated in red hatched lines in the Plan annexed hereto as Annexure "A")

AND WHEREAS the Seller has represented, warranted, covenanted and assured to the Purchaser as follows:

TITLE FLOW OF LAND NO.1 being KHASSA/SURVEY NO.32/2/A (initially forming part of Old Khassa / Survey No. 31 and prior thereto Khassa / Survey No. 35) And **LAND No.2** being KHASSA/SURVEY NO.32/2/B (initially

forming part of Old Khanna / Survey No. 31 and prior thereto Khanna / Survey No. 59

WHEREAS, the SELLER is the sole and exclusive owner of agricultural Land being ALL THAT piece and parcel of agricultural lands (i) Land bearing Khanna/Survey No. 32/2/A measuring about 5.06 Hectares i.e. about 12.50 Acres, Land Revenue Rs. 3.78 per year (ii) Land bearing Khanna/Survey No. 32/2/B measuring about 3.72 Hectares i.e. about 7.96 Acres, Land Revenue Rs. 3.16 per year with Occupant Class I (Shumiamani rights, situated at P. H. No. 51, Mouza : LEOLA, Taluk : NAGPUR (Deccan) and District : NAGPUR, earlier forming part of larger land bearing Old Khanna / Survey No. 31 and before that bearing Old Khanna / Survey No. 55;

AND WHEREAS, originally the land bearing Old Khanna / Survey No. 55 measuring about 10.31 Hectares was owned by Shri Netha Tukaram Jangade and Shri Ramaji Tukaram Jangade as per the records of Adilshah Abdulsah Pimp prepared as per the Madhya Pradesh Land Revenue Code 1954;

AND WHEREAS, under the Resurvey and re-measurement of the said lands carried out in the year 1985-86 by the Government, Old Khanna / Survey No. 55 was re-numbered as Khanna / Survey No. 31 and thereafter to Khanna / Survey No. 32, measuring about 10.31 Hectares.

AND WHEREAS, Shri Ramaji Tukaram Jangade expired on 17.01.1975 and on his death, his share in the aforesaid land devolved upon the his legal heirs being his son Shri Martandras Ramaji Jangade, and Daughters Smt Shanta Bhaurao Dalivale, Smt Shikha Suryasham Dalivale and Smt Kanta Subhash Khichegade, and his widow Smt Sarjash Ramaji Jangade on the account of intestate succession, and accordingly their names were mutated in revenue records of Patwari vide Mutation Entry / For Fee No. 42 dated 24 July 1996 (verified on 24 July 1996);

AND WHEREAS, Shri Netha Tukaram Jangade, Shri Martandras Ramaji Jangade, Smt Shanta Bhaurao Dalivale, Smt Shikha Suryasham Dalivale,

Shri Kanta Balachar Khobragada, Shri Rajeshwar Ramaji Jangade sold the aforesaid land admeasuring about 10.31 Hectares bearing Khata / Survey No. 35 to Apex Detectors Private Limited through Shri Ardhman Singh Koon Singh by and under a Sale Deed dated 09 May 1986, registered with Sub Registrar Nagpur (Grama) -7 at book no.1 at Sr. No. 303 on 09 May 1986 read with Correction Deed 02 March 1988, registered with Sub Registrar Nagpur (Grama) -7 at book no.1 at Sr. No.62 on 02 March 1988 and accordingly their names were mutated in revenue records of Patwari vide Mutation Entry / Far Far No. 43 dated 01 August 1986 (certified on 16 August 1986) and Patwari vide Mutation Entry / Far Far No. 49 dated 07 March 1988 (certified on 07 March 1988);

AND WHEREAS, the part of a portion admeasuring about 3.62 Hk out of Khata / Survey No. 32 is all admeasuring about 10.31 Hk was converted into Non agricultural use by virtue of Order dated 17 December 1986 in Revenue Case No. 11/RAI-34/1986-1987 by the Sub-Divisional officer, Nagpur u/s 44 of The Maharashtra Land Revenue Code, 1956. The effect of the aforesaid order dated 17 December 1986 was recorded by the Revenue Authorities i.e. Patwari vide Mutation / Farfar No. 135 dated 14 August 1988 (certified on 16 September 1988);

AND WHEREAS, the owners applied before the Resident Deputy Collector Nagpur Officer u/s 29 of the Maharashtra Land Revenue Code, 1956 to include themselves in Occupant Class-I category under the then prevailing clause (j) of Sub Section (2) of Section 29 of the said Act and the said Officer included the owners as Occupant Class-I with Bhumiwami rights in respect of Khata / Survey No. 32 is all admeasuring about 10.31 Hk and the Resident Deputy Collector Nagpur in Rev. Case No. 434/LRD-18/2006-07 by an Order dated 07 June 2007 included the owners as Occupant Class-I with Bhumiwami rights in respect of aforesaid land. The Revenue Authorities i.e. Patwari has taken the change of the name as per Mutation / Farfar No. 253 dated 08 June 2007 (certified on 13-June 2007);

AND WHEREAS Apex Dismanters Private Limited had entered into an Agreement dated 26 April 2006 with Pioneer Infrastructures Company Private Limited for sale of agricultural land admeasuring about 5.06 Hectares and non agricultural land admeasuring about 3.22 Hectares, both out of Khairia / Survey No.32 in favour of Pioneer Infrastructures Company Private Limited and/or its nominee, and Pioneer Infrastructures Company Private Limited thereafter had dropped the idea to purchase the aforesaid land and nominated the Seller at that time known as Permanent Construction Private Limited (and now known as Permanent Agrotech Private Limited) in its place to be the purchaser of the aforesaid lands;

AND WHEREAS, Apex Dismanters Private Limited with the consent and confirmation of Pioneer Infrastructures Company Private Limited (who was also a party to the Sale Deed) sold the said agriculture land admeasuring about 5.06 Hectares and Non-agriculture land admeasuring about 3.22 Hectares, both out of Khairia / Survey No. 32 to Permanent Construction Private Limited (Now known as Permanent Agrotech Private Limited i.e. the Seller herein), by and under a Sale Deed dated 8 August 2007, registered with Sub Registrar Nagpur (Grama) -7 at book no.1 at Sr. No. 5403 on 9 August 2007 and with a Correction Deed dated 30 September 2007 registered in the office of Sub-Registrar Nagpur (Grama)-7 at book no.1 at Sr. No. 5402 on 10 September 2007 and accordingly the name of "Permanent Construction Private Limited" was mutated in revenue records of Patwar vide Mutation Entry / Far Far No. 204 dated 24 August 2007 (verified on 21 September 2007);

AND WHEREAS Apex Dismanters Private Limited further sold the balance agriculture land admeasuring about 1.63 Hectares out of Khairia / Survey No. 32 in all admeasuring about 6.69 hectares and non agricultural land admeasuring about 0.43 hectare in all admeasuring about 3.62 hectares to one party being SA Chemis Private Limited through its director Ashrigh Ashrigh by and under a Sale Deed dated 17 August 2007, registered with Sub Registrar Nagpur (Grama) -7 at Book No. 1 at Sr. No. 3834 on 17 August

2007 and accordingly their names were mutated in revenue records of Patwar vide Mutation / Fee Fee No. 240 dated 01 September 2007 (certified on 21 September 2007);

AND WHEREAS, pursuant to the Sale Deed dated 8 August 2007 registered with Sub-Registrar Nagpur (Grama) -7 at book no.1 at Sr. No. 5020 on 9 August 2007 and Correction Deed dated 30 September 2007 registered in the office of Sub-Registrar Nagpur (Grama)-7 at book no.1 at Sr. No. 5432 on 10 September 2007 as well as Sale Deed in favour of SA Chomia Private Limited the land was sub-divided and agriculture land amounting about 5.06 Hectares out of larger land bearing Khata / Survey No. 32 was renumbered as Khata / Survey No. 32/2/A amounting about 5.06 Hectares being the said Property;

AND WHEREAS the Sub-Divisional Officer Nagpur had converted the said Property i.e. land bearing Khata / Survey No. 32/2/B into agricultural usage by cancelling the previous Order dated 17 December 1986 vide its Order passed in Order/Letter No. MASTT/SDO/NGP/EUPALI/KAT345/22, of Mouza - Linga, P.H. No. 51 in Taluk Nagpur Rural, dated 14 June 2022 and as per the aforesaid Order the said land is converted into Agricultural usage.

AND WHEREAS, the aforesaid Order is duly recorded in the Records of Rights i.e. 7/12 extract of the said Property pursuant to Mutation Entry / Fee Fee No. 977 dated 7 July 2022 (certified on 12 July 2022).

AND WHEREAS the change of name of the company /Seller from 'Permanent Constructions Private Limited' to 'Permanent Agritech Private Limited' based on Fresh Certificate of Incorporation Consequent upon Change of Name dated 31 August 2007 issued by Registrar of Companies, Maharashtra, Mumbai (and annexed hereto as Annexure "B") was mutated in revenue records of Patwar vide Mutation Entry / Fee Fee No. 980 dated 13 July 2022 (certified on 13 July 2022).

AND WHEREAS, by virtue of the aforesaid Sale Deed dated 06 August 2007 registered with Sub Registrar Nagpur (Dasmis)-7 at Book No. 1 at Sr. No. 5000 dated 09 August 2007 read with Correction deed dated 10 September 2007 registered in the office of Sub-Registrar Nagpur (Dasmis)-7 at book no.1 at Sr. No. 5433 dated 10 September 2007, the SELLER became the sole and absolute owner of the said Properties (i) Land bearing agricultural land administering 5.04 Hectares bearing Khata / Survey No. 32/2/A (ii) Land bearing agricultural land administering 3.22 Hectares bearing Khata / Survey No. 32/2/B and its name i.e. Permanent Agrotech Private Limited is mutated in revenue records as the owners of the said Property. Copy of the latest 7/12 extract in respect of Agricultural Land (i) Land bearing Khata/Survey No.32/2/A (ii) Land bearing Khata/Survey No.32/2/B reflecting the name of the Seller are annexed to this Deed as Annexure "C"; and Annexure "D";

AND WHEREAS the Seller as the sole and absolute owner has clear and marketable title to the said Properties, free from all and any encumbrances, claims, mortgages, charges, litigations, encroachments etc. and is in quiet, vacant and physical possession of the said Property. The Seller has further represented, covenanted and confirmed that the Seller has not entered into any arrangement nor created any third party rights in respect of the said Properties being Land No. (i) Khata/Survey No.32/2/A (ii) Khata/Survey No.32/2/B as on date.

AND WHEREAS, the SELLER has decided to sell the said Property and accordingly has taken all corporate actions and approvals and passed necessary resolutions to that effect;

AND WHEREAS the Purchaser being desirous of owning the land, has approached the Seller and expressed its desire and willingness to purchase the said Properties Agricultural Land (i) Land bearing Khata / Survey No. 32/2/A, administering about 5.04 H.R., Land Revenue No. 3.70 (ii) Land bearing Khata /

Survey No. 32/2/B, measuring about 3.22 H.R., Land Revenue Fr. 3.16 and with Occupant Class I Bhumiwasthi Rights, situated at Mena : LINGA, P. H. No. 51, Taluk : KADPUR (RURAL), and District : KADPUR more particularly described in the SCHEDULE hereunder written, free from all and any encumbrances, claims, demands, mortgages, charges, litigations, encroachments etc.

AND WHEREAS, after considering the request and after detailed discussions and negotiations the Seller agreed to sell and transfer the said Properties more particularly described in the SCHEDULE hereunder written being Agricultural Land (i) Land bearing Khajara/ Survey No.32/2/A and (ii) Land bearing Khajara/ Survey No.32/2/B from all and any encumbrances, claims, demands, mortgages, charges, litigations, encroachments etc. to Purchaser for a total consideration of Rs._____/-00 (Rupees _____, Only) The Seller has represented that no amount is to be deducted by the Purchaser on the gross consideration under Section 194-IA of the Income Tax Act, 1961 towards tax deducted at source (TDS) since the said Properties fall under the definition of 'agricultural land' under the Income Tax Act, 1961 and the Seller has provided necessary documentation in support thereof to the Purchaser prior to execution hereof. It is agreed and clarified that in the event it is held by the authorities including income tax authorities at any point of time that TDS was required to be deducted on the gross consideration amount and/or the authorities call upon the Purchaser to pay the TDS, then such amount along with costs, interest, damages, penalties etc. (by any name called) in respect thereof as levied on the Purchaser, shall be solely borne and paid by the Sellers and the Seller hereby indemnifies and keep indemnified the Purchaser in respect thereof at all times.

AND WHEREAS during the course of such discussions and negotiations, the Seller has represented, warranted, warranted and assured unto the Purchaser as follows -

- (k) The Seller is in continuous, exclusive, uninterrupted use, occupation and possession of the said Property and that no other person/s has/have any proprietary or occupancy right or any right whatsoever in respect of the said Property. The Seller has good right, full power and absolute authority to sell and dispose of the same.
 - (l) There are no encumbrances or other restrictive rights in favour of any party in respect of the said Property nor are there any encroachments on the same.
 - (m) The said Property as on date is situated within the limits of Nagpur Metropolitan Region Development Authority and a public notice dated 26 June 2012 was published on 27 June 2012 reflecting the same (a copy whereof is annexed as Annexure "E");
 - (n) The said Properties fall within the 'agriculture' zone as per the Zone Certificate dated 25 August 2002 i.e. Bhag Bahuka in respect of (i) land bearing Khata / Survey No. 32/2/A measuring about 5.04 H.R. (ii) land bearing Khata / Survey No. 32/2/B measuring about 3.22 H.R. copy whereof is annexed as Annexure "F" and Annexure "G"
 - (o) The Seller is the owner of and holding agricultural lands aggregately measuring 17.73 H. R., all situated at Muzam: LINDA, P. H. No. 58, Taluk: NAGPUR (RURAL), and District: NAGPUR which includes the said Properties and the lands owned and held by the Seller are within the ceiling limit prescribed under the Maharashtra Agricultural Lands (Ceiling On Holdings) Act and rules framed there under. The Seller has also obtained a letter dated 29 June 2002 issued by the Talukdar in respect of the same, a copy whereof is annexed to this Deed as Annexure "H";
 - (p) The said Property has full and free legal means of access and right of way directly from the public road and that there are no boundary dispute in
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respect of the said Property with the owners / holders / tenants / occupants of the adjoining Property/ies or with the government or any statutory body/authority.

- (vi) All the title deeds relating to the said Property as set out in Annexure "I" are in possession and control of the Seller and neither the Seller nor any person/s claiming by, through or under them has/have parted with the possession of the same to any third party to create any mortgage, charge or encumbrance or other interest or third party rights of any nature whatsoever in respect of the same.
 - (vii) There is no breach / violation by the Seller and/or no notice from any Government or any other public body or authority or any notice under any law including the Land Acquisition Act, the Land Requisition Act, the Maharashtra (formerly Bombay) Tenancy and Agricultural Lands (Heldar/les Region) Act, the Maharashtra Prevention of Fragmentation and Consolidation of Holdings Act, the Maharashtra Agricultural Lands (Ceiling On Holdings) Act, the Town Planning Act, the Income Tax Act or any other statute and/or rules framed there under has been received or served in any manner whatsoever including by way of registered post or hand delivery upon the Seller in respect of the said Property or any part thereof which restricts or may restrict the execution of these presents or transfer of the said Property in favour of the Purchaser in any manner whatsoever and/or which has an impact on regards the said Property and/or which will affect the title in respect of the said Property;
 - (ix) No proceedings under the Income Tax Act are either initiated and/or pending against the Seller whereby the sale and transfer of the said Property by the Seller to the Purchaser as contemplated herein will be affected and such sale and transfer is valid and shall not be invalidated under Section 281 of the Income Tax Act, 1961. The Seller alone at all times shall be liable for the amounts, arrears, dues, if any, payable or also exigible, if any, initiated by the taxation authorities against the Seller
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and shall indemnify and keep indemnified at all times the Purchaser against the same;

- (a) There are no suits, litigations, proceedings including revenue proceedings or any other proceedings or arbitrations under any law for the time being in force before any Arbitrator, court, authority or tribunal in which an award, order, decree or injunction has been passed which may result in the attachment and/or sale of the said Property and/or any part thereof nor do the Seller have any reasonable apprehension of any event or circumstance likely to give rise to or result in such suit, proceeding or arbitration.
 - (ii) The said Property is unencumbered and free from any mortgage, charge, lien, claims or demand in or over the same or any part thereof either by way of sale, exchange, mortgage, trust, lease, easement, gift, tenancy, sub-tenancy, lease and license, inheritance, litigations, transfer or otherwise.
 - (iii) There is no right of way, easement or any other burdensome or restrictive covenant/condition adversely affecting the said Property or use thereof in any manner whatsoever.
 - (iii) No notice, objection or claim has been received from any party including their predecessors in title in any manner claiming any rights etc. in respect of the said Property in any manner whatsoever and/or against the Seller towards consideration or otherwise howsoever and all amounts towards purchase of the said Property have been fully paid to the respective parties by the Seller.
 - (iii) The said Property and/or any part thereof does not fall in any reservations or set back line of any nature whatsoever.
 - (iv) The Seller and/or any person on their behalf have not created any adverse rights, whether orally or otherwise and/or entered into any Agreement for
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Sale or otherwise created any adverse rights in respect of the said Property or any part thereof or executed any Power of Attorney authorizing sale of the said Property or taken any deposit in the form of earnest money deposit or otherwise whereby they are prevented from entering into these presents with the Purchaser or from transferring the said Property to the Purchaser in the manner contemplated herein.

- (xii) No loans or financial assistance are availed by the Seller from any Banks and/or other financial institutions against security of the said Property.
 - (xiii) The Seller does not have possession of the said Property or any part thereof has been taken over by any authority/ies of Central or State Government or otherwise and no benefits or compensation in lieu thereof has been received/ obtained by the Seller herein under any statute or by any means whatsoever.
 - (xiv) The Seller hereby represents, covenants and confirms that all the taxes, rates, assessments, duties, land revenue, water charges, etc. payable by the Seller to the State or Central Government and any other concerned authority and/or any statutory or non statutory body in respect of the said Property have been paid by the Seller till the date of execution of these presents.
 - (xv) The Seller represents that in the event any demand or claims are made by any authority / entity (statutory or non-statutory) for the payment of any amount/s in respect of the said Property and/or arising out of the earlier title documents, it will be the sole obligation of the Seller to promptly bear and pay the same including any penalty etc. levied thereon and the Seller indemnifies and agrees to keep indemnified the Purchaser in this regard forever at all times.
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[xx] The Seller has not omitted to disclose to the Purchaser any material fact, in respect of the said Property and/or its rights and obligations in respect thereto.

AND WHEREAS in pursuance of the discussions and negotiations, the Purchaser, relying on the representations, covenants, assurances and warranties of the Seller and believing the same to be true and correct, has agreed to purchase the said Property for the consideration as stated above and take the actual, physical & peaceful possession of the said Property from the Seller, free from all or any encumbrances, claims, demands, mortgages, charges, litigations, encroachments etc.

The Parties are entering into these presents to record the terms and conditions agreed between them for sale and purchase of the said Property in the manner hereinafter appearing.

NOW THEREFORE THIS DEED WITNESSETH AND IT IS HEREBY MUTUALLY AGREED BY AND BETWEEN THE PARTIES HERETO AS FOLLOWS:

- C1. The Parties hereby agree, declare and confirm that the recitals herein above as well as schedules and annexures shall form an integral and operative part of these presents, as if the same were reproduced herein verbatim. The statements, representations, covenants and declarations made in the recitals in respect of the said Property are true and correct and are statements, representations, covenants and declarations of the Seller and based and relying on the same, the Purchaser has agreed to purchase the said Property.
 - C2. The SELLER hereby sells, conveys and transfers and has SOLD and PURCHASER hereby purchases and acquires and has PURCHASED the said Properties being ALL THAT piece and parcel of agricultural lands (Shasring Khassra /Survey No. 02/2/A, admeasuring about 5.04 H.R., Land Revenue Rs. 3.75 (Shasring Khassra /Survey No. 02/2/B, admeasuring about 3.22 H.R., Land Revenue Rs. 3.16 with Occupant Class 1 Sharecroaser Rights, situated at Manma : PIN-6, P. H. No. 51,
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Taluk : NAGPUR (PUNE), and District : NAGPUR, were particularly described in the SCHEDULE hereunder written **ALONG AND TOGETHER WITH** all the rights, benefits, privileges and advantages in and to the said Property and every part thereof and together with all and singular assets, courtyards, compounds, cesses, drains ditches, fences, trees, shrubs, crops, plants, wags, paths, passages common gullies, wells, water, water courses, lights, liberties, privileges, easements, profits, advantages, rights, members and appurtenances whatsoever to the said Property or any part thereof belonging or in anywise appurtenant to or usually held, used, occupied, or enjoyed therewith or reputed or known as part or member thereof or to belong or be appurtenant thereto and together with the available deeds, documents, agreements and writings related to the said Property or ground hereditaments, or any part thereof **AND ALL THE ESTATE**, right, title, interest, claim and demand whatsoever at law or in equity of the Seller in, to, out of or upon the said Property or any part thereof **TO HAVE AND TO HOLD** all and singular the said Property along with all rights, benefits, privileges and advantages in the manner aforesaid hereby granted, conveyed, sold, transferred or assigned or intended or expressed as to be with their and every of their rights and appurtenances **UNTO AND TO THE USE AND BENEFIT** of the Purchaser, its successors and assigns forever and the Purchaser hereby purchases and acquires the said Property as aforesaid along with actual, physical, peaceful and vacant possession at or for a lumpsum consideration for the total consideration paid in the manner set out in Clause 03 below.

03. THAT the total consideration of Rs. _____/- (Rupees _____ Only) which the Purchaser has paid to the Seller at the time of registration of this Deed in the following manner:

MANNER OF PAYMENT

Amount RS.	CH. NO./UTR	DATE	BANK
Rs. _____/-	UTR No. In the name / account of Ternant Agrotech Private Limited		
TOTAL : Rs. _____/- [Rupees _____ Only]			

(The payment and receipt whereof the Seller hereby admits and acknowledges and of and from the same and every part thereof hereby acquits and releases the Purchaser forever)

04. THAT, the Seller represents, covenants and averses the Purchaser that the Seller has a good, valid and marketable title to the said Property hereby sold and that it has full right and absolute authority to sell the same to the Purchaser absolutely and forever.
05. THAT, the Seller does hereby declare that said Property hereby sold to the Purchaser was held by the Seller, free from all and any encumbrances, claims, mortgages, charges, litigations, encroachments etc. and none except the Seller had / have any right or title or interest in respect thereof and which has been sold/ transferred to the Purchaser in the manner stated herein.
06. THAT, the Seller have averses to the Purchaser that the said Property is free from mortgage, charge, lien, demand or dispute of any kind whatsoever and if any other mortgage, charge, lien, encumbrance or demand is found to be due, then in such an event, the Seller agrees, undertakes, represents and covenants to discharge the same at the costs and expenses of the Seller and the Seller always keep the Purchaser indemnified against the same and hereby indemnifies the Purchaser to the fullest extent.

07. THAT, the Seller has delivered the actual vacant physical possession of the said Property sold at the time of execution of this Deed in favour of the Purchaser and the said Property and all the title and interest of the Seller over the said Property more particularly described in the Schedule hereunder written stands transferred and vested in favour of Purchaser. The ownership and possession of the Purchaser is duly acknowledged by all the Seller. On execution hereof, the Seller has also handed over all/any original documents conveying their ownership of the said Property to the Purchaser including those set out in Annexure "I".
08. THAT it is further agreed between the Parties that in case any objection or dispute in respect of title and/or possession of Sellers over the said Property more particularly described in the Schedule arises and/or is raised and/or any claim etc. is made on the Purchaser in respect of the said Property (including but not limited to any amounts payable towards the said Property for the period up to date of execution hereof) due to any act or omission of the Seller or otherwise howsoever, at any point of time, in the event the Seller shall be solely responsible for the same and for discharging and clearing any such objection, dispute, claim etc. within a period of 10 (ten) days from date of intimation of the same given by the Purchaser to the Seller and the Seller hereby indemnifies the Purchaser to the fullest extent in respect thereof. The Seller agrees and undertakes to indemnify the Purchaser and doth hereby indemnifies and agree and keep saved and indemnified the Purchaser for all claims, costs, actions, disputes, losses, compensation and penalty suffered by it in view of any defect in or breach of any of the representations, covenants, warranties made herein including in respect of the title of the Seller to the said Property or any part thereof.
09. THAT, the said Property hereby sold is believed and shall be taken to be correctly described in the Schedule hereunder written and if any misstatement, error or omission is discovered, the same shall not annul this
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Deed nor shall any compensation be allowed in respect thereof, but all the same, such mis-statement, error or omission will always be subject to correction by the parties hereto. The Seller hereby covenants and confirms with the Purchaser that the entire parcel of the land pertaining to the said Property i.e. Agricultural Land has been sold to the Purchaser and in the event of any increase in area of the said Property, the Purchaser shall be solely and absolutely entitled to such area and the Seller shall have no right, title, interest, claim, benefit or any nature whatsoever in the same and the Seller shall not be entitled to claim any amount/s whatsoever from the Purchaser towards the same.

10. THAT, the necessary permission from the Sub Divisional Officer under the provisions of Maharashtra (formerly Bombay) Tenancy and Agricultural Lands (Vidarbha Region) Act, 1958 and rules framed thereunder is obtained being Order dated 23 August 2002 inter alia for purchase and transfer of the said Property by the Seller to the Purchaser and a copy of the aforesaid Order dated 23 August 2002 is annexed to this Deed as Annexure "J".
 11. The Seller hereby further represents, covenants, confirms and declares as follows:
 - (a) The Seller has good right, full power and absolute authority and has all corporate approvals to convey, transfer and secure the said Property hereby conveyed, transferred and secured or intended so to be unto and to the use of the Purchaser in the manner aforesaid.
 - (b) The Seller's right, title and interest in the said Property are free, clear and marketable and that there are no notices for requisition or reservation or acquisition nor are the said Property the subject matter of any pending suit or attachment either before or after judgment.
 - (c) The Seller has not created any tenancy or lease and license or any right in favour of any third party in respect of the said Property.
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The Vendor further declares that no notice has at any time been issued to or received or served upon them or any person on their behalf by or from the Government or anybody or authority with regard to the said Property whereby they are prohibited or prevented from selling, conveying and transferring the said Property to the Purchaser and/or the said Property are adversely affected.

12. The Seller shall and will from time to time and at all times hereafter at the request of the Purchaser and costs of the Seller, do and execute and cause to be done and executed all such further and other acts, deeds, matters or things whatsoever for the better and more perfectly and absolutely granting of the said Property and every part thereof hereby conveyed unto and to the use of the Purchaser in manner aforesaid and updating / inserting the names of the Purchaser in respect of the said Property in all records including signing all documents such as applications, letters, writings forms, affidavits, indemnities, declaration, etc as shall be reasonably required by the Purchaser, its successors, assigns, etc. without claiming any monetary or other consideration for the same in any manner.
 13. The Seller shall, simultaneously with the execution hereof, execute an Irrevocable Power of Attorney limited in respect of the said Property, thereby appointing the Purchaser for representing the Seller to do all the acts, deeds, matters and things in respect of the said Properties for and on behalf of the Seller as may be required to maintain the name of the Purchaser in the revenue records as the owner of the said Properties, to submit plans, if required and/or for better and more perfectly and absolutely granting the said Properties and every part thereof in favour of the Purchaser and to do all that is necessary to more absolutely perfect the title of the Purchaser. The Seller hereby agrees and confirms that the execution of the aforesaid Power of Attorney will not absolve the Seller from their duties and obligations contained herein.
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14. The Purchaser shall from time to time and at all times hereafter be entitled to peacefully and quietly enter upon, own, occupy, or possess and enjoy the said Property lawfully conveyed with their appurtenances, and receive the rents, issues and profits (if any) in respect of the said Property and every part thereof for its own use and benefit without any suit, lawful eviction or interruption, claim and demand whatsoever from or by the Seller and/or by any person or persons claiming from, under or in trust for the Seller.
15. In the event, there is any defect in title of the Seller to the said Properties and/or any dispute / objection is raised as regards the title of the Seller to the said Properties and/or part thereof or the period up to the date of execution hereof and/or any party raises or creates, any dispute, problem, claim, or files any suit, dispute, complaint etc. in respect of the said Properties in relation to the title of the Seller or their predecessors only for the period up to the date of execution hereof or execution of any document by the Seller or their predecessors, the Seller doth hereby agree, undertake, confirm, assure that in such case, it shall be the sole responsibility and liability of the Seller to rectify the defect and deal with and/or mitigate and/or settle such dispute or to compensate such person / party at their own cost and without any recourse to the Purchaser and the Seller shall take utmost care that the Purchaser shall not suffer any monetary loss or otherwise and that the title of the Purchaser to the said Properties are not affected in any manner in respect thereof. And in case of any such loss suffered by the Purchaser or its successor or assignee, the Seller shall indemnify and keep indemnified the Purchaser or its successor or assignee for the same.
16. The Parties confirm that from the date of execution hereof and payment of the consideration by the Purchaser to the Seller in the manner as stated herein, the Purchaser shall be the sole and absolute owner of the said Property. **THAT**, the Seller and Purchaser state, confirm and warrant that upon registration of this present Deed, the sale of the said Property
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stands confirmed and the title over the said Property more particularly described in the Schedule stands transferred in favour of Purchaser from the date hereof with heritable and transmissible rights and the Purchaser shall be fully entitled to use the said Property as the Purchaser deems fit. The Purchaser shall own and hold the said Property free and clear and absolutely unencumbered, and forever released and discharged of or otherwise by the Seller and well and sufficiently saved, defended, kept harmless and indemnified of, from and against former and other taxes, dues, charges and encumbrances whatsoever had, made, executed, occasioned and suffered by the Seller or any of them or by any other person or persons claiming or to claim by, from, under or in trust for the Seller. The Seller covenants and confirms receipt of the entire amounts towards the consideration for the said Property and states that no amount/s whatsoever are due and payable by the Purchaser to the Seller.

17. The Seller agrees to indemnify and hereby indemnifies and keep saved and indemnified unconditionally and irrevocably the Purchaser and/or successors, nominees and assigns, from and against all costs, losses, charges, claims, actions, demands, suits, damages and liability, that may be suffered or incurred by the Purchaser from and against all former and other estates, titles, charges and encumbrances whatsoever made, executed, occasioned or suffered by the Seller or by any other person or persons lawfully or equitably claiming or to claim by, from, under or in trust for the Seller in respect of the said Property and/or on account of any representations, assurances, warranties, covenants made by the Seller being found to be misleading, false, incomplete and/or incorrect and/or breach of any terms and conditions pertaining to the said Property and/or in the event if the title of the Seller to the said Property being found defective and not clear and/or any claims in respect of title and/or on account of any taxes, dues and outgoings are outstanding and payable by the Seller.
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18. THAT, all the expenses on account of the preparation of this Deed including the cost of the stamp Duty and Registration payable there on, have been borne by the Seller.
19. THAT the parties hereby declare that they have fully examined and read over the contents of this Deed and they hereby sign it without any coercion, undue influence, threat, intimidation and misrepresentation of any kind and they are fully satisfied with the contents of this Deed and they will hold each other free and harmless of any demands, claims, actions or proceedings in respect of the Property hereby sold.

SCHEDULE

(The Said Property)

ALL THAT piece and parcel of contiguous agricultural lands bearing (i) land bearing Khassra / Survey No. 32/2/A, admeasuring about 5.06 H.R., Land Revenue No. 3.79, earlier forming part of Old Khassra / Survey No. 31 and before that bearing Old Khassra / Survey No. 35 (ii) land bearing Khassra / Survey No. 32/2/B, admeasuring about 3.22 H.R., Land Revenue No. 3.16, earlier forming part of Old Khassra / Survey No. 31 and before that bearing Old Khassra / Survey No. 35 with Occupant Class I Households Rights, situated at Manna : LIMDA, P. H. No. 51, Taluk : NAGPUR (RURAL), and District : NAGPUR along with all the rights, benefits, privileges and advantages in respect thereof including standing crops, trees and anything and everything standing thereon together with all easement rights like Road, Chura etc. and the same is bounded as under:

ON THE NORTH : LAND BEARING KH. NO.13, 14, 19/2, And 31
 ON THE EAST : LAND BEARING KH. NO. 31
 ON THE WEST : LAND BEARING KH. NO.13 And 14
 ON THE SOUTH : LAND BEARING KH. NO.32/1/A & B And 33

IN WITNESS WHEREOF, WE the parties said above have placed our signatures on this Deed on the day first hereinabove written at Naggur, in presence of witnesses.

SIGNED AND DELIVERED by the)
 within named Seller being)
 PERMANENT AGROTECH PRIVATE)
 LIMITED)
 Through the hands of its Director)
 Shri Harish Santharam appointed)
 pursuant to Board Resolution dated)
 _____ (signed)
 Harish))
 In the presence of)

1. _____

2. _____



Signature of Shri Harish Santharam Director of PERMANENT AGROTECH
 PRIVATE LIMITED

SIGNED AND DELIVERED by the)
 within named Purchaser being)
XMO WAREHOUSING PRIVATE)
LIMITED)

Through the hands of its Authorized)
 Signatory, Mr. Manoj D. Sharma)
 appointed pursuant to Board)
 Resolution dated 02.09.2022)
 (attached hereto))
 In the presence of)

1. _____

2. _____

ATTACHED

LEFT HAND SIDE
 ATTACHED

Signature of Mr. Manoj D. Sharma Authorized Signatory of **XMO**
WAREHOUSING PRIVATE LIMITED.

Annexures to be annexed to this Deed:

Annexure A	: Plan of the said Property - hatched lines
Annexure B	: Fresh Certificate of Incorporation Consequent upon Change of Name dated 21 August 2007 issued by Registrar of Companies, Maharashtra, Mumbai reflecting change of name of the Seller
Annexure C	: Letter 7/12 of Khassra / Survey No. 32/2/A (in name of the Seller)
Annexure D	: Letter 7/12 of Khassra / Survey No. 32/2/A (in name of the Seller)
Annexure E	: Public notice dated 26 June 2012 / 27 June 2012 the lands within WMP/A
Annexure F	: Zone Certificate
Annexure G	: Zone Certificate
Annexure H	: Letter dated 26 June 2002 issued by the Tahsilkar - ceiling taxes
Annexure I	: List of documents / title deeds (original / certified which will be handed over by Seller to Purchaser)
Annexure J	: Permission of SDO dated 22 August 2002

SCHEDULE 15 | SPECIFIC WARRANTY MATTERS

- Any proceedings or outstanding Tax demands against the Promoter and/or PPL ("Tax Claim Incidence"), which could adversely affect (a) the acquisition by the Company of the Project Land, and/or title to the Project Land of the Company, and/or (b) acquisition of the Sale Securities by the investor and/or title to the Sale Securities of the investor, and such Tax Claim Incidence not being settled by the Promoters (at the Promoters' sole cost), to the investor's satisfaction, within a period of 1 (One) year from the date on which such Tax Claim Incidence arose. To the extent such Tax Claim Incidence is being defended or contested through the Company then the process set out in Clause 9.1.3(i) of the Investment Agreement shall apply.
- Any costs, claims and/or demands which arise out of, result from or are connected with Conversion and Daring Notices.
- Any Tax liability, claims and/or demands, that arises on the investor and/or the Company as a result of, or relates to: (i) the conversion by the Company of Class B OCBs into Equity Share; (ii) the redemption by the Company of Class B OCBs; and/or (iii) the Transfer of the Call Securities for the Call Option Consideration, in each case, pursuant to Clause 9.3(i) of this Agreement, other than pursuant to any OCB-Consequence exercised by the investor during the period between: (a) the date of exercise of a Put Option by the investor (pursuant to an Event of Default under Clause 9.1.3(i)) and (ii) the Put Option Closing Date.
- Any claims, demands and/or breaches relating to holding and/or transferring agricultural lands by the Company and/or its predecessors in title, under the provisions of the Maharashtra Tenancy and Agricultural Lands (Mortgage Reform) Act, 1948.
- Any objections, claims and/or demands being raised and/or proceedings being initiated by Bapaji Yashwantrao Sengupta (one of the erstwhile co-owners of land bearing Survey No. 8 measuring 1.88 Acres) in respect of Survey No. 8 measuring 1.88 Acres forming part of Project Land.
- Any objections, claim and/or demands being raised and/or proceedings being initiated by Shamrao Bhawanrao Dabwale, Gopalrao Suryasharan Dabwale, Kuntalrao Satishrao Khoshragade and/or Sarjibai Ramaji Jangade (in each case, being erstwhile co-owners of lands bearing Survey Nos. 22/2/A and 22/2/B forming part of the Project Land) or by any of their respective legal heirs, in relation to all and/or any part of the Project Land.
- Any claims, demands, attachments, and/or penalties arising out of or relating to the tax litigations involving PPL, including but not limited to the following pending proceedings: (i) Appeal bearing AOK No.7(1508830021001) filed before the IT (A), and (ii) IT/11/2019 filed by PE Commissioner, Nagpur against PPL before the Hon'ble Bombay High Court, Nagpur Bench, which affects the Project Land.
- Non satisfaction of charge created in favour of Maharashtra State Financial Corporation Bank (over lands bearing old survey no. 35/2 and old survey No. 35, now corresponding to New Survey Nos. 18 and 23/2) for the loan availed by Apex Explosives Private Limited (erstwhile owner to the Project Land).
- Any pending litigations, claims, demand notices in relation to the Project Land from any third party (including in relation to any equitable mortgages that were created on the Project Land) on account of the Company not being in possession of the originals of the: (i) Sale Deed dated 1 March 1995 executed between Chhotiya Tatha and Patanilar Mahesh Sakharekar (1995 Sale

Deed); (d) Sale Deed dated 28 January 1974 registered under Serial No. NPS - 946 of 1974 executed by Mr. Tukaram Yashraj Ingale in favour of (a) Yashwantrao Ingaleji Satpute and (b) Kanadu Ingaleji Satpute (1974 Sale Deed); (e) Sale Deed dated 9 November 1967 registered under Serial No. NPS - 4757 of 1967 executed by Mr. Bapurao Sitaram Dene in favour of Mr. Abbaas Hussain Voh (1967 Sale Deed); (f) Sale Deed dated 29 January 1981 registered under Serial No. NPS- 444 of 1981 executed by Abbaas A. Voh (son of Abbaas Hussain Voh) in favour of Apex Explosives Private Limited (through its Chairman, Shri Arjun Singh) (1981 Sale Deed); (g) Sale Deed dated 26 April 1982 registered under Serial No. NPS-445 of 1982 executed by Mr. Mahesh Narayan Patankar in favour of Apex Explosives Private Limited (1982 Sale Deed) and (h) Sale Deed dated 8 May 1984 registered under Serial No. NPS - 302 of 1984 executed by (1) Nathu Tukaram Jangade and (2) Shantard Ramji Jangade in favour of Mr. Arjun Singh (1984 Sale Deed) alongwith Deed of Correction dated 29 January 1988 registered under Serial No. NPS - 82 of 1988 executed by and between executed by Nathu Tukaram Jangade, Shantard Ramji Jangade and Mr. Arjun Singh (1988 Correction Deed).

SCHEDULE 16 | BUSINESS PLAN

[Revised separately]

SCHEDULE 17 | SECURITIES PLEDGE AGREEMENT

[Amended separately]

SECURITIES PLEDGE AGREEMENT

[insert date]

BY AND AMONGST

THE PERSONS SET OUT IN SCHEDULE 1

IN FAVOUR OF

WARDMAN TRUSTESHIP PRIVATE LIMITED

(AS THE DEBENTURE TRUSTEE)

FOR CREATION OF PLEDGE ON THE SECURITIES OF K&D WAREHOUSING PRIVATE LIMITED

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This Securities Pledge Agreement (this "Agreement") is executed, on this [•] day of [insert month] 2022 (the "Execution Date"), in Nagpur, by and amongst:

BY AND AMONGST:

1. THE PERSONS LISTED IN SCHEDULE I, as the Pledgers (hereinafter collectively referred to as the "Pledgers" and individually as the "Pledger", as the context may require, which expression shall, unless it be repugnant to the subject or context or meaning thereof, be deemed to mean and include its successors, executors, legal heirs, administrators, and permitted assigns (as the case may be)) of the FIRST PART;

AND

2. VISHWAN TRUSTEESHIP PRIVATE LIMITED, a company incorporated under the Companies Act 1956 with corporate identity number: U66010MH1997PL000001, having its registered office at 1st Floor, Room No. : 15, G, 1st Cross Range, Turner Memon House, Katsata : 500005, in the state of West Bengal, India and corporate office at The Capital, A Wing, 412A, Bandra Kurla Complex, Bandra [East], Mumbai - 400051, in the state of Maharashtra, India and a branch office at Concorde Tower 1, 607/61, Bhaukeshi Marg, New Delhi - 110002, in the National Capital Territory of Delhi, India (hereinafter referred to as the "Debenture Trustee" which expression shall, unless it be repugnant to the context or meaning thereof, mean and include its successors, transferees, nominees and assigns) of the SECOND PART; and

AND

3. SIO VISHACHANDRA PRIVATE LIMITED, a company incorporated under the Companies Act, 2013 with permanent account number AAAC034126 and having its registered office at Block No. 402, M.G. House, Ravindra Tagore Marg, Civil Lines, Nagpur Maharashtra 440001 (hereinafter referred to as the "Company", which expression shall, unless repugnant to the context or meaning thereof, be deemed to mean and include its successors and permitted assigns) of the THIRD PART;

The Pledgers, the Debenture Trustee and the Company are hereinafter collectively referred to as the "Parties" and individually as a "Party".

WHEREAS:

- A. Horizon Industrial Parks Private Limited, a company incorporated under the Companies Act, 2006 with permanent account number A/C02246P and having its registered office at First Floor Embassy Plaza, 158 Infantry Road, Bangalore, Karnataka ("HPPPL") and the Pledgers have entered into an investment agreement dated 31st October 2022 for purchase of the full Securities by HPPPL from Rajesh Steel and other members in connection therewith, in accordance with the terms and conditions set out therein ("Investment Agreement").
- B. The Pledgers are the sole and Beneficial Owners of their respective Pledged Securities (defined below) constituting, in aggregate, 33% (thirty five percent) of the issued and fully paid-up share capital of the Company (on a Fully Diluted Basis) subject to the terms of the Investment Agreement.
- C. In furtherance of securing the Secured Obligations, the Parties have agreed to enter into this Agreement for the creation of a pledge on all the Pledged Securities (defined below) held by the Pledgers in the Company (as the legal and/or Beneficial Owner) and in more particularly

set out in Schedule 3 ("Pledged Securities") ("Pledged Securities"), in favour of the Debenture Trustee, for the benefit of the Security Holder.

- (b) Accordingly, the Debenture Trustee has hereby called upon the Pledgor to execute these presents, which the Pledgor and the Company have agreed to do in the manner hereinafter expressed.

NOW, THEREFORE, in consideration of the mutual agreements, covenants, representations and warranties set forth in this Agreement, and for other good and valuable consideration, the receipt and sufficiency of which is acknowledged by the Parties, the Parties hereby agree as follows:

L. DEFINITIONS AND INTERPRETATION

Unless a contrary intention appears and/or the context otherwise requires, in addition to the terms defined elsewhere in this Agreement, the definitions listed in Part A of Schedule 2 (Definitions) shall apply throughout this Agreement. The interpretation and/or construction of this Agreement shall be in accordance with the rules of interpretation set out in Part 3 of Schedule 3 (Interpretation).

M. PLEDGE OF PLEDGED SECURITIES

M.1 Pledge

M.1.1 This Agreement is for the benefit of the Security Holder, and in order to secure the due performance and discharge of the Secured Obligations, each Pledgor does hereby:

- (a) pledge in favour of the Debenture Trustee, the Pledged Securities, along with all the rights, titles, claims, demands, benefits and interest whatsoever of the Pledgor in, to, under, or in respect of such Pledged Securities, and deposit and deliver to the Debenture Trustee, the Deposited Documents as security for the due repayment or redemption, as the case may be, of the Secured Obligations;
- (b) pledge, assign, transfer and charge to the Debenture Trustee, as a continuing security, until the Final Settlement Date, all of the Pledgor's right, title interest, benefits, claims and demands whatsoever in, to, under, or in respect of the Collateral upon the terms and conditions set forth in this Agreement; and
- (c) agrees and undertakes that: (i) if it acquires any further securities of the Company in addition to the Pledged Securities (by subscription, purchase, redemption, rights, bonus, options or otherwise) at any time after the Execution Date (the "Subsequently Pledged Securities"), then it shall immediately but not later than 2 (two) Business Days from the date of such acquisition, pledge in favour of the Debenture Trustee the Subsequently Pledged Securities, such that the total number of securities of the Company pledged with the Debenture Trustee at all times, represents 25% (twenty five per cent) of the Equity Securities of the Company (on a Fully Diluted Basis) together with all the rights, titles, claims, demands, benefits and interest whatsoever of the Pledgor in, to, under, or in respect of all such Subsequently Pledged Securities; and (ii) deposit and deliver to the Debenture Trustee the Deposited Documents along with a letter in the form set out in Schedule V

[Confirmation on the Subsequent Pledge of Securities] hereof relating to such Subsequently Pledged Securities and thereafter, such Subsequently Pledged Securities, together with the initially Pledged Securities shall comprise the Pledged Securities hereunder;

- 2.1.2 In the event, any of the Pledged OCEs are converted into Equity Shares ("Converted Equity Shares") prior to completion of the Conversion and Zoning Actions (as defined in the Investment Agreement), then Rajesh Steel shall no later than 2 (two) Business Days from the date of such conversion, pledge in favour of the Debenture Trustee, the Converted Equity Shares, along with all the rights, titles, claims, demands, benefits and interest whatsoever of Rajesh Steel in, to, under, or in respect of such Converted Equity Shares, and deposit and deliver to the Debenture Trustee, the Deposited Documents in relation to such Converted Equity Shares as security for the due repayment / payment / discharge / redemption, as the case may be, of the Secured Obligations and thereafter, such Converted Equity Shares, together with the initially Pledged Securities and Subsequently Pledged Securities shall comprise the Pledged Securities hereunder.
- 2.1.3 The pledge created under this Agreement over the Pledged Securities in favour of the Debenture Trustee shall be exclusively for the benefit of the Security Holder.
- 2.1.4 The Pledgors shall on the Execution Date:
- (a) submit to the Debenture Trustee, the original of all the applicable Deposited Documents as per the terms hereof and the Debenture Trustee shall be entitled to keep custody of the same in accordance with the terms of this Agreement and shall return the same to the Pledgors only on or immediately after the Final Settlement Date;
 - (b) irrevocably appoint the Debenture Trustee as each Pledgor's attorney to execution of the Power of Attorney with full authority to act in the place and instead and on behalf of the Pledgors and in its name and the Pledgors agree that such power would be a power coupled with interest;
 - (c) sign such other documents and do all such acts, agreements and things as shall be necessary to perfect the pledge of the Pledged Securities in favour of the Debenture Trustee, to additionally secure the due repayment, redemption and discharge of all Secured Obligations including for the enforcement of the pledge created hereunder or pursuant hereto; and
 - (d) on the date of this Agreement and upon the submission of the applicable Deposited Documents to the Debenture Trustee, the Pledgors acknowledge and confirm that the pledge in favour of the Debenture Trustee shall come into effect.
- 2.1.5 In the event of a failure of the Pledgors to take all such actions and steps to create and perfect the Encumbrance, the Debenture Trustee may, pursuant to the Power of Attorney, take all such steps and actions to create and perfect the Encumbrance created by the Pledgors.
- 2.1.6 Within 30 (thirty) days from the Dating Date, the Pledgors and the Company shall dematerialize the Pledged Securities, as required under the Investment Agreement,

and for said purpose the Debenture Trustee shall, at the written request of the Pledgors, for 2 (two) Business Days, release the original OCD Certificates and Share Certificates relating to the Pledged Securities to the Pledgors or to the Depository, as may be required under Applicable Law. In respect of the release of original physical OCD Certificates and Share Certificates for the purpose of dematerialisation as aforesaid, the pledge on the Pledged Securities shall be deemed to continue from the date of creation of Securedness over the Pledged Securities under this Agreement and to be in full force and effect for all intent and purposes until the Final Settlement Date.

2.1.7 Within 1 (One) Business Day from the Pledged Securities being dematerialised as above, the Pledgors shall:

- (a) cause the Participant to mark and confirm the Pledge in favour of the Debenture Trustee and issue such requests including the Pledge Request Form;
- (b) sign such documents and do all such acts, deeds and things as shall be required under Applicable Laws or by each Pledgor's Participant for the creation and perfection of the Securedness over the Pledged Securities;
- (c) deposit the following documents, as applicable being: (A) copies of the Pledge Request Form to be filed in each Pledgor with the Participant requesting for the creation of the pledge on the dematerialised Pledged Securities and confirming the availability of the Pledged Securities for pledge; (B) the intimation received from the Depository confirming the creation and the noting of the Pledge over the Pledged Securities in favour of the Debenture Trustee and the transfer of the Pledged Securities from the "free balance" to the "pledged balance"; and (C) certified copy of the statement of accounts in respect of the Pledged Securities issued by the Participant together with letter from the Participant confirming the holding of the Pledged Securities including the Pledged Securities by the Pledgors as the beneficial Owner thereof; and/ or (D) other relevant documents, with the Debenture Trustee as may be required, and acceptable to the Debenture Trustee in furtherance of the pledge created in respect of the Pledged Securities; and
- (d) ensure compliance with the provisions of the Depositories Act and other Applicable Laws.

2.1.8 The Company and the Pledgors shall take all necessary steps and perform all necessary actions, to the satisfaction of the Debenture Trustee, to cause the Pledged Securities, to be dematerialised.

2.1.9 Upon receipt of the aforesaid intimation, the Debenture Trustee shall cause its Participant to mark and confirm the pledge in favour of the Debenture Trustee and issue such requests and sign such documents and do all such acts, deeds and things as shall be required under the Depositories Act and other Applicable Laws or by the Participant of the Debenture Trustee for the creation and perfection of the pledge over the Pledged Securities.

2.2 Dividends and Other Distributions

- 2.2.1 On and after the Exercise Date, any and all dividends paid or payable other than in cash in exchange of any Pledged Equity Shares or in connection with a reduction of capital comprising of the Pledged Equity Shares shall (irrespective of whether an Event of Default has occurred) forthwith be delivered to the Debenture Trustee, and which amount shall be held by the Debenture Trustee as part of the Collateral and shall, if received by the Pledgor, be received in trust for the benefit of the Security Holder, and shall be segregated from the other property or funds of the Pledgor, and forthwith be delivered to the Debenture Trustee as Collateral in the same form as so received.
- 2.2.2 Any and all money and other property paid over to or received by the Debenture Trustee and retained by the Debenture Trustee pursuant to the provisions of Clause 2.2.1 shall be constituted as additional Collateral under this Agreement.

2.3 Remedies on an Event of Default

- 2.3.1 Each Pledgor agrees that at any time after the occurrence of an Event of Default (as per the terms of the Investment Agreement) which has not been cured within the Cure Period (or the event a Cure Period is applicable for such Event of Default, as per the terms of the Investment Agreement), the Debenture Trustee shall have the right, to exercise all the rights, powers and remedies vested in it (whether vested in it by this Agreement and/or any other Debenture Document or by Applicable Law) for the protection and enforcement of its rights in respect of the Collateral, and the Debenture Trustee shall be entitled, without limitation, to exercise any or all of the following rights, so often as it deems fit:
- (a) to receive all amounts payable in respect of the Collateral or otherwise payable under Clause 2.2 (Dividends and Other Distributions) above, to the Pledgor;
 - (b) to transfer or register in the name of the Debenture Trustee or any of its nominees, as the Debenture Trustee shall direct, the Pledged Securities, at the cost of the Security Holder;
 - (c) to exercise voting rights in respect of all or any part of the Pledged Securities, as applicable, (whether or not transferred in the name of the Debenture Trustee) and otherwise act with respect thereto as though it were the outright owner thereof. The Pledgor shall execute and deliver to the Debenture Trustee all such proxies and other instruments as the Debenture Trustee may request for the purpose of enabling the Debenture Trustee to exercise the voting and other rights in the shareholders meetings of the Company in accordance with the instructions of the Debenture Trustee;
 - (d) to sell the Collateral (or any part thereof) in exercise of the power conferred under Clause 5 (Power of Sale) of this Agreement and apply the proceeds thereof towards payment of the Secured Obligations in accordance with the terms of the Investment Agreement; and
 - (e) to exercise any of its rights, as conferred on the Security Holder and/or Debenture Trustee pursuant to the Investment Agreement.

2.4 Waivers and Acknowledgements

- 2.4.3 Each Pledgor hereby waives its rights to terminate or revoke this Agreement and obtain redelivery of the Pledged Securities or any part or all of the Collateral until the Final Settlement Date.
- 2.4.3 Each Pledgor recognizes and acknowledges that the Encumbrance created pursuant to this Agreement, all rights, title, interest, benefits, claims and demands whatsoever of the Pledgors in, to, under, or in respect of the Collateral, including the terms, conditions, undertakings, declarations and covenants given by the Company and the Pledgors, is held upon trust by the Debenture Trustee for the benefit of the Security Holder. The Encumbrance created pursuant to this Agreement in favour of the Debenture Trustee shall be first ranking for benefit of such Security of the Security Holder.

2.5 Retained Ownership of Pledged Securities

Unless the Debenture Trustee exercises any of its remedies on default pursuant to Clause 2.2 (Remedies on an Event of Default) of this Agreement, the Pledgors shall remain the owner of the Pledged Securities on the records of the Company, and the Pledgors shall give the Debenture Trustee copies of any notices or other communications received by the Pledgors with respect to the Pledged Securities and which have a bearing on the rights of the Secured Parties.

3. CONTINUING SECURITY

- 3.1 This Agreement and the Encumbrance created hereunder, are and shall be a continuing Security and shall remain in full force and effect until the Final Settlement Date, notwithstanding any intermediate payment or satisfaction of any part of the Secured Obligations or any insolvency or bankruptcy or any incapacity of any of the Pledgors, notwithstanding any irregularity, invalidity, frustration or other unenforceability of the obligations of any of the Pledgors under the Debenture Documents, the insolvency or bankruptcy or any incapacity, as the case may be, of the Pledgors, any intermediate settlement of account or any other document or security or any arrangement which may be reached between the Debenture Trustee and any other provider(s) of security or any present or future law or order of any Governmental Authority (whether of right or in fact) purporting to reduce or otherwise affect any obligations of the Pledgors under this Agreement, this Agreement shall remain in full force and effect and shall be construed accordingly as if there were no such irregularity, unenforceability, invalidity, law or order.
- 3.2 The Security is in addition to and independent of the Encumbrance created in accordance with the terms of the other Debenture Documents.
- 3.3 The powers which this Agreement confers on the Debenture Trustee are cumulative, without prejudice to the powers available to the Debenture Trustee under Applicable Law and any Debenture Documents, and may be exercised as often as the Debenture Trustee may deem appropriate in accordance with these powers.
- ## 4. REPRESENTATIONS AND WARRANTIES
- 4.1 Representations and Warranties of the Pledgors
- 4.1.1 Each Pledgor represents, warrants, undertakes and covenants to the Debenture Trustee that as on the Execution Date, each of the following statements are true, correct, valid and not misleading:

- (b) each Pledgor is domiciled and resident for tax and regulatory purposes in India and has full authority, capacity and power to execute and give effect to this Agreement;
- (c) they are the sole owners of each number and percentage of the Pledged Securities as is enumerated in Schedule 3 (Pledged Securities) of this Agreement and have good and marketable title to the Pledged Securities which are free from any security interests other than the Encumbrance created hereunder or any other Transaction Documents (as defined in the Investment Agreement);
- (d) the execution, delivery and performance by the Pledgors and the Company of this Agreement and the consummation of transactions contemplated herein does not:
 - (i) violate, conflict with, result in a breach of the terms, conditions or provisions of or constitute a default, an event of default (or an event that, with the giving of notice or lapse of time or both, would constitute an event of default) under any or all of the following:
 - i. in case of Rajshahi Steel and the Company, its respective Charter Documents;
 - ii. any Contract to which any of them is a party;
 - iii. any Consent, Governmental Approval or any Order, to which any of them is a party or by which any of this is bound; or
 - iv. any Applicable Law;
 - or
 - (ii) constitute an act of bankruptcy, preference, insolvency or fraudulent conveyance under any bankruptcy act or other Applicable Law for the protection of debtors or creditors;
- (e) neither it nor any of its Assets or revenues are entitled to any immunity or privilege (sovereign or otherwise) from any legal process;
- (f) all Pledged Securities owned, are validly issued, and as on the Execution Date fully paid up, and are not subject to, and shall not hereafter become subject to, any Encumbrance (other than the Encumbrance created under this Agreement or the Shareholders' Agreement) including options to purchase, voting trusts, share restriction agreements, or similar rights of the Pledgors or any other person. Other than as provided under this Agreement or the Shareholders' Agreement, the Pledgors are not and will not become a party to or otherwise be bound by any agreement or arrangement which restricts, in any manner, the transfer of the Pledged Securities or the rights of any present or future holder of any of the Pledged Securities with respect thereto;
- (g) each of this Agreement and the Power of Attorney (executed by each Pledgor in favor of the Debenture Trustee, acting on behalf of the Security Holder) are the legal, valid and binding obligations of the Pledgors, enforceable against the Pledgors in accordance with its terms;

- (g) they do not have in their possession, any physical share certificates in respect of the Pledged Securities issued by the Company other than those mentioned in Schedule II (Pledged Securities) and which shall be deposited with the Debenture Trustee in terms of this Agreement; and
- (h) the Encumbrance granted to the Debenture Trustee or provided for hereunder constitutes (and shall continue to remain) a valid lien upon the Pledged Securities and to all the Collateral, having the priority set out herein. Upon the delivery of the Pledged Securities to the Debenture Trustee, the Debenture Trustee shall have a perfected, first priority Encumbrance in all the Collateral, subject to no other liens, security interests, or restrictions.

4.2 Representations and Undertakings of the Company

4.2.1 The Company represents, warrants, undertakes and confirms to the Debenture Trustee that as on the Execution Date, each of the following statements are true, correct, valid and not misleading:

- (a) the Pledged Securities have been duly authorized and validly issued and are fully paid;
- (b) each Pledgor is the beneficial holder of the Pledged Securities set out in Schedule II (Pledged Securities) hereto;
- (c) other than as expressly allowed under this Agreement or any other transaction document, the Company has not issued or agreed to issue or granted any option or other right to any Person to acquire any Equity Securities of the Company without the consent of the Debenture Trustee;
- (d) no charge or other instrument signifying any Encumbrance on or in respect of all or any portion of the Collateral including, without limitation, the Pledged Securities is registered with the Company, except such as may have been filed in favour of the Debenture Trustee under this Agreement;
- (e) the Company is not party to any agreement which is inconsistent with the provisions of this Agreement and in the event of any inconsistency the provisions contained herein shall prevail;
- (f) all the Pledged Securities are in physical form, which will be dematerialised with the prior written consent of the Debenture Trustee;
- (g) the Company and/or the Pledged Securities are not entitled to any immunity or privilege (sovereign or otherwise) from any set-off, judgment, execution, attachment or other legal process;
- (h) the Company is in compliance with, and the operations by the Company has been conducted at all times in compliance with Anti-Corruption Laws, Anti-Money Laundering Laws and Sanctions Laws and no actions, suits, proceedings, investigations, litigation, arbitration or administrative proceedings of any kind in relation to the Pledged Securities in any court or before any arbitrator or any other Governmental Authority, including without limitation in relation to actual or potential violations of Anti-Corruption Laws,

Anti Money Laundering Laws or Sanctions Laws, are at present current or pending against the Company or to its knowledge, threatened in writing.

- (i) after dematerialisation of the Pledged Securities, the Company shall not issue to the Pledgor, Equity Securities which are in a form other than in dematerialised form.

4.3 Acknowledgement of Reliance

The Pledgor acknowledges that the Debenture Trustee has agreed to enter into this Agreement and the transactions contemplated therein in reliance upon the representations, warranties, covenants and undertakings contained herein.

4.4 Certain Covenants

4.4.1 Each Pledgor hereby irrevocably directs, instructs and authorises the Company not to register any transfer of the Pledged Securities except in accordance with the provisions hereof and the Company agrees and confirms that it shall not register any transfer of the Pledged Securities except in accordance with the provisions hereof. Further, the Pledgor shall, if required, cause the Company to amend its Charter Documents to perfect and acknowledge the rights of the Debenture Trustee under this Agreement, to the satisfaction of the Debenture Trustee.

4.4.2 Each Pledgor irrevocably waives any defenses or rights it may have under any agreement or arrangement as against the Debenture Trustee, for the performance of any rights under or pursuant to this Agreement and the other Debenture Documents.

5. UNDERTAKINGS

5.1 Pledgor's Undertakings

5.1.1 Each Pledgor undertakes and agrees with the Security Holder and the Debenture Trustee that throughout the continuance of this Agreement and until the final Settlement Date, each Pledgor shall:

- (a) duly observe and perform all the obligations under this Agreement;
- (b) within 1 (one) Business Day from the dematerialisation of the Pledged Securities, deliver to the Debenture Trustee:
 - (i) the evidence that the Pledgor's Participant has taken on record the documents filed to create and perfect under the Depositories Act and the Depositories Regulations, the pledge created over the Pledged Securities in favour of the Debenture Trustee pursuant to this Agreement; and
 - (ii) evidence that the Pledgor's Participant has informed the Debenture Trustee's Participant of the matters provided in sub-paragraph (i) above; Note: To be updated (see comments above)
- (c) do or permit to be done every act or thing which the Debenture Trustee may from time to time require for the purpose of perfection, maintenance, enforcement and protection of the pledge agreed to be created or created by

it under this Agreement and the rights of the Debenture Trustee hereunder including, without limitation, procuring the registration of the Pledged Securities in the manner as may be necessary pursuant to this Agreement;

- (4) upon dematerialisation of the Pledged Securities, not consent or assent to do any act, deed or thing which may entitle the Participant to terminate its agreement with the Pledgor;
- (5) upon dematerialisation of the Pledged Securities, follow the procedure prescribed under Regulation 79 of the Depositories Regulations for creating the pledge in respect of the Pledged Securities;
- (6) after dematerialisation of the Pledged Securities, no application or claim for the rectification of the record of the Pledgor's Participant has been made in respect of any transfer of the Pledged Securities made / to be made in favour of the Debenture Trustee on any grounds whatsoever;
- (7) inform the Debenture Trustee of the occurrence or likely occurrence of any Event of Default or any other event or circumstance which is likely to affect the capacity of the Pledgor to fulfil or discharge their obligations under this Agreement within 1 (one) Business Day from the date of occurrence of the Event of Default or from the date of knowledge of the occurrence or likely occurrence of any Event of Default or any other event as mentioned above;
- (8) make all such things and registrations, and file and submit all such forms, documents, instruments, transfer deeds (including filing of the Pledge Request Form) and to take all such other steps, as may be necessary in connection with the creation, perfection or protection of the pledge under this Agreement which may be required in connection herewith;
- (9) upon dematerialisation of the Pledged Securities:
 - (i) not file any application or claim for the rectification of the record of any Pledgor's Participant, in respect of any transfer of the Pledged Securities made / to be made in favour of the Debenture Trustee on any grounds whatsoever;
 - (ii) provide the Debenture Trustee such confirmation and account statements from each Pledgor's Participant and each Pledgor's Depository, as may be required by the Debenture Trustee from time to time in connection with the Pledged Securities;
- (10) upon the occurrence of an Event of Default, cause the Depository to register the transfer of Pledged Securities (if the Pledged Securities are in dematerialised form at that time) to such persons as may be notified by the Debenture Trustee upon exercise of the power of sale conferred under Clause 5 (Power of Sale) of this Agreement;
- (11) not sell, transfer, further pledge or otherwise charge, lease, encumber, dispose of or deal with any of the Pledged Securities for the time being subject to or intended to be the subject of the charge under this Agreement, nor shall they, in any manner do or permit or suffer any act, whereby the Pledged Securities are in any manner prejudicially affected;

- (E) not take any action that would constitute a violation, or implicate the Security Holder or any of its Affiliates in a violation, of any Applicable Law of any jurisdiction in which the Pledgors perform their business, or of the United States, or of the United Kingdom, including without limitation, Anti-Corruption Laws, Anti-Money Laundering Laws or Sanctions Laws.

5.2 Company Undertakings

5.2.1 Without prejudice to the provisions of the Debenture Documents, the Company shall, and the Pledgors shall ensure that the Company shall, throughout the continuance of this Agreement and until the Final Settlement Date:

- (a) make an appropriate entry or note of this Agreement in its records and if required amend its Charter Documents to recognise the rights of the Debenture Trustee under this Agreement;
- (b) not do, cause or permit to be done anything which may in any way, dilute, diminish, jeopardise or otherwise, prejudice the Pledged Securities / Collateral or the Encumbrance created hereunder or that would impair the rights of the Pledgors hereunder, or that would impair the Encumbrance created hereunder;
- (c) not issue duplicate share certificates or any shares or other securities of any class, series or preference in substitution and/or in respect of the Pledged Securities except with the prior written consent of the Debenture Trustee;
- (d) ensure that the agreement which it has entered/ proposes to enter into with its Depository for dematerialising the Pledged Securities subsists till the final Settlement Date, and
- (e) issue only fully paid-up equity securities and which are not subject to, any Encumbrance (other than the Encumbrance created/ to be created under this Agreement) including options to purchase, voting trusts, share restriction agreements, or similar rights of the Pledgors or any other person.

6. POWER OF SALE

6.1 Enforceability

Upon the occurrence of an Event of Default and/or during the continuance of an Event of Default, where such Event of Default has not been cured within the Cure Period (in the event a Cure Period is applicable for such Event of Default), the Debenture Trustee or its nominee may, without further authority and without prejudice to its other rights under any Applicable Law and under or pursuant to this Agreement but after giving to the Pledgors 2 (one) day's notice (which period of notice the Pledgors hereby agree is a reasonable notice) of the sale and the transfer of any Pledged Securities, at the cost of HPPF, sell or dispose of all or any part of the Collateral (whether by private deal or otherwise) and shall apply the proceeds of any such sale or disposition in accordance with [Clause 12](#) (Distribution of Payments) hereof.

6.2 Sale of Collateral

6.2.1 The Debenture Trustee, acting in its capacity as a Debenture Trustee for and on behalf of the Security Holder, shall be entitled to exercise such power of sale pursuant to

Clause 5.1 [Enforceability] on such terms and in such manner and at such time or times and for such consideration (whether payable immediately or by instalments) as may be approved by the Security Holder.

6.2.2 Without prejudice to the above, the Pledgors acknowledge and irrevocably agree that the Debenture Trustee shall be entitled, upon the occurrence of an Event of Default which has not been cured within the Cure Period (in the event a Cure Period is applicable for such Event of Default), to exercise all the rights and powers of sale pursuant to Clause 5.1 [Enforceability] hereinafores.

6.2.3 The Pledgors shall procure / ensure that the Company shall not raise any objections regarding the regularity of the sale (including the timing, the price and/or the transferee of such sale) and/or actions taken by the Debenture Trustee and/or the Security Holder, nor shall the Debenture Trustee and/or the Security Holder be liable or responsible for any loss that may be occasioned from the exercise of such power and/or may arise from any act or default on the part of any broker or auctioneer or other person or body engaged by the Debenture Trustee for such purpose.

6.3 Discharge by Debenture Trustee

The Debenture Trustee is authorised to give a good discharge for any monies received by it pursuant to the exercise of its power of sale (subject to the provisions of the Debenture Documents).

6.4 No Liability for Losses

The Pledgors shall not have any claim against the Debenture Trustee or its nominees in respect of any loss arising out of any such sale pursuant to Clause 5.1 [Enforceability] and Clause 5.2 [Sale of Collateral] hereof or any postponement thereof howsoever caused and whether or not a better price could or might have been obtained upon the sale or disposition of the whole or any part of the Collateral by deferring or advancing the date of such sale or otherwise howsoever.

6.5 Waiver of Pre-emption Rights

The Pledgors hereby expressly waive any right they may have to purchase any part of the Collateral in the event of a sale or disposition pursuant to the power of sale contained in the Clause 5 [Power of Sale].

7. CLAIMS BY THE PLEDGORS

Each Pledgor represents to, and undertakes with, the Debenture Trustee that it has not taken and will not take any security in respect of its liability under this Agreement from any person. Until the Final Settlement Date, the Pledgors shall not exercise any claim in the corporate insolvency resolution process or liquidation of the Company in competition with the Debenture Trustee.

8. SUBORDINATION OF PLEDGORS' CLAIMS

8.1 Subordination

Save as permitted or provided in the Debenture Documents or as the Debenture Trustee may otherwise agree, any claim (monetary or otherwise) of the Pledgors against the Company shall

at all times during the subsistence of this Agreement until the Final Settlement Date, be subordinated to the claims of the Security Parties.

8.2. WAIVER

The Pledgors hereby irrevocably waives any right of subrogation, contribution or indemnity it may have against the Company in respect of any transfer of the Pledged Securities under this Agreement or as a result of the enforcement of the security under this Agreement until the Final Settlement Date.

8.3. No Claims against the Company

Notwithstanding anything stated in this Agreement, the Pledgors shall have no claims against the Company whatsoever in the event: (a) the Sale Securities are converted into Equity Shares of the Company pursuant to the terms of the Debenture Documents; and/or (b) the Pledged Securities are enforced in terms of Clause 6.1 (Enforceability) of this Agreement.

9. TAXES AND OTHER DEDUCTIONS

- 9.1. If the pledgor makes payment of any sum of money under this Agreement which is subject to any Tax in the hands of the Debenture Trustee, the Pledgor shall pay such additional amounts so as to ensure that the net amount received by the Debenture Trustee is equal to the full amount payable by the Pledgor to the Debenture Trustee, and the Debenture Trustee receive the amount that they would have been entitled to receive prior to such Taxes.

10. COSTS, CHARGES AND EXPENSES

- 10.1. Except as otherwise provided in this Agreement, each Party shall pay its own expenses in connection with the preparation and performance of this Agreement and the consummation of the transactions contemplated herein, including without limitation, all fees and expenses of legal and financial advisers, independent accountants and activities.

- 10.2. All costs and expenses (including payment of applicable stamp duty) incurred in respect of or relating to creation of Encumbrance over the Pledged Securities under this Agreement shall be borne by the Security Holder.

- 10.3. Any costs and expenses incurred by the Debenture Trustee in respect of or relating to creation of Encumbrance over the Pledged Securities under this Agreement shall be reimbursed to the Debenture Trustee by the Security Holder.

11. FURTHER ASSURANCE

The Parties shall execute other documents, cause meetings to be held, cause resolutions to be passed, exercise their votes and do and perform, and cause to be done and performed such further acts and things as may be necessary or desirable in order to give full effect to this Agreement and the transactions contemplated under this Agreement, whether before or after the Security hereby created shall have become enforceable.

12. WAIVER

No waiver of any provision of this Agreement or consent to any departure from it by any Party shall be effective unless it is in writing and signed by a duly authorized representative of the concerned Party. A waiver or consent shall be effective only for the purpose for which it is

given, the default or delay on the part of any Party in exercising any rights, powers or privileges operates as a waiver of any right, nor does a single or partial exercise of a right preclude any exercise of other rights, powers or privileges.

13. DISTRIBUTION OF PAYMENTS

All moneys received or recovered by the Debenture Trustee pursuant to this Agreement and/or the powers hereby conferred shall be applied, appropriated, and distributed in accordance with the Debenture Documents or instructions issued to the Debenture Trustee by the Security Holder in writing. Any surplus of such moneys, following payment in full of all Secured Obligations shall be paid over to the Pledgor.

14. SEVERABILITY

Any provision of this Agreement, which is invalid or unenforceable, shall be ineffective to the extent of such invalidity or unenforceability, without affecting in any way the remaining provisions hereof. If for any reason whatsoever, any provision of this Agreement is or becomes, or is declared by a court of competent jurisdiction to be, invalid, illegal or unenforceable, then the Parties will promptly negotiate in good faith to agree on such provision to be substituted, which provisions shall, as nearly as practicable, leave the Parties in the same or nearly similar position to that which prevailed prior to such invalidity, illegality or unenforceability.

15. MISCELLANEOUS

15.1 Protective Covenants

The obligations of the Pledgor and the Company under this Agreement will not be affected by any act, omission, matter or thing (including whether or not known to the Pledgor and the Company) or any act or omission of the Debenture Trustee which would reduce, release or prejudice any of its obligations under this Agreement or prejudice or diminish those obligations in whole or in part including:

- 15.1.1 any waiver, exercise, omission, compromise, arrangement or settlement with or the granting of any time, concession, consent or indulgence to, the Pledgor under the Debenture Documents;
- 15.1.2 any variation in the terms, conditions or manner of disbursement of monies under the Debenture Documents;
- 15.1.3 any amendment to the Debenture Documents;
- 15.1.4 changes in the obligations of the Pledgor to make payments under the Debenture Documents towards principal, interest, fees and expenses;
- 15.1.5 any time or waiver granted to, or composition with, another Person;
- 15.1.6 the taking, variation, compromise, exchange, removal, disposition or release of, or refusal or neglect to perfect, take up or enforce, any rights against, or security over Assets of, another Person or any non-presentation or non-obtaining of any formality or other requirement in respect of any instrument or any failure to realize the full value of any security;

- 15.1.7 any incapacity or lack of powers, authority or legal personality of or dissolution or change in the constitution or status of another Person;
- 15.1.8 any variation, modification or alteration of the Debenture Documents or any other document including postponement or advancing of the time or revision of terms for repayment of any monies payable by the Pledgers to the Security Holder under the Debenture Documents or order of appropriation of the monies paid by the Pledgers to the Security Holder, except to the extent references to the Debenture Documents or any of them or such other document in this Agreement shall include such variation;
- 15.1.9 the winding up, bankruptcy, change in constitution or management or re-organisation, nationalisation or acquisition of any other Person or any change in its status, function, control or ownership; or
- 15.1.10 any unenforceability, illegality or invalidity of any obligation of any person due to any other document, to the extent that the Pledger's obligations under this Agreement shall remain in full force and its obligations be continued accordingly, as if there were no unenforceability, illegality or invalidity.

15.2 Unrestricted Right of Enforcement

Upon the occurrence of an Event of Default which has not been cured within the Cure Period (in the event a Cure Period is applicable for such Event of Default), this Agreement may be enforced without the Debenture Trustee first having recourse to any of its other rights or any other security or right or taking any other steps or proceedings against the Pledgers or any other person hereunder or under any Debenture Documents to which it is or is to be a party or any other person or may be enforced for any balance due after resorting to any one or more other means of obtaining payment or discharge of the Secured Obligations.

15.3 Discharges and Releases

Notwithstanding any discharge, release or settlement from time to time between the Debenture Trustee and the Pledgers, if any discharge or payment granted or made to the Debenture Trustee in respect of the Secured Obligations by the Pledgers or the Company or any other person is avoided or set aside or ordered to be surrendered, paid over, refunded or refused by virtue of any provision of Applicable Law or any enactment relating to bankruptcy, insolvency, liquidation, winding up, industrial sickness, composition or arrangement for the time being in force or due to any contract or for any other reason whatsoever, the Debenture Trustee shall be entitled hereafter to enforce this Agreement as if no such discharge, release or settlement had occurred.

15.4 Amendment

No change, alteration, variation, modification or addition to this Agreement shall be valid unless in writing and properly executed by the Parties hereto.

15.5 Limitation on Rights of Others

Nothing in this Agreement, whether express or implied, shall be construed to give to any person other than the Debenture Trustee any legal or equitable right, remedy or claim under or in respect of this Agreement, or in the Collateral, except as expressly provided in this Agreement, any covenants, conditions or provisions contained herein, all of which are, and shall be construed to be, for the sole and exclusive benefit of the Debenture Trustee.

15.6 Reporting requirements

Each Pledgor shall, whenever required by the Debenture Trustee, give full particulars to the Debenture Trustee, of all the Assets of the Pledgor and of the Collateral and shall furnish and verify all documents, statements, reports, returns, certificates and information from time to time and as required by the Debenture Trustee.

15.7 Incorporation of Terms

The provisions of Clauses 14.2 (Devotion), 14.3 (Counterparty), 14.8 (Specific Performance), 14.9 (Tender Agreement), 14.10 (No Recourse), 14.17 (No Use of Blockchain Name) of the Investment Agreement shall apply, *mutatis mutandis*, to this Agreement as if specifically set out herein and as if specifically set out herein and all references to "this Agreement" or "the Agreement" in such clauses of the Investment Agreement shall be deemed to be a reference to this Agreement.

16. ASSIGNMENT

The Pledgers shall not assign or transfer all or any of its rights, benefits or obligations under this Agreement without the written approval of the Debenture Trustee and in accordance with the Debenture Documents. The Debenture Trustee and/or the Security Holder may, assign or transfer all or any of their rights, title and benefits under this Agreement in accordance with the Debenture Documents.

17. RELEASE AND TERMINATION

Promptly upon the occurrence of the Final Settlement Date, this Agreement shall terminate and the Debenture Trustee shall, release the Collateral from the pledge created hereby, and take the following steps, if required:

- 17.1 execute in favour of the Pledgers such deeds / deeds of transfer or release as may be necessary for the purpose of retransferring or releasing the Pledged Securities in favour of such Pledgor;
- 17.2 deliver such of the Collateral as may be in the possession of the Debenture Trustee, and has not been sold or otherwise applied or released till then; and
- 17.3 deliver the powers of attorney executed in favour of the Debenture Trustee, acting in its capacity as the agent of the Security Holder, marked "Cancelled".

18. NOTICES

- 18.1 Unless otherwise stated, all notices, approvals, instructions, demands and other communications given or made under this Agreement shall be in English and in writing and shall be given by personal delivery, or by sending the same by prepaid registered mail addressed to the relevant Party at its address, or to the email account set out below:

18.1.1 If to the Debenture Trustee

Address	The Capital, A Wing, 412A, Bandra Kurla Complex, Bandra (East), Mumbai - 400012
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Email csuladd@csuladdtrustee.com

Attention Mr. Bushabh Desai

18.1.2 If to the Hedgees, as per the details set out in [Schedule 5]

18.1.3 If to the Company, prior to Closing:

Address: [1982nd, 8th Floor, M. G. House, Ravindranath Tagore Road, Civil Lines, Nagpur, Maharashtra 440001](#)

Email ashishdeshmukh01@gmail.com

Attention Ashish Deshmukh

18.1.4 If to the Company, after Closing:

Address: [1982nd, 8th Floor, M. G. House, Ravindranath Tagore Road, Civil Lines, Nagpur, Maharashtra 440001](#)

Email ashishdeshmukh01@gmail.com

Attention Ashish Deshmukh

Copy to:

Address Tower 1, Floor 15, One World Centre, Lower Panel, Mumbai, 400015

Email kunal.shah@hipevents.com

Attention Kunal Ranun Shah

18.2 A Party may change or supplement the addresses given above, or designate additional addresses, for purposes of this Clause 18 (Notices), by giving the other Parties written notice of the new address in the manner set forth above.

18.3 Any notice so served shall be deemed to have been duly given: (i) in case of delivery by hand, when hand delivered to the other Party; (ii) when sent by registered mail, on receipt by the addressee, or (iii) for electronic mail, upon a confirmation of transmission being recorded on the server of the Party sending the communication, unless the Party receives a message indicating failed delivery.

19. GOVERNING LAW AND JURISDICTION

This Agreement shall be governed in all respects by the laws of India (without reference to its conflict of laws provisions). Subject to the provisions of Clause 20 (Dispute Resolution), the Parties agree to be subject to the non-exclusive jurisdiction of the courts in Nagpur, India.

20. DISPUTE RESOLUTION

The provisions of Clause 20 (Dispute Resolution) of the Investment Agreement shall apply, *mutatis mutandis*, to this Agreement as if specifically set out herein and as if specifically set out herein and all references to "this Agreement" or "the Agreement" in Clause 20 (Dispute Resolution) of the Investment Agreement shall be deemed to be a reference to this Agreement.

21. CONFIDENTIALITY AND NON DISCLOSURE

The provisions of Clause 11 (Confidentiality and Non Disclosure) of the Investment Agreement shall apply, *mutatis mutandis*, to this Agreement as if specifically set out herein and as if specifically set out herein and all references to "this Agreement" or "the Agreement" in Clause 11 (Confidentiality and Non Disclosure) of the Investment Agreement shall be deemed to be a reference to this Agreement.

(Following this page are the signature pages.)

IN WITNESS WHEREOF, THE PARTIES HERETO HAVE CAUSED THIS AGREEMENT TO BE DULY
EXECUTED AND DELIVERED BY THEIR DULY AUTHORIZED REPRESENTATIVES AS OF THE DAY AND
YEAR FIRST HEREBYABOVE WRITTEN

Signed and delivered for by

SALEHAT AGHARJANIAN

IN WITNESS WHEREOF, THE PARTIES HERETO HAVE CAUSED THIS AGREEMENT TO BE DULY
EXECUTED AND DELIVERED BY THEIR DULY AUTHORIZED REPRESENTATIVES AS OF THE DAY AND
YEAR FIRST HEREBYABOVE WRITTEN

Signed and delivered for by

BOCERUL NDI ECECE ACEANAL

IN WITNESS WHEREOF, THE PARTIES HERETO HAVE CAUSED THIS AGREEMENT TO BE DULY
EXECUTED AND DELIVERED BY THEIR DULY AUTHORIZED REPRESENTATIVES AS OF THE DAY AND
YEAR FIRST HEREINAFORE WRITTEN

Signed and delivered for and on behalf of

BAJESH STEEL INDUSTRIES PRIVATE LIMITED

Name: My Authorized Agent

Title: Authorized signatory

IN WITNESS WHEREOF, THE PARTIES HERETO HAVE CAUSED THIS AGREEMENT TO BE DULY
EXECUTED AND DELIVERED BY THEIR DULY AUTHORIZED REPRESENTATIVES AS OF THE DAY AND
YEAR FIRST HEREBY ABOVE WRITTEN

Signed and delivered for and on behalf of

VARADHAN FINANCIAL SERVICES LIMITED

Name: [X]

Title: Authorized signatory

IN WITNESS WHEREOF, THE PARTIES HERETO HAVE CAUSED THIS AGREEMENT TO BE ONLY
EXECUTED AND DELIVERED BY THEIR ONLY AUTHORIZED REPRESENTATIVES AS OF THE DAY AND
YEAR FIRST HEREINAFORE WRITTEN.

Signed and delivered for and on behalf of:

END WARRIORFUND PRIVATE LIMITED

Name: Authorized Agent

Title: Authorized signatory

Sr. No.	Name of the Pledgee	Notice Details	
1.	RAJESH STEEL INDUSTRIES PRIVATE LIMITED, a company incorporated under the Companies Act, 1956 with permanent account number AAACR5147E and having its registered office at Block No. 400, 4 th floor, M.G. House, Ravindra Tapana Marg, Civil Lines, Nagpur, Maharashtra (hereinafter referred to as "Rajesh Steel").	Address:	Plot No.300, Opp. Haseep College, Chikamula Marg, Civil Lines, Nagpur - 44
		Email:	rajeshsteel@vsnl.in
		Attention:	Abhishek Agrawal
2.	JASBIRA ABHIRAM AGRAWAL, an Indian resident individual, with permanent account number HCPHJ190K and residing at 300, Opposite Haseep College, Chikamula Marg, Civil Lines, Nagpur - 440001	Address:	Plot No.300, Opp. Haseep College, Chikamula Marg, Civil Lines, Nagpur - 44
		Email:	abhishek@vsnl.in
		Attention:	Abhishek Agrawal
3.	RISHABH ABHIRAM AGRAWAL, an Indian resident individual, with permanent account number AHCH4045E and residing at 300, Opposite Haseep College, Chikamula Marg, Civil Lines, Nagpur - 440001	Address:	Plot No.300, Opp. Haseep College, Chikamula Marg, Civil Lines, Nagpur - 44
		Email:	abhishek@vsnl.in
		Attention:	Abhishek Agrawal

SCHEDULE B | DEFINITIONS AND INTERPRETATION

PART A | DEFINITIONS

1. Definitions

All capitalized terms and abbreviations used in this Agreement but not defined herein, shall have the meaning ascribed to such terms or abbreviations in the Investment Agreement, unless specified otherwise. Further: (a) terms defined by inclusion in quotations and/or parentheses have the meanings so ascribed; and (b) the following terms shall have the meanings assigned to them herein below:

“Agreement” means this securities pledge agreement and includes all recitals, annexures, schedules and exhibits appended hereto, entered into amongst the Pledgor, the Company and the Debenture Trustee as may be amended or supplemented from time to time;

“Beneficial Owner” means, in respect of the Pledged Securities (after dematerialisation of the Pledged Securities), the person whose name is recorded by the Pledgor’s Depository as the beneficial owner of the Pledged Securities;

“Closing Date” shall have the meaning as set forth in the Investment Agreement;

“Collateral” means, collectively the Pledged Securities, together with instruments, records, powers of attorney, consents, approvals, permissions, no-action letters, confirmations, agreements, deeds and documents delivered or required to be delivered or deemed to be delivered in connection with the creation and perfection of the pledge and charge on the Pledged Securities including without limitation the Deposited Documents and Related Rights;

“Core Bonded” shall have the meaning as set forth in the Investment Agreement;

“Debenture Documents” shall collectively mean (i) the Investment Agreement; (ii) the Debenture Trustee Agreement; (iii) this Agreement; (iv) any other document designated as a Debenture Document by the Parties in writing;

“Deposited Documents” means: (a) Share Certificates; (b) Transfer Forms; (c) OCB Certificates; (d) copies of the Pledge Request Form(s) filed by the Pledgor with its Participant requesting for the creation of the pledge and the intimation received from the Pledgor’s Depository confirming (i) the creation and the noting of the pledge over the Pledged Securities in favour of the Debenture Trustee; and (ii) the transfer of the Pledged Securities from the “free balance” to “pledged balance”; (e) pass book / certified copy of statement of accounts in respect of the Pledged Securities issued by the Participant of the Pledgor confirming the holding of the Pledged Securities by the Pledgor as the beneficial owners; (f) confirmation received from the Pledgor’s Depository for creation and noting of the Pledged Securities in favour of the Debenture Trustee; (g) Power(s) of Attorney; (h) copies of the approvals of any Governmental Authority or any other Person required in connection with or for the creation and perfection of the pledge and charge over the Pledged Securities and other Collateral in favour of the Debenture Trustee, as applicable; and (i) any other documents relating to any distributions and accretions in respect of the Pledged Securities that are required to be deposited pursuant to this Agreement;

“Depository” shall have the meaning ascribed to it under the Depositories Act;

"Depositories Act" means Depositories Act 1996, as amended or replaced from time to time;

"Depositories Regulations" means the Securities and Exchange Board of India (Depositories and Participants) Regulations, 2008, as amended or replaced from time to time;

"Encumbrance" shall have the meaning ascribed to it under the Investment Agreement;

"Event of Default" means the occurrence of an event which is defined as an "Event of Default" under the Investment Agreement;

"Final Settlement Date" means the date on which: (a) all Sale Securities are converted into Equity Shares; (b) all the Sale Securities held by the Security Holder have been redeemed by the Company; and/or (c) all the Conversion and Issuing Actions are completed, whichever is later, and in each case: (i) to the satisfaction of the Security Holder; (ii) as per the terms of the Investment Agreement and (iii) subject to fulfillment by the Company of its obligations under Clause 5.3 of the Investment Agreement;

"Fully Diluted Basis" shall have the meaning ascribed to it under the Investment Agreement;

"Losses" means any and all direct losses, liabilities, Taxes, claims, demands, actions, suits, judgments, awards, fines, penalties, fees, settlements and proceedings, damages, charges, reasonable costs and expenses (including attorneys' and accountants' fees, costs of investigation, remediation or other response action), interests, penalties in each case whether or not resulting from any Third Party Claim. It is clarified that "Losses" shall exclude indirect, remote and consequential losses;

"OCB Certificates" means the original debenture certificates representing the Pledged OCBs and the letters of allotment, if any, in relation to, and receivable or distribution in respect of, or in exchange for, any of the Pledged OCBs;

"Participant" shall have the meaning provided to such term in Clause 2(g) of the Depositories Act;

"Pledge Request Form" means the form required to be filed with the concerned Depository for creating and recording the pledge of the Pledged Securities in accordance with the Depositories Act, the Depositories Regulations and the rules thereunder and such other documents required to be filed thereunder in relation to a pledge;

"Pledgor's DP Account" means the account of each Pledgor with the Pledgor's Participant for holding the Pledged Securities in a dematerialised form, established and maintained by each Pledgor with its respective Pledgor's Participant;

"Pledged Equity Shares" means the Equity Shares set out in Part A of [Schedule II] (Pledged Securities);

"Pledged OCBs" means 2,70,00,000-Class B OCBs held by Rakesh Doshi and as set out in more details in Part B of [Schedule II] (Pledged Securities);

"Power of Attorney" means the power of attorney dated on or about the date of this Agreement, to be issued by each of the Pledgors, in the form set out in [Schedule IV] (Form of Power of Attorney) hereto, in favour of the Debenture Trustees, for the exercise of powers in accordance with the terms of this Agreement;

"Put Option Notice" shall have the meaning ascribed to it under the Investment Agreement;

"Related Rights" shall collectively mean the Related Rights for Pledged Equity Shares and the Related Rights for Pledged OCCs.

"Related Rights for Pledged Equity Shares" means each Pledgor's rights, title and interest (present and future, actual and contingent) under or in relation to or accruing to the Pledged Equity Shares, including, without limitation:

- (a) any letter of allotment and instruments or other property from time to time received, receivable or distributed in exchange for any and all of the Pledged Securities from time to time;
- (b) all the right, title, interest, benefit, claims, demands, privileges of the Pledgors, both present or future, in respect of the Collateral;
- (c) rights of the Pledgors consequent to any conversion, redemption, cancellation, reclassification, forfeiture, consolidation or sub-division in respect of the Collateral;
- (d) rights of the Pledgors consequent on a reduction of capital, liquidation or scheme of arrangement, in connection with the Collateral;
- (e) all rights under any deed or agreement relating to the Collateral;
- (f) the right to compel performance of the terms of the Collateral;
- (g) the right to agree to any amendments to, or to grant any waivers or consents to, the terms of, or the termination or replacement of, the Collateral; and
- (h) the right to agree to settlement of any disputes in respect of the Collateral;

"Related Rights for Pledged OCCs" means, in relation to any Pledged OCCs, all present and future:

- (a) coupon, default interest, redemption premium, break costs, principal amount, distributions or payments of any kind and any other sum received or receivable in respect of that payable in relation to that Pledged OCC;
- (b) rights, money or other assets accruing or offered by way of redemption, option or otherwise in respect of that Pledged OCC;
- (c) statements, offers and rights accruing or offered in respect of that Pledged OCC; and
- (d) other rights and assets attaching to, deriving from or exercisable in virtue of the ownership of, that Pledged OCC.

"Sale Sanction" shall have the meaning ascribed to it under the Investment Agreement;

"Secured Obligations" means the Option Consideration and/or the Default Option Consideration to be paid by the Promoters, the Existing Shareholders and/or the Company to HFFI pursuant to exercise of a Put Option under the Investment Agreement, and shall be deemed to include any interest, liquidated damages and/or enforcement costs and expenses in relation to the above;

"Security" means the security by way of pledge over the Pledged Securities created by this Agreement;

"Security Holder" means HPPFL;

"Secured Parties" shall collectively mean the Debenture Trustee and HPPFL;

"Share Certificates" means the original share certificates representing the Pledged Equity Shares and the letters of allotment, if any, in relation to, and instruments from time to time received, receivable or distributed in respect of, or in exchange for, any of the Pledged Equity Shares;

"Tax" or "Taxes" shall have the meaning(s) given to the term "Tax" or "Taxes" or "Taxation" in the Investment Agreement; and

"Transfer Forms" shall mean the blank transfer forms or other documents for the transfer of shares and/or optionally convertible debentures, if any, relating to the Pledged Securities duly executed by the Pledgor or the Debenture Trustee as a duly constituted attorney of the Pledgor under the Power of Attorney.

2. Additional Defined Terms

In addition, for the purposes of this Agreement, the following terms have the meanings specified in the indicated Clauses of the Agreement:

TERM	CLAUSE
Agreement	Preamble
Company	Preamble
Execution Date	Preamble
Investment Agreement	Schedule A
Party(ies)	Preamble
Pledged Securities	Schedule C
Pledgor(s)	Preamble
Debenture Trustee	Preamble
Subsequently Pledged Securities	Clause 2.1.3(i)

PART B | INTERPRETATION

The provisions of Clause 3.2 [Interpretation] of the Investment Agreement shall apply, *mutatis mutandis*, to this Agreement as if specifically set out herein and all references to "this Agreement" or "the Agreement" in Clause 3.2 [Interpretation] of the Investment Agreement shall be deemed to be a reference to this Agreement.

SCHEDULE 10 | PLEDGED SECURITIES

PART A - PLEDGED EQUITY SHARES

#	NAME OF EQUITY SHAREHOLDER	NUMBER OF EQUITY SHARES PLEDGED	NOMINAL VALUE OF EQUITY SHARES PLEDGED (INR)	% SHAREHOLDING	SHARE CERTIFICATE NO	SERIAL NO
1.	SAHARA ASHOK AGRIWAL	5,000	50,000	50%	1	001 to 5,000
2.	ROSHNA ARSHAD AGRIWAL	5,000	50,000	50%	2	5,001 to 10,000
TOTAL		10,000		100%		

PART B - PLEDGED OCDS

#	NAME OF THE OCD HOLDER	NUMBER OF OCDS PLEDGED	FACE VALUE (INR)	% SHAREHOLDING	CERTIFICATE NUMBER
1.	RAJESH STEEL INDUSTRIES PRIVATE LIMITED	10,44,000	10	100%	1

SCHEDULE IV | FORM OF POWER OF ATTORNEY

TO ALL TO WHOM THESE PRESENTS SHALL COME, WE, JAINBAYN AGRIWAL, BOGISHA AGRIWAL, ADARSH AGRIWAL and RAJESH STEEL INDUSTRIES PRIVATE LIMITED (hereinafter referred to as the "Pledgors") state that:

WHEREAS:

1. The Pledgors are the valid owners of the Pledged Securities of the Company.
2. The shareholding of the Pledgors in the Company is detailed in Annexure A hereto and each Pledgor has full legal right, title and interest in the Pledged Securities with power to deal with such securities in any manner the Pledgor thinks fit.
3. Pursuant to the Debenture Documents, each Pledgor has, as security for the Secured Obligations, executed a Securities Pledge Agreement dated [] (the "Securities Pledge Agreement") and, (subject to Applicable Law, pledged in favour of the Debenture Trustee, the Collateral.
4. As per the terms of the Securities Pledge Agreement, each Pledgor has undertaken and agreed to irrevocably appoint the Debenture Trustee as its attorney-in-fact (an "Attorney"), to accomplish the purpose of the Securities Pledge Agreement with full authority in terms of the Securities Pledge Agreement.

In pursuance of the above, each Pledgor is desirous of appointing the Debenture Trustee as its Attorney on and from the Execution Date.

NOW THESE PRESENTS WITNESS THAT

Each Pledgor does hereby irrevocably and unconditionally nominate, constitute and appoint WARDHAMAN TRUSTEESHIP SERVICES LIMITED, a company incorporated under the Companies Act 1956 with corporate identity number: U06800MH-0090700050003, having its registered office at 2nd Floor, Room-402-15, 6, Lyons Range, Turner Morrison House, Sakinaka - 700002, in the state of West Bengal, India and corporate office at The Capital, A Wing, 412B, Bandra Kurla Complex, Bandra (East), Mumbai - 400051, in the state of Maharashtra, India and a branch office at Konnectus Tower 3, 403/43, Shakti Bhag, New Delhi - 110002, in the National Capital Territory of Delhi, India, to be its true and lawful Attorney in its name and on its behalf and at its risk and costs to do or cause to be done the following acts, deeds, matters or things, subject to the terms of the Securities Pledge Agreement, that is to say:

1. upon occurrence of an Event of Default which has not been cured within the Cure Period (in the event a Cure Period is applicable for such Event of Default), to transfer or register the Pledged Securities as per the instructions of the Security Holder, as the Debenture Trustee and also as the agent of the Security Holder, at the cost of the Pledgors.
2. at any time, to take any action and execute any instrument that the Debenture Trustee may deem necessary or advisable for perfection of the Encumbrance undertaken to be created by the Securities Pledge Agreement in full force and effect.
3. at any time after an Event of Default occurs which has not been cured within the Cure Period (in the event a Cure Period is applicable for such Event of Default).

- (a) to vote at all or any meetings of the shareholders of the Company or otherwise to act as the Pledgor's attorney or attorney's representative(s) or proxy(es) in respect of the Pledged Securities; and
 - (b) to appoint any proxy(es) to represent the Pledgor at all or any meetings of the shareholders of the Company with full authority to vote at such meetings in such manner as the Attorney may deem fit.
4. at any time, in respect of the issue of further securities to the Pledgors and in the name of the Pledgors to execute all forms, documents and papers which may in the opinion of the Attorney be necessary or required to enable the Attorney to deposit such new securities for safe deposit by way of pledge for the preservation, enforcement, and realization of Encumbrances created under the Securities Pledge Agreement.
 5. at any time, to appoint and remove at Attorney's sole absolute pleasure and discretion any substitute for attorney or agents under such Attorney in respect of all or any of the matters aforesaid.
 6. in the event the Company fails to dematerialise the Pledged Securities, to offer the Pledged Securities for dematerialisation or dematerialisation pursuant to the Depositories Act, 2006 and the rules made there under and to obtain registration of the names of the beneficial owners thereof in the records of the Pledgor's Depository or any other intermediary, and to do all acts, deeds and things, and to execute and deliver all deed, documents and writing in order to obtain and implement dematerialisation of the Pledged Securities.
 7. upon occurrence of an Event of Default which has not been cured within the Cure Period (in the event a Cure Period is applicable for such Event of Default), to execute documents and papers as transferor in respect of all the Pledged Securities in the name of the Pledgors.
 8. upon occurrence of an Event of Default which has not been cured within the Cure Period (in the event a Cure Period is applicable for such Event of Default), transfer and deliver the Pledged Securities to any person pursuant to the Securities Pledge Agreement, in exercise of the pledge created under the Securities Pledge Agreement and deposit the proceeds as it deems fit.
 9. to act in relation to these premises as fully and effectually in all respects as we, the Pledgors ourselves could do if personally present to do any other acts, deeds, matters or things to give effect to any of the aforesaid powers granted hereunder.

AND WE HEREBY agree that the power granted under this Power of Attorney is power coupled with interest.

AND WE HEREBY agree to ratify and confirm all and whatsoever our said Attorneys shall do or purport to do or cause to be done by virtue of these presents.

AND WE HEREBY declare that this Power of Attorney is and shall be irrevocable until the Final Settlement Date has occurred.

Capitalised terms not defined herein shall have the meanings ascribed to them in the Securities Pledge Agreement.

IN WITNESS WHEREOF, THE PARTIES HERETO HAVE CAUSED THIS POWER OF ATTORNEY TO BE DULY EXECUTED AND DELIVERED BY THEIR DULY AUTHORIZED REPRESENTATIVES AS OF THE DAY AND YEAR FIRST HEREINAFORE WRITTEN.

THE COMMON SEAL of RAJESH STEEL INDUSTRIES PRIVATE LIMITED as the Pledgor, has been pursuant to resolution passed by its board of directors at their meeting held on [x] day of [x], 2003, herewith affixed in the presence of Shri [x], its director who has signed these presents in token thereof.

IN WITNESS WHEREOF, THE PARTIES HERETO HAVE CAUSED THIS POWER OF ATTORNEY TO BE DULY
EXECUTED AND DELIVERED BY THEIR DULY AUTHORIZED REPRESENTATIVES AS OF THE DAY AND
YEAR FIRST HEREINAFORE WRITTEN.

Signed and delivered for by

JAMES SCOTT NORMAN

IN WITNESS WHEREOF, THE PARTIES HERETO HAVE CAUSED THIS POWER-OF ATTORNEY TO BE DULY EXECUTED AND DELIVERED BY THEIR DULY AUTHORIZED REPRESENTATIVES AS OF THE DAY AND YEAR FIRST HEREINAFORE WRITTEN.

Signed and delivered for by

ROSHNA ABHIRAM AGRAWAL

ANNEXURE-A - PLEDGED SECURITIES

PART A - PLEDGED EQUITY SHARES

#	NAME OF EQUITY SHAREHOLDER	NUMBER OF EQUITY SHARES PLEDGED	NOMINAL VALUE OF EQUITY SHARES PLEDGED (INR)	% SHAREHOLDING	SHARE CERTIFICATE NO	CERTIFICATE NO
3.	JAYSHYAM ASHISH AGRAWAL	5,000	50,000	50%	1	01 to 5,000
4.	ROHINI ASHISH AGRAWAL	5,000	50,000	50%	2	5,006 to 10,000
TOTAL		10,000		100%		

PART B - PLEDGED ODS

#	NAME OF THE ODS HOLDER	NUMBER OF ODS PLEDGED	FACE VALUE (INR)	% SHAREHOLDING	DEBENTURE CERTIFICATE NUMBER
1.	RAJESH STEEL INDUSTRIES PRIVATE LIMITED	14,83,000	20	100%	1

SCHEDULE V | CONFIRMATION ON THE SUBSEQUENT PLEDGE OF SECURITIES

To

SUBSIDIARY TRUSTEESHIP PRIVATE LIMITED, as Debenture Trustee

[Date]

Dear Sir,

Subject: Pledge of additional securities held in EDC Warehousing Private Limited (the "Company")

We refer to the Securities Pledge Agreement dated [•] executed among the Pledgers, the Debenture Trustee and the Company (the "Securities Pledge Agreement"). Capitalised terms used herein and not otherwise defined herein, shall have the same respective meanings given to such terms in the Securities Pledge Agreement.

In pursuance of our obligation under Clause 1.1.3 (Pledge) of the Securities Pledge Agreement, we hereby pledge in your favour as the Debenture Trustee, for the benefit of the Security Holders, to secure the due repayment of the Secured Obligations, the following additional securities:

SR NO	FIN VALUE OF SECURITIES (INR)	ISIN	NUMBER OF PLEDGED SECURITIES	AGGREGATE NOMINAL VALUE OF SHARES (INR)
[•]	[•]	[•]	[•]	[•]

All the above securities of ₹[•] [Indian Rupees [•]] each are fully paid up and free from Encumbrances.

We further agree and confirm that hereafter such securities, together with the existing Pledged Securities, shall comprise the Pledged Securities under the Securities Pledge Agreement and that the pledge of these securities shall be subject absolutely to the terms and conditions contained in the Securities Pledge Agreement.

Yours faithfully

On behalf of [insert the name of the pledger]

[•]

[Authorized Signatory]